

dante buenbrazo gatmaytan

CONSTITUTIONAL LAW IN THE PHILIPPINES

GOVERNMENT STRUCTURE



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**CONSTITUTIONAL LAW
IN THE PHILIPPINES:
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Dante Buenbrazo Gatmaytan

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PREFACE

The study of the Philippine Constitution is, by any metric, a massive undertaking. Law schools divide the subject into different courses that students take over many semesters. Law students focus first on the structure of government or the relationship among the Legislative, Executive, and Judicial branches of government. This topic alone requires time considering that the Constitution overhauled the previous Constitution, consciously plugging the loopholes found or crafted by Ferdinand Marcos as the head of a dictatorial government.

This is a relatively young constitution. Every month the Supreme Court promulgates decisions, feeding a growing body of case law that continues to explain the meaning of the Constitution.

This book was written as an aid to the study of the Constitution. It is designed to appeal to a broad audience: students, academics, and members of both the bench and the bar. It places the document in historical context by discussing the interests that informed the writing of the fundamental law. It discusses the key concepts in constitutional law such as the separation of powers, checks and balances, and judicial review. The materials for these chapters were developed from my earlier book “Legal Method Essentials”. This book then presents the key Supreme Court decisions that interpret the provisions on the Legislative, Executive, and Judicial branches of government.

This book was written in a style that provides the reader with a quick review of the concepts and cases that are at the heart of Philippines constitutional law.

Dante Buenbrazo Gatmaytan
August 2015

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Professor Gatmaytan writes on the environment, gender, the judiciary, and the intersection of law and politics. His works have appeared in the Asian Journal of Comparative Law, the Oregon Review of International Law, the UCLA Pacific Basin Law Journal, the Georgetown International Environmental Law Review, and the Harvard Women's Law Journal among many others. His other books are Legal Method Essentials 2.0 (2014) and Local Government Law and Jurisprudence (2014).

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INTRODUCTION: A CONSTITUTION'S PREAMBLE

A Preamble is the introduction to the Constitution. In a more substantive sense, a Preamble presents the history behind the enactment of a Constitution, as well as the nation's core principles and values.¹ Preambles may outline a society's fundamental goals. These may be universal objectives, such as the advancement of justice, fraternity, and human rights. It may also be economic goals, such as a socialist agenda or the advancement of a free market economy. Almost always, these goals are abstract ideas, such as happiness or well-being. For instance, the Constitution of Japan denounces war while the Preambles to the Constitutions of the Philippines and of Turkey mention "love."²

The Preamble of the Philippine Constitution³ reads:

We, the sovereign Filipino people, imploring the aid of Almighty God, in order to build a just and humane society, and establish a Government that shall embody our ideals and aspirations, promote the common good, conserve and develop our patrimony, and secure to ourselves and our posterity, the blessings of independence and democracy under the rule of law and a regime of truth, justice, freedom, love, equality, and peace, do ordain and promulgate this Constitution.

This Preamble is made of three parts. The first refers to the authors of the Constitution—"the sovereign Filipino people." The second part refers to a series of goals that the authors hope to achieve: To establish a Government that shall:

1. embody our ideals and aspirations,
2. promote the common good,

1 Liav Orgad, "The Preamble in Constitutional Interpretation", 8 INT'L J. CONST. L. 714, 715-716 (2010).

2 Id. at 717.

3 This book will discuss only the 1987 Constitution. For a brief background on the development of constitutional law in the Philippines, see George A. Malcolm, "Constitutional History of the Philippines", 6 AMERICAN BAR ASSOCIATION JOURNAL 109-112 (1920).

2 Constitutional Law in the Philippines: Government Structure

3. conserve and develop our patrimony, and
4. secure the blessings of independence and democracy.

The third part is a description of the regime under which these goals should be met: under the rule of law and a regime of truth, justice, freedom, love, equality, and peace.

The Preamble is longer than its earlier incarnations. The 1935 Constitution was wry in comparison:

The Filipino people, imploring the aid of Divine Providence, in order to establish a government that shall embody their ideals, conserve and develop the patrimony of the nation, promote the general welfare, and secure to themselves and their posterity the blessings of independence under a regime of justice, liberty, and democracy, do ordain and promulgate this Constitution.

The 1973 version was slightly longer:

We, the sovereign Filipino people, imploring the aid of Divine Providence, in order to establish a Government that shall embody our ideals, promote the general welfare, conserve and develop the patrimony of our Nation, and secure to ourselves and our posterity the blessings of democracy under a regime of justice, peace, liberty, and equality, do ordain and promulgate this Constitution.

The 1987 Constitution's Preamble is longer because there is a conscious effort to prevent the country's fall into authoritarianism. The 1987 Constitution uses words "just," "humane," "the rule of law," and "freedom," which is an obvious attempt to block the return of strongman rule.

Retired Supreme Court Associate Justice Cecilia Muñoz-Palma, the President of the Constitutional Commission which drafted the 1987 Constitution, provides the only explanation of the Preamble. She gave a speech as the Commission wrapped up its work and prepared to campaign for its ratification, where she said:

My countrymen, we open the new Charter with a Preamble which is the beacon light that shines and brightens the path in

building a new structure of government for our people. In that Preamble is expounded in positive terms our goals and aspirations. Thus, imploring the aid of Almighty God, we shall establish a just and humane society, a social order that upholds the dignity of man, for as a Christian nation, we adhere to the principle that, and I quote: “the dignity of man and the common good of society demand that society must be based on justice.” We uphold our independence and a democratic way of life and, abhorring despotism and tyranny, we bind ourselves to live under the rule of law where no man is above the law, and where truth, justice, freedom, equality, love and peace will prevail.⁴

Justice Muñoz-Palma explained the inclusion of the word “love” in the Constitution as well:

For the first time in the history of constitution-making in this country, the word “love” is enshrined in the fundamental law. This is most significant at this period in our national life when the nation is bleeding under the forces of hatred and violence. Love which begets understanding is necessary if reconciliation is to be achieved among the warring factions and conflicting ideologies now gripping the country. Love is imperative if peace is to be restored in our native land, for without love there can be no peace.⁵

The Constitutional Commission, speaking through its President, seemed certain that the Preamble would play a significant role in the Constitution — at least insofar as protecting civil liberties is concerned. Since the Constitution was adopted, however, the Supreme Court has had few opportunities to examine or use the Preamble of its Constitution. Interpreting the 1935 Constitution, the Court held that even if the President was

4 Closing remarks of Constitutional Commission President Cecillia Muñoz-Palma: During the final session of the Constitutional Commission, Batasang Pambansa, Quezon City October 15, 1986 available at <<http://www.gov.ph/1986/10/15/closing-remarks-of-the-president-of-the-constitutional-commission-at-the-final-session-october-15-1986/>>

5 Closing remarks of Constitutional Commission President Cecillia Muñoz-Palma: During the final session of the Constitutional Commission, Batasang Pambansa, Quezon City October 15, 1986 available at <<http://www.gov.ph/1986/10/15/closing-remarks-of-the-president-of-the-constitutional-commission-at-the-final-session-october-15-1986/>>

authorized to “place the Philippines or any part thereof under martial law,” the primordial objective should be a “regime of justice,” as contemplated in the Preamble of the Constitution.⁶

In another case, it was held that the Filipino people, in “imploing the aid of Almighty God,” manifested their spirituality, which is innate in their nature and consciousness as a people, shaped by tradition and historical experience. As this was embodied in the Preamble, it meant that the State “recognizes and respects the influence of religion in so far as it instills into the mind the purest principles of morality.” The Court was quick to add, however, that the framers adopted principle of separation of Church and State (in Article II, Section 6 of the 1987 Constitution) so that the State would not encroach into the affairs of the Church, and vice-versa.⁷

The Supreme Court of the United States has used the Preamble more times as one author noted:

During the last two hundred years Supreme Court Justices have invoked the preamble in dozens of cases. In some of those cases, the preamble’s phrases have been used merely for rhetorical (as opposed to interpretive) purposes. More often they have been used to resolve close questions of constitutional interpretation. And occasionally they have effectively been used to create a right or power that does not appear in the body of the Constitution. In any event, the preamble has always been taken sufficiently seriously by Supreme Court Justices to have been used as one of the “tools” of constitutional interpretation. And insofar as this is the case, the suggestion that the preamble is “universally regarded as an empty verbal flourish” seems plainly wrong.⁸

6 *Nava v. Gatmaitan*, G.R. No. L-4855, October 11, 1951.

7 *Spouses Imbong v. Ochoa, Jr.*, G.R. No. 204819, April 8, 2014.

8 Dan Himmelfarb, “The Preamble in Constitutional Interpretation”, 2 SETON HALL CONST. L.J. 127, 145 (1991). A contrary view if presented by other scholars. See Milton Handler, et al., “A Reconsideration of the Relevance and Materiality of the Preamble in Constitutional Interpretation”, 12 CARDOZO L. REV. 117 (1990) (Though it is understandable that the courts, on the few occasions on which the question has arisen, have accorded no substantive effect to the preamble, it is difficult to comprehend why they ... have failed to turn to the preamble as an aid to the proper construction of the constitutional text.).

It seems clear that the framers intended to guard against the return to martial law regime. This was the goal pronounced at the very beginning of the Constitution, and the anti-authoritarian feature can be seen throughout this text.

This is not to say that the Supreme Court or the other branches of government have always interpreted or understood the Constitution as system of safeguards against tyranny. As I point out in Chapter 1, various interests informed the writing of the Constitution; interests that curbed the revolutionary potential of the post-Marcos era. The Constitution, from this perspective, is a set of compromises of these interests. Many of these presented interesting tensions of contending views on, for example, social justice or economic theory, but are beyond the scope of this book. My point is that one clear thrust of the 1987 Constitution has been to strengthen the checks against the abuse of power, and the record after nearly thirty years shows continuous attempts to test the limits of these checks, not faithful obedience to its mandates.

This book emphasizes the ways by which the framers invigorated the American system of government by plugging the loopholes that Ferdinand Marcos exploited to set up his martial law regime. It is limited to the structure of government and the way the branches of government interact with each other.

The first three chapters will deal with themes in constitutional governance. Chapter 1 discusses the context of the history of the Constitution and summarizes its key features. Chapter 2 discusses the “separation of powers” doctrine—the distribution of governmental powers to various branches to preclude the concentration of powers in one person or entity. Chapter 3 discusses “checks and balances,” or the manner by which the branches of government ensure that the other branches operate within their constitutional mandates. Chapter 4 is devoted to one form of check—judicial review. In order to appreciate the concept of judicial review, a full chapter has been devoted to its discussion as the 1987 Constitution made radical changes to this form of check by expanding the powers of the Supreme Court.

The next three chapters will discuss the three branches of government. Each will have an introductory discussion, followed by the text of the

Constitution annotated with decisions of the Supreme Court. Chapters 5, 6, and 7 discuss the Legislative, Executive, and Judicial Departments respectively.

CHAPTER 1

THE CONTEXT

The Constitution of the Philippines was written after Ferdinand Marcos was forced out of office and into exile. There were many who had hoped that as a by-product of a “revolution,” the Constitution could overhaul Philippine society and provide a legal basis for a more egalitarian state. Corazon Aquino raised hopes when she issued Proclamation No. 3 (1986), saying that Marcos’s ouster “was done in defiance of the provisions of the 1973 Constitution.”¹ The Supreme Court would later say that Aquino’s government was “indisputably a revolutionary government bound by no constitution or legal limitations, except treaty obligations that the revolutionary government, as the *de jure* government in the Philippines, assumed under international law.”² Cynics, on the other hand, claim that the Constitution is nothing more than the formal restoration of oligarchy—a rejuvenation of factions of the political and economic elite that fell out of favor with the Marcos government.

Aquino appointed a fifty-person commission to write a new constitution. Her closest advisers selected its members — mostly lawyers close to the presidential camp. The Commission included two of the leaders of Aquino’s campaign team, four members close to the President’s family, while ten were members of the 1971 Constitutional Convention (four places were reserved for Marcos’s New Society Movement and one for the pro-Marcos sect, the *Iglesia ni Cristo*). The final mix of former members of Congress, Supreme Court justices, and representatives of the Catholic Church and the business community guaranteed that the Commission would produce a document that adhered closely to the pre-martial law institutional framework.³ Varying interests represented by the Commissioners early in the process showed that the constitution would be a product of compromise. The

1 In re: Puno, A.M. No. 90-11-2697-CA (Resolution), June 29, 1992.

2 *Republic v. Sandiganbayan*, G.R. No. 104768, July 21, 2003.

3 James Putzel, “Survival of an Imperfect Democracy in the Philippines”, 6 *DEMOCRATIZATION* 198, 210 (1999).

Commission represented the elite, and its work hewed closely to the status quo.⁴

The Commission reflected the coalition that brought Aquino to power — civil society actors working beside the familiar members of traditional political society. Nearly half of its members reported having participated in mass actions in areas such as land reform, ethnic conflicts, and gender issues.⁵

Aquino, however, blunted the potential of the Constitutional Commission as an agent of change. She addressed the Constitutional Commission and said:

... Your task is to design a constitution that will provide for a new legislature. Not to do that legislature's work for it. That is for the people's elected representatives to do.

You must define and protect our individual freedoms and rights; you must decide how our different institutions of state will relate to each other. Do not be distracted by political debates and matters of policy that do not belong within your constitution-making exercise. You are here appointed, by the people's wish, to write a constitution; you are not here as elected politicians.

Bear in mind that you shall be pondering, debating and writing a constitution not only for our contemporaries with their present concerns, but also for succeeding generations of Filipinos whose first concerns we cannot presume to know beforehand. Future Filipinos must always be free to decide how to address these concerns as they arise. Even the wisest cures for present maladies should not be imposed on succeeding

4 Wilfrido V. Villacorta, "The Dynamics and Processes of Writing the 1987 Constitution", 32 PHILIPPINE J. OF PUBLIC ADMINISTRATION 299 (1988).

5 K. Eaton, "Restoration or Transformation? 'Trapos' versus NGOs in the Democratization of the Philippines", 62 THE JOURNAL OF ASIAN STUDIES 469, 476 (2003).

generations that will have their own unique problems and priorities.⁶

The speech seemed to limit the Commission to writing just the broad outlines of a constitution—not to sketching a blueprint for social change.

The Constitutional Commission convened on June 2, 1986. In a matter of months, it held public hearings and regional consultations, and has spent two months on floor debates. The Commission finished a draft by October 15, 1986, and the plebiscite for its ratification was later held in February 1987.⁷

The Commission and the Constitution that it produced tamed the euphoria that followed the removal of Marcos from office. Conservative interests which weighed heavily during the deliberations had tamed the Constitution. In fact, the ouster of Marcos was described as “a hurried and partially negotiated transfer of power to a coalition of forces that had nothing in common but hatred of Marcos.”⁸ The Aquino government resurrected the old politics of patronage and corruption and the democratic institutions she restored could not respond to the problems of “landlessness, mass poverty, unemployment, and environmental blight.”⁹

Still, there was one constant in the writing of the 1987 Constitution. However entrenched the political elite may be, or however stratified Philippine society is, the fact is that the writing of the 1987 Constitution was a conscious effort to place legal obstacles to dictatorship. The public and the members of the Commission were engaged in an effort to ensure that political power will never be concentrated in the hands of a single person.

6 Speech of President Corazon Aquino to the members of the Constitutional Commission, June 2, 1986, available at <<http://www.gov.ph/1986/06/02/speech-of-president-corazon-aquino-to-the-members-of-the-constitutional-commission-june-2-1986/>>

7 B. M. Villegas, “The Philippines in 1986: Democratic Reconstruction in the Post-Marcos Era”, 27 *ASIAN SURVEY* 194, 202(1987). The Constitution was overwhelmingly ratified although scholars regularly claim that the campaign for the ratification centered more on President Aquino’s popularity than on the merits of the draft charter. See Hernandez, 1988. See Sheila S. Coronel, “Dateline Philippines: The Lost Revolution”, 84 *FOREIGN POLICY* 166, 166-185 (1991).

9 Id. at 187 (1991).

The Philippine Constitution today is very long precisely because the framers wanted to plug all the loopholes which Marcos exploited to provide his dictatorship with a veneer of legitimacy.

MARCOS AND THE CONCENTRATION OF POWER

Ferdinand Marcos was elected President in 1965, and again in 1969. To avoid a constitutional bar to a third term in office, he called a constitutional convention to change the Constitution. Marcos wanted the convention to either extend his term by two more years or to change the form of government from presidential to parliamentary. If the plan had succeeded, Marcos could have run as a member of parliament in his home province and, as leader of the majority party, could have assumed the role of Prime Minister. This would have enabled Marcos to stay in power indefinitely, or at least as long as his party controlled Congress.¹⁰

Before the Convention could finish its work, Marcos placed the country under martial law and then pushed for the adoption of the new Constitution. However, instead of following the procedure laid down in the old Constitution, he created Citizens' Assemblies in every barrio. The Assemblies were composed of all citizens over fifteen years of age who were asked to vote on the Constitution. At that time, the Constitution was presented without opposition as the press and civil liberties were muzzled. Marcos' opponents and political commentators were either in detention or exile. These assemblies carried out the adoption of the Constitution "where armed soldiers and policemen were in prominent attendance."¹¹

The "ratification" was riddled with defects. The assemblies included minors. No official ballots were used because voting was done only by a show of hands, a violation of the principle of secrecy. The Commission on Elections did not regulate the tabulation and counting of the votes. There were even claims that these assemblies were never convened and that the votes allegedly cast in these meetings were simply manufactured by the people of Marcos. Marcos also had clandestine meetings with some members

10 Dante Gatmaytan-Magno, "Changing Constitutions: Judicial Review and Redemption in the Philippines", 25 UCLA PAC. BASIN L. J. 1, 4 (2007).

11 Id. at 5.

of the Supreme Court even before martial law was declared and in the weeks before the 1973 Constitution was ratified.¹²

Suits questioning the legality of the ratification of the 1973 Constitution were filed with the Supreme Court. They challenged the President's power to create Citizens' Assemblies and also argued that these assemblies did not have the power to approve the proposed Constitution. It was also argued that the President did not have the power to proclaim the ratification of the proposed Constitution. Despite the irregularities attending the use of the Citizens' Assemblies, the Supreme Court, in *Javellana v. Executive Secretary*,¹³ looked the other way. While a majority of the Supreme Court members ruled that the Constitution was not validly ratified, the Court also ruled that the new Constitution was already in force; it had come into effect through other means.

Through *Javellana*, the Justices of the Supreme Court removed the judiciary from a position of great institutional significance in the Philippine polity by restricting its own scope and depth in decision-making.¹⁴ Public respect formerly accorded the Supreme Court, as well as the Court's reputation for independence, dissipated. By the time Marcos was deposed in 1986, the Court was regarded by many Filipinos as subservient to the President. Even the Supreme Court acknowledged "many judicial problems spawned by extended authoritarian rule which effectively eroded judicial independence and self-respect"¹⁵ that would require time and effort to repair.

Facing pressure from his critics who challenged him to show that he had the people's mandate to lead the country, Marcos announced "snap elections." He fled to Hawaii after attempting to steal the election, forced out of office by massive protests. Corazon Aquino assumed the presidency. She announced that her government was a revolutionary government, and that she was taking power in the name of the people. She abolished the National Legislature and replaced most of the members of the Supreme Court. The

12 Id. at 5.

13 G.R. No. L-36142, 50 SCRA 30 (1973).

14 C. N. Tate, "Courts and Crisis Regimes: A Theory Sketch with Asian Case Studies", 46 Political Research Quarterly 311, 328(1993).

15 Gatmaytan-Magno, supra note 18 at 7.

reorganized Supreme Court recognized the Aquino government as *de jure*, later referring to Aquino's government as a "revolutionary government."¹⁶

FEATURES OF THE 1987 CONSTITUTION

In her closing remarks during the final session of the Constitutional Commission, Constitutional Commission President Cecilia Muñoz-Palma summarized the innovations that were written into the Constitution. On the structure of government, she said:

1. We have established the presidential system of government with three branches — the legislative, executive, and judicial — each separate and independent of each other, but affording an effective check and balance of one over the other.
2. All legislative power is returned and exclusively vested in a bicameral legislature where the Members are elected by the people for a definite term, subject to limitations for reelection, disqualification to hold any other office or employment in the government including government-owned or controlled corporations and, among others, they may not even appear as counsel before any court of justice.
3. For the first time in our Constitution, 20 percent of Members of the Lower House are to be elected through a party list system and, for three consecutive terms after the ratification of the Constitution, 25 of the seats shall be allocated to sectoral representatives from labor, peasant, urban poor, indigenous

16 Dante Gatmaytan, "It's All the Rage: Popular Uprisings and Philippine Democracy", 15 Pac. Rim L. & Pol'y J. 1 (2006). Aquino discarded the 1973 Constitution because of the irregularities surrounding its adoption. The decision also had practical consequences for her new administration. If Aquino retained the 1973 constitution, all officials elected or appointed under its provisions would have been entitled to keep their offices. These would include members of Marcos' KBL party that enjoyed a majority in the National Assembly who could have stood in the way of her legislative program. Among the appointed officials were judges with tenure who could have blocked the confiscation of the ill-gotten wealth of Marcos and his cronies and who could have protected the Marcos' subordinates accused of committing crimes. She would also have to respect the tenure of local officials from the KBL party who could have impeded her government's efforts to establish its rule outside the metropolitan area. See Carl Landé & Richard Hooley, "Aquino Takes Charge", 64 Foreign Affairs 1087 (1986).

cultural communities, women, youth and other sectors as may be provided by law. This innovation is a product of the signs of the times when there is an intensive clamor for expanding the horizons of participatory democracy among the people.

4. The executive power is vested in the President of the Philippines elected by the people for a six-year term with no reelection for the duration of his/her life. While traditional powers inherent in the office of the President are granted, nonetheless for the first time, there are specific provisions which curtail the extent of such powers.
5. Most significant is the power of the Chief Executive to suspend the privilege of the writ of habeas corpus or proclaim martial law. The flagrant abuse of that power of the Commander-in-Chief by Mr. Marcos caused the imposition of martial law for more than eight years and the suspension of the privilege of the writ even after the lifting of martial law in 1981. The new Constitution now provides that those powers can be exercised only in two cases, invasion or rebellion when public safety demands it, only for a period not exceeding 60 days, and reserving to Congress the power to revoke such suspension or proclamation of martial law which congressional action may not be revoked by the President. More importantly, the action of the President is made subject to judicial review, thereby again discarding jurisprudence which renders the executive action a political question and beyond the jurisdiction of the courts to adjudicate.
6. For the first time, there is a provision that the state of martial law does not suspend the operation of the Constitution nor abolish civil courts or legislative assemblies, or vest jurisdiction to military tribunals over civilians, or suspend the privilege of the writ.
7. The new Charter clothes the judicial branch of government with the mantle of independence in order that it may attain once more its lost prestige and regain the faith of the Filipino people. The provisions on the judiciary aim to make the courts of justice the true and faithful "guardian of the Constitution, protector of people's rights and freedoms, and repository of the nation's guarantees against tyranny, despotism, and dictatorship."

8. For the first time judicial power is now expressly defined in the Constitution as to include the duty of the courts of justice to settle actual controversies involving rights which are legally demandable and enforceable and to determine whether or not there has been a grave abuse of discretion amounting to lack or excess of jurisdiction.
9. With this broad definition of judicial power, the Supreme Court can no longer evade adjudicating on the validity of executive or legislative action by claiming that the issue is a political question.
10. For the first time the judiciary is placed beyond the reach of politics and politicians through the creation of a Judicial and Bar Council and security of tenure of judges is assured with a specific prohibition that the legislature may not organize the courts when it shall undermine the security of tenure of the judges. Administrative supervision of the courts is placed in the hands of the Supreme Court.¹⁷

These changes were meant to address the damage inflicted by Marcos's one-man rule.

Aquino was pleased with the Commission's work. When President Aquino received the draft constitution, she declared:

Democracy is safe with this Constitution, safe in regard to its necessary institutions and in regard to the inalienable rights of our people. The powers of government are wisely divided in the time-honored fashion of enduring democracies, where the energy of the single hand, to use Jefferson's reference to the Executive, finds its counterpoise and guidance in the collective wisdom of a representative legislature and in the strict accountability of all elected officials. More than safety, democracy finds in this Constitution the firm ground from

¹⁷ Closing remarks of Constitutional Commission President Cecilia Muñoz-Palma: During the final session of the Constitutional Commission, Batasang Pambansa, Quezon City October 15, 1986 available at <<http://www.gov.ph/1986/10/15/closing-remarks-of-the-president-of-the-constitutional-commission-at-the-final-session-october-15-1986/>>

which to step upwards to the other goals of our nation: its material progress and the well-being of our people.¹⁸

A “People Power” Constitution

Vested interests may have been written into the 1987 Constitution. The Supreme Court recognizes the features that reflect the “people power” phenomenon that overthrew the Marcos regime. The Constitution, the Court wrote, was borne of the conviction that people power can be trusted to check excesses of government. Under the Constitution, people power can be exercised thru initiatives where local ordinances and resolutions can be enacted or repealed.¹⁹ It institutionalized people power in law-making as it expressly recognizes the people’s residual and sovereign authority to ordain direct legislation.²⁰

In another case, the Court said that the 1987 Constitution, more than any previous Constitution, “gave more reality to the sovereignty of our people for it was borne out of the people power in the 1986 EDSA revolution.” It said that Section 10, Article X addressed the undesirable practice in the past whereby local government units were created, abolished, merged or divided “on the basis of the vagaries of politics and not of the welfare of the people.” The Constitution now requires the consent of the people of the local government unit directly affected to serve as a check to any exercise of legislative power creating, dividing, abolishing, merging or altering the boundaries of local government units. This plebiscite requirement is one instance “where the people in their sovereign capacity decide on a matter that affects them — direct democracy of the people as opposed to democracy thru people’s representatives.”²¹

18 Speech of Her Excellency Corazon C. Aquino President of the Philippines to the Constitutional Commission, Released on October 15, 1986 available at <<http://www.gov.ph/1986/10/15/speech-of-president-corazon-aquino-to-the-constitutional-commission-october-15-1986/>>.

19 *Garcia v. COMELEC*, G.R. No. 111230, September 30, 1994.

20 *Subic Bay Metropolitan Authority v. COMELEC*, G.R. No. 125416, September 26, 1996.

21 *Miranda v. Aguirre*, G.R. No. 133064, September 16, 1999.

The Constitution According To The Supreme Court

The Constitution is the means by which the fundamental powers of government are established, limited and defined, and by which those powers are distributed among the several departments for their safe and useful exercise for the benefit of the body politic.²² The supreme law is the ultimate expression of the principles and the framework upon which government and society were to operate.²³ A constitution is a system of fundamental laws for the governance and administration of a nation.²⁴ It is supreme, imperious, absolute and unalterable except by the authority from which it emanates. It has been defined as *the fundamental and paramount law of the nation*. It prescribes the permanent framework of a system of government, assigns to the different departments their respective powers and duties, and establishes certain fixed principles on which government is founded. It is the supreme law to which all other laws must conform and in accordance with which all private rights must be determined and all public authority administered. Under the doctrine of constitutional supremacy, if a law or contract violates any norm of the Constitution, that law or contract, whether promulgated by the legislative or by the executive branch or entered into by private persons for private purposes, is null and void and without any force and effect.²⁵

The Constitution is the basic law to which all laws must conform. And in the discharge of their functions, the three departments of government have no choice but to yield obedience to the commands of the Constitution. Whatever limits it imposes must be observed.²⁶ In case of conflict between the Constitution and a statute, the Constitution always prevails. The duty of the Court is to uphold the Constitution and to declare void all laws that contravene it.

The Constitution is the people's quintessential act of sovereignty, embodying the principles upon which the State and the government are founded. Having the status of a supreme and all-encompassing law, it speaks for all the people all the time, not just for the majority or for the minority at

²² *Chavez v. Judicial and Bar Council*, G.R. No. 202242, April 16, 2013.

²³ *Chavez v. Judicial and Bar Council*, G.R. No. 202242, April 16, 2013.

²⁴ *Manila Prince Hotel v. GSIS*, G.R. No. 122156, February 3, 1997.

²⁵ *Manila Prince Hotel v. GSIS*, G.R. No. 122156, February 3, 1997.

²⁶ *Social Justice Society v. Dangerous Drugs Board*, G.R. No. 157870, November 3, 2008.

intermittent times. Every constitution is a compact made by and among the citizens of a State to govern themselves in a certain manner.²⁷ Constitutional doctrines must remain steadfast no matter what may be the tides of time. It cannot be simply made to sway and accommodate the call of situations and much more tailor itself to the whims and caprices of the government and the people who run it.²⁸

27 *Mendoza v. COMELEC*, G.R. No. 149736, December 17, 2002.

28 *Chavez v. Judicial and Bar Council*, G.R. No. 202242, July 17, 2012.

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CHAPTER 2

THE SEPARATION OF POWERS

The 1987 Constitution has invigorated the separation of powers among the three branches of government. This was a clear response to abuses inflicted by Marcos on the Constitutional system of government. The Philippines has a presidential type of government that distributes power among three co-equal branches: the executive, the legislative, and the judicial departments. The 1987 Constitution provides that “[t]he legislative power shall be vested in the Congress of the Philippines,”¹ “[t]he executive power shall be vested in the President of the Philippines,”² and “[t]he judicial power shall be vested in one Supreme Court and in such lower courts as may be established by law.”³

The principle of separation of powers means that legislation belongs to Congress, execution to the Executive, and settlement of legal controversies to the Judiciary. Each is prevented from invading the domain of the others.⁴ The principle of separation of powers ordains that each of the three branches of government has exclusive cognizance of and is supreme in matters falling within its own constitutionally allocated sphere. The concept of separation of powers presupposes mutual respect by and between the three departments of the government.⁵ This distribution of powers is a fundamental maxim of constitutional law and essential to the separation of the three branches of government; separation, which, though incomplete, is one of the chief characteristics of our Constitution.⁶

The executive power is vested in the President of the Philippines. The President is assisted by Cabinet Secretaries in about nineteen line departments. The presidential power of control over the executive branch of government extends to all executive employees from Cabinet Secretary to the lowliest clerk. The constitutional vesture of this power in the President is

1 Const., Art. VI, § 1.

2 Const., Art. VII, § 1.

3 Const., Art. VIII, § 1.

4 *Senate Blue Ribbon Committee v. Majaducon*, G.R. No. 136760, 138378, July 29, 2003.

5 *Atituv v. Zamora*, G.R. No. 143374, September 30, 2005.

6 *Radiowealth, Inc. v. Agregado*, G.R. No. L-3066, May 22, 1950.

self-executing and does not require statutory implementation, nor may its exercise be limited, much less withdrawn, by the legislature. There is only one Chief Executive who directs and controls the entire executive branch, and all other executive officials must implement in good faith his directives and orders. This is necessary to provide order, efficiency and coherence in carrying out the plans, policies and programs of the executive branch.⁷

The legislative power is vested in a bicameral Congress of the Philippines. The Senate is composed of 24 Senators elected at large by qualified registered voters of the country, while the House of Representatives is composed of not more than 250 members elected from legislative districts apportioned among the provinces, cities, and the Metropolitan Manila area.⁸ In addition, the Philippines has adopted a party-list system with representatives elected through a party-list of registered national, regional, and sectoral parties or organizations. Only Congress, with its legislative power, can make laws and alter or repeal them. The Chief Executive, with all his vast powers, cannot suspend the operation of a statute⁹ and he cannot exercise the greater power to amend or to revoke a statute.¹⁰ The President cannot invalidate a Torrens Title because that act essentially constitutes a *judicial function*, or an *exercise of jurisdiction*—which is the power and authority to hear or try and decide or determine a cause.¹¹

Under Article VIII, Section 1 of the Constitution, judicial power is vested in the courts. Judicial power includes the duty of the courts of justice to settle actual controversies involving rights that are legally demandable and enforceable and to determine whether or not there has been grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the Government. It is an antidote to and a safety

7 *National Electrification Administration v. Commission on Audit*, G.R. No. 143481, February 15, 2002.

8 The Constitution provides that Congress shall be composed of not more than two hundred fifty members unless otherwise fixed by law. The Constitution did not preclude Congress from increasing its membership by passing a law, other than a general reapportionment law. SEE *Mariano v. Commission on Elections*, G.R. No. 118577, March 7, 1995.

9 *Philippine National Bank v. Bitulok Sawmill Inc.*, G.R. L-24177-85, June 29, 1968.

10 *Adolfo v. Court of First Instance of Zambales*, G.R. No. L-30650, July 31, 1970.

11 *Tuason v. Register of Deeds*, G.R. No. 70484, January 29, 1988.

net against whimsical, despotic and oppressive exercise of governmental power.¹²

The powers of government are divided to avoid concentration of these powers in any one branch. This would prevent any single branch from “lording its power over the other branches or the citizenry.”¹³ The theory of the separation of powers is designed to “forestall over action which necessarily results from undue concentration of powers ... and prevent despotism.”¹⁴ Thereby, the “rule of law” narrows the range of governmental action and makes it subject to control by certain legal devices. As held in the case of *Marcos v. Manglapus*:¹⁵

The 1987 Constitution has fully restored the separation of powers of the three great branches of government. To recall the words of Justice Laurel in *Angara v. Electoral Commission* [63 Phil. 139 (1936)], “the Constitution has blocked but with deft strokes and in bold lines, allotment of power to the executive, the legislative and the judicial departments of the government.” [At 157.] Thus, the 1987 Constitution explicitly provides that “[t]he legislative power shall be vested in the Congress of the Philippines” [Art. VI, Sec. 1], “[t]he executive power shall be vested in the President of the Philippines” [Art. VII, Sec. 1], and “[t]he judicial power shall be vested in one Supreme Court and in such lower courts as may be established by law” [Art. VIII, Sec. 1.] These provisions not only establish a separation of powers by actual division [*Angara v. Electoral Commission, supra*] but also confer plenary legislative, executive and judicial power subject only to limitations provided in the Constitution. For as the Supreme Court in *Ocampo v. Cabangis* [15 Phil. 626 (1910)] pointed out “a grant of the legislative power means a grant of all legislative power; and a grant of the judicial power means a grant of all the judicial power which may be exercised under the government.” [At 631-632.]...

12 *Macabago v. Commission on Elections*, G.R. No. 152163, November 18, 2002.

13 Re: COA Opinion on the Computation of the Appraised Value of the Properties Purchased by the Retired Chief/Associate Justices of the Supreme Court, A.M. No. 11-7-10-SC, July 31, 2012.

14 *People v. Rosenthal*, G.R. Nos. 46076 & 46077, June 12, 1939.

15 G.R. No. 88211, September 15, 1989.

The separation of powers has real consequences in the manner in which the government carries out its constitutional functions. Again, according to the Supreme Court:

The separation of powers means that each department of the government should be sovereign and supreme in the performance of its duties within its own sphere, and should be left without interference in the full and free exercise of all such powers, rights, and duties which rightfully belong to it. Each department should be left to interpret and apply, within the constitutional powers conferred upon it, without interference, what may be termed its political duties. For one department to assume to interpret, or to apply, or to attempt to indicate how such political duties should be performed, would be an unwarranted, gross, and palpable violation of the duties which were intended by the creation of the separate and distinct departments of the government.¹⁶

Under the doctrine, the legislature has no authority to direct the judiciary in the exercise of powers that are strictly judicial.¹⁷ In accordance with this principle, the Supreme Court is independent of executive or legislative control as the Executive and the Congress are of the judiciary.¹⁸ The Legislative department is assigned the power to make and enact laws. But the interpretation and application of said laws belong “exclusively to the Judicial department.” The doctrine of separation of powers calls for the other departments being left alone to discharge their duties as they see fit. The judiciary must leave it free to fulfill its responsibility according to its lights. There is to be no interference. Its autonomy is to be respected. It cannot be otherwise if it is to perform its function well.¹⁹ This authority to interpret and apply the laws extends to the Constitution.²⁰ The Court explained that:

We have already said that the Legislature under our form of government is assigned the task and the power to make and enact laws, but not to interpret them. This is more true with regard to the interpretation of the basic law, the Constitution,

¹⁶ *Abueva v. Wood*, G.R. No. 21327, January 14, 1924.

¹⁷ *Fernandez-Subido v. Lacson*, G.R. No. L-18494, August 29, 1961.

¹⁸ *Radiowealth, Inc. v. Agregado*, G.R. No. L-3066, May 22, 1950.

¹⁹ *Tan v. Macapagal*, G.R. No. L-34161 (Resolution), February 29, 1972.

²⁰ *Endencia v. David*, G.R. No. L-6355-56, August 31, 1955.

which is not within the sphere of the Legislative department. If the Legislature may declare what a law means, or what a specific portion of the Constitution means, especially after the courts have in actual case ascertain its meaning by interpretation and applied it in a decision, this would surely cause confusion and instability in judicial processes and court decisions. Under such a system, a final court determination of a case based on a judicial interpretation of the law or of the Constitution may be undermined or even annulled by a subsequent and different interpretation of the law or of the Constitution by the Legislative department. That would be neither wise nor desirable, besides being clearly violative of the fundamental principles of our constitutional system of government, particularly those governing the separation of powers.²¹

In still another case, the Court explained that:

The doctrine of separation of powers calls for each branch of government to be left alone to discharge its duties as it sees fit. Being one such branch, the judiciary, Justice Laurel asserted, “will neither direct nor restrain executive [or legislative action] . . .” The legislative and the executive branches are not allowed to seek its advice on what to do or not to do; thus, judicial inquiry has to be postponed in the meantime. Before a court may enter the picture, a prerequisite is that something has been accomplished or performed by either branch. Then *may* it pass on the validity of what has been done but, then again, only “when . . . properly challenged in an appropriate legal proceeding.”²²

The Court is “entrusted exclusively with the judicial power to adjudicate with finality all justiciable disputes, public and private. No other department or agency may pass upon its judgments or declare them ‘unjust’ upon controlling and irresistible reasons of public policy and of sound practice.”²³ As the Court explained:

21 *Endencia v. David*, G.R. No. L-6355-56, August 31, 1955.

22 *Guingona v. Court of Appeals*, G.R. No. 125532, July 10, 1998.

23 *In re Laureta*, G.R. No. L-68635, May 14, 1987.

The sound, salutary and self-evident principle prevailing in this as in most jurisdictions, is that judgments of the highest tribunal of the land may not be reviewed by any other agency, branch, department, or official of Government. Once the Supreme Court has spoken, there the matter must rest. Its decision should not and cannot be appealed to or reviewed by any other entity, much less reversed or modified on the ground that it is tainted by error in its findings of fact or conclusions of law, flawed in its logic or language, or otherwise erroneous in some other respect. This, on the indisputable and unshakable foundation of public policy, and constitutional and traditional principle.²⁴

The primordial duty of the Court is merely to apply the law in such a way that it shall not usurp legislative powers by *judicial legislation* and that in the course of such application or construction, it should not make or supervise legislation, or under the guise of interpretation, modify, revise, amend, distort, remodel, or rewrite the law, or give the law a construction which is repugnant to its terms. The Court should apply the law in a manner that would give effect to their letter and spirit, especially when the law is clear as to its intent and purpose. Succinctly put, the Court should shy away from encroaching upon the primary function of a co-equal branch of the Government; otherwise, this would lead to an inexcusable breach of the doctrine of separation of powers by means of judicial legislation.²⁵

Violations Of The Principle

There is a violation of the principle of separation of powers when one branch of government unduly encroaches on the domain of another. US Supreme Court decisions say that the principle of separation of powers may be violated in two ways: firstly, “[o]ne branch may interfere impermissibly with the other’s performance of its constitutionally assigned function;” and “[a]lternatively, the doctrine may be violated when one branch assumes a function that more properly is entrusted to another.” In other words, there is

24 *In re Borromeo*, A.M. No. 93-7-696-0, February 21, 1995.

25 *Corpuz v. People*, G.R. No. 180016, April 29, 2014.

a violation of the principle when there is impermissible (a) interference with and/or (b) assumption of another department's functions.²⁶

For instance, the concept of a legislative veto immediately calls into question whether there has been a violation of the separation of powers. Legislative veto is a statutory provision requiring the President or an administrative agency to present the proposed implementing rules and regulations of a law to Congress which, by itself or through a committee formed by it, retains a "right" or "power" to approve or disapprove such regulations before they take effect. As such, a legislative veto in the form of a congressional oversight committee is in the form of an inward-turning delegation designed to attach a congressional leash (other than through scrutiny and investigation) to an agency to which Congress has by law initially delegated broad powers. It radically changes the design or structure of the Constitution's diagram of power as it entrusts to Congress a direct role in enforcing, applying or implementing its own laws.²⁷

The idea is that from the moment the law becomes effective, any provision of law that empowers Congress or any of its members to play any role in the implementation or enforcement of the law violates the principle of separation of powers and is thus unconstitutional. Measures taken after a budget is enacted by Congress which involve project identification, fund release, and fund realignment are not related to functions of congressional oversight and, allow legislators to intervene and/or assume duties that properly belong to the sphere of budget execution. Legislators have been, in one form or another, authorized to participate in "the various operational aspects of budgeting," such as "the evaluation of work and financial plans for individual activities" and the "regulation and release of funds" in violation of the separation of powers principle.²⁸

Another case in point involves the power of appointment. When Congress clothes the President with the power to appoint an officer, it cannot limit the choice of the President to only one candidate. Once the power of appointment is conferred on the President, such conferment necessarily carries the discretion of whom to appoint. Even on the pretext of prescribing

26 *Belgica v. Executive Secretary*, G.R. No. 208566, November 19, 2013.

27 *Abakada Guro Party List v. Purisima*, G.R. No. 166715, August 14, 2008.

28 *Belgica v. Ochoa*, G.R. No. 208566, November 19, 2013.

the qualifications of the officer, Congress may not abuse such power as to divest the appointing authority, directly or indirectly, of his discretion to pick his own choice. Consequently, when the qualifications prescribed by Congress can only be met by one individual, such enactment effectively eliminates the discretion of the appointing power to choose and constitutes an irregular restriction on the power of appointment. It is manifestly an abuse of congressional authority to prescribe qualifications where only one, and no other, can qualify. While the conferment of the appointing power on the President is a perfectly valid legislative act, the proviso limiting his choice to one is certainly an encroachment on his prerogative.²⁹

²⁹ *Flores v. Drilon*, G.R. No. 104732, June 22, 1993.

CHAPTER 3

CHECKS AND BALANCES

The three branches of government are separate and independent—they work within their own spheres—but the Constitution has also created a system of checks and balances that allows one branch to restrain abuse by another. The principle of separation of powers:

1. allows the “blending” of some of the executive, legislative, or judicial powers in one body;
2. does not prevent one branch of government from inquiring into the affairs of the other branches to maintain the balance of power; but
3. ensures that there is no encroachment on matters within the exclusive jurisdiction of the other branches.¹

The Philippines’ adherence to the principle of checks and balances was discussed in *Angara v. Electoral Commission*.² From that decision, we find the following:

The Constitution has provided for an elaborate system of checks and balances to secure coordination in the workings of the various departments of the government. For example, the Chief Executive under our Constitution is so far made a check on the legislative power that this assent is required in the enactment of laws. This, however, is subject to the further check that a bill may become a law notwithstanding the refusal of the President to approve it, by a vote of two-thirds or three-fourths, as the case may be, of the National Assembly. The President has also the right to convene the Assembly in special session whenever he chooses. On the other hand, the National Assembly operates as a check on the Executive in the sense that its consent through its Commission on Appointments is necessary in the appointment of certain officers; and the

¹ *Macalintal v. Commission on Elections*, G.R. No. 157013, July 10, 2003.

² G.R. No. 45081, July 15, 1936.

concurrence of a majority of all its members is essential to the conclusion of treaties. Furthermore, in its power to determine what courts other than the Supreme Court shall be established, to define their jurisdiction and to appropriate funds for their support, the National Assembly controls the judicial department to a certain extent. The Assembly also exercises the judicial power of trying impeachments. And the judiciary in turn, with the Supreme Court as the final arbiter, effectively checks the other departments in the exercise of its power to determine the law, and hence to declare executive and legislative acts void if violative of the Constitution.

In *Alejandrino v. Quezon*,³ the Court explained:

It is peculiarly the duty of the judiciary to say what the law is, to enforce the Constitution, and to decide whether the proper constitutional sphere of a department has been transcended. The courts must determine the validity of legislative enactments as well as the legality of all private and official acts. To this extent, do the courts restrain the other departments.

Congress checks the other branches of government primarily through its law-making powers. Congress can create administrative agencies, define their powers and duties, and fix the terms of officers and their compensation. It can also create courts, define their jurisdiction, and reorganize the Judiciary so long as it does not undermine the security of tenure of its members. The power of Congress does not end with the finished task of legislation. Connected with its principal power to legislate is the auxiliary power to ensure that the laws it enacts are faithfully executed.⁴

The Senate's treaty-concurring power is also one form of check "indispensable toward our nation's pursuit of political maturity and growth."⁵ Also, the confirmation of some of the President's appointees by the

3 G.R. No. 22041, September 11, 1924.

4 *Macalintal v. Commission on Elections*, G.R. No. 157013, July 10, 2003.

5 *Bagong Alyansang Makabayan v. Executive Secretary*, G.R. No. 138570, October 10, 2000.

Commission on Appointments “contemplates a system of checks and balances between the executive and legislative branches of government.”⁶

Another form of check and balance is judicial review. Judicial review is intended to keep the administrative agency within its jurisdiction and to protect substantial rights of parties affected by its decisions. It restricts the separation of powers and forestalls arbitrary and unjust adjudications.⁷ This role of the judiciary in mapping the metes and bounds of powers of the different branches of government was redefined in the 1987 Constitution, which expanded the jurisdiction of the Court to include the determination of “grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the Government.” The expansion was made because of the dissatisfaction with the practice of the Court in frequently invoking the “political question” doctrine during the period of martial law to dodge its duty.⁸

In the exercise of judicial review, the Executive has no authority to set aside and overrule a decision of the Supreme Court.⁹

Substantive Limitations On The Power To Legislate¹⁰

Legislative power is subject to substantive and constitutional limitations which circumscribe both the exercise of the power itself and the allowable subjects of legislation. The substantive constitutional limitations are primarily found in the Bill of Rights and other provisions, such as Section 3, Article VI of the Constitution prescribing the qualifications of candidates for senators.¹¹

6 *Manalo v. Sistoza*, G.R. No. 107369, August 11, 1999.

7 *Mercado v. Board of Election Supervisors*, G.R. No. 109713, April 6, 1995.

8 *SEE Macalintal v. Commission on Elections*, G.R. No. 157013, July 10, 2003 (Puno, J. concurring and dissenting).

9 *Bengzon v. Drilon*, G.R. No. 103524, April 15, 1992.

10 This section is based mostly from Dante B. Gatmaytan, *LEGAL METHOD ESSENTIALS 2.0* at 187-203 (2014).

11 *Social Justice Society v. Dangerous Drugs Board*, G.R. No. 157870, 158633, 161658, November 3, 2008.

Unconstitutional laws

The power of Congress to enact laws does not include the right to pass unconstitutional laws.¹² The Supreme Court will not hesitate to declare a law or act invalid when it is necessary, as when the acts of the executive and legislative branches, or of any official, “betray the people’s will as expressed in the Constitution.”¹³ Courts may nullify laws if they are unconstitutional or if their effect is unconstitutional. As the Supreme Court explained, “[a] statute may be declared unconstitutional because it is not within the legislative power to enact; or it creates or establishes methods or forms that infringe constitutional principles; or its purpose or effect violates the Constitution or its basic principles.”¹⁴

The determination of whether a law contravenes the Constitution is within the jurisdiction of regular courts. The Constitution vests the power to declare a law, treaty, international or executive agreement, presidential decree, order, instruction, ordinance, or regulation unconstitutional in the courts, including in the regional trial courts.¹⁵

The general rule is that where part of a statute is void because it is repugnant to the Constitution, while another part is valid, the valid portion, if susceptible to being separated from the invalid, may stand and be enforced.¹⁶ But when the parts of a statute, however, are so mutually dependent and connected, as conditions, considerations, or compensations for each other, as to warrant a belief that the legislature intended them as a whole, the nullity of one part will vitiate the rest. In which case, if some parts are unconstitutional, all the other provisions, which are thus dependent, conditional, or connected must consequently fall with them.¹⁷

Nevertheless, courts proceed cautiously when striking down acts of the other branches of government. Every law is presumed to be constitutional,

12 *Tatad v. Secretary of the Department of Energy*, G.R. No. 124369, December 3, 1997.

13 *Luz Farms v. Secretary of Agrarian Reform*, G.R. No. 86889, December 4, 1990.

14 *Tawang Multi-Purpose Cooperative v. La Trinidad Water District*, G.R. No. 166471, March 22, 2011.

15 *Betoy v. Board of Directors, National Power Corporation*, G.R. No. 156556-57, October 4, 2011.

16 *Pambansang Koalisyon ng mga Samahang Magsasaka at Manggagawa sa Niyugan v. Executive Secretary*, G.R. No. 147036-37, April 10, 2012 .

17 *Id.*

and to justify its nullification, “there must be a clear and unequivocal breach of the Constitution, not a doubtful and argumentative one.”¹⁸ This presumption of constitutionality can be overcome only by the clearest showing that there was indeed an infraction of the Constitution, and only when such a conclusion is reached by the required majority may the Court pronounce, in the discharge of the duty it cannot escape, that the challenged act must be struck down.¹⁹ In determining whether the acts of the legislature are consistent with the Constitution, the Court proceeds “with judicial restraint and act[s] with caution and forbearance.”²⁰ Following the doctrine of separation of powers, the Court “cannot arrogate the duty of setting the parameters of what constitutes dual allegiance when the Constitution itself has clearly delegated the duty of determining what acts constitute dual allegiance for study and legislation by Congress.”²¹

With respect to administrative regulations, the same must also be consistent with the Constitution and statutes. In one case, the issue presented for resolution was whether sections of the Commission on Elections’ Resolution No. 9615 were valid regulations. Resolution No. 9615 provided that posting election campaign materials during an election period in public utility vehicles and transport terminals carries with it the penalty of revocation of the public utility franchise. The Court held that the prohibition constitutes a clear prior restraint on the right to free expression of the owners of PUVs and transport terminals. As a result of the prohibition, owners of PUVs and transport terminals are forcefully and effectively inhibited from expressing their preferences under the pain of indictment for an election offense and the revocation of their franchise or permit to operate.²²

Supermajority votes

The power of the legislature to make laws includes the power to amend and repeal these laws. Congress cannot, by its own act, limit its power to amend or repeal laws. When Congress requires a higher number of votes to

18 *Pimentel, Jr. v Executive Secretary*, G.R. No. 195770, July 17, 2012.

19 *Lawyers against Monopoly and Poverty v. Secretary of Budget and Management*, G.R. No. 164987, April 24, 2012.

20 *Id.*

21 *Id.*

22 *1-United Transport Koalisyon v. COMELEC*, G.R. No. 206020, April 14, 2015.

amend a law, the Supreme Court has the duty to strike down such act for interfering with the plenary powers of Congress. Each House of Congress has the power to approve bills by a mere majority vote, provided there is quorum. The act of one legislature is not binding upon, and cannot tie the hands of, future legislatures.²³

In *Duarte v. Dade*,²⁴ the Court explained that:

A state legislature has a plenary law-making power over all subjects, whether pertaining to persons or things, within its territorial jurisdiction, either to introduce new laws or repeal the old, unless prohibited expressly or by implication by the federal constitution or limited or restrained by its own. It cannot bind itself or its successors by enacting irrepealable laws except when so restrained. Every legislative body may modify or abolish the acts passed by itself or its predecessors. This power of repeal may be exercised at the same session at which the original act was passed; and even while a bill is in its progress and before it becomes a law. This legislature cannot bind a future legislature to a particular mode of repeal. It cannot declare in advance the intent of subsequent legislatures or the effect of subsequent legislation upon existing statutes.

Irrepealable laws

Like the prohibition on requiring a higher number of votes to amend a law, another substantive limitation on legislative powers is the prohibition against the passage of irrepealable laws. Irrepealable laws deprive succeeding legislatures of the power to craft laws appropriate to the operative milieu. Irrepealable laws promote “an unhealthy stasis in the legislative front and dissuades dynamic democratic impetus that may be responsive to the times.”²⁵ Congress can repeal all laws even those promulgated by President Corazon Aquino in the exercise of her extraordinary legislative power under the Freedom Constitution.²⁶

23 *Kida v. Senate of the Philippines*, G.R. No. 196271, February 28, 2012.

24 32 Phil. 36, 49 (1915).

25 *The City of Davao v. The Regional Trial Court, Branch XII*, G.R. No. 127383, August 18, 2005.

26 *Atitiw v. Zamora*, G.R. No. 143374, September 30, 2005.

For example, the designation of the Office of the Government Corporate Council (OGCC) as the legal counsel for Government Owned and Controlled Corporations was written into law, initially by Republic Act No. 3838, and later by the Administrative Code of 1987. However, there is no impediment to Congress to imposing a different role for the OGCC with respect to particular GOCCs that it may charter. Congress designated the OGCC as the “legal adviser and consultant” (rather than as counsel) to the Government Service Insurance System (GSIS). Congress is not bound to retain the OGCC as the primary or exclusive legal counsel of GSIS even if it performed such a role for other GOCCs. To bind Congress to perform in that manner would be akin to elevating the OGCC’s statutory role to irrepealable status, and it is basic that Congress is barred from passing irrepealable laws.²⁷

Likewise, Congress, in the legitimate exercise of its lawmaking powers, can enact a law withdrawing a tax exemption just as easily as it may grant it under Section 28 (4) of Article VI of the Constitution. Thus, in *Republic v. Caguioa*,²⁸ the Court ruled that Congress can amend Section 131 of the National Internal Revenue Code in a manner it sees fit, as it did when it passed Republic Act No. 9334.

Laws with retroactive effect

As a general rule, laws shall have no retroactive effect. An exception is when the law is procedural in character. The reason is that a remedial statute or a statute relating to remedies or modes of procedure does not create new rights or take away vested rights, but only operates in furtherance of the remedy or the confirmation of already existing rights. A statute or rule regulating the procedure of the courts will be construed as applicable to actions pending and undetermined at the time of its passage. All procedural laws are retroactive in that sense and to that extent. The retroactive application is not violative of any right of a person who may feel adversely affected, for, verily, no vested right generally attaches to or arises from procedural laws.²⁹

²⁷ *Government Service Insurance System v. Court of Appeals*, G.R. No. 183905, April 16, 2009.

²⁸ *Republic v. Caguioa*, G.R. No. 168584, October 15, 2007.

²⁹ *Spouses Dacudao v. Gonzales*, G.R. No. 188056, January 8, 2013.

Fiscal autonomy of the Supreme Court

The 1987 Constitution molded a stronger and more independent judiciary. It took away the power of Congress to repeal, alter, or supplement rules concerning pleading, practice and procedure, and held that the power to promulgate these rules was no longer shared by the Court with Congress or the Executive Branch. Congress cannot exempt entities from the payment of legal fees because it is proscribed by the Court's judicial autonomy.

Fiscal autonomy recognizes the power and authority of the Court to levy, assess and collect fees, including legal fees. Moreover, legal fees under Rule 141 have two basic components, the Judiciary Development Fund (JDF) and the Special Allowance for the Judiciary Fund (SAJF). The laws, which established the JDF and SAJF expressly declare the identical purpose of these funds to guarantee the independence of the Judiciary as mandated by the Constitution and public policy. Legal fees therefore do not only constitute a vital source of the Court's financial resources but also comprise an essential element of the Court's fiscal independence. Any exemption from the payment of legal fees granted by Congress to government-owned or controlled corporations and local government units will necessarily reduce the JDF and the SAJF. Undoubtedly, such situation is constitutionally infirm for it impairs the Court's guaranteed fiscal autonomy and erodes its independence.³⁰

Thus, the exemption of cooperatives from payment of court and sheriff's fees no longer stands. Cooperatives can no longer invoke Republic Act No. 6938³¹ as amended by Republic Act No. 9520,³² as basis for exemption from the payment of legal fees.³³

30 Re: In the Matter of Clarification of Exemption From Payment of all Court and Sheriff's Fees of Cooperatives Duly Registered in Accordance with Republic Act No. 9520, otherwise known as the Philippine Cooperative Code of 2008, A.M. No. 12-2-03-0, March 13, 2012.

31 Cooperative Code of the Philippines (1990).

32 Philippine Cooperative Code of 2008.

33 Re: In the Matter of Clarification of Exemption From Payment of all Court and Sheriff's Fees of Cooperatives Duly Registered in Accordance with Republic Act No. 9520, otherwise known as the Philippine Cooperative Code of 2008, A.M. No. 12-2-03-0, March 13, 2012.

CHAPTER 4

JUDICIAL REVIEW

The power of judicial review is recognized under Article VIII, Section 4 (2) of the Constitution. Through this power, the judiciary enforces and upholds the supremacy of the Constitution. Thus, the determination of whether a specific rule or set of rules issued by an administrative agency contravenes the law or the constitution is within the jurisdiction of the regular courts. The Constitution vests the power of judicial review in the courts, including the regional trial courts.¹

Origins And Constitutional Basis

The Court has been given the power to review discretionary acts of the political branches of government, thus raising concerns that it could become the most dangerous branch of government.² The courts were assigned broader powers under the 1987 Constitution as a consequence of the judiciary's subservience under the Marcos regime. During the regime, the Supreme Court avoided confrontation with Marcos by invoking the 'political question' doctrine—claiming that the issues raised before it were better decided by other branches of government. The 1987 Constitution removed that option and the Court has interpreted its power broadly; almost every political issue, now, has reached the Supreme Court. Under the new Constitution, the Court has been called a component of the legislative process.³

The power of judicial review is conferred on the judicial branch of the government by Section 1, Article VIII of the 1987 Constitution:

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- 1 *Betoy v. Board of Directors, National Power Corporation*, G.R. No. 156556-57, October 4, 2011; *SMART Communications, Inc. v. National Telecommunications Commission*, G.R. No. 151908, August 12, 2003.
 - 2 Pacifico A. Agabin, "The Politics of Judicial Review over Executive Action: The Supreme Court and Social Change", *UNCONSTITUTIONAL ESSAYS* 167-198 (1996).
 - 3 SEE Stacia Haynie, "Paradise Lost: Politicisation of the Philippine Supreme Court in the Post Marcos Era", 22:4 *ASIAN STUDIES REVIEW* 459-473 (1988). For a more detailed account of the erosion of judicial independence under the Marcos regime, SEE Dante Gatmaytan-Magno, "Judicial Review and Redemption in the Philippines", 25 *UCLA PAC. BASIN L.J.* 1-24 (2007).

SECTION 1. The judicial power shall be vested in one Supreme Court and in such lower courts as may be established by law.

Judicial power includes the duty of the courts of justice to settle actual controversies involving rights which are legally demandable and enforceable, and *to determine whether or not there has been a grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the government.*

Any inquiry into the history and breadth of judicial review in the Philippines usually begins with *Angara v. Electoral Commission*.⁴ In that case, the Supreme Court explained that:

The Constitution has blocked out with deft strokes and in bold lines, allotment of power to the executive, the legislative and the judicial departments of the government. The overlapping and interlacing of functions and duties between the several departments, however, sometimes makes it hard to say just where the one leaves off and the other begins. In times of social disquietude or political excitement, the great landmarks of the Constitution are apt to be forgotten or marred, if not entirely obliterated. In cases of conflict, the judicial department is the only constitutional organ which can be called upon to determine the proper allocation of powers between the several departments and among the integral or constituent units thereof.

As any human production, our Constitution is of course lacking perfection and perfectibility, but as much as it was within the power of our people, acting through their delegates to so provide, that instrument which is the expression of their sovereignty however limited, has established a republican government intended to operate and function as a harmonious whole, under a system of checks and balances, and subject to specific limitations and restrictions provided in the said instrument. The Constitution sets forth in no uncertain language the restrictions and limitations upon governmental powers and agencies. If these restrictions and limitations are transcended it would be inconceivable if the Constitution had

4 G.R. No. L-45081, July 15, 1936.

not provided for a mechanism by which to direct the course of government along constitutional channels, for then the distribution of powers would be mere verbiage, the bill of rights mere expressions of sentiment, and the principles of good government mere political apothegms. Certainly, the limitations and restrictions embodied in our Constitution are real as they should be in any living constitution. In the United States where no express constitutional grant is found in their constitution, the possession of this moderating power of the courts, not to speak of its historical origin and development there, has been set at rest by popular acquiescence for a period of more than one and a half centuries. In our case, this moderating power is granted, if not expressly, by clear implication from Section 2 of Article VIII of our Constitution.

The Constitution is a definition of the powers of government. Who is to determine the nature, scope and extent of such powers? The Constitution itself has provided for the instrumentality of the judiciary as the rational way. And when the judiciary mediates to allocate constitutional boundaries, it does not assert any superiority over the other departments; it does not in reality nullify or invalidate an act of the legislature, but only asserts the solemn and sacred obligation assigned to it by the Constitution to determine conflicting claims of authority under the Constitution and to establish for the parties in an actual controversy the rights which that instrument secures and guarantees to them. This is in truth all that is involved in what is termed "judicial supremacy" which properly is the power of judicial review under the Constitution. Even then, this power of judicial review is limited to actual cases and controversies to be exercised after full opportunity of argument by the parties, and limited further to the constitutional question raised or the very *lis mota* presented. Any attempt at abstraction could only lead to dialectics and barren legal questions and to sterile conclusions of wisdom, justice or expediency of legislation. More than that, courts accord the presumption of constitutionality to legislative enactments, not only because the legislature is presumed to abide by the Constitution but also because the judiciary in the determination of actual cases and controversies must reflect the wisdom and justice of the people as expressed through their representatives in the executive and legislative departments of the government.

But much as we might postulate on the internal checks of power provided in our Constitution, it ought not the less to be remembered that, in the language of James Madison, the system itself is not “the chief palladium of constitutional liberty ... the people who are authors of this blessing must also be its guardians ... their eyes must be ever ready to mark, their voice to pronounce ... aggression on the authority of their constitution.” In the last and ultimate analysis, then, must the success of our government in the unfolding years to come be tested in the crucible of Filipino minds and hearts than in consultation rooms and court chambers.

As indicated in *Angara v. Electoral Commission*, judicial review is indeed an integral component of the system of checks and balances which, together with the corollary principle of separation of powers, forms the bedrock of our republican form of government, and insures that its vast powers are utilized only for the benefit of the people it serves. The Court said:

The separation of powers is a fundamental principle in our system of government. It obtains not through express provision but by actual division in our Constitution. Each department of the government has exclusive cognizance of matters within its jurisdiction, and is supreme within its own sphere. But it does not follow from the fact that the three powers are to be kept separate and distinct that the Constitution intended them to be absolutely unrestrained and independent of each other. The Constitution has provided for an elaborate system of checks and balances to secure coordination in the workings of the various departments of the government... And the judiciary in turn, with the Supreme Court as the final arbiter, effectively checks the other departments in the exercise of its power to determine the law, and hence to declare executive and legislative acts void if violative of the Constitution.

The 1987 Constitution contains the “expanded *certiorari* jurisdiction” of the Supreme Court. As explained earlier, the Court now has the power “to determine whether or not there has been a grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the government.”

Former Chief Justice and Constitutional Commissioner Roberto Concepcion explained the reason for the expansion of the Supreme Court’s

power in his sponsorship speech of what is now Article VIII of the Constitution:

Fellow Members of this Commission, this is actually a product of our experience during martial law. As a matter of fact, it has some antecedents in the past, but the role of the judiciary during the deposed regime was marred considerably by the circumstance that in a number of cases against the government, which then had no legal defense at all, the solicitor general set up the defense of political questions and got away with it. As a consequence, certain principles concerning particularly the writ of *habeas corpus*, that is, the authority of courts to order the release of political detainees, and other matters related to the operation and effect of martial law failed because the government set up the defense of political question. And the Supreme Court said: "Well, since it is political, we have no authority to pass upon it." The Committee on the Judiciary feels that this was not a proper solution of the questions involved. It did not merely request an encroachment upon the rights of the people, but it, in effect, encouraged further violations thereof during the martial law regime ...

Briefly stated, courts of justice determine the limits of power of the agencies and offices of the government as well as those of its officers. In other words, the judiciary is the final arbiter on the question whether or not a branch of government or any of its officials has acted without jurisdiction or in excess of jurisdiction, or so capriciously as to constitute an abuse of discretion amounting to excess of jurisdiction or lack of jurisdiction. This is not only a judicial power but a duty to pass judgment on matters of this nature.

This is the background of paragraph 2 of Section 1, which means that the courts cannot hereafter evade the duty to settle matters of this nature, by claiming that such matters constitute a political question.⁵

Clearly, the innovation in the 1987 Constitution is meant to address the problem during the Marcos regime where the Supreme Court hid behind the

5 RECORD OF THE CONSTITUTIONAL COMMISSION 434-436 (1986).

“political question “ doctrine as an excuse not to question the acts of the administration. This approach adopted by the Court did not improve its reputation during those repressive times; instead, it helped earn the Court’s reputation as a rubberstamp of the dictator.

Political questions are “those questions which, under the Constitution, are to be decided by the people in their sovereign capacity, or in regard to which full discretionary authority has been delegated to the legislative or executive branch of government.”⁶ The 1987 Constitution limits resort to the ‘political question’ doctrine and broadens the scope of judicial inquiry into areas that the Court, under previous constitutions, would have normally left to the political departments to decide. Nevertheless, there are still issues beyond the Court’s jurisdiction that are to be determined by the President, Congress, or by the people themselves through a plebiscite or referendum. Courts cannot question the President’s recognition of a foreign government, set aside a presidential pardon, or amend the Constitution under the guise of resolving a dispute brought before it.⁷

This grant of power under the 1987 Constitution is not meant to give the judiciary unbridled control over the other branches of government. When political questions are involved, the Constitution limits the courts’ power to the determination as to whether or not there has been a grave abuse of discretion amounting to lack or excess of jurisdiction on the part of the official whose action is being questioned.

Grave abuse of discretion is well defined under the law: it is “simply [the] capricious or whimsical exercise of judgment that is patent and gross as to amount to an evasion of positive duty or a virtual refusal to perform a duty enjoined by law, or to act at all in contemplation of law, as where the power is exercised in an arbitrary and despotic manner by reason of passion or hostility.”⁸ Courts, under this definition, are without power to directly decide matters over which full discretionary authority has been delegated to other branches of government. But while the Supreme Court has no power to substitute its judgment for that of Congress or of the President, it may look into the question of whether such exercise has been made in grave abuse of

6 *Tañada v. Cuenco*, G.R. No. L-10520, February 28, 1957.

7 *Marcos v. Manglapus*, G.R. No. 88211, September 15, 1989.

8 *Integrated Bar of the Philippines v. Zamora*, G.R. No. 141284, August 15, 2000.

discretion. The grant of power to either the executive or legislative powers will not necessarily be an impediment to judicial inquiry because the irresponsible exercise or abuse of that power may give rise to a justiciable controversy.⁹

It is generally believed that the Supreme Court has been granted superior powers under the 1987 Constitution. The Court, however, is reluctant to join in this assessment. In *Mantruste Systems, Inc. v. Court of Appeals*,¹⁰ the Supreme Court explained that:

While the judicial power may appear to be pervasive, the truth is that under the system of separation of powers set up in the Constitution, the power of the courts over the other branches and instrumentalities of the Government is limited only to the determination of “whether or not there has been a grave abuse of discretion (by them) amounting to lack or excess of jurisdiction” in the exercise of their authority and in the performance of their assigned tasks (Sec. 1, Art. VIII, 1987 Constitution). Courts may not substitute their judgment for that of the APT [Asset Privatization Trust], nor block, by an injunction, the discharge of its functions and the implementation of its decisions in connection with the acquisition, sale or disposition of assets transferred to it.

There can be no justification for judicial interference in the business of an administrative agency, except when it violates a citizen’s constitutional rights, or commits a grave abuse of discretion, or acts in excess of, or without jurisdiction.

Requisites For Exercise Of Judicial Review

For a court to exercise this power, certain requirements must first be present. These are:

1. An actual case or controversy calling for the exercise of judicial power;

⁹ *Integrated Bar of the Philippines v. Zamora*, G.R. No. 141284, August 15, 2000.

¹⁰ G.R. Nos. 86540-41, November 6, 1989.

2. The person challenging the act must have “standing” to challenge it; he must have a personal and substantial interest in the case such that he has sustained, or will sustain, direct injury as a result of its enforcement;
3. The question of constitutionality must be raised at the earliest possible opportunity; and
4. The issue of constitutionality must be the very *lis mota* of the case.¹¹

These requirements are briefly explained as follows.

Actual Case Or Controversy

An actual case or controversy means an existing case or controversy that is appropriate or ripe for determination, not conjectural or anticipatory, lest the decision of the court would amount to an advisory opinion.¹²

This power cannot be exercised *in vacuo*. The function of the courts is to determine controversies between litigants and not to give advisory opinions. The power of judicial review can only be exercised in connection with a *bona fide* case or controversy which involves the statute sought to be reviewed and does not include the power to rule on a hypothetical situation.¹³ Courts do not adjudicate academic questions to satisfy scholarly interest, however intellectually challenging.¹⁴

There is no case or controversy when the issue becomes moot. An issue or a case becomes moot when it ceases to present a justiciable controversy perhaps because of supervening events, so that a determination of the issue would have no practical use.¹⁵ In such cases, there is no actual substantial

11 *Garcia v. Executive Secretary*, G.R. No. 157584, April 2, 2009.

12 *Southern Hemisphere Engagement Network, Inc. v. Anti-Terrorism Council*, G.R. No. 178552, October 5, 2010.

13 *Agra v. Philippine National Bank*, G.R. No. 133317, June 29, 1999.

14 *Guingona v. Court of Appeals*, G.R. No. 125532, July 10, 1998.

15 *Peñafrancia Sugar Mill, Inc. v. Sugar Regulatory Administration*, G.R. No. 208660, March 5, 2014.

relief to which the petitioner would be entitled and, which would be negated by the dismissal of the petition.¹⁶

When an issue becomes moot, the case will likely be dismissed. When Joseph Estrada ran for President in 2010 a case was filed to disqualify him on the ground that a president was not eligible for reelection under the Constitution. Estrada, however, did not win the elections; therefore the issue was deemed moot. The Court dismissed the case in a very brief Resolution:

The cases questioning the constitutionality of the impeachment case against Corona were subsequently dismissed for being moot.¹⁷

The Court, however, can relax the case and controversy requirement to resolve moot issues. The Supreme Court may decide cases otherwise moot if: *first*, there is a grave violation of the Constitution; *second*, the situation has an exceptional character and the paramount public interest is involved; *third*, the constitutional issue raised requires formulation of controlling principles to guide the bench, the bar, and the public; or *fourth*, the case is capable of repetition but has evaded review.¹⁸

Proper Party

Even with the presence of an actual case or controversy, the court may refuse to exercise judicial review unless the constitutional question is brought before it by a party having the requisite standing to challenge it. Legal standing or *locus standi* is defined as a “personal and substantial interest in the case such that the party has sustained or will sustain direct injury as a result of the governmental act that is being challenged.”¹⁹ For a citizen to have standing, he must establish that he has suffered some actual or threatened injury as a result of the allegedly illegal conduct of the

16 *Corona v. Senate of the Philippines*, G.R. No. 200242, July 17, 2012.

17 *SEE Lihaylihay v. The Honorable House of Representatives*, et al., G.R. No. 199509, September 11, 2012.

18 *Mendoza v. Familara*, G.R. No. 191017, November 15, 2011. *SEE ALSO Timbol v. Commission on Elections*, G.R. No. 206004 (Resolution), February 24, 2015.

19 *Automotive Industry Workers’ Alliance v. Romulo*, G.R. No. 157509, January 18, 2005.

government; the injury is fairly traceable to the challenged action; and the injury is likely to be redressed by a favorable action.²⁰

A proper party is one who has sustained or is in immediate danger of sustaining an injury as a result of the act complained of. Until and unless such actual or threatened injury is established, the complainant is not clothed with legal personality to raise the constitutional question.²¹

In some cases, the Supreme Court dispenses with the requirement that the petitioner has experienced or is in actual danger of suffering direct and personal injury. But cases involving the constitutionality of penal legislation are a different kind of constitutional litigation. These cases require a closer judicial scrutiny of *locus standi*.²²

Taxpayers, voters, concerned citizens, and legislators may be accorded standing to sue, provided that the following requirements are met:

1. The cases involve constitutional issues;
2. For taxpayers, there must be a claim of illegal disbursement of public funds or that the tax measure is unconstitutional;
3. For voters, there must be a showing of obvious interest in the validity of the election law in question;
4. For concerned citizens, there must be a showing that the issues raised are of transcendental importance which must be settled early; and

²⁰ Id.

²¹ *Macalintal v. Presidential Electoral Tribunal*, G.R. No. 191618, November 23, 2010. In one case, the Supreme Court held that the Association of Flood Victims was not even a party-list candidate in the 10 May 2010 elections, and could not have been directly affected by COMELEC Minute Resolution No. 12-0859. The Association, said the Court, did not have standing to file the petition imputing grave abuse of discretion in the promulgation of the Resolution. SEE *Association of Flood Victims v. Commission on Elections*, G.R. No. 203775, August 5, 2014.

²² SEE *Republic of the Philippines v. Roque*, G.R. No. 204603, September 24, 2003, citing *Southern Hemisphere Engagement Network, Inc. v. Anti-Terrorism Council*, G.R. No. 178552, October 5, 2010.

5. For legislators, there must be a claim that the official action complained of infringes upon their prerogatives as legislators.²³

Establishments which publish and broadcast have the standing to assert the constitutional freedom of speech of candidates and of the right to information of the public, as well as their own freedom of the press.²⁴

The Supreme Court decided a case filed on behalf of marine mammals who were threatened by the exploration, development, and exploitation of petroleum resources. On the issue of standing, the Supreme Court held that because the Supreme Court had promulgated the Rules of Procedure for Environmental Cases, “the need to give the marine mammals legal standing has been eliminated by our Rules, which allow any Filipino citizen, as a steward of nature, to bring a suit to enforce our environmental laws.”²⁵

Earliest Opportunity

“Earliest opportunity” means that the question of unconstitutionality of the act should have been immediately raised in the proceedings in the court below. Defendants in an anti-bouncing checks case should have moved to quash the separate indictments or moved to dismiss the cases in the trial courts on the ground of unconstitutionality of the law.²⁶ In another case, the challenge to the constitutionality of the *Interim Rules of Procedure on Corporate Rehabilitation* was considered a new and belated theory that the Supreme Court did not entertain. Because it was raised only in the Supreme Court, it was not “pleaded at the earliest possible opportunity.”²⁷ Similarly, in *Umali v. Guingona, Jr.*,²⁸ the constitutionality of the Presidential Commission on Anti-Graft and Corruption was raised in the motion for reconsideration of a Regional Trial Court’s decision. The Court did not entertain the

23 *Funa v. Manila Economic and Cultural Office*, G.R. No. 193462, February 4, 2014. Standing is accorded to legislators only if there is an unmistakable showing that the challenged official act affects or impairs their rights and prerogatives as legislators. SEE *Hontiveros-Baraquel v. Toll Regulatory Board*, G.R. No. 181293, February 23, 2015.

24 *GMA Network, Inc. v. Commission on Elections*, G.R. No. 205357, September 2, 2014.

25 *Resident Marine Mammals of the Protected Seascape Tañon Strait v. Reyes*, G.R. No. 180771, April 21, 2015.

26 *Arceta v. Mangrobang*, G.R. No. 152895, June 15, 2004.

27 *Bank of the Philippine Islands v. Shemberg Biotech Corporation*, G.R. No. 162291, August 11, 2010.

28 G.R. No. 131124, March 29, 1999.

constitutional issue because it was belatedly raised at the Regional Trial Court.

While it is true that the issue of constitutionality must be raised at the first opportunity, the Court, in the exercise of sound discretion, can take cognizance of the constitutional issues raised by the parties. In one case, the Supreme Court held that when an administrative regulation is challenged as unconstitutional, a party may raise its unconstitutionality “on every occasion that the regulation is being enforced.” The party assailing the regulation must show that the question of constitutionality has been raised at the earliest opportunity. This does not mean that the question of constitutionality must be raised immediately after the execution of the state action complained of. That the question of constitutionality has not been raised before is not a valid reason for refusing to allow it to be raised later. A contrary rule would mean that a law, otherwise unconstitutional, would lapse into constitutionality by the mere failure of the proper party to promptly file a case to challenge the same.²⁹

Lis Mota

The constitutional issue should be the threshold issue of the case and it should be raised by either of the parties.³⁰ *Lis mota* literally means “the cause of the suit or action.” This last requisite of judicial review arises from the presumption of validity accorded executive and legislative acts of our co-equal branches of the government. It is rooted in the principle of separation of powers. Given the presumed validity of an executive act, the petitioner who claims otherwise has the burden of showing first that the case cannot be resolved unless the constitutional question he raised is determined by the Court.³¹

A person who claims that a law is unconstitutional has the burden of showing that the case cannot be resolved unless the disposition of the constitutional question that he raised is unavoidable. If there is some other ground upon which the court may rest its judgment, the courts will adopt

29 *Carbonilla v. Board of Airlines Representatives*, G.R. No. 193247, September 14, 2011.

30 *Boy Scouts of the Philippines v. Commission on Audit*, G.R. No.177131, June 7, 2011.

31 *General v. Urro*, G.R. No. 191560, March 29, 2011.

that course and the question of constitutionality should be avoided.³² The resolution of the constitutional issues must be absolutely necessary for the determination of the case.³³

Effect Of Declaration Of Unconstitutionality

The general rule is that an unconstitutional act is not a law; it confers no rights; it imposes no duties; it affords no protection; it creates no office; it is in legal contemplation as inoperative as though it had never been passed.³⁴ The law is stricken from the statute books and considered never to have existed at all. The parties and all persons are bound by the declaration of unconstitutionality which means that no one may thereafter invoke it nor may the courts be permitted to apply it in subsequent cases. It is, in other words, a total nullity.³⁵

This is the orthodox view embodied in Article 7 of the Civil Code which provides that “[when] the courts declare a law to be inconsistent with the Constitution, the former shall be void and the latter shall govern. Administrative or executive acts, orders and regulations shall be valid only when they are not contrary to the laws of the Constitution.” The Constitution is supreme and paramount and any legislative or executive act contrary to its terms cannot survive.³⁶

The ‘operative fact’ doctrine cannot apply unless there is a law or executive issuance that is invalidated by the Court.³⁷

When the Supreme Court declared that Section 8 of Republic Act No. 8551 violated the Constitution, “all acts done pursuant to such provision

32 *Kalipunan ng Damayang Mahihirap, Inc. v. Robredo*, G.R. No. 200903, July 22, 2014. See the application in *Matibag v. Benipayo*, G.R. No. 149036, April 2, 2002, and *Tua v. Mangrobang*, G.R. No. 170701, January 22, 2014.

33 *Liberty Broadcasting Network, Inc. v. Atlocom Wireless System, Inc.*, G.R. No. 205875 & 208916, (June 30, 2015).

34 *Peralta v. Civil Service Commission*, G.R. No. 95832, August 10, 2002.

35 *Aldovino v. Alunan III*, G.R. No. 102232, March 9, 1994.

36 *SEE Serano v. Philippine National Bank*, G.R. No. L-23127, April 29, 1971.

37 *Commissioner of Internal Revenue v. San Roque Power Corporation*, G.R. No. 187485, October 8, 2013.

shall be null and void” including the appointment of new police commissioners under that law.³⁸

The Court, however, recognizes that when it declares a law unconstitutional or abandons a doctrinal interpretation of such law, acts may have been performed under the impression of the constitutionality of the law or the validity of its interpretation. It has consistently held that such operative fact cannot be undone by the mere subsequent declaration of the nullity of the law or its interpretation; thus, the declaration can only have a prospective application.³⁹ A judicial declaration of invalidity, it is also true, may not necessarily obliterate all the effects and consequences of a void act occurring prior to such a declaration. So also a situation that may aptly be described as *fait accompli* may no longer be open for further inquiry, let alone to be unsettled by a subsequent declaration of nullity of a governing statute.⁴⁰

When the Supreme Court declared Executive Order 386 unconstitutional in 1969, the Court explained that:

This is not to say, however, that the acts done by the municipality of Balabagan in the exercise of its corporate powers are a nullity because the executive order “is, in legal contemplation, as inoperative as though it had never been passed.” For the existence of Executive Order 386 is “an operative fact which cannot justly be ignored.” As Chief Justice Hughes explained in *Chicot County Drainage District v. Baxter State Bank*:

“The courts below have proceeded on the theory that the Act of Congress, having been found to be unconstitutional, was not a law; that it was inoperative, conferring no rights and imposing no duties, and hence affording no basis for the challenged decree. *Norton v. Shelby County*, 118 U.S. 425, 442; *Chicago, I. & L. Ry. Co. v. Hackett*, 228 U.S. 559, 566. It is quite clear, however, that such broad statements as to the effect of a determination of unconstitutionality must be taken with qualifications. The actual existence of a statute, prior to such a

38 *Canonizado v. Aguirre*, G.R. No. 133132, February 15, 2001.

39 *Castro v. Deloria*, G.R. No. 163586, January 27, 2009.

40 *Republic of the Philippines v. Court of Appeals*, G.R. No. 79732, November 8, 1993.

determination, is an operative fact and may have consequences which cannot justly be ignored. The past cannot always be erased by a new judicial declaration. The effect of the subsequent ruling as to invalidity may have to be considered in various aspects — with respect to particular relations, individual and corporate, and particular conduct, private and official. Questions of rights claimed to have become vested, of status, of prior determinations deemed to have finality and acted upon accordingly, of public policy in the light of the nature both of the statute and of its previous application, demand examination. These questions are among the most difficult of those which have engaged the attention of courts, state and federal, and it is manifest from numerous decisions that an all – inclusive statement of a principle of absolute retroactive invalidity cannot be justified.”

There is then no basis for the respondents’ apprehension that the invalidation of the executive order creating Balabagan would have the effect of unsettling many an act done in reliance upon the validity of the creation of that municipality.⁴¹

The “operative fact” doctrine realizes that in declaring a law or rule null and void, undue harshness and resulting unfairness must be avoided.⁴² The doctrine is concerned with the *consequences* of the acts performed under the unconstitutional law. It realizes that in declaring a law or rule null and void, undue harshness and resulting unfairness must be avoided.⁴³ The Supreme Court applies the doctrine “when a declaration of unconstitutionality will impose an undue burden on those who have relied on the invalid law.” It was applied to a criminal case when a declaration of unconstitutionality would have put the accused in double jeopardy or would put in limbo the acts done by a municipality in reliance upon a law creating it.⁴⁴ In *Rutter v. Esteban*, the Court sustained the right of a party under the Moratorium Law, although the right accrued before law was declared unconstitutional.⁴⁵

41 *Municipality of Balabagan v. Benito*, G.R. No. L-28113, March 28, 1969.

42 *Union of Filipino Employees v. Vivar, Jr.*, G.R. No. 79256, January 20, 1992.

43 *Union of Filipino Employees v. Vivar, Jr.*, G.R. No. 79256, January 20, 1992.

44 *SEE Yap v. Thenamaris Ship’s Management and Intermare Maritime Agencies, Inc.*, G.R. No. 179532. May 30, 2011.

45 *SEE Tañada v. Tuvera*, G.R. No. 63915, April 24, 1985.

The operative fact doctrine is a rule of equity and must be applied as an exception to the general rule that an unconstitutional law produces no effects. The doctrine is applicable when a declaration of unconstitutionality will impose an undue burden on those who have relied on the invalid law, but it can never be invoked to validate as constitutional an unconstitutional act.⁴⁶

There is no rule that automatically applies the “operative fact” doctrine to every case where a law is found to be unconstitutional. In fact, the Supreme Court has been careful in applying the doctrine especially when the public interest is concerned. In *Planters Products Inc. v. Fertifil Corporation*,⁴⁷ the Court refused to apply the doctrine and explained that:

Here, we do not find anything iniquitous in ordering PPI to refund the amounts paid by Fertifil under LOI No. 1465. It unduly benefited from the levy. It was proven during the trial that the levies paid were remitted and deposited to its bank account. Quite the reverse, it would be inequitable and unjust not to order a refund. To do so would unjustly enrich PPI at the expense of Fertifil. Article 22 of the Civil Code explicitly provides that “every person who, through an act of performance by another comes into possession of something at the expense of the latter without just or legal ground shall return the same to him”. We cannot allow PPI to profit from an unconstitutional law. Justice and equity dictate that PPI must refund the amounts paid by Fertifil.

The Supreme Court also refused to apply the doctrine in *Philippine Coconut Producers Association v. Del Rosario*, saying that:

... it is highly inappropriate to apply the operative fact doctrine to the UCPB shares. Public funds, which were supposedly given utmost safeguard, were haphazardly distributed to private individuals based on statutory provisions that are found to be constitutionally infirm on not only one but on a variety of grounds. Worse still, the recipients of the UCPB shares may not actually be the intended beneficiaries of said

⁴⁶ *Mirallosa v. Carmel Development, Inc.*, G.R. No. 194538, November 27, 2013.

⁴⁷ G.R. No. 166006, March 14, 2008.

benefit. Clearly, applying the Operative Fact Doctrine would not only be iniquitous but would also serve injustice to the Government, to the coconut industry, and to the people, who, whether willingly or unwillingly, contributed to the public funds, and therefore expect that their Government would take utmost care of them and that they would be used no less, than for public purpose.⁴⁸

These cases show that the Court can require that certain acts can be undone if they were performed under an unconstitutional law.

The Supreme Court applied the doctrine to potential liability of officials for violations of the Constitution in *Araullo v. Aquino III*.⁴⁹ When the Supreme Court declared the Development Acceleration Program (DAP) and its implementing issuances constitutionally infirm, the Supreme Court held that the doctrine of operative fact “can apply only to the [program, activity or project] that can no longer be undone, and whose beneficiaries relied in good faith on the validity of the DAP, but cannot apply to the authors, proponents and implementors of the DAP, unless there are concrete findings of good faith in their favor by the proper tribunals determining their criminal, civil, administrative and other liabilities.”⁵⁰ The Court clarified in a subsequent Resolution that the ascertainment of good faith and the determination of whether due diligence and prudence were exercised are questions of fact and is better determined by tribunals because the Supreme Court “is not a trier of facts.”⁵¹

48 *Philippine Coconut Producers Federation, Inc. v. Republic of the Philippines*, G.R. Nos. 177857-58, January 24, 2012.

49 *Araullo v. Aquino III*, G.R. No. 209287, July 1, 2014.

50 *Araullo v. Aquino III*, G.R. No. 209287, July 1, 2014.

51 *Araullo v. Aquino III*, G.R. No. 209287, February 3, 2015. The phrase “not a trier of facts” means that the Supreme Court “does not normally undertake the re-examination of the evidence presented by the contending parties during the trial of the case.” SEE *Gabales v. Dupio*, G.R. No. 209970, February 17, 2014. The Court is not the proper forum for the ventilation and substantiation of factual issues (*Heirs of Racaza v. Spouses Abay-Abay*, G.R. No. 198402, June 13, 2012) and the resolution of factual issues is the function of the lower courts whose findings on these matters are received with respect and are, as a rule, binding on the Supreme Court (*China Banking Corp. v. Qbro Fishing Enterprises, Inc.*, G.R. No. 184556, February 22, 2012).

Partial Unconstitutionality; the Separability Clause

When a statute is in part unconstitutional and it is possible to discard the unconstitutional part without affecting the valid part, only the unconstitutional part of the statute will be discarded.⁵² In other words, if a statute contains unobjectionable provisions that may be separated from those found to be unconstitutional, it is the duty of the court to so declare and to maintain the act insofar as it is valid.⁵³

A separability clause is typically included towards the end of a law. The “Filipino World War II Veterans Pensions and Benefits Act of 2008,” for example, includes such a clause as it is typically written:

SECTION 7. *Separability Clause.* — If any portion or provision of this Act is declared unconstitutional, the remainder of this Act or any provisions not affected thereby shall remain in force and effect.⁵⁴

There is a slightly different way of writing the clause as illustrated by the “Philippine Design Competitiveness Act of 2013.”⁵⁵

SECTION 14. *Separability Clause.* — The provisions of this Act are hereby declared separable, and in the event any of its provisions is declared unconstitutional, the other provisions which are not affected thereby shall remain in force and effect.

The separability clause of a law creates the presumption that Congress “intended separability, rather than complete nullity of the statute.”⁵⁶

However, an entire law may be invalidated if part of it is unconstitutional despite the presence of a separability clause. The Supreme Court explained in one case⁵⁷ that:

52 *United States v. Rodriguez*, G.R. Nos. 13352-13355, October 11, 1918.

53 *Lopez v. Court of Appeals*, G.R. No. 144573, September 24, 2002.

54 Rep. Act No. 9499 (2008).

55 Rep. Act No. 10557 (2013).

56 *Id.*

57 *Tatad v. Secretary of the Department of Energy*, G.R. No. 124360, December 3, 1997.

... the separability clause only creates a presumption that the act is severable. It is merely an aid in statutory construction. It is not an inexorable command. A separability clause does not clothe the valid parts with immunity from the invalidating effect the law gives to the inseparable blending of the bad with the good. The separability clause cannot also be applied if it will produce an absurd result. In sum, if the separation of the statute will defeat the intent of the legislature, separation will not take place despite the inclusion of a separability clause in the law.

Oddly, the Supreme Court now seems to require the presence of a separability clause in order to preserve the unobjectionable parts of a law. In one case, it found a portion of a tax ordinance illegal but voided the entire law because there was no separability clause. Said the Court:

Finally, in view of the lack of a separability clause, we declare void the entirety of Ordinance No. 9503-2005. Any payment made by reason of the tax imposed by Ordinance No. 9503-2005 should, therefore, be refunded to CEPALCO. Our ruling, however, is made without prejudice to the enactment by the City of Cagayan de Oro of a tax ordinance that complies with the limits set by the Local Government Code.⁵⁸

The severability of a statute should not depend on the existence of a separability clause. This was the Supreme Court's usual approach⁵⁹ where it simply stated that when provisions of law declared void are severable from the main statute and the removal of the unconstitutional provisions would not affect the validity and enforceability of the other provisions, the statute remains valid without its voided sections.⁶⁰

58 *Cagayan Electric Power and Light Co., Inc. v. City of Cagayan de Oro*, G.R. No. 191761, November 14, 2012. An early indication that the Supreme Court is tethering severability to the separability clause can be seen in *G.R. No. 181704*, December 6, 2011. There the Court wrote that in its decision in *Abakada Guro Party List v. Purisima*, G.R. No. 166715, August 14, 2008, the Court declared Section 12 of Republic Act No. 9335 as unconstitutional. However, the constitutionality of the remaining provisions of R.A. No. 9335 was upheld pursuant to Section 13 of R.A. No. 9335. Section 13 is the separability clause of the law.

59 *SEE Barrameda v. Moir*, G.R. No. 7927, August 18, 1913 and *Lidasan v. Commission on Elections*, G.R. No. L-28089, October 25, 1967.

60 *Manalo v. Sistoza*, G.R. No. 197369, August 11, 1999.

Pegging the severability of a statute to a separability clause is also inconsistent with the practice in the United States. There, the lack of a severability clause does not result in a presumption against severability. Since 1987, it has been indisputable that no statute is presumed non-severable, regardless of whether there is a severability clause in the challenged statute.⁶¹ A study of the history of the severability doctrine found that the core of the doctrine has not changed since its inception and that the only aspect of the doctrine that has ever been overruled is the early presumption of non-severability for statutes lacking a severability clause.⁶²

When Judicial Review Is Not Exercised

The function of the courts is to determine controversies between litigants and not to give advisory opinions. The power of judicial review can only be exercised in connection with a *bona fide* case or controversy, which involves the statute sought to be reviewed.⁶³

In *Montesclaros v. Commission on Elections*,⁶⁴ petitioners challenged an attempt by Congress to reschedule the *Sangguniang Kabataan* elections so that they could participate as voters and candidates. A proposed bill postponing the elections to a later date would render such petitioners ineligible for participation as a function of the age limitation requirement. It was this bill that petitioners would have the Court strike down as unconstitutional.

The Court ruled that it could not exercise the power of judicial review over the proposed bill. First of all, the petitioners were amenable to a resetting of the *Sangguniang Kabataan* elections to the date on which the elections were to be reset. Hence, there was no actual controversy. There were also no legally demandable and enforceable rights and duties arising from the proposed bill because it was not a law. Judicial intervention in declaring a proposed bill constitutional or unconstitutional would amount to

61 Kenneth A. Klukowski, "Severability Doctrine: How Much of a Statute Should Federal Courts Invalidate?", 16 TEX. REV. L. & POL. 1, 83-84 (2011).

62 Id. at 109. For historical analyses of the severability doctrine see Robert L. Stern, "Separability and Separability Clauses in the Supreme Court", 51 HARV. L. REV. 76 (1937) and John Copeland Nagle, Severability, 72 N.C. L. REV. 203 (1993).

63 *Allied Broadcasting Center, Inc. v. Republic of the Philippines*, G.R. No. 91500, October 18, 1990.

64 G.R. No. 152295, July 9, 2002.

the rendering of an advisory opinion on an act of Congress. It would take on a dictatorial nature which is against the principle of respect for the co-equal branches of government. Thus, the Court held that it may only exercise judicial review after the bill was enacted and has become law, and not before it created rights.

In another case, the Supreme Court explained that it cannot stop Congress from passing bills which will abolish the Judiciary Development Fund. A bill, according to the Court, produces no legal effects until it is passed into law. The judiciary is mandated to interpret laws and cannot speculate on the constitutionality of a bill that may or may not be enacted. It cannot rule on mere speculations or issues that are not ripe for judicial determination.⁶⁵

⁶⁵ *In re Supreme Court Judicial Independence v. Judiciary Development Fund*, UDK-15143 (Resolution), January 21, 2015).

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CHAPTER 5

THE LEGISLATIVE DEPARTMENT

SECTION 1. The legislative power shall be vested in the Congress of the Philippines which shall consist of a Senate and a House of Representatives, except to the extent reserved to the people by the provision on initiative and referendum.

Legislative power is vested in the Congress of the Philippines.¹ In *Government of the Philippine Islands v. Springer*,² the Supreme Court defined legislative power as “[t]he authority, under the Constitution, to make laws, and to alter and repeal them.” In the same case, the Court continued to explain the extent of legislative powers:

The Legislature cannot lawfully exercise powers, which are in their nature essentially executive or judicial. The Legislature cannot make a law and then take part in its execution or construction. So the Philippine Legislature is not a partaker in either executive or judicial power, except as the Philippine Senate participates in the executive power through having the right to confirm or reject nominations made by the Governor-General, and except as the Legislature participates in the judicial power through being made the sole judge of the elections, returns, and qualifications of its elective members and through having the right to try its own members for disorderly behavior. The Philippine Legislature may nevertheless exercise such auxiliary powers as are necessary and appropriate to its independence and to make its express powers effective.

The grant of legislative power to Congress is broad, general and comprehensive. The legislative body possesses plenary power for all purposes of civil government. Any power, deemed to be legislative by usage and tradition, is necessarily possessed by Congress, unless the Constitution has lodged this power elsewhere. In other words, except as limited by the

¹ CONST., Art. VI, § 1

² G.R. No. L-26979, April 1, 1927.

Constitution, either expressly or impliedly, legislative power embraces all subjects and extends to matters of general concern or common interest.³

The authority to amend, change, or modify a law is thus part of such legislative power. It is the peculiar province of the legislature to prescribe general rules for the government of society. However, the legislature cannot foresee every contingency involved in a particular problem that it seeks to address. Thus, it has become customary for it to delegate to instrumentalities of the executive department, known as administrative agencies, the power to make rules and regulations. This is because statutes are generally couched in general terms which express the policies, purposes, objectives, remedies and sanctions intended by the legislature. The details and manner of carrying out the law are left to the administrative agency charged with its implementation. In this sense, rules and regulations promulgated by an administrative agency are the product of a delegated power to create new or additional legal provisions that have the effect of law. Hence, in general, rules and regulations issued by an administrative agency, pursuant to the authority conferred upon it by law, have the force and effect, or partake of the nature, of a statute.⁴

Legislative power is distinct from executive power. Congress makes laws, but it is the President who executes the laws. The executive power is vested in the President; it is the power to enforce and administer the laws or the power of carrying the laws into practical operation and enforcing their due observance.⁵ The true distinction between the power to make laws and discretion as to its execution is illustrated by the difference in the delegation of power to make the law, which necessarily involves a discretion as to what it shall be, and conferring an authority or discretion as to its execution, to be exercised under and in pursuance of the law. The first cannot be done; to the latter no valid objection can be made.⁶

3 *Ople v. Torres*, G.R. No. 127685, July 23, 1998. See also *League of Cities of the Philippines v. Commission on Elections*, G.R. No. 176951, February 15, 2011.

4 *Yazaki Torres Manufacturing, Inc. v. Court of Appeals*, G.R. No. 130584, June 27, 2006.

5 *Id.*

6 *Beltran v. Secretary of Health*, G.R. No. 133640, November 25, 2005.

Delegation Of Legislative Powers

Congress cannot delegate powers that are strictly, or inherently and exclusively, legislative. This includes the authority to make a complete law and to determine the expediency of its enactment. Courts can strike down a law as an unconstitutional delegation of legislative power if the power involved is purely legislative in nature or one “appertaining exclusively to the legislative department.”⁷ It is the nature of the power, and not the manner of its exercise, that determines the validity of its delegation.

The general rule barring delegation of legislative powers is subject to the following exceptions:

1. Delegation of tariff powers to the President under Section 28 (2) of Article VI of the Constitution;
2. Delegation of emergency powers to the President under Section 23 (2) of Article VI of the Constitution;
3. Delegation to the people at large;
4. Delegation to local governments; and
5. Delegation to administrative bodies.

A delegation of legislative power is valid if the law: (a) is complete in itself by setting forth the policy to be executed, carried out, or implemented by the delegate; and (b) fixes a standard or “the limits of which are sufficiently determinate and determinable” to which the delegate must conform in the performance of his functions. A sufficient standard is one that defines legislative policy, marks its limits, maps out its boundaries and specifies the public agency to apply it. It indicates the circumstances under which the legislative command is to be accomplished. The tests are intended to prevent a total transference of legislative authority to the delegate, who is not allowed to exercise a power essentially legislative.⁸

⁷ Id.

⁸ Id. SEE ALSO *Vivas v. The Monetary Board of the Bangko Sentral ng Pilipinas*, G.R. No. 191414, August 7, 2013.

The law gives administrative bodies the power to promulgate implementing rules and regulations because they have expertise in specific matters within the purview of their respective jurisdictions.⁹ All that is required for the valid exercise of subordinate legislation is that the regulation must be germane to the objects and purposes of the law; and that the regulation be not in contradiction to, but in conformity with, the standards prescribed by the law.¹⁰

This grant of quasi-legislative powers in administrative bodies is not unconstitutional. The growing complexity of modern society has made it necessary to create more and more administrative bodies to help in the regulation of its activities. Because these bodies specialize in the particular field assigned to them, they can deal with the problems with greater expertise and dispatch than can be expected from the legislature or the courts.¹¹

Promulgating Rules And Regulations

Under certain circumstances, the Legislature can delegate to executive officers and administrative boards the authority to adopt and promulgate IRRs. To render such delegation lawful, the Legislature must declare the policy of the law and fix the legal principles that are to control in given cases. The Legislature should set a definite or primary standard to guide those empowered to execute the law. For as long as the policy is laid down and a proper standard is established by statute, there can be no unconstitutional delegation of legislative power when the Legislature leaves to selected instrumentalities the duty of making subordinate rules within the prescribed limits, although there is conferred upon the executive officer or administrative board a large measure of discretion. There is a distinction between the delegation of power to make a law and the conferment of an authority or a discretion to be exercised under and in pursuance of the law, for the power to make laws necessarily involves a discretion as to what it shall be.

9 *Francisco v. Toll Regulatory Board*, G.R. No. 166910, October 19, 2010.

10 *Equi-Asia Placement Inc. v. Department of Foreign Affairs*, G.R. No. 152214, September 19, 2006.

11 *Philippine Association of Service Exporters, Inc. v. Torres*, G.R. No. 101279, August 6, 1992.

The authority to make IRRs in order to carry out an express legislative purpose, or to effect the operation and enforcement of a law is not a power exclusively legislative in character, but is rather administrative in nature. The rules and regulations adopted and promulgated must not, however, subvert or be contrary to existing statutes. The function of promulgating IRRs may be legitimately exercised only for the purpose of carrying out the provisions of a law. The power of administrative agencies is confined to implementing the law or putting it into effect. Corollary to this is that administrative regulation cannot extend the law and amend a legislative enactment. It is axiomatic that the clear letter of the law is controlling and cannot be amended by a mere administrative rule issued for its implementation. Indeed, administrative or executive acts shall be valid only when they are not contrary to the laws or the Constitution.

To be valid, the administrative IRRs must comply with the following requisites:

1. Its promulgation must be authorized by the Legislature;
2. It must be within the scope of the authority given by the Legislature;
3. It must be promulgated in accordance with the prescribed procedure; and
4. It must be reasonable.¹²

Administrative regulations enacted by administrative agencies to implement and interpret the law which they are entrusted to enforce have the force of law and are entitled to respect. Such rules and regulations partake of the nature of a statute and are just as binding as if they have been written in the statute itself. As such, they have the force and effect of law and enjoy the presumption of constitutionality and legality until they are set aside with finality in an appropriate case by a competent court.¹³ In *Victorias Milling Co., Inc. v. The Office of the Presidential Assistant for Legal Affairs*,¹⁴ the Court said that administrative rules and regulations issued in accordance

12 *Lokin, Jr. v. COMELEC*, G.R. Nos. 179431-32, June 22, 2010.

13 *Spouses Dacudao v. Gonzales*, G.R. No. 188056, January 8, 2013.

14 G.R. No. 73705, August 27, 1987.

with law have the force and effect of law and are binding on all persons dealing with that body.

Although an administrative agency is authorized to exercise its discretion in the exercise of its power of subordinate legislation, nevertheless, no similar authority exists to validate an arbitrary or capricious enactment of rules and regulations. Rules which have the effect of extending or conflicting with the authority-granting statute do not represent a valid exercise of rule-making power but constitute an attempt by the agency to legislate. In such a situation, it is said that the issuance becomes void not only for being *ultra vires* but also for being unreasonable. The law therefore prevails over the administrative issuance.¹⁵

While rules and regulation issued by the administrative bodies have the force and effect of law and are entitled to great respect, courts interpret administrative regulations in harmony with the law that authorized them and avoid as much as possible any construction that would annul them as an invalid exercise of legislative power.¹⁶ It is a cardinal rule in statutory construction that statutory provisions control the rules and regulations that may be issued pursuant thereto. Such rules and regulations must be consistent with and must not defeat the purpose of the statute.¹⁷ There is a hierarchy of laws, and regulations cannot be inconsistent with either the Constitution or the enactments of the legislature.

Initiative And Referendum

The 1987 Constitution is borne of the conviction that people power can be trusted to check excesses of government. One of the means by which people power can be exercised is thru initiatives where local ordinances and resolutions can be enacted or repealed. Congress responded to the mandate of the Constitution. It enacted laws to put into operation the concept of initiative and referendum. On August 4, 1989, it approved Republic Act No. 6735 entitled “An Act Providing for a System of Initiative and Referendum

¹⁵ Re: Entitlement to Hazard Pay of SC Medical and Dental Clinic Personnel, A.M. No. 03-9-02-SC, November 27, 2008.

¹⁶ *Land Bank of the Philippines v. Obias*, G.R. No. 184406, March 14, 2012.

¹⁷ *Philippine International Trading Corporation v. Commission on Audit*, G.R. No. 152688, November 19, 2003.

and Appropriating Funds Therefor.” Republic Act No. 6735, among others, spelled out the requirements for the exercise of the power of initiative and referendum, the conduct of national initiative and referendum; procedure of local initiative and referendum; and their limitations. Then came Republic Act No. 7160, otherwise known as The Local Government Code of 1991. Chapter 2, Title XI, Book I of the Code governed the conduct of local initiative and referendum.¹⁸

The system of initiative on the Constitution under Section 2 of Article XVII of the Constitution is not self-executory. Republic Act No. 6735 was, as its history reveals, intended to cover *initiative* to propose amendments to the Constitution.

First. Section 2 of the Act does not suggest an initiative on amendments to the Constitution. The said section reads:

SEC. 2. Statement and Policy. — The power of the people under a system of initiative and referendum to directly propose, enact, approve or reject, in whole or in part, the Constitution, laws, ordinances, or resolutions passed by any legislative body upon compliance with the requirements of this Act is hereby affirmed, recognized and guaranteed. (Emphasis supplied).

The inclusion of the word “Constitution” was an afterthought. That word is neither germane nor relevant to said section, which exclusively relates to initiative and referendum on national laws and local laws, ordinances, and resolutions. That section is silent as to *amendments* on the Constitution. The initiative on the Constitution is confined only to proposals to AMEND. The people are not accorded the power to “*directly propose, enact, approve, or reject, in whole or in part, the Constitution*” through the system of *initiative*. They can only do so with respect to “*laws, ordinances, or resolutions.*”

Second. It is true that Section 3 (Definition of Terms) of the Act defines *initiative* on amendments to the Constitution and mentions it as one of the three systems of *initiative*, and that Section 5 (Requirements) restates the constitutional requirements as to the percentage of the registered voters who

18 *Garcia v. COMELEC*, G.R. No. 111230, September 30, 1994

must submit the proposal. But unlike in the case of the other systems of *initiative*, the Act does not provide for the contents of a petition for initiative on the Constitution. Section 5, paragraph (c) requires, among other things, statement of the *proposed law sought to be enacted, approved or rejected, amended or repealed, as the case may be*. It does not include, as among the contents of the petition, the provisions of the Constitution sought to be amended, in the case of initiative on the Constitution.

Third. While the Act provides subtitles for National Initiative and Referendum (Subtitle II) and for Local Initiative and Referendum (Subtitle III), no subtitle is provided for *initiative* on the Constitution. This conspicuous silence as to the latter simply means that the main thrust of the Act is initiative and referendum on national and local laws. If Congress intended R.A. No. 6735 to fully provide for the implementation of the *initiative* on amendments to the Constitution, it could have provided for a subtitle therefor, considering that in the order of things, the primacy of interest, or hierarchy of values, the right of the people to directly propose amendments to the Constitution is far more important than the initiative on national and local laws.¹⁹

SECTION 2. The Senate shall be composed of twenty-four Senators who shall be elected at large by the qualified voters of the Philippines, as may be provided by law.

SECTION 3. No person shall be a Senator unless he is a natural-born citizen of the Philippines, and, on the day of the election, is at least thirty-five years of age, able to read and write, a registered voter, and a resident of the Philippines for not less than two years immediately preceding the day of the election.

The Constitution requires that a person seeking election to the House of Representatives should be a resident of the district in which he seeks election, for a period of not less than one year prior to the elections. Residence, for election law purposes, has a settled meaning in our jurisdiction. The Supreme Court has held that the term “residence” has always been understood as

19 *Defensor Santiago v. COMELEC*, G.R. No. 127325, March 19, 1997.

synonymous with “domicile” under the previous Constitutions and also under the 1987 Constitution.²⁰

Candidates for public office were previously required to undergo mandatory drug testing as provided in Section 36 (g) of the Comprehensive Dangerous Drugs Act of 2002.²¹ This provision was nullified by the Supreme Court in the case of *Social Justice Society v. Dangerous Drugs Board*,²² because it imposes qualifications in addition to what the Constitution prescribes. The Court held that Section 36 (g) adds another qualification layer to what the 1987 Constitution, at the minimum, requires for membership in the Senate.

SECTION 4. The term of office of the Senators shall be six years and shall commence, unless otherwise provided by law, at noon on the thirtieth day of June next following their election.

No Senator shall serve for more than two consecutive terms. Voluntary renunciation of the office for any length of time shall not be considered as an interruption in the continuity of his service for the full term for which he was elected.

SECTION 5. (1) The House of Representatives shall be composed of not more than two hundred and fifty members, unless otherwise fixed by law, who shall be elected from legislative districts apportioned among the provinces, cities, and the Metropolitan Manila area in accordance with the number of their respective inhabitants, and on the basis of a uniform and progressive ratio, and those who, as provided by law, shall be elected through a party-list system of registered national, regional, and sectoral parties or organizations.

The 1987 Constitution fixes the maximum number of members of the House of Representatives at 250. However, the Constitution expressly allows for an increase in the number of members of the House of Representatives provided a law is enacted for the purpose. This is clear from the phrase “unless otherwise provided by law” in Section 5 (1), Article VI. The Legislature has the option to choose whether the increase in the number of

20 *Aquino v. COMELEC*, G.R. No. 120265, September 18, 1995.

21 Republic Act No. 9165 (2002).

22 G.R. No. 157870, November 3, 2008.

members of the House of Representatives is done by piecemeal legislation or by enactment of a law authorizing a general increase. Legislation that makes piecemeal increases of the number of district representatives is no less valid than legislation that makes a general increase.²³

(2) The party-list representatives shall constitute twenty *per centum* of the total number of representatives including those under the party list. For three consecutive terms after the ratification of this Constitution, one-half of the seats allocated to party-list representatives shall be filled, as provided by law, by selection or election from the labor, peasant, urban poor, indigenous cultural communities, women, youth, and such other sectors as may be provided by law, except the religious sector.

The Constitution introduced the party-list method of representation. Under this system, any national, regional or sectoral party or organization registered with the Commission on Elections may participate in the election of party-list representatives who, upon their election and proclamation, shall sit in the House of Representatives as regular members. In effect, a voter is given two votes for the House—one for a district Representative and another for a party-list representative.²⁴

Congress enacted Republic Act No. 7941 to implement the Constitution's mandate, and in a subsequent case, the Supreme Court held that the party-list system seeks to enable certain Filipino citizens —

23 *BANAT v. COMELEC*, G.R. No. 179271, 179295, July 8, 2009.

24 *Veterans Federation Party v. Commission on Elections*, G.R. Nos. 136781, 136786, 136795, October 6, 2000. The Constitution under Article VI, Section 5 that:

"Sec. 5. (1) The House of Representatives shall be composed of not more than two hundred and fifty members, unless otherwise fixed by law, who shall be elected from legislative districts apportioned among the provinces, cities, and the Metropolitan Manila area in accordance with the number of their respective inhabitants, and on the basis of a uniform and progressive ratio, and those who, as provided by law, shall be elected by a party-list system of registered national, regional, and sectoral parties or organizations.

(2) The party-list representatives shall constitute twenty per centum of the total number of representatives including those under the party-list. For three consecutive terms after the ratification of this Constitution, one half of the seats allocated to party-list representatives shall be filled, as provided by law, by selection or election from the labor, peasant, urban poor, indigenous cultural communities, women, youth, and such other sectors as may be provided by law, except the religious sector."

specifically those belonging to marginalized and underrepresented sectors, organizations and parties—to be elected to the House of Representatives. It explained that the law “crafted to address the peculiar disadvantages of Payatas hovel dwellers cannot be appropriated by the mansion owners of Forbes Park.”²⁵ Waxing eloquent, the Court held:

It was for [the marginalized and underrepresented] that the party-list system was enacted — to give them not only genuine hope, but genuine power; to give them the opportunity to be elected and to represent the specific concerns of their constituencies; and simply to give them a direct voice in Congress and in the larger affairs of the State. In its noblest sense, the party-list system truly empowers the masses and ushers a new hope for genuine change. Verily, it invites those marginalized and underrepresented in the past — the farm hands, the fisher folk, the urban poor, even those in the underground movement — to come out and participate, as indeed many of them came out and participated during the last elections. The State cannot now disappoint and frustrate them by disabling and desecrating this social justice vehicle.²⁶

The euphoria that followed the Court’s decision was short-lived. Twelve years later, the Court reversed itself and said that “Indisputably, the framers of the 1987 Constitution intended the party-list system to include not only sectoral parties but also non-sectoral parties. The framers intended the sectoral parties to constitute a part, but not the entirety, of the party-list system.” After reviewing the records of the Constitutional Commission, the Supreme Court explained that the framers voted down, 19–22, a proposal to reserve permanent seats to sectoral parties in the House of Representatives, or alternatively, to reserve the party-list system exclusively to sectoral parties.²⁷

The Court then examined the text of the Constitution and held that:

Section 5 (1), Article VI of the Constitution is crystal-clear that there shall be “a party-list system of registered national,

²⁵ *Ang Bagong Bayani-OFW v. COMELEC*, G.R. Nos. 147589, 147613, June 26, 2001.

²⁶ *Id.*

²⁷ *Atong Paglaum, Inc. v. Commission on Elections*, G.R. No. 203766, April 2, 2013.

regional, and sectoral parties or organizations.” The commas after the words “national[,]” and “regional[,]” separate national and regional parties from sectoral parties. Had the framers of the 1987 Constitution intended national and regional parties to be at the same time sectoral, they would have stated “national and regional sectoral parties.” They did not, precisely because it was never their intention to make the party-list system exclusively sectoral.

What the framers intended, and what they expressly wrote in Section 5 (1), could not be any clearer: the party-list system is composed of three different groups, and the sectoral parties belong to only one of the three groups. The text of Section 5 (1) leaves no room for any doubt that national and regional parties are separate from sectoral parties.²⁸

Thus, according to the Court, the party-list system is composed of three different groups:

1. National parties or organizations;
2. Regional parties or organizations; and
3. Sectoral parties or organizations.

National and regional parties or organizations are different from sectoral parties or organizations. National and regional parties or organizations need not be organized along sectoral lines and need not represent any particular sector.²⁹ The Court explained the idea behind the Philippine party-list system:

The recognition that national and regional parties, as well as sectoral parties of professionals, the elderly, women and the youth, need not be “marginalized and underrepresented” will allow small ideology-based and cause-oriented parties who lack “well-defined political constituencies” a chance to win seats in the House of Representatives. On the other hand, limiting to the “marginalized and underrepresented” the sectoral parties for labor, peasant, fisherfolk, urban poor, indigenous cultural

²⁸ Id.

²⁹ Id.

communities, handicapped, veterans, overseas workers, and other sectors that by their nature are economically at the margins of society, will give the “marginalized and underrepresented” an opportunity to likewise win seats in the House of Representatives.³⁰

Powers Of The COMELEC

Republic Act No. 7941 gives the COMELEC the power not only to register party-list groups but also to review and cancel their registration.³¹ The COMELEC possessed the authority to resolve intra-party disputes as a necessary tributary of its constitutionally mandated power to enforce election laws and register political parties. Matters regarding the nomination of party-list representatives, as well as their individual qualifications, are outlined in sections 8 and 9 of the Party-List System Law.³²

COMELEC can cancel the registration of a party-list on the ground of misrepresentation. However, not every misrepresentation committed by national, regional, and sectoral groups or organizations would merit the denial or cancellation of their registration under the party-list system. The misrepresentation must relate to their qualification as a party-list group. Thus, in one case, the Supreme Court held that the COMELEC gravely abused its discretion when it insisted on requiring ABANG LINGKOD to prove its track record notwithstanding that a group’s track record is no longer required pursuant to the Court’s pronouncement in *Atong Paglaum*.³³ Also, due process requires that the twin requirements of due notice and hearing are indispensable before the COMELEC may properly order the cancellation of the registration and accreditation of a party-list organization.³⁴ Failure to submit the list of five nominees before the election is also another ground which warrants the cancellation of its registration. Section 8 of

30 Id.

31 *Dayao v. COMELEC*, G.R. No. 193643, 193704, January 29, 2013.

32 *Lokin, Jr. v. COMELEC*, G.R. No. 193808, June 26, 2012.

33 *Abang Lingkod Party List v. COMELEC*, G.R. No. 206952, October 22, 2013.

34 *Coalition of Associations of Senior Citizens v. Commission on Elections*, G.R. No. 206844-45, July 23, 2013

Republic Act No. 7941 expressly requires the submission of a list containing at least five qualified nominees.³⁵

In one case, the Supreme Court overturned COMELEC's refusal to register a party. According to the Supreme Court:

No law exists to criminalize homosexual behavior or expressions or parties about homosexual behavior. Indeed, even if we were to assume that public opinion is as the COMELEC describes it, the asserted state interest here — that is, moral disapproval of an unpopular minority — is not a legitimate state interest that is sufficient to satisfy rational basis review under the equal protection clause. The COMELEC's differentiation, and its unsubstantiated claim that *Ang Ladlad* cannot contribute to the formulation of legislation that would benefit the nation, furthers no legitimate state interest other than disapproval of or dislike for a disfavored group.³⁶

Allocation Of Party-List Seats

The party-list representatives may make up twenty percent of the membership of the House of Representatives. This is the maximum number of seats available to party-list organizations. Not all the seats need to be filled.³⁷ In *BANAT v. COMELEC*³⁸ and reiterated in *AKMA-PTM v. COMELEC*,³⁹ the Court clarified the procedure for the allocation of these seats in the Party List System Act.⁴⁰ as follows:

1. The parties, organizations, and coalitions shall be ranked from the highest to the lowest based on the number of votes they garnered during the elections.

35 *COCOFED-Philippine Coconut Producers Federation, Inc. v. Commission on Elections*, G.R. No. 207026, August 6, 2013.

36 *Ang Ladlad LGBT Party v. COMELEC*, G.R. No. 190582, April 8, 2010.

37 *Barangay Association for National Advancement and Transparency (BANAT) v. Commission on Elections*, G.R. No. 179271, July 8, 2009.

38 *Barangay Association for National Advancement and Transparency (BANAT) v. Commission on Elections*, G.R. No. 179271, July 8, 2009.

39 *Aksyon Magsasaka Partido Tinig ng Masa (AKMA-PTM) v. Commission on Elections*, G.R. No. 207134, June 16, 2015.

40 Republic Act No. 7941 (1995).

2. The parties, organizations, and coalitions receiving at least two percent (2%) of the total votes cast for the party-list system shall be entitled to one guaranteed seat each.
3. Those garnering sufficient number of votes, according to the ranking in paragraph 1, shall be entitled to additional seats in proportion to their total number of votes until all the additional seats are allocated.
4. Each party, organization, or coalition shall be entitled to not more than three (3) seats.

In the second round of allocations there is no longer any need to conform to the 2% requirement (which would be unconstitutional).⁴¹ The allocation of seats will follow a two step procedure laid down in the Court's Decision⁴² of 21 April 2009⁴³ as clarified in the Decision of 8 July 2009.

1. For each party-list, multiply its percentage with the number of remaining available seats. The resulting whole number will be that party-list's number of additional seats.
2. If there are still vacant seats, these are distributed to the party-lists who did not receive additional seats in the second round beginning from the highest ranking to the lowest until there are

41 *Aksyon Magsasaka Partido Tinig ng Masa (AKMA-PTM) v. Commission on Elections*, G.R. No. 207134, June 16, 2015.

42 *Barangay Association for National Advancement and Transparency (BANAT) v. Commission on Elections*, G.R. No. 179271, April 21, 2009. After seats have been given to party-lists reaching the 2% threshold, the following procedure applies:

There are two steps in the second round of seat allocation. First, the percentage is multiplied by the remaining available seats, 38, which is the difference between the 55 maximum seats reserved under the Party-List System and the 17 guaranteed seats of the two-percenters. The whole integer of the product of the percentage and of the remaining available seats corresponds to a party's share in the remaining available seats. Second, we assign one party-list seat to each of the parties next in rank until all available seats are completely distributed. We distributed all of the remaining 38 seats in the second round of seat allocation.

43 The Supreme Court held that the continued operation of the two percent threshold in the distribution of the additional seats frustrates the attainment of the permissive ceiling that 20% of the members of the House of Representatives shall consist of party-list representatives. *Barangay Association for National Advancement and Transparency v. Commission on Elections*, G.R. No. 179271, April 21, 2009.

no more seats left regardless of whether they reached the 2% threshold.

- 3. Again, each party-list may only be given three seats at most in the House of Representatives.

The formula in allocating additional seats to the winning party-list groups, as used and interpreted in the case of *Banat v. COMELEC*, was modified as follows:

Number of votes of party-list

Total number of valid votes for party-list candidates

=

Proportion or

percentage of votes

garnered by party-list

The divisor shall be the total number of valid votes cast for the party-list system including votes cast for party-list groups whose names are in the ballot but are subsequently disqualified. Party-list groups listed in the ballot but whose disqualification attained finality prior to the elections and whose disqualification was reasonably made known by the Commission on Elections to the voters prior to such elections should not be included in the divisor. The divisor shall also not include votes that are declared spoiled or invalid. The refined formula shall apply prospectively to succeeding party-list elections from the date of finality of this case.⁴⁴

(3) Each legislative district shall comprise, as far as practicable, contiguous, compact and adjacent territory. Each city with a population of at least two hundred fifty thousand, or each province, shall have at least one representative.

A province cannot be created without a legislative district, because it will violate Section 5 (3), Article VI of the Constitution as well as Section 3 of the Ordinance appended to the Constitution. For the same reason, a city with a population of 250,000 or more also cannot be created without a legislative district. Thus, the power to create a province, or a city with a population of 250,000 or more, also requires the power to create a legislative district. Even

⁴⁴ *Alliance for Rural and Agrarian Reconstruction, Inc. v. COMELEC*, G.R. No. 192803, December 10, 2013.

the creation of a city with a population of less than 250,000 involves the power to create a legislative district, because once the city's population reaches 250,000, the city automatically becomes entitled to one representative under Section 5 (3), Article VI of the Constitution and Section 3 of the Ordinance appended to the Constitution. Thus, the power to create a province or city inherently involves the power to create a legislative district.⁴⁵

(4) Within three years following the return of every census, the Congress shall make a reapportionment of legislative districts based on the standards provided in this section.

Section 5 (1), Article VI of the Constitution vests in Congress the power to increase, through a law, the allowable membership in the House of Representatives. Section 5 (4) empowers Congress to reapportion legislative districts. The power to reapportion legislative districts necessarily includes the power to create legislative districts out of existing ones. Congress exercises these powers through a law that Congress itself enacts, and not through a law that regional or local legislative bodies enact. The allowable membership of the House of Representatives can be increased, and new legislative districts of Congress can be created, only through a national law passed by Congress. The "power of redistricting ... is traditionally regarded as part of the power (of Congress) to make laws", and thus is vested exclusively in Congress.⁴⁶

Congress is a national legislature and any increase in its allowable membership or in its incumbent membership through the creation of legislative districts must be embodied in a national law. Only Congress can enact such a law. It would be anomalous for regional or local legislative bodies to create or reapportion legislative districts for a national legislature like Congress. An inferior legislative body, created by a superior legislative body, cannot change the membership of the superior legislative body.⁴⁷

SECTION 6. No person shall be a Member of the House of Representatives unless he is a natural-born citizen of the Philippines and, on the day of the election, is at least twenty-five years of age, able to read and write, and,

⁴⁵ *Sema v. COMELEC*, G.R. Nos. 177597 & 178628, July 16, 2008.

⁴⁶ *Sema v. COMELEC*, G.R. Nos. 177597 & 178628, July 16, 2008.

⁴⁷ *Id.*

except the party-list representatives, a registered voter in the district in which he shall be elected, and a resident thereof for a period of not less than one year immediately preceding the day of the election.⁴⁸

SECTION 7. The Members of the House of Representatives shall be elected for a term of three years which shall begin, unless otherwise provided by law, at noon on the thirtieth day of June next following their election.

No member of the House of Representatives shall serve for more than three consecutive terms. Voluntary renunciation of the office for any length of time shall not be considered as an interruption in the continuity of his service for the full term for which he was elected.

SECTION 8. Unless otherwise provided by law, the regular election of the Senators and the Members of the House of Representatives shall be held on the second Monday of May.

SECTION 9. In case of vacancy in the Senate or in the House of Representatives, a special election may be called to fill such vacancy in the manner prescribed by law, but the Senator or Member of the House of Representatives thus elected shall serve only for the unexpired term.

Congress enacted Republic Act No. 6645, "An Act Prescribing the Manner of Filling a Vacancy in the Congress of the Philippines," to implement this constitutional provision. The law provides:

SECTION 1. In case a vacancy arises in the Senate at least eighteen (18) months or in the House of Representatives at least

48 The purpose of this residency is "to exclude strangers or newcomers unfamiliar with the conditions and needs of the community" from taking advantage of favorable circumstances existing in that community for electoral gain. While there is nothing wrong with the practice of establishing residence in a given area for meeting election law requirements, this nonetheless defeats the essence of representation, which is to place through the assent of voters those most cognizant and sensitive to the needs of a particular district, if a candidate falls short of the period of residency mandated by law for him to qualify. That purpose could be obviously best met by individuals who have either had actual residence in the area for a given period or who have been domiciled in the same area either by origin or by choice. SEE *Perez v. COMELEC*, G.R. No. 133944, October 28, 1999.

one (1) year before the next regular election for Members of Congress, the Commission on Elections, upon receipt of a resolution of the Senate or the House of Representatives, as the case may be, certifying to the existence of such vacancy and calling for a special election, shall hold a special election to fill such vacancy. If the Congress is in recess, an official communication on the existence of the vacancy and call for a special election by the President of the Senate or by the Speaker of the House of Representatives, as the case may be, shall be sufficient for such purpose. The Senator or Member of the House of Representatives thus elected shall serve only for the unexpired term.

SECTION 2. The Commission on Elections shall fix the date of the special election, which shall not be earlier than forty-five (45) days nor later than ninety (90) days from the date of such resolution or communication, stating among other things, the office or offices to be voted for: *Provided, however,* That if within the said period a general election is scheduled to be held, the special election shall be held simultaneously with such general election.

SECTION 3. The Commission on Elections shall send copies of the resolution, in number sufficient for due distribution and publication, to the Provincial or City Treasurer of each province or city concerned, who in turn shall publish it in their respective localities by posting at least three copies thereof in as many conspicuous places in each of their election precincts, and a copy in each of the polling places and public markets, and in the municipal buildings.

Republic Act No. 6645 was amended in 1991 by Republic Act No. 7166 which provides in Section 4:

SECTION 4. Postponement, Failure of Election and Special Election. — The postponement, declaration of failure of election and the calling of special elections as provided in Sections 5, 6, and 7 of the Omnibus Election Code shall be decided by the Commission sitting en banc by a majority vote of its members ...

In case a permanent vacancy shall occur in the Senate or House of Representatives at least one (1) year before the expiration of the term, the Commission shall call and hold a special election

to fill the vacancy not earlier than sixty (60) days nor longer than ninety (90) days after the occurrence of the vacancy. However, in case of such vacancy in the Senate, the special election shall be held simultaneously with the next succeeding regular election.⁴⁹

In case a vacancy arises in Congress at least one year before the expiration of the term, Section 2 of Republic Act No. 6645, as amended, requires COMELEC: (1) to call a special election by fixing the date of the special election, which shall not be earlier than sixty (60) days nor later than ninety (90) after the occurrence of the vacancy, but in case of a vacancy in the Senate, the special election shall be held simultaneously with the next succeeding regular election; and (2) to give notice to the voters of, among other things, the office or offices; to be voted for.⁵⁰

The calling of an election, that is, the giving notice of the time and place of its occurrence, whether made by the legislature directly or by the body with the duty to give such call, is indispensable to the election's validity. In a general election, where the law fixes the date of the election, the election is valid without any call by the body charged to administer the election. In a special election to fill a vacancy, the rule is that a statute which expressly provides that an election to fill a vacancy shall be held at the next general elections already fixes the date at which the special election is to be held and operates as the call for that election. Consequently, an election held at the time thus prescribed is not invalidated by the fact that the body charged by law with the duty of calling the election failed to do so. This is because the right and duty to hold the election emanates from the statute and not from any call for the election by some authority, and the law charges the voters with knowledge of the time and place of the election. Conversely, where the law does not fix the time and place for holding a special election, but empowers some authority to fix the time and place after the happening of a condition precedent, the statutory provision on the giving of notice is considered mandatory, and failure to do so will render the election a nullity.

Section 2 of Republic Act No. 6645 itself provides that in case of vacancy in the Senate, the special election to fill such vacancy shall be held

⁴⁹ *Tolentino v. COMELEC*, G.R. No. 148334, January 21, 2004.

⁵⁰ *Id.*

simultaneously with the next succeeding regular election. In one case, the Supreme Court held that the special election to fill the vacancy in the Senate arising from Senator Guingona's appointment as Vice-President in February 2001 could not be held at any other time but must be held simultaneously with the next succeeding regular elections on 14 May 2001. The law charges the voters with knowledge of this statutory notice and COMELEC's failure to give the additional notice did not negate the calling of such special election, much less invalidate it. The Supreme Court further held that its conclusion might be different had the present case involved a special election to fill a vacancy in the House of Representatives. In such a case, the holding of the special election is subject to a condition precedent, that is, the vacancy should take place at least one year before the expiration of the term. The time of the election is left to the discretion of COMELEC subject only to the limitation that it holds the special election within the range of time provided in Section 2 of Republic Act No. 6645, as amended. This makes mandatory the requirement for COMELEC to "call ... a special election ... not earlier than 60 days nor longer than 90 days after the occurrence of the vacancy" and give notice of the office to be filled. The COMELEC's failure to so call and give notice will nullify any attempt to hold a special election to fill the vacancy. Indeed, it will be well-nigh impossible for the voters in the congressional district involved to know the time and place of the special election and the office to be filled unless the COMELEC so notifies them.⁵¹

SECTION 10. The salaries of Senators and Members of the House of Representatives shall be determined by law. No increase in said compensation shall take effect until after the expiration of the full term of all the Members of the Senate and the House of Representatives approving such increase.

The increased compensation is not operative until the full term of all members of the Senate and House that approved it will have expired. The Supreme Court has held that in so far as Republic Act No. 4642 (1965-1966 Appropriation Act) authorizes the disbursement of the increased compensation prior to the date aforesaid, it violates the Constitution and must be held null and void.⁵² A member of congress whose term of office

51 Id.

52 *Philippine Constitution Ass'n, Inc. v. Mathay*, G.R. No. L-25554, October 4, 1966. That decision interpreted the counterpart provision in the 1935 Constitution that read:

expired on December 30, 1969 and qualified for retirement benefits by virtue of a minimum of twenty years of government service is entitled to a retirement gratuity based on the salary actually received by him as a member of Congress of P7, 200.00 per annum. According to the Court, to grant the petitioner's contention that the retirement gratuity of members of Congress such as himself whose terms *expired* on December 30, 1969 should be computed on the basis of an increased salary of P32, 000.00 per annum under Republic Act 4134 which could only by operative with incoming members of Congress whose terms of office would *commence* on December 30, 1969, by virtue of the Constitutional mandate that such salary increases could take effect only upon the expiration of the full term of all members of Congress that approved on June 20, 1964 such increased salary, (since petitioner and other outgoing members of Congress were constitutionally prohibited from receiving such salary increase during their term of office) would be a subtle way of going around the constitutional prohibition and increasing in effect their compensation during their term of office and of doing indirectly what could not be done directly.⁵³

SECTION 11. A Senator or Member of the House of Representatives shall, in all offenses punishable by not more than six years imprisonment, be privileged from arrest while the Congress is in session. No Member shall be questioned nor be held liable in any other place for any speech or debate in the Congress or in any committee thereof.

This immunity is intended to ensure representation of the constituents of the member of the Congress by preventing attempts to keep her from attending its sessions. It also enables the legislator to express views bearing

"Sec. 14. The Senators and the Members of the House of Representatives shall, unless otherwise provided by law, receive an annual compensation of seven thousand two hundred pesos each, including per diems and other emoluments or allowances, and exclusive only of traveling expenses to and from their respective districts in the case of Members of the House of Representatives, and to and from their places of residence in the case of Senators, when attending sessions of the Congress. No increase in said compensation shall take effect until after the expiration of the full term of all the Members of the Senate and of the House of Representatives approving such increase. Until otherwise provided by law, the President of the Senate and the Speaker of the House of Representatives shall each receive an annual compensation of sixteen thousand pesos."

53 *Ligot v. Mathay*, G.R. No. L-34676, April 30, 1974.

upon the public interest without fear of accountability outside the halls of the legislature for his inability to support his statements with the usual evidence required in the court of justice. She is given more leeway than the ordinary citizen in the ventilation of matters that ought to be divulged for the public good.⁵⁴ Immunity is designed “to enable and encourage a representative of the public to discharge his public trust with firmness and success.” Liberty of speech is necessary so that he should be protected from resentment of every one, however, powerful, to whom the exercise of that liberty may occasion offense.⁵⁵

SECTION 12. All Members of the Senate and the House of Representatives shall, upon assumption of office, make a full disclosure of their financial and business interests. They shall notify the House concerned of a potential conflict of interest that may arise from the filing of a proposed legislation of which they are authors.

SECTION 13. No Senator or Member of the House of Representatives may hold any other office or employment in the Government, or any subdivision, agency, or instrumentality thereof, including government-owned or controlled corporations or their subsidiaries, during his term without forfeiting his seat. Neither shall he be appointed to any office which may have been created or the emoluments thereof increased during the term for which he was elected.

The office of the Chairman of the Philippine National Red Cross is not a government office or an office in a government-owned or controlled corporation for purposes of the prohibition in Section 13, Article VI of the 1987 Constitution.⁵⁶

SECTION 14. No Senator or Member of the House of Representatives may personally appear as counsel before any court of justice or before the Electoral Tribunals, or quasi-judicial and other administrative bodies. Neither shall he, directly or indirectly, be interested financially in any contract with, or in any franchise or special privilege granted by the

54 *Mapa, Jr. v. Sandiganbayan*, G.R. No. 100295, April 26, 1994.

55 *Pobre v. Defensor-Santiago*, A.C. No. 7399, August 25, 2009.

56 *Liban v. Gordon*, G.R. No. 175352, July 15, 2009.

Government, or any subdivision, agency, or instrumentality thereof, including any government-owned or controlled corporation, or its subsidiary, during his term of office. He shall not intervene in any matter before any office of the Government for his pecuniary benefit or where he may be called upon to act on account of his office.

SECTION 15. The Congress shall convene once every year on the fourth Monday of July for its regular session, unless a different date is fixed by law, and shall continue to be in session for such number of days as it may determine until thirty days before the opening of its next regular session, exclusive of Saturdays, Sundays, and legal holidays. The President may call a special session at any time.

SECTION 16. (1) The Senate shall elect its President and the House of Representatives its Speaker, by a majority vote of all its respective Members.

Each House shall choose such other officers as it may deem necessary.

(2) A majority of each House shall constitute a quorum to do business, but a smaller number may adjourn from day to day and may compel the attendance of absent Members in such manner, and under such penalties, as such House may provide.

When the Constitution declares that a majority of “each House” shall constitute a quorum, “the House” does not mean “all” the members. There is a difference between a majority of “all the members of the House” and a majority of “the House,” the latter requiring less number than the first.⁵⁷ The members of Congress cannot compel absent members to attend sessions if the reason for the absence is a legitimate one. The confinement of a Congressman charged with a crime punishable by imprisonment of more than six months is not merely authorized by law, it has constitutional foundations. The performance of legitimate and even essential duties by public officers has never been an excuse to free a person validly in prison.⁵⁸

⁵⁷ *Avelino v. Cuenco*, G.R. No. L-2821 (Resolution), March 4, 1949.

⁵⁸ *People v. Jalosjos*, G.R. Nos. 132875-76 (Resolution), February 3, 2000.

(3) Each House may determine the rules of its proceedings, punish its Members for disorderly behavior, and, with the concurrence of two-thirds of all its Members, suspend or expel a Member. A penalty of suspension, when imposed, shall not exceed sixty days.

Legislative rules are subject to revocation, modification, or waiver at the pleasure of the body adopting them. Being merely matters of procedure, their observance are of no concern to the courts, for said rules may be waived or disregarded by the legislative body at will, upon the concurrence of a majority. Congress has the power and prerogative to provide for such officers as it may deem. And it is certainly within its own jurisdiction and discretion to prescribe the parameters for the exercise of this prerogative. The Supreme Court has no authority to interfere and unilaterally intrude into that exclusive realm, without running afoul of constitutional principles that it is bound to protect and uphold — the very duty that justifies the Court's being. Constitutional respect and a becoming regard for the sovereign acts of a coequal branch prevents this Court from prying into the internal workings of the Senate.⁵⁹

However, if the Senate is constituted as a Committee of the Whole, a majority of the Senate is required to constitute a quorum to do business pursuant to Section 16 (2), Article VI of the Constitution. Otherwise, there will be a circumvention of this express provision of the Constitution on quorum requirement. In case of conflict between the Rules of the Senate Committee of the Whole and the Constitution, the latter will of course prevail.⁶⁰

The Sandiganbayan can order the preventive suspension of a Senator of the Republic of the Philippines charged with violation of the provisions of Republic Act No. 3019 (the Anti-Graft and Corrupt Practices Act). It would appear to be a ministerial duty of the court to issue an order of suspension upon determination of the validity of the information filed before it. Once the information is found to be sufficient in form and substance, the court is bound to issue an order of suspension as a matter of course. The doctrine of separation of powers does not shield members of Congress from Republic Act No. 3019 or its sanctions. The doctrine simply recognizes that the three

⁵⁹ *Defensor-Santiago v. Guingona, Jr.*, G.R. No. 134577, November 18, 1998.

⁶⁰ *Pimentel, Jr. v. Senate Committee on the Whole*, G.R. No. 187714, March 8, 2011.

co-equal and independent branches of the government have exclusive prerogatives and cognizance within its own sphere of influence and effectively prevents one branch from unduly intruding into the internal affairs of either branch.⁶¹

(4) Each House shall keep a Journal of its proceedings, and from time to time publish the same, excepting such parts as may, in its judgment, affect national security; and the yeas and nays on any question shall, at the request of one-fifth of the Members present, be entered in the Journal.

The Journal is regarded as conclusive with respect to matters that are required by the Constitution to be recorded therein. With respect to other matters, in the absence of evidence to the contrary, the Journals have also been accorded conclusive effect. Thus, in *United States v. Pons*,⁶² this Court spoke of the imperatives of public policy for regarding the Journals as “public memorials of the most permanent character,” thus: “They should be public, because all are required to conform to them; they should be permanent, that rights acquired today upon the faith of what has been declared to be law shall not be destroyed tomorrow, or at some remote period of time, by facts resting only in the memory of individuals.”⁶³ Under the doctrine of separation of powers, the Court may not inquire beyond the certification of the approval of a bill from the presiding officers of Congress. In one case, the Court declined to look into charges that an amendment was made upon the last reading of the bill and that copies thereof in its final form were not distributed among the members of each House, since both the enrolled bill and the legislative Journals certify that the measure was enacted in accordance with Article VI, Section. 26(2) of the Constitution.⁶⁴

It is well settled that the enrolled bill is conclusive upon the courts as regards the tenor of the measure passed by Congress and approved by the President. If there has been any mistake in the printing of the bill before it was certified by the officers of Congress and approved by the Executive — on which the Supreme Court cannot speculate, without jeopardizing the principle of separation of powers and undermining one of the cornerstones

61 *Defensor-Santiago v. Sandiganbayan*, G.R. No. 128055, April 18, 2001.

62 34 Phil. 729, 735 (1916).

63 *Arroyo v. De Venecia*, G.R. No. 127255, August 14, 1997.

64 *Philippine Judges Ass’n. v. Prado*, G.R. No. 105371, November 11, 1993.

of our democratic system — the remedy is by amendment or curative legislation, not by judicial decree.⁶⁵ It is not in every case that the Journals must yield to the enrolled bill. To be sure, there are certain matters which the Constitution expressly requires must be entered on the Journal of each House. The Court held that with respect to matters not expressly required to be entered on the Journal, the enrolled bill prevails in the event of any discrepancy.⁶⁶

However, in a case where the Journal showed that amendments made on the Senate floor were not incorporated into the final text that was sent to the President, the Court held that the bill was not duly enacted and did not become law. In that case both the President of the Senate and the Chief Executive withdrew their signatures and the Court held that in the face of the manifest error committed and subsequently rectified by the President of the Senate and by the Chief Executive, the Court could not perpetuate the error by disregarding such rectification and holding that the erroneous bill has become law.⁶⁷

(5) Neither House during the sessions of the Congress shall, without the consent of the other, adjourn for more than three days, nor to any other place than that in which the two Houses shall be sitting.

SECTION 17. The Senate and the House of Representatives shall each have an Electoral Tribunal which shall be the sole judge of all contests relating to the election, returns, and qualifications of their respective Members. Each Electoral Tribunal shall be composed of nine Members, three of whom shall be Justices of the Supreme Court to be designated by the Chief Justice, and the remaining six shall be Members of the Senate or the House of Representatives, as the case may be, who shall be chosen on the basis of proportional representation from the political parties and the parties or organizations registered under the party-list system represented therein. The senior Justice in the Electoral Tribunal shall be its Chairman.

⁶⁵ *Casco Philippine Chemical Co., Inc. v. Gimenez*, G.R. No. L-17931, February 28, 1963.

⁶⁶ *Morales v. Subido*, G.R. No. L-29658 (Resolution), February 27, 1969.

⁶⁷ *Astorga v. Villegas*, G.R. No. L-23475, April 30, 1974.

The 1987 Constitution substantially retained the COMELEC's purely administrative powers⁶⁸ as well as its rule-making power. But the same cannot be said with regard to the jurisdiction of the COMELEC to hear and decide election contests. The 1987 Constitution, while lodging in the COMELEC exclusive original jurisdiction over all contests relating to the elections, returns and qualifications of all elective regional, provincial and city officials and appellate jurisdiction over contests relating to the election of municipal and barangay officials [Article IX(C), Sec. 2(2)], expressly makes the Electoral Tribunals of the Senate and the House of Representatives the sole judge of all contests relating to the election, returns and qualifications of their respective Members [Art. VI, Sec. 17]. It is within the power of the HRET to prescribe the period within which protests may be filed before it. This is founded not only on historical precedents and jurisprudence but, more importantly, on the clear language of the Constitution itself.⁶⁹

In providing for a Tribunal to be staffed by both Justices of the Supreme Court and Members of the Senate, the Constitution intended that both the "judicial" and "legislative" components commonly share the duty and authority of deciding all contests relating to the election, returns and qualifications of Senators.

The framers of the Constitution could not have been unaware of the possibility of an election contest that would involve all 24 Senators — elect, six of whom would inevitably have to sit in judgment thereon. Yet, the Constitution provides no scheme or mode for settling such unusual situations or for the substitution of Senators designated to the Tribunal whose disqualification may be sought. Litigants in such situations must simply place their trust and hopes of vindication in the fairness and sense of justice of the Members of the Tribunal—Justices and Senators, singly and collectively. Every Member of the Tribunal may, as his conscience dictates, refrain from participating in the resolution of a case where he sincerely feels

68 These are the exclusive authority to enforce and administer all laws and regulations relative to the conduct of an election, plebiscite, initiative, referendum, and recall; to decide, except those involving the right to vote, all questions affecting elections; to deputize law enforcement agencies and government instrumentalities for election purposes; to register political parties and accredit citizens' arms; to file in court petitions for inclusion and exclusion of voters and prosecute, where appropriate, violations of election laws. See Art. IX (C), Sec. 2 (1), (3)-(6).

69 *Lazatin v. HRET*, G.R. No. 84297, December 8, 1988.

that his personal interests or biases would stand in the way of an objective and impartial judgment. But in the light of the Constitution, the Senate Electoral Tribunal cannot legally function as such, absent its *entire membership* of Senators and that no amendment of its Rules can confer on the three Justices-Members alone the power of valid adjudication of a senatorial election contest.⁷⁰

As judges, the members of the Tribunal must be nonpartisan. They must discharge their functions with complete detachment, impartiality, and independence — even independence from the political party to which they belong. “Disloyalty to party” and “breach of party discipline,” are not valid grounds for the expulsion of a member of the tribunal. Thus, in one case, the Supreme Court has held that in expelling a member of the House of Representative Electoral Tribunal for having cast a vote against his party’s interest, based strictly on the result of the examination and appreciation of the ballots and the recount of the votes by the Tribunal, the House of Representatives committed a grave abuse of discretion, an injustice, and a violation of the Constitution. The expulsion also violated the member’s right to security of tenure. Membership in the House Electoral Tribunal may not be terminated except for a just cause, such as, the expiration of the member’s congressional term of office, his death, permanent disability, resignation from the political party he represents in the tribunal, formal affiliation with another political party, or removal for other valid cause. If the expulsion from the House Electoral Tribunal by the House of Representatives were not for a lawful and valid cause, but simply to unjustly interfere with the tribunal’s disposition of a case the action of the House of Representatives violates of the constitutional mandate (Sec. 17, Art. VI, 1987 Constitution) which created the House Electoral Tribunal to be the “sole judge” of an election contest.⁷¹

The use of the word “sole” in Section 17 underscores the *exclusive* jurisdiction of the House Electoral Tribunal as judge of contests relating to the election, returns and qualifications of the members of the House of Representatives. The tribunal was created to function as a *nonpartisan* court although two-thirds of its members are politicians. It is a non-political body

70 *Abbas v. Senate Electoral Tribunal*, G.R. No. 83767 (Resolution), October 27, 1988.

71 *Bondoc v. Pineda*, G.R. No. 97710, September 26, 1991.

in a sea of politicians.⁷² The Supreme Court's jurisdiction to review decisions and orders of electoral tribunals is exercised only upon showing of grave abuse of discretion committed by the tribunal; otherwise, the Court shall not interfere with the electoral tribunal's exercise of its discretion or jurisdiction.⁷³

Thus, once a winning candidate has been proclaimed, taken his oath, and assumed office as a Member of the House of Representatives, COMELEC's jurisdiction over election contests relating to his election, returns, and qualifications ends, and the HRET's own jurisdiction begins.⁷⁴ This exclusive jurisdiction includes the power to determine whether it has the authority to hear and determine the controversy presented, and the right to decide whether that state of facts exists which confers jurisdiction, as well as all other matters which arise in the case legitimately before it. It has the power to hear and determine, or inquire into, the question of its own jurisdiction, both as to parties and as to subject matter, and to decide all questions, whether of law or fact, the decision of which is necessary to determine the question of jurisdiction.⁷⁵

SECTION 18. There shall be a Commission on Appointments consisting of the President of the Senate, as *ex officio* Chairman, twelve Senators and

72 *Bondoc v. Pineda*, G.R. No. 97710, September 26, 1991.

73 *Dueñas, Jr. v. HRET*, G.R. No. 191550, May 4, 2010. Grave abuse of discretion has been defined as the capricious and whimsical exercise of judgment, the exercise of power in an arbitrary manner, where the abuse is so patent and gross as to amount to an evasion of positive duty. The Court may inquire into the issue of whether HRET acted with grave abuse of discretion as inferred from Section 1, Article VIII of the Constitution which has expanded judicial power to include the determination of "whether or not there has been a grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the Government." *Garcia v. HRET*, G.R. No. 134792, August 12, 1999.

74 *Pimentel III v. COMELEC*, G.R. No. 178413, March 13, 2008. To be considered a Member of the House of Representatives, there must be a concurrence of the following requisites: (1) a valid proclamation, (2) a proper oath, and (3) assumption of office. In some cases, the Supreme Court has made the pronouncement that once a proclamation has been made, COMELEC's jurisdiction is already lost and, thus, its jurisdiction over contests relating to elections, returns, and qualifications ends, and the HRET's own jurisdiction begins. However, it must be noted that in these cases, the doctrinal pronouncement was made in the context of a proclaimed candidate who had not only taken an oath of office, but who had also assumed office. *Reyes v. COMELEC*, G.R. No. 207264, June 25, 2013.

75 *Roces v. House of Representatives Electoral Tribunal*, G.R. No. 167499, September 15, 2005.

twelve Members of the House of Representatives, elected by each House on the basis of proportional representation from the political parties and parties or organizations registered under the party-list system represented therein. The Chairman of the Commission shall not vote, except in case of a tie. The Commission shall act on all appointments submitted to it within thirty session days of the Congress from their submission. The Commission shall rule by a majority vote of all the Members.

It is not mandatory to elect twelve Senators to the Commission on Appointments. The Constitution does not contemplate that the Commission on Appointments must necessarily include twelve senators and twelve members of the House of Representatives. What the Constitution requires is that there be at least a majority of the entire membership. Under Section 18, the Commission shall rule by majority vote of all the members and in Section 19, the Commission shall meet only while Congress is in session, at the call of its Chairman or a majority of all its members “to discharge such powers and functions herein conferred upon it”.⁷⁶

Section 18 is mandatory in character and does not leave any discretion to the majority party in the Senate to disobey the rule. Otherwise, the party with a majority representation in the Senate or the House of Representatives can, by sheer force of numbers, impose its will on the minority. Section 18 works as a check on the majority party in the Senate and helps to maintain the balance of power. No party can claim more than what it is entitled to under such rule. To allow it to elect more than its proportional share of members is to confer upon such a party a greater share in the membership in the Commission on Appointments and more power to impose its will on the minority, who by the same token, suffers a diminution of its rightful membership in the Commission. Section 18 also assures representation in the Commission on Appointments of any political party who succeeds in electing members to the Senate, provided that the number of senators so elected enables it to put a representative in the Commission on Appointments.⁷⁷

The House of Representatives may change its representation in the Commission on Appointments at any time to reflect the changes that may transpire in the political alignments of its membership. Such changes must be

⁷⁶ *Guingona, Jr. v. Gonzales*, G.R. No. 106971, October 20, 1992.

⁷⁷ *Guingona, Jr. v. Gonzales*, G.R. No. 106971, October 20, 1992.

permanent and do not include the temporary alliances or factional divisions not involving severance of political loyalties or formal disaffiliation and permanent shifts of allegiance from one political party to another.⁷⁸

In one case, the Supreme Court dismissed a petition questioning the composition of the Commission on Appointments, saying that the composition of the House membership in the Commission on Appointments was based on proportional representation of the political parties in the House:

... There are 160 members of the LDP in the House. They represent 79% of the House membership (which may be rounded out to 80%). Eighty percent (80%) of 12 members in the Commission on Appointments would equal 9.6 members, which may be rounded out to ten (10) members from the LDP. The remaining two seats were apportioned to the LP (respondent Lorna Verano-Yap) as the next largest party in the Coalesced Majority and the KBL (respondent Roque Ablan) as the principal opposition party in the House. There is no doubt that this apportionment of the House membership in the Commission on Appointments was done "on the basis of proportional representation of the political parties therein."⁷⁹

A mere motion for reconsideration to a confirmation duly made which is not approved cannot have the effect of setting aside such confirmation.⁸⁰

SECTION 19. The Electoral Tribunals and the Commission on Appointments shall be constituted within thirty days after the Senate and the House of Representatives shall have been organized with the election of the President and the Speaker. The Commission on Appointments shall meet only while the Congress is in session, at the call of its Chairman or a majority of all its Members, to discharge such powers and functions as are herein conferred upon it.

78 *Daza v. Singson*, G.R. No. 86344, December 21, 1989.

79 *Coseteng v. Mitra, Jr.*, G.R. No. 86649, July 12, 1990.

80 *Pacete v. Sec. of the Comm. on Appointments*, G.R. No. L-25895, July 23, 1971.

SECTION 20. The records and books of accounts of the Congress shall be preserved and be open to the public in accordance with law, and such books shall be audited by the Commission on Audit which shall publish annually an itemized list of amounts paid to and expenses incurred for each Member.

SECTION 21. The Senate or the House of Representatives or any of its respective committees may conduct inquiries in aid of legislation in accordance with its duly published rules of procedure. The rights of persons appearing in or affected by such inquiries shall be respected.

The Constitution recognizes the power of investigation, not just of Congress, but also of “any of its committees.” This is significant because it constitutes a direct conferral of investigatory power upon the committees and it means that the mechanisms which the Houses can take in order to effectively perform its investigative function are also available to the committees.⁸¹

A legislative investigation in aid of legislation and court proceedings serve different purposes. Courts conduct hearings or like adjudicative procedures to settle, through the application of a law, actual controversies arising between adverse litigants and involving demandable rights. Inquiries in aid of legislation are, *inter alia*, undertaken as tools to enable the legislative body to gather information and, thus, legislate wisely and effectively; and to aid in legislation, albeit the inquiry need not result in any potential legislation. On-going judicial proceedings do not preclude congressional hearings in aid of legislation.⁸²

The mere filing of a criminal or an administrative complaint before a court or a quasi-judicial body should not bar the conduct of legislative investigation. Otherwise, it would be extremely easy to subvert any intended inquiry by Congress through the convenient ploy of instituting a criminal or an administrative complaint. Surely, the exercise of sovereign legislative authority, of which the power of legislative inquiry is an essential component, cannot be made subordinate to a criminal or an administrative

81 *Miguel v. Gordon*, G.R. No. 174340, October 17, 2006.

82 *Romero II v. Estrada*, G.R. No. 174105, April 2, 2009.

investigation.⁸³ Thus, the Supreme Court has no authority to prohibit a Senate committee from requiring persons to appear and testify before it in connection with an inquiry in aid of legislation in accordance with its duly published rules of procedure.⁸⁴

The power of both Houses of Congress to conduct inquiries in aid of legislation is not unlimited. The investigation must be “in aid of legislation in accordance with its duly published rules of procedure” and that “the rights of persons appearing in or affected by such inquiries shall be respected.” It follows, then, that the rights of persons under the Bill of Rights must be respected, including the right to due process and the right not to be compelled to testify against one’s self. The power to conduct formal inquiries or investigations may refer to the implementation or re-examination of any law or in connection with any proposed legislation or the formulation of future legislation. They may also extend to any and all matters vested by the Constitution in Congress and/or in the Senate alone.⁸⁵

Recent decisions of the Supreme Court seem to restrict the powers of Congress. In *Gudani v. Senga*,⁸⁶ the Supreme Court created a military exception for the Commander-in-Chief, allowing her to prevent military officers from testifying before congressional investigations. In *Neri v. Senate Committee on Accountability of Public Officers and Investigations*,⁸⁷ the Supreme Court micromanaged the Senate, filtering questions which the Senate may ask in their inquiries.⁸⁸

The congressional investigation cases shielded the Arroyo Administration from potential prosecution, because the Senate had difficulty extracting information from her cabinet and the military. In the 2010 Presidential elections, then candidate Senator Aquino opined that outgoing President Gloria Macapagal-Arroyo was constitutionally barred from filling a

83 *Standard Chartered Bank v. Senate Committee on Banks, Financial Institutions and Currencies*, G.R. No. 167173, December 27, 2007.

84 *Romero II v. Estrada*, G.R. No. 174105, April 2, 2009.

85 *Bengzon Jr. v. Senate Blue Ribbon Committee*, G.R. No. 89914, November 20, 1991.

86 G.R. No. 170165, 498 SCRA 671, Aug.15, 2006.

87 G.R. No. 180643, 549 SCRA 77 Mar. 25, 2008, and 564 SCRA 152, Sept. 4, 2008.

88 See also H. Harry L. Roque, “The Neri Ruling on Executive Privilege: Issues and Challenges for the Accountability of Public Officers and Separation of Powers”, 6 NAT’L TAIWAN U. L. REV. 435 (2011).

vacancy in the Supreme Court. The Supreme Court reversed case law and sided with Arroyo. In *De Castro v. JBC*,⁸⁹ the Supreme Court reversed *In re Valenzuela*⁹⁰ and held that the Constitution did not bar the President from appointing members of the judiciary in the months before the next Presidential elections. The Court provided more protection to the Arroyo Administration when in *Biraogo v. Philippine Truth Commission of 2010*,⁹¹ the Supreme Court ended President Aquino's first efforts at investigating corruption in the Arroyo Administration by declaring his Truth Commission unconstitutional. *Biraogo* ground inquiry to a halt because evidently one can invoke the equal protection clause to crush investigations into possible corruption.

SECTION 22. The heads of departments may upon their own initiative, with the consent of the President, or upon the request of either House, as the rules of each House shall provide, appear before and be heard by such House on any matter pertaining to their departments. Written questions shall be submitted to the President of the Senate or the Speaker of the House of Representatives at least three days before their scheduled appearance. Interpellations shall not be limited to written questions, but may cover matters related thereto. When the security of the State or the public interest so requires and the President so states in writing, the appearance shall be conducted in executive session.

The 1987 Constitution removed the mandatory nature of appearance during the question hour to conform more fully to a system of separation of powers. The question hour, as it is presently understood in this jurisdiction, departs from the question period of the parliamentary system. That department heads may not be required to appear in a question hour does not, however, mean that the legislature is rendered powerless to elicit information from them in all circumstances. In fact, in light of the absence of a mandatory question period, the need to enforce Congress' right to executive information *in the performance of its legislative function* becomes more imperative.⁹²

89 G.R. No. 191002, 615 SCRA 666, Mar. 17, 2010.

90 A.M. No. 98-5-01-SC, 298 SCRA 408, Nov. 9, 1998.

91 G.R. No. 192935, 637 SCRA 78, Dec. 7, 2010.

92 *Senate of the Phils. v. Ermita*, G.R. No. 169777, April 20, 2006.

Sections 21 and 22, while closely related, should not be considered as pertaining to the same power of Congress. One specifically relates to the power to conduct inquiries in aid of legislation, the aim of which is to elicit information that may be used for legislation, while the other pertains to the power to conduct a question hour, the objective of which is to obtain information in pursuit of Congress' oversight function.⁹³

When Congress merely seeks to be informed on how department heads are implementing the statutes which it has issued, its right to such information is not as imperative as that of the President to whom, as Chief Executive, such department heads must give a report of their performance as a matter of duty. In such instances, Section 22, in keeping with the separation of powers, states that Congress may only request their appearance. Nonetheless, when the inquiry in which Congress requires their appearance is "in aid of legislation" under Section 21, the appearance is mandatory.⁹⁴ In fine, the oversight function of Congress may be facilitated by compulsory process only to the extent that it is performed in pursuit of legislation.⁹⁵

The Constitution instructs that the Senate or its committees may conduct inquiries in aid of legislation only in accordance with duly published rules of procedure, and does not make any distinction whether or not these rules have undergone amendments or revision. The constitutional mandate to publish the said rules prevails over any custom, practice or tradition followed by the Senate.⁹⁶

SECTION 23. (1) The Congress, by a vote of two-thirds of both Houses in joint session assembled, voting separately, shall have the sole power to declare the existence of a state of war.

(2) In times of war or other national emergency, the Congress may, by law, authorize the President, for a limited period and subject to such restrictions as it may prescribe, to exercise powers necessary and proper to carry out a declared national policy. Unless sooner withdrawn by

⁹³ Id.

⁹⁴ Id.

⁹⁵ Id.

⁹⁶ *Garcillano v. House of Representatives Committees on Public Information*, G.R. No. 170338, December 23, 2008.

resolution of the Congress, such powers shall cease upon the next adjournment thereof.

The Philippine Constitution has three separate provisions on emergencies.

The first of these is a delegation of legislative powers under Article VI, Section 23 of the Constitution. This provision delegates legislative powers to the President under certain circumstances. On its face, the President's exercise of emergency powers may seem like an improper exercise of legislative powers. Under the separation of powers doctrine, each department of the government has exclusive cognizance of matters placed within its jurisdiction, and is supreme within its own sphere. Thus, there is a corollary principle that the powers of these branches cannot be delegated to others: what has been delegated cannot be delegated. So while the President cannot legislate as a rule, she may do so under certain situations sanctioned by law.

The nature of the delegation under the present Constitution is not as restricted as it was under the 1935 Constitution. The older Constitution merely delegated the power "to promulgate rules and regulations to carry out a declared national policy."⁹⁷ The language of the 1987 Constitution supports the argument that the Congress may delegate legislative power, and not merely rule-making powers.⁹⁸ Still, the Constitution provides two restrictions on the delegated power. The first is that the power is temporary—and the delegation automatically ends when Congress adjourns or when it sooner withdrawn by Congress. The withdrawal is done by resolution, not law. A Resolution of Congress does not require the President's approval. This would avoid a situation where the President might resist the withdrawal of his powers.

Congress may also, as a second limitation, add restrictions on the powers although the Constitution has apparently left Congress with broad discretion on the nature or extent of these restrictions.

⁹⁷ Joaquin G. Bernas, *The 1987 Constitution of the Philippines: A Commentary*, 773 (2009).

⁹⁸ *Id.*

The second emergency power falls under the Article VII on the Executive Department lists the President's powers as Commander-in Chief:

SECTION 18. The President shall be the Commander-in-Chief of all armed forces of the Philippines and whenever it becomes necessary, he may call out such armed forces to prevent or suppress lawless violence, invasion or rebellion. In case of invasion or rebellion, when the public safety requires it, he may, for a period not exceeding sixty days, suspend the privilege of the writ of habeas corpus or place the Philippines or any part thereof under martial law. Within forty-eight hours from the proclamation of martial law or the suspension of the privilege of the writ of habeas corpus, the President shall submit a report in person or in writing to the Congress. The Congress, voting jointly, by a vote of at least a majority of all its Members in regular or special session, may revoke such proclamation or suspension, which revocation shall not be set aside by the President. Upon the initiative of the President, the Congress may, in the same manner, extend such proclamation or suspension for a period to be determined by the Congress, if the invasion or rebellion shall persist and public safety requires it.

The Congress, if not in session, shall, within twenty-four hours following such proclamation or suspension, convene in accordance with its rules without any need of a call.

The Supreme Court may review, in an appropriate proceeding filed by any citizen, the sufficiency of the factual basis of the proclamation of martial law or the suspension of the privilege of the writ or the extension thereof, and must promulgate its decision thereon within thirty days from its filing.

A state of martial law does not suspend the operation of the Constitution, nor supplant the functioning of the civil courts or legislative assemblies, nor authorize the conferment of jurisdiction on military courts and agencies over civilians where civil courts are able to function, nor automatically suspend the privilege of the writ.

The suspension of the privilege of the writ shall apply only to persons judicially charged for rebellion or offenses inherent in or directly connected with the invasion.

During the suspension of the privilege of the writ, any person thus arrested or detained shall be judicially charged within three days, otherwise he shall be released.

This Section has already been discussed in Chapter 3.

The third emergency power can be found under Article XII on the National Patrimony. Section 17 of the Article provides that:

SECTION 17. In times of national emergency, when the public interest so requires, the State may, during the emergency and under reasonable terms prescribed by it, temporarily take over or direct the operation of any privately owned public utility or business affected with public interest.

This is an ambiguously written provision because the clause, “the State may” could have meant either the President or Congress.⁹⁹ The Supreme Court resolved this ambiguity in favor of Congress. In *David v. Macapagal-Arroyo*,¹⁰⁰ the Court explained that the taking over of private business affected with public interest is just another facet of the emergency powers generally reposed upon Congress. It held that when Section 17 states that the “the State may, during the emergency and under reasonable terms prescribed by it, temporarily take over or direct the operation of any privately owned public utility or business affected with public interest,” it refers to Congress, not the President.¹⁰¹ The Supreme Court held:

While the President alone can declare a state of national emergency, she, without legislation, has no power to take over privately-owned public utility or business affected with public interest. The President cannot decide whether exceptional circumstances exist warranting the takeover of privately-owned public utility or business affected with public interest. Nor can she determine when such exceptional circumstances have ceased. Likewise, without legislation, the President has no

99 See discussion of this provision in Raul C. Pangalangan, “Philippine Constitutional Framework for Economic Emergency: Expanding the Welfare State, Restricting the National Security Apparatus”, 4 NAT. TAIWAN U. L. REV. 98, 108-111 (2009).

100 *David v. Macapagal-Arroyo*, G.R. No. 171396, May 3, 2006.

101 *David v. Macapagal-Arroyo*, G.R. No. 171396, May 3, 2006.

power to point out the types of businesses affected with public interest that should be taken over.¹⁰²

“Emergency” as contemplated in our Constitution, may include rebellion, economic crisis, pestilence or epidemic, typhoon, flood, or other similar catastrophe of nationwide proportions or effect.¹⁰³

There are presidential powers which arise out of exceptional circumstances, and if exercised, would involve the suspension of fundamental freedoms, or at least call for the supersedence of executive prerogatives over those exercised by co-equal branches of government. The declaration of martial law, the suspension of the writ of *habeas corpus*, and the exercise of the pardoning power, fall within this special class that demands the exclusive exercise by the President of the constitutionally vested power. The list is by no means exclusive, but there must be a showing that the executive power in question is of similar *gravitas* and exceptional import.¹⁰⁴

SECTION 24. All appropriation, revenue or tariff bills, bills authorizing increase of the public debt, bills of local application, and private bills shall originate exclusively in the House of Representatives, but the Senate may propose or concur with amendments.

What the Constitution means is that the initiative for filing revenue, tariff, or tax bills, bills authorizing an increase of the public debt, private bills and bills of local application must come from the House of Representatives on the theory that, elected as they are from the districts, the members of the House can be expected to be more sensitive to the local needs and problems. Senators, who are elected at large, are expected to approach the same problems from the national perspective. Both views are thereby made to bear on the enactment of such laws. The Constitution does not prohibit the filing in the Senate of a substitute bill in anticipation of its receipt of the bill from

102 *David v. Macapagal-Arroyo*, G.R. No. 171396, May 3, 2006.

103 *David v. Macapagal-Arroyo*, G.R. No. 171396, May 3, 2006.

104 *Spouses Constantino v. Cuisia*, G.R. No. 106064, October 13, 2005.

the House, so long as action by the Senate as a body is withheld pending receipt of the House bill.¹⁰⁵

SECTION 25. (1) The Congress may not increase the appropriations¹⁰⁶ recommended by the President for the operation of the Government as specified in the budget. The form, content, and manner of preparation of the budget shall be prescribed by law.¹⁰⁷

(2) No provision or enactment shall be embraced in the general appropriations bill unless it relates specifically to some particular appropriation therein. Any such provision or enactment shall be limited in its operation to the appropriation to which it relates.

As the Constitution is explicit that the provision which Congress can include in an appropriations bill must “relate specifically to some particular appropriation therein” and “be limited in its operation to the appropriation to which it relates,” it follows that any provision which does not relate to any particular item, or which extends in its operation beyond an item of appropriation, is considered “an inappropriate provision” which can be vetoed separately from an item. Also included in the category of “inappropriate provisions” are unconstitutional provisions and provisions which are intended to amend other laws, because clearly, these kinds of laws

105 *Tolentino v. Secretary of Finance*, G.R. No. 115455, August 25, 1994. SEE ALSO *Alvarez v. Guingona, Jr.*, G.R. No. 118303, January 31, 1996.

106 Appropriation is defined “as nothing more than the legislative authorization prescribed by the Constitution that money may be paid out of the Treasury.” Appropriation made by law refers to “the act of the legislature setting apart or assigning to a particular use a certain sum to be used in the payment of debt or dues from the State to its creditors. SEE *Gonzales v. Raquiza*, G.R. No. L-29627, December 19, 1989.

107 The Supreme Court held that: (a) The withdrawal of unobligated allotments from the implementing agencies, and the declaration of the withdrawn unobligated allotments and unreleased appropriations as savings prior to the end of the fiscal year without complying with the statutory definition of savings contained in the General Appropriations Acts; and (b) The cross-border transfers of the savings of the Executive to augment the appropriations of other offices outside the Executive violate Section 25(5), Article VI. See *Araullo v. Aquino III*, G.R. No. 209287 (Resolution), [February 3, 2015].

have no place in an appropriations bill. These are matters of general legislation more appropriately dealt with in separate enactments.¹⁰⁸

(3) The procedure in approving appropriations for the Congress shall strictly follow the procedure for approving appropriations for other departments and agencies.

(4) A special appropriations bill shall specify the purpose for which it is intended, and shall be supported by funds actually available as certified by the National Treasurer, or to be raised by a corresponding revenue proposed therein.

(5) No law shall be passed authorizing any transfer of appropriations; however, the President, the President of the Senate, the Speaker of the House of Representatives, the Chief Justice of the Supreme Court, and the heads of Constitutional Commissions may, by law, be authorized to augment any item in the general appropriations law for their respective offices from savings in other items of their respective appropriations.

Analyzing a similar prohibition under the 1973 Constitution, the Supreme Court explained that the prohibition to transfer an appropriation for one item to another was explicitly stated under the 1973 Constitution. However, to afford the heads of the different branches of the government and those of the constitutional commissions considerable flexibility in the use of public funds and resources, the Constitution allowed the enactment of a law authorizing the transfer of funds for the purpose of augmenting an item from savings in another item in the appropriation of the government branch or constitutional body concerned. The leeway granted was limited. The purpose and conditions for which funds may be transferred were specified: the transfer may be allowed for the purpose of augmenting an item and such transfer may be made only if there are savings from another item in the appropriation of the government branch or constitutional body.¹⁰⁹

108 *Philippine Constitution Ass'n. v. Enriquez*, G.R. No. 113105, August 19, 1994.

109 *Demetria v. Alba*, G.R. No. 71977, February 27, 1987. A Presidential Decree that empowers the President to indiscriminately transfer funds from one department, bureau, office or agency of the Executive Department to any program, project or activity of any department, bureau or office included in the General Appropriations Act or approved after its

There are two essential requisites in order that a transfer of appropriation with the corresponding funds may legally made:

1. there must be savings in the programmed appropriation of the transferring agency, and
2. there must be an existing item, project or activity with an appropriation in the receiving agency to which the savings will be transferred.¹¹⁰

Actual savings is a condition *sine qua non* to a valid transfer of funds from one government agency to another. The word “actual” denotes that something is real or substantial, or exists presently in fact as opposed to something which is merely theoretical, possible, potential or hypothetical.¹¹¹

A section of the General Appropriations Act (GAA) is in conflict with Section 25 (5), Article VI of the Constitution if it allows the President to approve the use of *any* savings in the regular appropriations authorized in the GAA for programs and projects of *any* department, office or agency to cover a deficit in *any* other item of the regular appropriations. It violates Section 25 (5) because the latter limits the authority of the President to augment an item in the GAA to only those in his own Department out of the savings in other items of his own Department’s appropriations.¹¹²

In the funding of current activities, projects, and programs, the general rule should still be that the budgetary amount contained in the appropriations bill is the extent Congress will determine as sufficient for the budgetary allocation for the proponent agency. The only exception is found in Section 25 (5), Article VI of the Constitution, by which the President, the President of the Senate, the Speaker of the House of Representatives, the Chief Justice of the Supreme Court, and the heads of Constitutional Commissions are authorized to transfer appropriations *to augment* any item in the GAA for their respective offices from the savings in other items of their

enactment, without regard as to whether or not the funds to be transferred are actually savings in the item from which the same are to be taken, or whether or not the transfer is for the purpose of augmenting the item to which said transfer is to be made is void.

110 *Sanchez v. COA*, G.R. No. 127545, April 23, 2008.

111 *Sanchez v. COA*, G.R. No. 127545, April 23, 2008.

112 *Araullo v. Aquino III*, G.R. No. 209287 (Resolution), February 3, 2015.

respective appropriations. The exception in favor of the high officials named in Section 25 (5) limiting the authority to transfer savings only to augment another item in the GAA is strictly but reasonably construed as exclusive.¹¹³

(6) Discretionary funds appropriated for particular officials shall be disbursed only for public purposes to be supported by appropriate vouchers and subject to such guidelines as may be prescribed by law.

(7) If, by the end of any fiscal year, the Congress shall have failed to pass the general appropriations bill for the ensuing fiscal year, the general appropriations law for the preceding fiscal year shall be deemed reenacted and shall remain in force and effect until the general appropriations bill is passed by the Congress.

SECTION 26. (1) Every bill passed by the Congress shall embrace only one subject which shall be expressed in the title thereof.

The constitutional provision contains dual limitations upon legislative power. *First*. Congress is to refrain from conglomeration, under one statute, of heterogeneous subjects. *Second*. The title of the bill is to be couched in a language sufficient to notify the legislators and the public and those concerned of the import of the single subject thereof.

The subject of the statute must be “expressed in the title” of the bill. This constitutional requirement “breathes the spirit of command.” Compliance is imperative, given the fact that the Constitution does not exact of Congress the obligation to read during its deliberations the entire text of the bill. In fact, in the case of House Bill 1247, which became Republic Act 4790, only its title was read from its introduction to its final approval in the House of Representatives, where the bill, being of local application, originated.

The Constitution does not require Congress to employ in the title of an enactment, language of such precision as to mirror, fully index, or catalogue all the contents and the minute details therein. It suffices if the title should serve the purpose of the constitutional demand that it inform the legislators, the persons interested in the subject of the bill, and the public, of the nature,

113 *Nazareth v. Villar*, G.R. No. 188635, January 29, 2013.

scope and consequences of the proposed law and its operation. And this, to lead them to inquire into the body of the bill, study and discuss the same, take appropriate action thereon, and, thus, prevent surprise or fraud upon the legislators.¹¹⁴ The rule is sufficiently complied with if the title is comprehensive enough as to include the general object which the statute seeks to effect. Indeed, the Supreme Court has invariably adopted a liberal rather than technical construction of the rule “so as not to cripple or impede legislation.”¹¹⁵

The one-subject requirement under the Constitution is satisfied if all the parts of the statute are related, and are germane to the subject matter expressed in the title, or as long as they are not inconsistent with or foreign to the general subject and title. An act having a single general subject, indicated in the title, may contain any number of provisions, no matter how diverse they may be, so long as they are not inconsistent with or foreign to the general subject, and may be considered in furtherance of such subject by providing for the method and means of carrying out the general object.

(2) No bill passed by either House shall become a law unless it has passed three readings on separate days, and printed copies thereof in its final form have been distributed to its Members three days before its passage, except when the President certifies to the necessity of its immediate enactment to meet a public calamity or emergency. Upon the last reading of a bill, no amendment thereto shall be allowed, and the vote thereon shall be taken immediately thereafter, and the yeas and nays entered in the Journal.

The “no-amendment rule” refers only to the procedure to be followed by each House of Congress with regard to bills initiated in each of said respective houses, before said bill is transmitted to the other house for its concurrence or amendment. To construe said provision in a way as to proscribe any further changes to a bill after one House has voted on it would lead to absurdity as this would mean that the other House of Congress would be deprived of its constitutional power to amend or introduce changes to said bill. Article VI, Sec. 26 (2) of the Constitution cannot be taken to mean

114 *Lidasan v. COMELEC*, G.R. No. L-28089, October 25, 1967.

115 *Remman Enterprises, Inc v. Professional Regulatory Board of Real Estate Service*, G.R. No. 197676, February 4, 2014.

that the introduction by the Bicameral Conference Committee of amendments and modifications to disagreeing provisions in bills that have been acted upon by both Houses of Congress is prohibited.¹¹⁶

The President's certification exempts both the House of Representatives and the Senate from having to comply with the three separate readings requirement.¹¹⁷

SECTION 27. (1) Every bill passed by the Congress shall, before it becomes a law, be presented to the President. If he approves the same, he shall sign it; otherwise, he shall veto it and return the same with his objections to the House where it originated, which shall enter the objections at large in its Journal and proceed to reconsider it. If, after such reconsideration, two-thirds of all the Members of such House shall agree to pass the bill, it shall be sent, together with the objections, to the other House by which it shall likewise be reconsidered, and if approved by two-thirds of all the Members of that House, it shall become a law. In all such cases, the votes of each House shall be determined by *yeas* or *nays*, and the names of the Members voting for or against shall be entered in its Journal. The President shall communicate his veto of any bill to the House where it originated within thirty days after the date of receipt thereof; otherwise, it shall become a law as if he had signed it.

(2) The President shall have the power to veto any particular item or items in an appropriation, revenue, or tariff bill, but the veto shall not affect the item or items to which he does not object.

Every bill passed by Congress must be presented to the President for approval or veto. In the absence of presentment to the President, no bill passed by Congress can become a law. In this sense, law-making under the Constitution is a joint act of the Legislature and of the Executive. Assuming that legislative veto is a valid legislative act with the force of law, it cannot take effect without such presentment even if approved by both chambers of Congress.¹¹⁸ If the legislature believes that the exercise of the veto powers by the executive are unconstitutional, the remedy laid down by the Constitution

116 *Abakada Guro Party List v. Ermita*, G.R. No. 168056, September 1, 2005.

117 *Michael Abas Kida v. Senate*, G.R. No. 196271, October 18, 2011.

118 *Abakada Guro Party List v. Purisima*, G.R. No. 166715, August 14, 2008.

is clear: a Presidential veto may be overridden by the votes of two-thirds of members of Congress.¹¹⁹

There are two steps before a bill becomes a law. First, it must be approved by both Houses of Congress. Second, it must be presented to and approved by the President. The following is the procedure for the approval of bills:

1. A bill is introduced by any member of the House of Representatives or the Senate except for some measures that must originate only in the former chamber.
2. The first reading involves only a reading of the number and title of the measure and its referral by the Senate President or the Speaker to the proper committee for study.
3. The bill may be “killed” in the committee or it may be recommended for approval, with or without amendments, sometimes after public hearings are first held thereon. If there are other bills of the same nature or purpose, they may all be consolidated into one bill under common authorship or as a committee bill.
4. Once reported out, the bill shall be calendared for second reading. It is at this stage that the bill is read in its entirety, scrutinized, debated upon and amended when desired. The second reading is the most important stage in the passage of a bill.
5. The bill as approved on second reading is printed in its final form and copies thereof are distributed at least three days before the third reading. On the third reading, the members merely register their votes and explain them if they are allowed by the rules. No further debate is allowed.
6. Once the bill passes third reading, it is sent to the other chamber, where it will also undergo the three readings. If there are differences between the versions approved by the two chambers, a conference committee representing both Houses will draft a compromise measure that if ratified by the Senate and the House

119 *Gonzales v. Macaraig, Jr.*, G.R. No. 87636, November 19, 1990.

of Representatives will then be submitted to the President for his consideration.

7. The bill is enrolled when printed as finally approved by the Congress, thereafter authenticated with the signatures of the Senate President, the Speaker, and the Secretaries of their respective chambers.
8. The final step is submission to the President for approval. Once approved, it takes effect as law after the required publication.¹²⁰

A prime example of a constitutional check and balance would be the President's power to veto an item (found in Section 27 (2), Article VI) written into an appropriation, revenue, or tariff bill submitted to him by Congress for approval through a process known as "bill presentment." The presentment of appropriation, revenue, or tariff bills to the President, wherein he may exercise his power of item-veto, forms part of the "single, finely wrought and exhaustively considered, procedures" for law-passage as specified under the Constitution. The final step in the law-making process is the "submission [of the bill] to the President for approval. Once approved, it takes effect as law after the required publication."¹²¹ For the President to exercise his item-veto power, it follows that there exists a proper "item" which may be the object of the veto. An item, as defined in the field of appropriations, pertains to "the particulars, the details, the distinct and severable parts of the appropriation or of the bill."¹²²

Publication is a basic requirement of procedural due process. Publication informs the public of the contents of the laws which govern them and regulate their activities.¹²³ Article 2 of the Civil Code, as amended by

120 *Abakada Guro Party List v. Purisima*, G.R. No. 166715, August 14, 2008.

121 *Belgica v. Ochoa*, G.R. No. 208566, November 19, 2013.

122 *Belgica v. Ochoa*, G.R. No. 208566, November 19, 2013.

123 *Association of Southern Tagalog Electric Cooperatives, Inc. v. Energy Regulatory Commission*, G.R. No.192117, September 18, 2012. The Administrative Code of 1987 (Chapter 2, Book VII) also provides:

Section 3. Filing. — (1) Every agency shall file with the University of the Philippines Law Center, three (3) certified copies of every rule adopted by it. Rules in force on the date of effectivity of this Code, which are not filed within three (3) months shall not thereafter be the basis of any sanction against any party or persons.

Section 4. Effectivity. — In addition to other rule-making requirements provided by law not inconsistent with this Book, each rule shall become effective fifteen (15) days from the

Section 1 of Executive Order No. 200, states that “[l]aws shall take effect after fifteen days following the completion of their publication either in the Official Gazette or in a newspaper of general circulation in the Philippines, unless it is otherwise provided.” Section 18, Chapter 5, Book I of Executive Order No. 292 or the Administrative Code of 1987 similarly provides that “[l]aws shall take effect after fifteen (15) days following the completion of their publication in the Official Gazette or in a newspaper of general circulation, unless it is otherwise provided.”¹²⁴

Exceptions to Publication Requirement

The following are exceptions to the requirement of publication:

1. An interpretative regulation does not require publication in order to be effective. The applicability of an interpretative regulation “needs nothing further than its bare issuance for it gives no real consequence more than what the law itself has already prescribed.” It “add[s] nothing to the law” and “does not affect the substantial rights of any person.”
2. A regulation that is merely internal in nature does not require publication for its effectivity. It seeks to regulate only the personnel of the administrative agency and not the general public.
3. A letter of instruction issued by an administrative agency concerning rules or guidelines to be followed by subordinates in

date of filing as above provided unless a different date is fixed by law, or specified in the rule in cases of imminent danger to public health, safety and welfare, the existence of which must be expressed in a statement accompanying the rule. The agency shall take appropriate measures to make emergency rules known to persons who may be affected by them.

Administrative issuances which are not published or filed with the Office of the National Administrative Register are ineffective and may not be enforced. See *GMA Network, Inc. v. Movie and Television Review and Classification Board*, G.R. No. 148579, February 5, 2007. To be clear, not all rules and regulations adopted by every government agency are to be filed with the UP Law Center. Only those of general or of permanent character are to be filed. SEE *The Board of Trustees of the Government Service Insurance System v. Velasco*, G.R. No. 170463, February 2, 2011.

124 *Association of Southern Tagalog Electric Cooperatives, Inc. v. Energy Regulatory Commission*, G.R. No. 192117, September 18, 2012.

the performance of their duties does not require publication in order to be effective.¹²⁵

SECTION 28. (1) The rule of taxation shall be uniform and equitable. The Congress shall evolve a progressive system of taxation.

This constitutional requirement is met when the tax “operates with the same force and effect in every place where the subject may be found.” The rule of uniformity does not call for perfect uniformity or perfect equality. “Equality and uniformity in taxation means that all taxable articles or kinds of property of the same class shall be taxed at the same rate. The taxing power has the authority to make reasonable and natural classifications for purposes of taxation. Where “the differentiation” complained of “conforms to the practical dictates of justice and equity” it “is not discriminatory within the meaning of this clause and is therefore uniform.”¹²⁶

What Congress is required by the Constitution to do is to “evolve a progressive system of taxation.” This is a directive to Congress, just like the directive to it to give priority to the enactment of laws for the enhancement of human dignity and the reduction of social, economic and political inequalities, or for the promotion of the right to “quality education.” These provisions are put in the Constitution as moral incentives to legislation, not as judicially enforceable rights.¹²⁷

Section 5, Article X of the 1987 Constitution gave local governments the power to levy taxes.¹²⁸ The basic *rationale* for the current rule is to safeguard the viability and self-sufficiency of local government units by directly granting them general and broad tax powers. Nevertheless, the fundamental law did not intend the delegation to be absolute and unconditional; the constitutional objective obviously is to ensure that, while the local government units are being strengthened and made more autonomous, the legislature must still see to it that:

125 Id.

126 *British American Tobacco v. Camacho*, G.R. No. 163583, August 20, 2008.

127 *Tolentino v. Secretary of Finance*, G.R. No. 115455, August 25, 1994.

128 *City Government of Quezon City v. Bayan Telecommunications, Inc.*, G.R. No. 162015, March 6, 2006.

1. The taxpayer will not be over-burdened or saddled with multiple and unreasonable impositions;
2. Each local government unit will have its fair share of available resources;
3. The resources of the national government will not be unduly disturbed; and
4. Local taxation will be fair, uniform, and just.¹²⁹

(2) The Congress may, by law, authorize the President to fix within specified limits, and subject to such limitations and restrictions as it may impose, tariff rates, import and export quotas, tonnage and wharfage dues, and other duties or imposts within the framework of the national development program of the Government.

Delegation of legislative powers to the President is permitted in Sections 23 (2) and 28 (2) of Article VI of the Constitution.¹³⁰ The statutes that execute this provision are:

1. The Tariff and Customs Code which authorizes the President, in the interest of national economy, general welfare and/or national security, to, *inter alia*, prohibit the importation of any commodity under Section 401.
2. Executive Order No. 226, otherwise known as the Omnibus Investment Code of the Philippines, which was issued on July 16, 1987, by then President Corazon C. Aquino, in the exercise of legislative power under the Provisional Freedom Constitution, empowers the President to approve or reject the prohibition on the importation of any equipment or raw materials or finished products.
3. Republic Act No. 8800, otherwise known as the “Safeguard Measures Act” (SMA), and entitled “An Act Protecting Local Industries By Providing Safeguard Measures To Be Undertaken In Response to Increased Imports and Providing Penalties for Violation Thereof, “ designated the Secretaries of the Department

129 *Manila Electric Co. v. Province of Laguna*, G.R. No. 131359, May 5, 1999.

130 *Camarines Norte Electric Cooperative, Inc. v. Torres*, G.R. No. 127249, February 27, 1998.

of Trade and Industry (DTI) and the Department of Agriculture, in their capacity as *alter egos* of the President, as the implementing authorities of the safeguard measures, which include, *inter alia*, modification or imposition of any quantitative restriction on the importation of a product into the Philippines.¹³¹

(3) Charitable institutions, churches and parsonages or convents appurtenant thereto, mosques, non-profit cemeteries, and all lands, buildings, and improvements, actually, directly, and exclusively used for religious, charitable, or educational purposes shall be exempt from taxation.

Under the 1987 Constitution and Republic Act No. 7160 (the Local Government Code of 1991), in order to be entitled to the exemption, the petitioner is burdened to prove, by clear and unequivocal proof, that: (a) it is a charitable institution; and (b) its real properties are actually, directly and exclusively used for charitable purposes. “Exclusive” is defined as possessed and enjoyed to the exclusion of others; debarred from participation or enjoyment, and “exclusively” are defined, “in a manner to exclude; as enjoying a privilege exclusively.” If real property is used for one or more commercial purposes, it is not exclusively used for the exempted purposes but is subject to taxation. The words “dominant use” or “principal use” cannot be substituted for the words “used exclusively” without doing violence to the Constitution and the law. Solely is synonymous with exclusively.

What actual, direct, and exclusive use of the property for charitable purposes means is the direct and immediate and actual application of the property itself to the purposes for which the charitable institution is organized. It is not the use of the income from the real property that is determinative of whether the property is used for tax-exempt purposes.¹³²

(4) No law granting any tax exemption shall be passed without the concurrence of a majority of all the Members of the Congress.

¹³¹ *Executive Secretary v. Southwing Heavy Industries, Inc.*, G.R. No. 164171, February 20, 2006.

¹³² *Lung Center of the Phil. v. Quezon City*, G.R. No. 144104, June 29, 2004.

It is the legislature that has full power to exempt any person or corporation or class of property from taxation, its power to exempt being as broad as its power to tax. Other than Congress, the Constitution may itself provide for specific tax exemptions, or local governments may pass ordinances on exemption only from local taxes.¹³³

SECTION 29. (1) No money shall be paid out of the Treasury except in pursuance of an appropriation made by law.

The Supreme Court upheld Presidential Decree No. 81, Section 31 of Presidential Decree No. 1177, and Presidential Decree No. 1967, saying that the framers of the Constitution did not contemplate that existing laws in the statute books, including existing presidential decrees appropriating public money, are reduced to mere “bills” that must again go through the legislative mill. The only reasonable interpretation of said provisions of the Constitution which refer to “bills” is that they mean appropriation measures still to be passed by Congress. If the intention of the framers thereof were otherwise they should have expressed their decision in a more direct or express manner.¹³⁴

The provisions of the GAA are not self-executory. This means that the execution of the GAA was still subject to a program of expenditure to be approved by the President, and such approved program of expenditure was the basis for the release of funds. The rules on National Government Budgeting, as prescribed by the Administrative Code, are not idle or empty exercises. Congress’ approval of the GAA does not instantly make the funds available for spending by the Executive Department. The funds authorized for disbursement under the GAA are usually still to be collected during the fiscal year. The revenue collections of the Government, mainly from taxes, may fall short of the approved budget, as has been the normal occurrence almost every year. It is important that the release of funds be duly authorized, identified, or sanctioned to avert putting the legitimate programs, projects, and activities of the Government in fiscal jeopardy.¹³⁵

133 *John Hay Peoples Alternative Coalition v. Lim*, G.R. No. 119775, October 24, 2003.

134 *Guingona, Jr. v. Carague*, G.R. No. 94571, April 22, 1991.

135 *Technical Education and Skills Development Authority v. Commission on Audit*, G.R. No. 196418, February 10, 2015.

(2) No public money or property shall be appropriated, applied, paid, or employed, directly or indirectly, for the use, benefit, or support of any sect, church, denomination, sectarian institution, or system of religion, or of any priest, preacher, minister, or other religious teacher, or dignitary as such, except when such priest, preacher, minister, or dignitary is assigned to the armed forces, or to any penal institution, or government orphanage or leprosarium.

(3) All money collected on any tax levied for a special purpose shall be treated as a special fund and paid out for such purpose only. If the purpose for which a special fund was created has been fulfilled or abandoned, the balance, if any, shall be transferred to the general funds of the Government.

The fundamental rule is that tax proceeds may only be used for a public purpose, which may either be a general public purpose to support the existence of the state or a special public purpose to pursue certain legitimate objects of government in the exercise of police power, and none other. As a measure to ensure the proper utilization of money collected for a specified public purpose, the 1987 Constitution treats the proceeds as a special fund to be paid out for such purpose. If, however, that purpose has been fulfilled or is no longer forthcoming, the balance, if there is any, shall be transferred to the general funds of the government, which may thereafter be appropriated by Congress and expended for any legitimate purpose within the scope of the general fund. An entity, whether public or private, which holds the tax money has no authority to disburse it or to pay any of it to anyone, the power to dispose of such money being vested in the legislature.¹³⁶

SECTION 30. No law shall be passed increasing the appellate jurisdiction of the Supreme Court as provided in this Constitution without its advice and concurrence.

This provision is intended to give the Supreme Court a measure of control over cases placed under its appellate jurisdiction. The indiscriminate enactment of laws enlarging its appellate jurisdiction can unnecessarily burden the Court and thereby undermine its essential function of

¹³⁶ *Republic v. COCOFED*, G.R. Nos. 147062-64, December 14, 2001.

expounding the law in its most profound national aspects. A law that is enacted without the advice and concurrence of the Supreme Court never becomes effective.¹³⁷

SECTION 31. No law granting a title of royalty or nobility shall be enacted.¹³⁸

SECTION 32. The Congress shall, as early as possible, provide for a system of initiative and referendum, and the exceptions therefrom, whereby the people can directly propose and enact laws or approve or reject any act or law or part thereof passed by the Congress or local legislative body after the registration of a petition therefor signed by at least ten *per centum* of the total number of registered voters, of which every legislative district must be represented by at least three *per centum* of the registered voters thereof.

Congress enacted Republic Act No. 6735 to comply with the Constitution's directive. The law was intended to cover initiative to propose amendments to the Constitution. Among others, the Supreme Court held that the Act does not provide for the contents of a petition for initiative on the Constitution. Section 5, paragraph (c) requires, among other things, statement of the *proposed law sought to be enacted, approved or rejected, amended or repealed, as the case may be*. It does not include, as among the contents of the petition, the provisions of the Constitution sought to be amended, in the case of initiative on the Constitution. The Court also added that while the Act provides subtitles for National Initiative and Referendum (Subtitle II) and for Local Initiative and Referendum (Subtitle III), no subtitle is provided for

137 *First Lepanto Ceramics, Inc. v. Court of Appeals*, G.R. No. 110571 (Resolution), October 7, 1994. Section 27 of Republic Act No. 6770 (Ombudsman Act of 1989), and is implementing rules insofar as they provide for appeals in administrative disciplinary cases from the Office of the Ombudsman to the Supreme Court were declared invalid because Congress violated Section 30, Article VII of the Constitution. SEE *Fabian v. Desierto*, G.R. No. 129742, September 16, 1998.

138 While titles of royalty or nobility are maintained and appear to be accorded some value among some members of certain cultural groups, such titles of royalty or nobility are not generally recognized or acknowledged socially in the national community. No legal rights or privileges are contingent upon grant or possession of a title of nobility or royalty and the Constitution expressly forbids the enactment of any law conferring such a title. *Bulletin Publishing Corp. v. Noel*, G.R. No. 76565, November 9, 1988.

initiative on the Constitution. This silence as to the Constitution means that the main thrust of the Act is initiative and referendum on national and local laws. If Congress intended Republic Act No. 6735 to fully provide for the implementation of the *initiative* on amendments to the Constitution, it could have provided for a subtitle therefor, considering that in the order of things, the primacy of interest, or hierarchy of values, the right of the people to directly propose amendments to the Constitution is far more important than the initiative on national and local laws.¹³⁹

139 *Defensor Santiago v. COMELEC*, G.R. No. 127325, March 19, 1997. The Court also pointed out that the policy statement in Section 2 of the law exclusively relates to initiative and referendum on national laws and local laws, ordinances, and resolutions. That section is silent as to amendments on the Constitution. Initiative on the Constitution is confined only to proposals to amend. The people are not accorded the power to “directly propose, enact, approve, or reject, in whole or in part, the Constitution” through the system of initiative. They can only do so with respect to “laws, ordinances, or resolutions.”

CHAPTER 6

THE EXECUTIVE DEPARTMENT

SECTION 1. The executive power shall be vested in the President of the Philippines.

The President is the head of the government. Governmental power and authority are exercised and implemented through him. His power includes the control over executive departments.¹ As head of the Executive Department, the President is the Chief Executive. He represents the government as a whole and sees to it that all laws are enforced by the officials and employees of his department. He has control over the executive department, bureaus and offices. This means that he has the authority to assume directly the functions of the executive department, bureau and office, or interfere with the discretion of its officials. Corollary to the power of control, the President also has the duty of supervising and enforcement of laws for the maintenance of general peace and public order. Thus, he is granted administrative power over bureaus and offices under his control to enable him to discharge his duties effectively.²

The executive power “is the power to enforce and administer the laws. It is the power of carrying the laws into practical operation and enforcing their due observance.” The executive function concerns the implementation of the policies as set forth by law.³

It is the President who exercises both executive and administrative powers. As administrative head, the President’s duty is to see that every government office is managed and maintained properly by the persons in charge of it in accordance with pertinent laws and regulations. Corollary to these powers is the power to promulgate rules and issuances that would

1 *Blaquera v. Alcala*, G.R. No. 109406, September 11, 1998.

2 *Anak Mindanao Party-List Group v. Executive Secretary*, G.R. No. 166052, August 29, 2007.

3 *Laurel v. Desierto*, G.R. No. 145368, April 12, 2002.

ensure a more efficient management of the executive branch, for so long as such issuances are not contrary to law.⁴

Immunity From Suit

The President is immune from suit. The rationale for the grant to the President of the privilege of immunity from suit is to assure the exercise of Presidential duties and functions free from any hindrance or distraction, considering that being the Chief Executive of the Government is a job that, aside from requiring all of the office-holder's time, also demands undivided attention. But this privilege of immunity from suit pertains to the President by virtue of the office and may be invoked only by the holder of the office, not by any other person in the President's behalf. The accused in a criminal case in which the President is complainant cannot raise the presidential privilege as a defense to prevent the case from proceeding against such accused.⁵

Presidential immunity from suit exists only in concurrence with the president's incumbency. Conversely, this presidential privilege of immunity cannot be invoked by a non-sitting president even for acts committed during his or her tenure. Courts look with disfavor upon the presidential privilege of immunity, especially when it impedes the search for truth or impairs the vindication of a right.⁶

However, the President may shed protection afforded by the privilege and submit to the court's jurisdiction. There is nothing in our laws that would prevent the President from waiving the privilege. Thus, if so minded the President may shed the protection afforded by the privilege and submit to the court's jurisdiction. The choice of whether to exercise the privilege or to waive it is solely the President's prerogative. It is a decision that cannot be assumed and imposed by any other person.⁷

The doctrine of state immunity protects officials for acts done in the discharge and performance of their duties. "The suability of a government

4 *PHIVIDECA Industrial Authority v. Capitol Steel Corp.*, G.R. No. 155692, October 23, 2003.

5 *Soliven v. Makasiar*, G.R. No. 82585, (Resolution), November 14, 1988.

6 *Saez v. Macapagal-Arroyo*, G.R. No. 183533, September 25, 2012.

7 *Soliven v. Makasiar*, G.R. No. 82585, (Resolution), November 14, 1988.

official depends on whether the official concerned was acting within his official or jurisdictional capacity, and whether the acts done in the performance of official functions will result in a charge or financial liability against the government.” In other words, “public officials can be held personally accountable for acts claimed to have been performed in connection with official duties where they have acted *ultra vires* or where there is showing of bad faith.”⁸

A state may give its consent to be sued either expressly or impliedly. There is express consent when a law, either special or general, so provides. There is implied consent when the state “enters into a contract or it itself commences litigation.” However, it must be clarified that when a state enters into a contract, it does not automatically mean that it has waived its non-suability. The State “will be deemed to have impliedly waived its non-suability [only] if it has entered into a contract in its proprietary or private capacity. [However,] when the contract involves its sovereign or governmental capacity[,] ... no such waiver may be implied.” Statutory provisions waiving state immunity are construed strictly against the waiver because waiver of immunity is in derogation of sovereignty.⁹

Congress extends immunity from suit to agents of the State such as the Commissioners of the Philippine Competition Commission. The law creating the Commission provides:

Sec. 42. *Immunity from Suit.* – The Chairperson, the Commissioners, officers, employees and agents of the Commission shall not be subject to any action, claim or demand in connection with any act done or omitted by them in the performance of their duties and exercise of their powers except for those actions and omissions done in evident bad faith or gross negligence.¹⁰

Congress likewise removes immunity through laws. Under Section 52 of Republic Act No. 8291 (The Government Service Insurance Act of 1997), for

8 *DOH v. Phil Pharmawealth, Inc.*, G.R. No. 182358, February 20, 2013.

9 *DOH v. Phil Pharmawealth, Inc.*, G.R. No. 182358, February 20, 2013.

10 Rep. Act No. 10667 (2015).

example, officials and/or personnel may not invoke the defense of non-suability of the State for charges or complaints in the following paragraph:

The heads of the offices of the national government, its political subdivisions, branches, agencies and instrumentalities, including government-owned or controlled corporations and government financial institutions, and the personnel of such offices who are involved in the collection of premium contributions, loan amortization and other accounts due the GSIS who shall fail, refuse or delay the payment, turnover, remittance or delivery of such accounts to the GSIS within thirty (30) days from the time that the same shall have been due and demandable shall, upon conviction by final judgment, suffer the penalties of imprisonment of not less than one (1) year nor more than five (5) years and a fine of not less than Ten thousand pesos (P10,000.00) nor more than Twenty thousand pesos (P20,000.00), and in addition shall suffer absolute perpetual disqualification from holding public office and from practicing any profession or calling licensed by the government.

While nothing is better settled than the general rule that a sovereign state and its political subdivisions cannot be sued in the courts except when it has given its consent, it cannot be invoked by both the military officers to release them from any liability, and by the heirs and victims to demand indemnification from the government. The principle of state immunity from suit does not apply when the relief demanded by the suit requires no affirmative official action on the part of the State nor the affirmative discharge of any obligation which belongs to the State in its political capacity, even though the officers or agents who are made defendants claim to hold or act only by virtue of a title of the state and as its agents and servants.¹¹

Executive Privilege

Executive privilege has been defined as “the right of the President and high-level executive branch officials to withhold information from Congress, the courts, and ultimately, the public.” This, presidential conversations, correspondences, or discussions during closed-door Cabinet meetings, like the internal deliberations of the Supreme Court and other collegiate courts,

¹¹ *Republic v. Sandoval*, G.R. No. 84607, March 19, 1993.

or executive sessions of either House of Congress, are recognized as confidential. This kind of information cannot be pried open by a co-equal branch of government.¹²

In *Neri v. Senate Committees*,¹³ the Court laid down the elements for invoking the presidential communications privilege:

1. The protected communication must relate to a “quintessential and non-delegable presidential power.”
2. The communication must be authored or “solicited and received” by a close advisor of the President or the President himself. The judicial test is that an advisor must be in “operational proximity” with the President.
3. The presidential communications privilege remains a qualified privilege that may be overcome by a showing of adequate need, such that the information sought “likely contains important evidence” and by the unavailability of the information elsewhere by an appropriate investigating authority.

Diplomatic negotiations are also recognized as privileged as they bear a close resemblance to the deliberative process and presidential communications privilege. It may be readily perceived that the rationale for the confidential character of diplomatic negotiations, deliberative process, and presidential communications is similar, if not identical. Similar to the privilege for presidential communications, the diplomatic negotiations privilege seeks, through the same means, to protect the independence in decision-making of the President, particularly in its capacity as “the sole organ of the nation in its external relations, and its sole representative with foreign nations.”¹⁴

SECTION 2. No person may be elected President unless he is a natural-born citizen of the Philippines, a registered voter, able to read and write, at least forty years of age on the day of the election, and a resident of the Philippines for at least ten years immediately preceding such election.

12 *Senate v. Ermita*, G.R. No. 16977, April 20, 2006.

13 G.R. No. 180643, September 4, 2008.

14 *AKBAYAN v. Aquino*, G.R. No. 170156, July 16, 2008.

The term “natural-born citizens,” is defined to include “those who are citizens of the Philippines from birth without having to perform any act to acquire or perfect their Philippine citizenship.”¹⁵ In the case of Fernando Poe Jr., the Supreme Court held that the totality of the evidence did not establish conclusively that he was a natural-born citizen of the Philippines. The court held that the evidence “still would preponderate in his favor enough to hold that he cannot be held guilty of having made a material misrepresentation in his certificate of candidacy in violation of Section 78, in relation to Section 74, of the Omnibus Election Code.”¹⁶

SECTION 3. There shall be a Vice-President who shall have the same qualifications and term of office and be elected with and in the same manner as the President. He may be removed from office in the same manner as the President.

The Vice-President may be appointed as a Member of the Cabinet. Such appointment requires no confirmation.

SECTION 4. The President and the Vice-President shall be elected by direct vote of the people for a term of six years which shall begin at noon on the thirtieth day of June next following the day of the election and shall end at noon of the same date six years thereafter. The President shall not be eligible for any reelection. No person who has succeeded as President and has served as such for more than four years shall be qualified for election to the same office at any time.¹⁷

No Vice-President shall serve for more than two consecutive terms. Voluntary renunciation of the office for any length of time shall not be considered as an interruption in the continuity of the service for the full term for which he was elected.

15 *Tecson v. COMELEC*, G.R. No. 161434, March 3, 2004.

16 *Id.*

17 The Vice-President is elected primarily to succeed the President in the event of the latter’s death, permanent disability, removal, or resignation. While he may be appointed to the cabinet, this depends on the good graces of the President. In running for Vice-President, he may thus be said to also seek the Presidency. For their part, the electors likewise choose as Vice-President the candidate who they think can fill the Presidency in the event it becomes vacant. Hence, service in the Presidency for more than four years may rightly be considered as service for a full term. *Borja v. Commission on Elections*, G.R. No. 133495, September 3, 1998.

Unless otherwise provided by law, the regular election for President and Vice-President shall be held on the second Monday of May.

The returns of every election for President and Vice-President, duly certified by the board of canvassers of each province or city, shall be transmitted to the Congress, directed to the President of the Senate. Upon receipt of the certificates of canvass, the President of the Senate shall, not later than thirty days after the day of the election, open all certificates in the presence of the Senate and the House of Representatives in joint public session, and the Congress, upon determination of the authenticity and due execution thereof in the manner provided by law, canvass the votes.¹⁸

The person having the highest number of votes shall be proclaimed elected, but in case two or more shall have an equal and highest number of votes, one of them shall forthwith be chosen by the vote of a majority of all the Members of both Houses of the Congress, voting separately.

The Congress shall promulgate its rules for the canvassing of the certificates.

The Supreme Court, sitting *en banc*, shall be the sole judge of all contests relating to the election, returns, and qualifications of the President or Vice-President, and may promulgate its rules for the purpose.

Section 18.5 of Republic Act No. 9189 (the Overseas Absentee Voting Act of 2003) appears to be repugnant to Section 4, Article VII of the Constitution insofar as it totally disregarded the authority given to Congress by the Constitution to proclaim the winning candidates for the positions of president and vice-president. Congress could not have allowed the COMELEC to usurp a power that constitutionally belongs to it. The provisions of the Constitution as the fundamental law of the land should be read as part of The Overseas Absentee Voting Act of 2003 and hence, the

18 The Supreme Court struck down a Commission on Elections Resolution that sanctioned an unofficial tabulation of the election results for President and Vice-President. According to the Court, "If the COMELEC is proscribed from conducting an official canvass of the votes cast for the President and Vice-President, the COMELEC is, with more reason, prohibited from making an "unofficial" canvass of said votes." *Brillantes, Jr. v. COMELEC*, G.R. No. 163193, June 15, 2004.

canvassing of the votes and the proclamation of the winning candidates for president and vice-president for the entire nation must remain in the hands of Congress.¹⁹

The Presidential Electoral Tribunal

The constitutional provision does not specify the establishment of the Presidential Electoral Tribunal. But neither does it preclude, much less prohibit, otherwise. Section 4, Article VII of the Constitution, the provision under scrutiny, should be read with other related provisions of the Constitution such as the parallel provisions on the Electoral Tribunals of the Senate and the House of Representatives. The Supreme Court's constitutional mandate to act as sole judge of election contests involving our country's highest public officials, and its rule-making authority in connection therewith, is not restricted; it includes all necessary powers implicit in the exercise thereof.²⁰

The Court would later explain that judicial power granted to the Supreme Court by the Constitution is plenary. Moreover, under the doctrine of necessary implication, the additional jurisdiction bestowed by the last paragraph of Section 4, Article VII of the Constitution to decide presidential and vice-presidential elections contests includes the means necessary to carry it into effect.²¹

If a protestant in a case before the Presidential Electoral Tribunal assumes the office of Senator and discharges her duties as such, she has effectively abandoned or withdrawn her protest, or abandoned her determination to protect and pursue the public interest involved in the matter of who is the real choice of the electorate.²² A case before the Tribunal should also be dismissed if the protestant dies while the case is pending "on the ground that no real party in interest has come forward within the period

¹⁹ *Macalintal v. COMELEC*, G.R. No. 157013, July 10, 2003.

²⁰ *Macalintal v. Presidential Electoral Tribunal*, G.R. No. 191618, November 23, 2010.

²¹ *Macalintal v. Presidential Electoral Tribunal*, G.R. No. 191618, June 7, 2011.

²² *Legarda v. De Castro*, PET Case No. 003, January 18, 2008.

allowed by law, to intervene in this case or be substituted for the deceased protestant.”²³

SECTION 5. Before they enter on the execution of their office, the President, the Vice-President, or the Acting President shall take the following oath or affirmation:

“I do solemnly swear (or affirm) that I will faithfully and conscientiously fulfill my duties as President (or Vice-President or Acting President) of the Philippines, preserve and defend its Constitution, execute its laws, do justice to every man, and consecrate myself to the service of the Nation. So help me God.” (In case of affirmation, last sentence will be omitted.)

SECTION 6. The President shall have an official residence. The salaries of the President and Vice-President shall be determined by law and shall not be decreased during their tenure. No increase in said compensation shall take effect until after the expiration of the term of the incumbent during which such increase was approved. They shall not receive during their tenure any other emolument from the Government or any other source.

SECTION 7. The President-elect and the Vice-President-elect shall assume office at the beginning of their terms.

If the President-elect fails to qualify, the Vice-President-elect shall act as President until the President-elect shall have qualified.

If a President shall not have been chosen, the Vice-President-elect shall act as President until a President shall have been chosen and qualified.

If at the beginning of the term of the President, the President-elect shall have died or shall have become permanently disabled, the Vice-President-elect shall become President.

Where no President and Vice-President shall have been chosen or shall have qualified, or where both shall have died or become permanently disabled, the President of the Senate or, in case of his inability, the

²³ *Poe v. Macapagal-Arroyo*, P.E.T. Case No. 002, March 29, 2005.

Speaker of the House of Representatives shall act as President until a President or a Vice-President shall have been chosen and qualified.

The Congress shall, by law, provide for the manner in which one who is to act as President shall be selected until a President or a Vice-President shall have qualified, in case of death, permanent disability, or inability of the officials mentioned in the next preceding paragraph.

SECTION 8. In case of death, permanent disability, removal from office, or resignation of the President, the Vice-President shall become the President to serve the unexpired term. In case of death, permanent disability, removal from office, or resignation of both the President and Vice-President, the President of the Senate or, in case of his inability, the Speaker of the House of Representatives, shall then act as President until the President or Vice-President shall have been elected and qualified.

The Congress shall, by law, provide who shall serve as President in case of death, permanent disability, or resignation of the Acting President. He shall serve until the President or the Vice-President shall have been elected and qualified, and be subject to the same restrictions of powers and disqualifications as the Acting President.

The validity of a resignation is not governed by any formal requirement as to form. It can be oral or written. It can be express or be implied. As long as the resignation is clear, it must be given legal effect. President Joseph E. Estrada did not write any formal letter of resignation before he evacuated Malacañang Palace in the afternoon of January 20, 2001 after Gloria Macapagal-Arroyo took her oath of office as President. Whether petitioner resigned has to be determined from his acts and omissions before, during and after January 20, 2001 or by the totality of prior, contemporaneous and posterior facts and circumstantial evidence bearing a material relevance on the issue.²⁴

SECTION 9. Whenever there is a vacancy in the Office of the Vice-President during the term for which he was elected, the President shall nominate a Vice-President from among the Members of the Senate and the

²⁴ *Estrada v. Desierto*, G.R. Nos. 146710-15, 146738, March 2, 2001.

House of Representatives who shall assume office upon confirmation by a majority vote of all the Members of both Houses of the Congress, voting separately.

SECTION 10. The Congress shall, at ten o'clock in the morning of the third day after the vacancy in the offices of the President and Vice-President occurs, convene in accordance with its rules without need of a call and within seven days enact a law calling for a special election to elect a President and a Vice-President to be held not earlier than forty-five days nor later than sixty days from the time of such call. The bill calling such special election shall be deemed certified under paragraph 2, Section 26, Article VI of this Constitution and shall become law upon its approval on third reading by the Congress. Appropriations for the special election shall be charged against any current appropriations and shall be exempt from the requirements of paragraph 4, Section 25, Article VI of this Constitution. The convening of the Congress cannot be suspended nor the special election postponed. No special election shall be called if the vacancy occurs within eighteen months before the date of the next presidential election.

SECTION 11. Whenever the President transmits to the President of the Senate and the Speaker of the House of Representatives his written declaration that he is unable to discharge the powers and duties of his office, and until he transmits to them a written declaration to the contrary, such powers and duties shall be discharged by the Vice-President as Acting President.

Whenever a majority of all the Members of the Cabinet transmit to the President of the Senate and to the Speaker of the House of Representatives their written declaration that the President is unable to discharge the powers and duties of his office, the Vice-President shall immediately assume the powers and duties of the office as Acting President.

Thereafter, when the President transmits to the President of the Senate and to the Speaker of the House of Representatives his written declaration that no inability exists, he shall reassume the powers and duties of his office. Meanwhile, should a majority of all the Members of the Cabinet transmit within five days to the President of the Senate and to the Speaker of the House of Representatives their written declaration that the President is

unable to discharge the powers and duties of his office, the Congress shall decide the issue. For that purpose, the Congress shall convene, if it is not in session, within forty-eight hours, in accordance with its rules and without need of call.

If the Congress, within ten days after receipt of the last written declaration, or, if not in session, within twelve days after it is required to assemble, determines by a two-thirds vote of both Houses, voting separately, that the President is unable to discharge the powers and duties of his office, the Vice-President shall act as the President; otherwise, the President shall continue exercising the powers and duties of his office.

SECTION 12. In case of serious illness of the President, the public shall be informed of the state of his health. The Members of the Cabinet in charge of national security and foreign relations and the Chief of Staff of the Armed Forces of the Philippines, shall not be denied access to the President during such illness.

SECTION 13. The President, Vice-President, the Members of the Cabinet, and their deputies or assistants shall not, unless otherwise provided in this Constitution, hold any other office or employment during their tenure. They shall not, during said tenure, directly or indirectly, practice any other profession, participate in any business, or be financially interested in any contract with, or in any franchise, or special privilege granted by the Government or any subdivision, agency, or instrumentality thereof, including government-owned or controlled corporations or their subsidiaries. They shall strictly avoid conflict of interest in the conduct of their office.

The spouse and relatives by consanguinity or affinity within the fourth civil degree of the President shall not during his tenure be appointed as members of the Constitutional Commissions, or the Office of the Ombudsman, or as Secretaries, Undersecretaries, chairmen or heads of bureaus or offices, including government-owned or controlled corporations and their subsidiaries.

This provision should be read with Section 7, paragraph (2), Article IX-B which provides:

Unless otherwise allowed by law or the primary functions of his position, no appointive official shall hold any other office or employment in the Government or any subdivision, agency or instrumentality thereof, including government-owned or controlled corporations or their subsidiaries.

The Supreme Court has construed these provisions to mean that all other appointive officials in the civil service are allowed to hold other office or employment in the government during their tenure when such is allowed by law or by the primary functions of their positions. However, members of the Cabinet, their deputies and assistants may do so only when expressly authorized by the Constitution itself. Section 7, Article IX-B is meant to lay down the general rule applicable to all elective and appointive public officials and employees, while Section 13, Article VII is meant to be the exception applicable only to the President, the Vice-President, Members of the Cabinet, their deputies and assistants.²⁵

The National Amnesty Commission's (NAC) *ex officio* members' representatives who were all appointive officials with ranks below Assistant Secretary are covered by the two constitutional prohibitions. The NAC *ex officio* members' representatives are not exempt from the general prohibition because there is no law or administrative order creating a new office or position and authorizing additional compensation therefor.²⁶

The prohibition against dual or multiple offices being held by one official must be construed as to apply to all appointments or designations, whether permanent or temporary, for it is without question that the avowed objective of Section 13, is to prevent the concentration of powers in the Executive Department officials, specifically the President, the Vice-President, the Members of the Cabinet and their deputies and assistants. To construe differently is to "open the veritable floodgates of circumvention of an important constitutional disqualification of officials in the Executive Department and of limitations on the President's power of appointment in the guise of temporary designations of Cabinet Members, undersecretaries

25 *Funa v. Ermita*, G.R. No. 184740, February 11, 2010.

26 *National Amnesty Commission v. Commission on Audit*, G.R. No. 156982, September 8, 2004.

and assistant secretaries as officers-in-charge of government agencies, instrumentalities, or government-owned or controlled corporations.”²⁷

The only two exceptions against the holding of multiple offices are:

1. those provided for under the Constitution, such as Section 3, Article VII, authorizing the Vice President to become a member of the Cabinet; and
2. posts occupied by Executive officials specified in Section 13, Article VII without additional compensation in *ex officio* capacities as provided by law and as required by the primary functions of the officials’ offices.

In *Civil Liberties Union v. The Executive Secretary*, the Supreme Court held that the phrase “the Members of the Cabinet, and their deputies or assistants” referred only to the heads of the various executive departments, their undersecretaries and assistant secretaries, and did not extend to other public officials given the rank of Secretary, Undersecretary or Assistant Secretary.²⁸

SECTION 14. Appointments extended by an Acting President shall remain effective, unless revoked by the elected President within ninety days from his assumption or reassumption of office.

SECTION 15. Two months immediately before the next presidential elections and up to the end of his term, a President or Acting President shall not make appointments, except temporary appointments to executive positions when continued vacancies therein will prejudice public service or endanger public safety.

The 1986 Constitutional Commission put a definite period for the ban on appointments. Subject to only one exception, appointments made during this period are thus automatically prohibited under the Constitution, regardless of the appointee’s qualifications or even of the President’s motives. The period for prohibited appointments covers two months before the elections

²⁷ *Funa v. Agra*, G.R. No. 191644, February 19, 2013.

²⁸ *Funa v. Agra*, G.R. No. 191644, February 19, 2013.

until the end of the President's term. The Constitution, with a specific exception, ended the President's power to appoint "two months immediately before the next presidential elections."²⁹

The constitutional prohibition on so-called midnight appointments, specifically those made within two months immediately prior to the next presidential elections, applies only to the President or Acting President.³⁰

The ban on midnight appointments does not apply to appointments to the judiciary. Had the framers intended to extend the prohibition contained in Section 15, Article VII to the appointment of Members of the Supreme Court, they could have explicitly done so. They would have written the prohibition made explicit in Section 15, Article VII as being equally applicable to the appointment of Members of the Supreme Court in Article VIII itself, most likely in Section 4 (1), Article VIII. That fact that it was not done reveals that the prohibition against the President or Acting President making appointments within two months before the next presidential elections and up to the end of the President's or Acting President's term does not refer to the Members of the Supreme Court.³¹ The Supreme Court also cited Section 4 (1), Article VIII which provides:

SECTION 4. (1) The Supreme Court shall be composed of a Chief Justice and fourteen Associate Justices. It may sit *en banc* or in its discretion, in divisions of three, five, or seven Members. Any vacancy shall be filled within ninety days from the occurrence thereof.

The Court held that the use of the word "shall" — an imperative, operating to impose a duty that may be enforced. It imposes a duty on the President to make an appointment of a Member of the Supreme Court within 90 days from the occurrence of the vacancy. The failure by the President to do so will be a clear disobedience to the Constitution.³²

29 *Velicaria-Garafil v. Office of the President*, G.R. No. 206290, June 16, 2015.

30 *Quirog v. Aumentado*, G.R. No. 163443, November 11, 2008. There is no law that prohibits local elective officials from making appointments during the last days of his or her tenure. SEE *De Rama v. Court of Appeals*, G.R. No. 131136.

31 *De Castro v. Judicial and Bar Council*, G.R. No. 191002, March 17, 2010.

32 *De Castro v. Judicial and Bar Council*, G.R. No. 191002, March 17, 2010.

SECTION 16. The President shall nominate and, with the consent of the Commission on Appointments, appoint the heads of the executive departments, ambassadors, other public ministers and consuls, or officers of the armed forces from the rank of colonel or naval captain, and other officers whose appointments are vested in him in this Constitution. He shall also appoint all other officers of the Government whose appointments are not otherwise provided for by law, and those whom he may be authorized by law to appoint. The Congress may, by law, vest the appointment of other officers lower in rank in the President alone, in the courts, or in the heads of departments, agencies, commissions, or boards.

The President shall have the power to make appointments during the recess of the Congress, whether voluntary or compulsory, but such appointments shall be effective only until after disapproval by the Commission on Appointments or until the next adjournment of the Congress.

The Nature of the Power to Appoint

The power to appoint is essentially executive in nature, and the legislature may not interfere with the exercise of this executive power except in those instances when the Constitution expressly allows it to interfere. Limitations on the executive power to appoint are construed strictly against the legislature. The legislature's interference in the executive's power to appoint is limited to the power to prescribe the qualifications to an appointive office. Congress cannot appoint a person to an office in the guise of prescribing qualifications to that office. Neither may Congress impose on the President the duty to appoint any particular person to an office. However, even if the Commission on Appointments is composed of members of Congress, the exercise of its powers is executive and not legislative. The Commission on Appointments does not legislate when it exercises its power to give or withhold consent to presidential appointments.³³

33 *Pimentel, Jr. v. Ermita*, G.R. No. 164978, October 13, 2005.

Kinds of Appointments

Appointments may be classified into two: *first*, as to its nature; and *second*, as to the manner in which it is made. Under the first classification, appointments can either be permanent *or* temporary (acting). A basic distinction is that a permanent appointee can only be removed from office for cause; whereas a temporary appointee can be removed even without hearing or cause.

Under the second classification, an appointment can either be regular *or ad interim*. A regular appointment is one made while Congress is in session, while an *ad interim* appointment is one issued during the recess of Congress. In strict terms, presidential appointments that require no confirmation from the Commission on Appointments cannot be properly characterized as either a regular or an *ad interim* appointment.

Generally, the power to appoint vested in the President includes the power to make temporary appointments, unless he is *otherwise specifically* prohibited by the Constitution or by the law, or where an acting appointment is repugnant to the nature of the office involved.³⁴

Appointments that Require Confirmation

The framers of the 1987 Constitution deemed it imperative to subject certain high positions in the government to the power of confirmation of the Commission on Appointments and to allow other positions within the exclusive appointing power of the President. There are four groups of officers of the government to be appointed by the President:

First, the heads of the executive departments, ambassadors, other public ministers and consuls, officers of the armed forces from the rank of colonel or naval captain, and other officers whose appointments are vested in him in this Constitution;

Second, all other officers of the Government whose appointments are not otherwise provided for by law;

34 *General v. Urro*, G.R. No. 191560, March 29, 2011.

Third, those whom the President may be authorized by law to appoint;

Fourth, officers lower in rank whose appointments the Congress may by law vest in the President alone.

It is well-settled that only presidential appointments belonging to the first group require the confirmation by the Commission on Appointments. The appointments of officers who are not within the first category need not be confirmed by the Commission on Appointments.³⁵

A law that requires the Commission on Appointments to confirm the appointments of Chairman and Members of the National Labor Relations Commission, is unconstitutional because:

1. It amends by legislation, the first sentence of Sec. 16, Art. VII of the Constitution by adding thereto appointments requiring confirmation by the Commission on Appointments; and
2. It amends by legislation the second sentence of Sec. 16, Art. VII of the Constitution, by imposing the confirmation of the Commission on Appointments on appointments which are otherwise entrusted only with the President.³⁶

After the President transferred the Philippine Coast Guard (PCG) from the Department of National Defense to the Department of Transportation and Communications, the PCG is no longer part of the Philippine Navy or the Armed Forces of the Philippines. Therefore, the promotions and appointments of respondent officers of the PCG, or any PCG officer from the rank of captain and higher for that matter, do not require confirmation by the Commission on Appointments.³⁷

Temporary Appointments

The office of a department secretary may become vacant while Congress is in session. Since a department secretary is the *alter ego* of the President, the

³⁵ *Manalo v. Sistoza*, G.R. No. 107369, August 11, 1999.

³⁶ *Calderon v. Carale*, G.R. No. 91636, April 23, 1992.

³⁷ *Soriano III v. Lista*, G.R. No. 153881, March 24, 2003.

acting appointee to the office must necessarily have the President's confidence. Thus, by the very nature of the office of a department secretary, the President must appoint in an acting capacity a person of her choice even while Congress is in session. That person may or may not be the permanent appointee, but practical reasons may make it expedient that the acting appointee will also be the permanent appointee. Congress cannot impose on the President the obligation to appoint automatically the undersecretary as her temporary *alter ego*. An *alter ego*, whether temporary or permanent, holds a position of great trust and confidence. Congress, in the guise of prescribing qualifications to an office, cannot impose on the President who her *alter ego* should be.

Section 17, Chapter 5, Title I, Book III of the Administrative Code of 1987 states that "[t]he President may temporarily designate an officer already in the government service or any other competent person to perform the functions of an office in the executive branch." Thus, the President may even appoint in an acting capacity a person not yet in the government service, as long as the President deems that person competent.³⁸

The Ad Interim Appointment

An *ad interim* appointment is a permanent appointment because it takes effect immediately and can no longer be withdrawn by the President once the appointee has qualified into office. The fact that it is subject to confirmation by the Commission on Appointments does not alter its permanent character. The Constitution itself makes an *ad interim* appointment permanent in character by making it effective until disapproved by the Commission on Appointments or until the next adjournment of Congress. Under the second paragraph of Section 16, Article VII of the Constitution the *ad interim* appointment remains *effective until* such disapproval or next adjournment, signifying that it can no longer be withdrawn or revoked by the President. The fear that the President can withdraw or revoke at any time and for any reason an *ad interim* appointment is utterly without basis.³⁹

38 *Pimentel, Jr. v. Ermita*, G.R. No. 164978, October 13, 2005.

39 *Matibag v. Benipayo*, G.R. No. 149036, April 2, 2002.

The President's Power to Remove

The President is authorized to effect organizational changes including the creation of offices in the department or agency concerned. This does not mean that the reorganization itself is properly made in accordance with law. Reorganization is valid if it is pursued in good faith. If the abolition which is nothing else but a separation or removal, is done for political reasons or purposely to defeat security of tenure, or otherwise not in good faith, no valid abolition takes place and whatever abolition is done is void. There is an invalid abolition as where there is merely a change of nomenclature of positions or where claims of economy are belied by the existence of ample funds.⁴⁰

The following elements should always concur in the making of a valid appointment:

1. Authority to appoint and evidence of the exercise of the authority;
2. Transmittal of the appointment paper and evidence of the transmittal;
3. A vacant position at the time of appointment; and
4. Receipt of the appointment paper and acceptance of the appointment by the appointee who possesses all the qualifications and none of the disqualifications.⁴¹

The concurrence of all these elements should always apply, regardless of when the appointment is made, whether outside, just before, or during the appointment ban. These steps in the appointment process should always concur and operate as a single process. There is no valid appointment if the process lacks even one step.⁴²

⁴⁰ *Larin v. Executive Secretary*, G.R. No. 112745, October 16, 1997.

⁴¹ *Velicaria-Garafil v. Office of the President*, G.R. No. 206290, June 16, 2015.

⁴² *Velicaria-Garafil v. Office of the President*, G.R. No. 206290, June 16, 2015.

Promotional Appointments

According to the Constitution, the Chairman of the Commission on Audit shall be appointed by the President for a term of seven years, and if he has served the full term, then he can no longer be reappointed or extended another appointment. A Commissioner who was appointed for a term of seven years who likewise served the full term is barred from being reappointed. In short, the first Chairman appointed under the 1987 Constitution who served the full term of seven years can no longer be extended a reappointment. Neither can the Commissioners first appointed for the terms of five years and three years be eligible for reappointment. This is the plain meaning attached to the second sentence of Sec. 1 (2), Article IX (D). The provision, however, does not prohibit a promotional appointment from commissioner to chairman as long as the commissioner has not served the full term of seven years *and* that “the appointment to any vacancy shall be only for the unexpired portion of the term of the predecessor.” In addition, such promotional appointment to the position of Chairman must conform to the rotational plan or the staggering of terms in the commission membership such that the aggregate of the service of the Commissioner in said position and the term to which he will be appointed to the position of Chairman must not exceed seven years so as not to disrupt the rotational system in the commission prescribed by Sec. 1 (2), Art. IX (D).⁴³

SECTION 17. The President shall have control of all the executive departments, bureaus, and offices. He shall ensure that the laws be faithfully executed.

The Constitution confers, by express provision, the power of control over executive departments, bureaus and offices in the President alone. And it lays down a limitation on the legislative power.

... Legislative power is “the authority, under the Constitution, to make laws, and to alter and repeal them.” The Constitution, as the will of the people in their original, sovereign and unlimited capacity, has vested this power in the Congress of the Philippines. The grant of legislative power to Congress is broad, general and comprehensive. The legislative body

43 *Funa v. Villar*, G.R. No. 192791, April 24, 2012.

possesses plenary power for all purposes of civil government. Any power, deemed to be legislative by usage and tradition, is necessarily possessed by Congress, unless the Constitution has lodged it elsewhere. In fine, except as limited by the Constitution, either expressly or impliedly, legislative power embraces all subjects and extends to matters of general concern or common interest.

While Congress is vested with the power to enact laws, the President executes the laws. The executive power is vested in the President. It is generally defined as the power to enforce and administer the laws. It is the power of carrying the laws into practical operation and enforcing their due observance.

As head of the Executive Department, the President is the Chief Executive. He represents the government as a whole and sees to it that all laws are enforced by the officials and employees of his department. He has control over the executive department, bureaus and offices. This means that he has the authority to assume directly the functions of the executive department, bureau and office, or interfere with the discretion of its officials. Corollary to the power of control, the President also has the duty of supervising and enforcement of laws for the maintenance of general peace and public order. Thus, he is granted administrative power over bureaus and offices under his control to enable him to discharge his duties effectively.⁴⁴

The presidential power of control over the executive branch of government extends to all executive employees from Cabinet Secretary to the lowliest clerk. The power is self-executing and does not require statutory implementation, nor may its exercise be limited, much less withdrawn, by the legislature.⁴⁵

The President is the head of government whose authority includes the power of control over all “executive departments, bureaus and offices.” Control means the authority of an empowered officer to alter or modify, or even nullify or set aside, what a subordinate officer has done in the

⁴⁴ *Anak Mindanao Party-List Group v. Executive Secretary*, G.R. No. 166052, [August 29, 2007], 558 PHIL 338-363).

⁴⁵ *National Electrification Administration v. COA*, G.R. No. 143481, February 15, 2002.

performance of his duties, as well as to substitute the judgment of the latter, as and when the former deems it to be appropriate. Expressed in another way, the President has the power to assume *directly* the functions of an executive department, bureau and office. It can accordingly be inferred therefrom that the President can interfere in the exercise of discretion of officials under him or altogether ignore their recommendations.⁴⁶ Executive officials who are subordinate to the President should not trifle with the President's constitutional power of control over the executive branch. There is only one Chief Executive who directs and controls the entire executive branch, and all other executive officials must implement in good faith his directives and orders. This is necessary to provide order, efficiency and coherence in carrying out the plans, policies and programs of the executive branch."⁴⁷

The designation of the Chairman of the Civil Service Commission as a member of the Board of Directors or Trustees in an ex officio capacity of the (a) Government Service Insurance System (GSIS); (b) Philippine Health Insurance Corporation (PHILHEALTH), (c) the Employees Compensation Commission (ECC), and (d) the Home Development Mutual Fund is invalid. The Chairman of the Civil Service Commission cannot be a member of a government entity that is under the *control* of the *President* without impairing the independence vested in the CSC by the 1987 Constitution.⁴⁸

Doctrine of Qualified Political Agency

This doctrine is corollary to the control power of the President. As head of the Executive Department, the President cannot be expected to exercise his control (and supervisory) powers personally all the time. He may delegate some of his powers to the Cabinet members except when he is required by the Constitution to act in person or the exigencies of the situation demand that he acts personally.⁴⁹ The different executive and administrative functions of the Chief Executive are performed by and through the executive departments, and the acts of the Secretaries of such departments, performed and promulgated in the regular course of business, are, unless disapproved

46 *Bermudez v. Torres*, G.R. No. 131429, August 4, 1999.

47 *Velasco v. COA*, G.R. No. 189774, September 18, 2012.

48 *Funa v. CSC Chairman*, G.R. No. 191672, November 25, 2014.

49 *DENR v. DENR Region 12 Employees*, G.R. No. 149724, August 19, 2003.

or reprobated by the Chief Executive, presumptively the acts of the Chief Executive.⁵⁰ The Court explained that:

All executive and administrative organizations are adjuncts of the Executive Department, the heads of the various executive departments are assistants and agents of the Chief Executive, and, except in cases where the Chief Executive is required by the Constitution or law to act in person on the exigencies of the situation demand that he act personally, the multifarious executive and administrative functions of the Chief Executive are performed by and through the executive departments, and the acts of the Secretaries of such departments, performed and promulgated in the regular course of business, are, unless disapproved or reprobated by the Chief Executive presumptively the acts of the Chief Executive.

Thus, and in short, the President's power of control is directly exercised by him over the members of the Cabinet who, in turn, and by his authority, control the bureaus and other offices under their respective jurisdictions in the executive department.

Relationship with Local Governments

The barangay chairman and the Lupon are components of the local government unit which is subsumed under the executive branch of government.⁵¹ The President, however, does not exercise control over local officials. Section 4, Article X of the Constitution states:

Section 4. The President of the Philippines shall exercise general supervision over local governments. Provinces with respect to component cities and municipalities, and cities and municipalities with respect to component barangays, shall ensure that the acts of their component units are within the scope of their prescribed powers and functions.⁵²

Since local governments are subject only to the power of general supervision of the President, the President's authority is limited to

⁵⁰ Id.

⁵¹ *Solway v. Pascasio*, A.M. No. P-07-2327, July 12, 2007.

⁵² *Villafuerte, Jr. v. Robredo*, G.R. No. 195390, December 10, 2014.

seeing to it that rules are followed and laws are faithfully executed. The President may only point out that rules have not been followed but the President cannot lay down the rules, neither does he have the discretion to modify or replace the rules. Thus, the grant of additional compensation like hospitalization and health care insurance benefits in the present case does not need the approval of the President to be valid.⁵³

Notwithstanding the local fiscal autonomy being enjoyed by local governments, they are still under the supervision of the President and maybe held accountable for malfeasance or violations of existing laws. “Supervision is not incompatible with discipline. And the power to discipline and ensure that the laws be faithfully executed must be construed to authorize the President to order an investigation of the act or conduct of local officials when in his opinion the good of the public service so requires.” Clearly, the President’s power of supervision is not antithetical to investigation and imposition of sanctions.⁵⁴

Like the local government units, the *Liga ng mga Barangay* is not subject to control by the Chief Executive or his *alter ego*.⁵⁵ However, local autonomy is not absolute and the national government still has the say when it comes to national priority programs which the local government is called upon to implement.⁵⁶ This rule applies equally to the Autonomous Region for Muslim Mindanao. Except for the express and implied limitations imposed by the Constitution, Congress cannot be restricted in exercising its inherent and plenary power to legislate on all subjects which extends to all matters of general concern or common interest.⁵⁷

The Supreme Court makes it clear that under the Philippine concept of local autonomy, the national government has not completely relinquished all its powers over local governments, including autonomous regions. Only administrative powers over local affairs are delegated to political subdivisions. The purpose of the delegation is to make governance more directly responsive and effective at the local levels. In turn, economic,

53 *Province of Negros Occidental v. Commrs.*, G.R. No. 182574, September 28, 2010.

54 *Villafuerte, Jr. v. Robredo*, G.R. No. 195390, December 10, 2014.

55 *National Liga ng mga Barangay v. Paredes*, G.R. No. 130775, September 27, 2004.

56 *Imbong v. Ochoa*, G.R. No. 204819, April 8, 2014.

57 *Id.*

political and social development at the smaller political units are expected to propel social and economic growth and development. But to enable the country to develop as a whole, the programs and policies effected locally must be integrated and coordinated towards a common national goal. Policy-setting for the entire country still lies in the President and Congress.⁵⁸ There is no incompatibility between the President's power of supervision over local governments and autonomous regions, and the power granted to the President, in Republic Act No. 10153, to appoint Officers-in-Charge.⁵⁹

The executive power of control over the acts of department secretaries is laid down in Section 17, Article VII of the 1987 Constitution. The power of control has been defined as the "power of an officer to alter or modify or nullify or set aside what a subordinate officer had done in the performance of his duties and to substitute the judgment of the former for that of the latter." "Executive control" is not absolute. The definition of the structure of the executive branch of government, and the corresponding degrees of administrative control and supervision is not the exclusive preserve of the executive. It may be limited by the Constitution, by law, or by judicial decisions. All the more in the matter of appellate procedure as in the instant case. Appeals are remedial in nature; hence, constitutionally subject to this Court's rule-making power. The Rules of Procedure was issued by the Court pursuant to Section 5, Article VIII of the Constitution, which expressly empowers the Supreme Court to promulgate rules concerning the procedure in all courts.⁶⁰

Relationship with the Constitutional Commissions

Under the Constitution, there are independent Constitutional Commissions: The Civil Service Commission, Commission on Audit, and the Commission on Elections. (Article IX-A, Section 1). These Commissions perform vital governmental functions, and they have to be protected from external influences and political pressures. They were made constitutional

58 *Pimentel, Jr. v. Ochoa*, G.R. No. 195770, July 17, 2012.

59 *Kida v. Senate of the Philippines*, G.R. No. 196271, February 28, 2012.

60 *Moran, Jr. v. Office of the President of the Philippines*, G.R. No. 192957, September 29, 2014.

bodies, independent of and not under any department of the government. Certainly, they are not under the control of the President.⁶¹

The independent constitutional commissions were meant to be independent from executive control or supervision or any form of political influence. The Constitutional Commissions, which have been characterized under the Constitution as “independent,” are not under the control of the President, even if they discharge functions that are executive in nature.⁶²

The final determination made by the Finance Department cannot bind the Commission on Audit or foreclose its review thereof in the exercise of its constitutional function and duty to ensure that public funds are expended and used in conformity with law.⁶³

SECTION 18. The President shall be the Commander-in-Chief of all armed forces of the Philippines and whenever it becomes necessary, he may call out such armed forces to prevent or suppress lawless violence, invasion or rebellion. In case of invasion or rebellion, when the public safety requires it, he may, for a period not exceeding sixty days, suspend the privilege of the writ of *habeas corpus* or place the Philippines or any part thereof under martial law. Within forty-eight hours from the proclamation of martial law or the suspension of the privilege of the writ of *habeas corpus*, the President shall submit a report in person or in writing to the Congress. The Congress, voting jointly, by a vote of at least a majority of all its Members in regular or special session, may revoke such proclamation or suspension, which revocation shall not be set aside by the President. Upon the initiative of the President, the Congress may, in the same manner, extend such proclamation or suspension for a period to be determined by the Congress, if the invasion or rebellion shall persist and public safety requires it.

The Congress, if not in session, shall, within twenty-four hours following such proclamation or suspension, convene in accordance with its rules without any need of a call.

61 *Carpio v. Executive Secretary*, G.R. No. 96409, February 14, 1992.

62 *Gonzales III v. Office of the President of the Philippines*, G.R. No. 196231, January 28, 2014.

63 *Commr. v. COA*, G.R. No. 101976, January 29, 1993.

The Supreme Court may review, in an appropriate proceeding filed by any citizen, the sufficiency of the factual basis of the proclamation of martial law or the suspension of the privilege of the writ or the extension thereof, and must promulgate its decision thereon within thirty days from its filing.

A state of martial law does not suspend the operation of the Constitution, nor supplant the functioning of the civil courts or legislative assemblies, nor authorize the conferment of jurisdiction on military courts and agencies over civilians where civil courts are able to function, nor automatically suspend the privilege of the writ.

The suspension of the privilege of the writ shall apply only to persons judicially charged for rebellion or offenses inherent in or directly connected with the invasion.

During the suspension of the privilege of the writ, any person thus arrested or detained shall be judicially charged within three days, otherwise he shall be released.

Article II, Section 3 read with Article VII, Section 18, shows that a civilian President is the ceremonial, legal and administrative head of the armed forces. The Constitution does not require that the President must be possessed of military training and talents, but as Commander-in-Chief, he has the power to direct military operations and to determine military strategy. Normally, he would be expected to delegate the actual command of the armed forces to military experts; but the ultimate power is his. As Commander-in-Chief, he is authorized to direct the movements of the naval and military forces placed by law at his command, and to employ them in the manner he may deem most effectual.

Under the foregoing provisions, Congress may revoke such proclamation or suspension and the Court may review the sufficiency of the factual basis thereof. However, there is no such equivalent provision dealing with the revocation or review of the President's action to call out the armed forces. The distinction places the calling out power in a different category from the power to declare martial law and the power to suspend the privilege of the writ of *habeas corpus*, otherwise, the framers of the

Constitution would have simply lumped together the three powers and provided for their revocation and review without any qualification.⁶⁴

The President, in declaring a state of rebellion and in calling out the armed forces, was merely exercising a wedding of her Chief Executive and Commander-in-Chief powers. These are *purely executive* powers, vested on the President by Sections 1 and 18, Article VII, as opposed to the *delegated legislative* powers contemplated by Section 23 (2), Article VI.⁶⁵

Section 18 vests in the President the power to proclaim martial law or suspend the privilege of the writ of *habeas corpus*, but she shares this power with the Congress. Thus:

1. The President's proclamation or suspension is temporary, good for only 60 days.
2. She must, within 48 hours of the proclamation or suspension, report his action in person or in writing to Congress;
3. Both houses of Congress, if not in session must jointly convene within 24 hours of the proclamation or suspension for the purpose of reviewing its validity; and
4. The Congress, voting jointly, may revoke or affirm the President's proclamation or suspension, allow their limited effectivity to lapse, or extend the same if Congress deems warranted.⁶⁶

The President and the Congress act in tandem in exercising the power to proclaim martial law or suspend the privilege of the writ of *habeas corpus*. They exercise the power sequentially and in a sense jointly since, after the President has initiated the proclamation or the suspension, only the Congress can maintain the same based on its own evaluation of the situation on the ground, a power that the President does not have.⁶⁷

64 *Kulayan v. Tan*, G.R. No. 187298, July 3, 2012.

65 *Sanlakas v. Reyes*, G.R. No. 159085, February 3, 2004.

66 *Fortun v. Macapagal-Arroyo*, G.R. No. 190293, March 20, 2012.

67 *Id.*

Although the Constitution reserves to the Supreme Court the power to review the sufficiency of the factual basis of the proclamation or suspension in a proper suit, it is implicit that the Court must allow Congress to exercise its own review powers, which is automatic rather than initiated. Only when Congress defaults in its express duty to defend the Constitution through such review should the Supreme Court step in as its final rampart. "The constitutional validity of the President's proclamation of martial law or suspension of the writ of *habeas corpus* is first a political question in the hands of Congress before it becomes a justiciable one in the hands of the Court."⁶⁸

If the President withdraws a proclamation of martial law before the joint houses of Congress could act on the same, petitions challenging the proclamation before the Supreme Court become moot. "The lifting of martial law and restoration of the privilege of the writ of *habeas corpus* in Maguindanao was a supervening event that obliterated any justiciable controversy."⁶⁹

Section 18 is triggered whenever there is "lawless violence, invasion or rebellion." In such cases, the President is allowed to deploy military forces to quell these threats.

The Constitution grants the President, as Commander-in-Chief, a "sequence" of graduated powers. These are: the calling-out power, the power to suspend the privilege of the writ of *habeas corpus*, and the power to declare martial law. These powers are purely executive powers, vested on the President as opposed to the delegated legislative powers contemplated by Section 23 (2), Article VI.⁷⁰

The only criterion for the exercise of the calling-out power is that "whenever it becomes necessary," the President may call the armed forces "to prevent or suppress lawless violence, invasion or rebellion."⁷¹

68 Id.

69 Id.

70 *Sanlakas v. Reyes*, G.R. No. 159085, 159103, 159185, 159196, February 03, 2004.

71 *David v. Macapagal-Arroyo*, G.R. No. 171396, 171409, 171485, 171483, 171400, 171489, 171424, May 03, 2006.

When the President calls the armed forces to prevent or suppress lawless violence, invasion or rebellion, he necessarily exercises a discretionary power solely vested in his wisdom. The Court cannot be called upon to overrule the President's wisdom or substitute its own. However, this does not prevent an examination of whether such power was exercised within permissible constitutional limits or whether it was exercised in a manner constituting grave abuse of discretion. In view of the intent to give the President full discretionary power to determine the necessity of calling out the armed forces, it is incumbent upon the petitioner to show that the President's decision is totally bereft of factual basis.⁷²

In the exercise of the power to suspend the privilege of the writ of *habeas corpus* or to impose martial law, two conditions must concur: (1) there must be an actual invasion or rebellion and, (2) public safety must require it. These conditions are not required in the case of the power to call out the armed forces. The only criterion is that "whenever it becomes necessary," the President may call the armed forces to prevent or suppress lawless violence, invasion or rebellion."⁷³

A military commission or tribunal cannot try and exercise jurisdiction, even during the period of martial law, over civilians for offenses allegedly committed by them as long as the civil courts are open and functioning, and that any judgment rendered by such body relating to a civilian is null and void for lack of jurisdiction on the part of the military tribunal concerned.⁷⁴ This does not mean that military courts no longer have jurisdiction to try "service related" offenses. Republic Act No. 7055 did not divest the military courts of jurisdiction to try cases involving violations of Articles 54 to 70, Articles 72 to 92 and Articles 95 to 97 of the Articles of War.⁷⁵

72 *Integrated Bar of the Phil. v. Zamora*, G.R. No. 141284, August 15, 2000. In another case, the Court held that while it is true that the Court may inquire into the factual bases for the President's exercise of the above power, it would generally defer to her judgment on the matter. Unless it is shown that such determination was attended by grave abuse of discretion, the Court will accord respect to the President's judgment. *Ampatuan v. Puno*, G.R. No. 190259, June 7, 2011.

73 *Integrated Bar of the Phil. v. Zamora*, G.R. No. 141284, August 15, 2000.

74 *Olague v. Military Commission No. 34*, G.R. No. L-54558, May 22, 1987.

75 *Navales v. Abaya*, G.R. No. 162318, October 25, 2004.

The Writ of Habeas Corpus

The writ of habeas corpus was devised as a speedy and effectual remedy to relieve persons from unlawful restraint, and as the best and only efficient defense of personal freedom.⁷⁶ The primary function of the writ is to inquire into all manner of involuntary restraint and to relieve a person therefrom if such restraint is illegal.⁷⁷

An application for a writ of habeas corpus may be made through a petition filed before the Supreme Court or any of its members, the Court of Appeals or any of its members in instances authorized by law, or the Regional Trial Court or any of its presiding judges.⁷⁸ The court or judge grants the writ and requires the officer having custody of the person allegedly restrained of liberty to file a return of the writ. A hearing on the return of the writ is then conducted.⁷⁹

The office of the writ of habeas corpus is to inquire into the legality of deprivation of liberty.⁸⁰ In general, the writ of habeas corpus is a high prerogative writ which furnishes an extraordinary remedy; it may thus be invoked only under extraordinary circumstances.⁸¹

The writ of habeas corpus has very limited availability as a post-conviction remedy. Review of a judgment of conviction is allowed in a petition for the issuance of the writ of habeas corpus only in very specific instances, such as when, as a consequence of a judicial proceeding: (a) there has been a deprivation of a constitutional right resulting in the restraint of a person; (b) the court had no jurisdiction to impose the sentence; or (c) an excessive penalty has been imposed, as such sentence is void as to such excess.⁸²

⁷⁶ *In Re: Salibo*, G.R. No. 197597, April 8, 2015.

⁷⁷ *In Re: Salibo*, G.R. No. 197597, April 8, 2015.

⁷⁸ *In Re: Salibo*, G.R. No. 197597, April 8, 2015.

⁷⁹ *In Re: Salibo*, G.R. No. 197597, April 8, 2015.

⁸⁰ *Camara v. Pagayatan*, G.R. No. 176563, April 2, 2007.

⁸¹ *De Villa v. The Director, New Bilibid Prisons*, G.R. No. 158802, November 17, 2004.

⁸² *De Villa v. The Director, New Bilibid Prisons*, G.R. No. 158802, November 17, 2004.

In a case where DNA evidence was discovered after the trial, the Court held that it does not meet the criteria for “newly-discovered evidence” that would merit a new trial. Such evidence disproving paternity could have been discovered and produced at trial with the exercise of reasonable diligence.

A claim that the Petitioner was “unaware” of the existence of DNA testing until the trial was concluded carries no weight with this Court. Lack of knowledge of the existence of DNA testing speaks of negligence, either on the part of petitioner, or on the part of petitioner’s counsel. In either instance, however, this negligence is binding upon petitioner. It is a settled rule that a party cannot blame his counsel for negligence when he himself was guilty of neglect.⁸³

SECTION 19. Except in cases of impeachment, or as otherwise provided in this Constitution, the President may grant reprieves, commutations and pardons, and remit fines and forfeitures, after conviction by final judgment.

He shall also have the power to grant amnesty with the concurrence of a majority of all the Members of the Congress.

The Philippine Constitution has two provisions on the power to pardon. Article VII, Section 19 provides that “Except in cases of impeachment, or as otherwise provided in this Constitution, the President may grant reprieves, commutations and pardons, and remit fines and forfeitures, after conviction by final judgment.” Article IX C, Section 5 in turn provides that “No pardon, amnesty, parole, or suspension of sentence for violation of election laws, rules, and regulations shall be granted by the President without the favorable recommendation of the Commission [on Elections].”

Pardon is granted by the Chief Executive and as such it is a private act which must be pleaded and proved by the person pardoned, because the courts take no notice thereof; while amnesty by Proclamation of the Chief Executive with the concurrence of Congress, and it is a public act of which the courts should take judicial notice. Pardon is granted to one after conviction; while amnesty is granted to classes of persons or communities

83 Id.

who may be guilty of political offenses, generally before or after the institution of the criminal prosecution and sometimes after conviction. Pardon looks forward and relieves the offender from the consequences of an offense of which he has been convicted, that is, it abolishes or forgives the punishment, and for that reason it does “nor work the restoration of the rights to hold public office, or the right of suffrage, unless such rights be expressly restored by the terms of the pardon,” and it “in no case exempts the culprit from the payment of the civil indemnity imposed upon him by the sentence” (article 36, Revised Penal Code). While amnesty looks backward and abolishes and puts into oblivion the offense itself, it so overlooks and obliterates the offense with which he is charged that the person released by amnesty stands before the law precisely as though he had committed no offense.⁸⁴

The only instances in which the President may not extend pardon remain to be in:

1. Impeachment cases;
2. Cases that have not yet resulted in a final conviction; and
3. Cases involving violations of election laws, rules and regulations in which there was no favorable recommendation coming from the COMELEC.
4. It can be argued that any act of Congress by way of statute cannot operate to limit the pardoning power of the President.⁸⁵ Subject to the limitations imposed by the Constitution, the pardoning power cannot be restricted or controlled by legislative action. An absolute pardon blots out the crime committed and removes all disabilities resulting from the conviction. The pardoning power removes the accessory and resultant disabilities from the commission of a crime.⁸⁶

The phrase “conviction by final judgment” under Section 19, Article VII prohibits the grant of pardon, whether full or conditional, to an accused during the pendency of his appeal from his conviction by the trial court. Any

⁸⁴ *Barrioquinto v. Fernandez*, G.R. No. L-1278, January 21, 1949.

⁸⁵ *Risos-Vidal v. COMELEC*, G.R. No. 206666, January 21, 2015.

⁸⁶ *Cristobal v. Labrador*, G.R. No. 47941, December 7, 1940.

application for pardon should not be acted upon or the process toward its grant should not be begun unless the appeal is withdrawn. Accordingly, the agencies or instrumentalities of the Government concerned must require proof from the accused that he has not appealed from his conviction or that he has withdrawn his appeal. Such proof may be in the form of a certification issued by the trial court or the appellate court, as the case may be. The acceptance of the pardon shall not operate as an abandonment or waiver of the appeal, and the release of an accused by virtue of a pardon, commutation of sentence, or parole before the withdrawal of an appeal shall render those responsible therefor administratively liable. Accordingly those in custody of the accused must not solely rely on the pardon as a basis for the release of the accused from confinement.⁸⁷ A pardon is void if it is extended during the pendency of the appeal or before conviction by final judgment.⁸⁸

Pardon does not *ipso facto* restore a convicted felon to public office necessarily relinquished or forfeited by reason of the conviction although such pardon undoubtedly restores his eligibility for appointment to that office. Public offices are intended primarily for the collective protection, safety and benefit of the common good. They cannot be compromised to favor private interests. A pardon, albeit full and plenary, cannot preclude the appointing power from refusing appointment to anyone deemed to be of bad character, a poor moral risk, or who is unsuitable by reason of the pardoned conviction.⁸⁹

In proceeding against a convict who has been conditionally pardoned and who is alleged to have breached the conditions of his pardon, the Executive Department may:

1. To proceed against him under Section 64 (i) of the Revised Administrative Code; or
2. To proceed against him under Article 159 of the Revised Penal Code which imposes the penalty of *prision correccional*, minimum period, upon a convict who "having been granted conditional

87 *People v. Salle, Jr. y Gercilla*, G.R. No. 103567, December 4, 1995.

88 *People v. Casido*, G.R. No. 116512 (Resolution), March 7, 1997.

89 *Monsanto v. Factoran, Jr.*, G.R. No. 78239, February 9, 1989.

pardon by the Chief Executive, shall violate any of the conditions of such pardon.”⁹⁰

SECTION 20. The President may contract or guarantee foreign loans on behalf of the Republic of the Philippines with the prior concurrence of the Monetary Board, and subject to such limitations as may be provided by law. The Monetary Board shall, within thirty days from the end of every quarter of the calendar year, submit to the Congress a complete report of its decisions on applications for loans to be contracted or guaranteed by the Government or government-owned and controlled corporations which would have the effect of increasing the foreign debt, and containing other matters as may be provided by law.

The Constitution allows the President to contract and guarantee foreign loans. It makes no prohibition on the issuance of certain kinds of loans or distinctions as to which kinds of debt instruments are more onerous than others. This Court may not ascribe to the Constitution meanings and restrictions that would unduly burden the powers of the President. The plain, clear and unambiguous language of the Constitution should be construed in a sense that will allow the full exercise of the power provided therein. It would be the worst kind of judicial legislation if the courts were to misconstrue and change the meaning of the organic act. The only restriction that the Constitution provides, aside from the prior concurrence of the Monetary Board, is that the loans must be subject to limitations provided by law.⁹¹

SECTION 21. No treaty or international agreement shall be valid and effective unless concurred in by at least two-thirds of all the Members of the Senate.

Article 2 of the Vienna Convention on the Law of Treaties defines a treaty as “an international agreement concluded between states in written form and governed by international law, whether embodied in a single instrument or in two or more related instruments and whatever its particular designation.” International agreements may be in the form of: (1) treaties that

⁹⁰ *Torres y Sumulong v. Gonzales*, G.R. No. 76872, July 23, 1987.

⁹¹ *Spouses Constantino v. Cuisia*, G.R. No. 106064, October 13, 2005.

require legislative concurrence after executive ratification; or (2) executive agreements that are similar to treaties, except that they do not require legislative concurrence and are usually less formal and deal with a narrower range of subject matters than treaties. Under international law, there is no difference between treaties and executive agreements in terms of their binding effects on the contracting states concerned, as long as the negotiating functionaries have remained within their powers. Neither, on the domestic sphere, can one be held valid if it violates the Constitution. Authorities agree that one is distinct from another for accepted reasons apart from the concurrence-requirement aspect. As observed by scholars, a treaty has greater “dignity” than an executive agreement, because its constitutional efficacy is beyond doubt, a treaty having behind it the authority of the President, the Senate, and the people; a ratified treaty, unlike an executive agreement, takes precedence over any prior statutory enactment.⁹²

Agreements concluded by the President which fall short of treaties are commonly referred to as executive agreements. They are as common as the more formal instruments — treaties and conventions. These agreements cover such subjects as the inspection of vessels, navigation dues, income tax on shipping profits, the admission of civil aircraft, customs matters, and commercial relations generally, international claims, postal matters, the registration of trade-marks and copyrights. Some of them were concluded not by specific congressional authorization but in conformity with policies declared in acts of Congress with respect to the general subject matter, such as tariff acts; while still others, particularly those with respect to the settlement of claims against foreign governments, were concluded independently of any legislation.⁹³

The President, being the head of state, is regarded as the sole organ and authority in external relations and is the country’s sole representative with foreign nations. As the chief architect of foreign policy, the President acts as the country’s mouthpiece with respect to international affairs. The President is vested with the authority to deal with foreign states and governments, extend or withhold recognition, maintain diplomatic relations, enter into treaties, and otherwise transact the business of foreign relations. In the realm

92 *Bayan Muna v. Romulo*, G.R. No. 159618, February 1, 2011.

93 *Commissioner of Customs v. Eastern Sea Trading*, G.R. No. L-14279, October 31, 1961.

of treaty-making, the President has the sole authority to negotiate with other states.⁹⁴

While the President has the sole authority to negotiate and enter into treaties, the Constitution provides a limitation to his power by requiring the concurrence of two-thirds of all the members of the Senate for the validity of the treaty entered into by him.⁹⁵ The role of the Senate, however, is limited only to giving or withholding its consent, or concurrence, to the ratification. Hence, it is within the authority of the President to refuse to submit a treaty to the Senate or, having secured its consent for its ratification, refuse to ratify it. Although the refusal of a state to ratify a treaty which has been signed in its behalf is a serious step that should not be taken lightly, such decision is within the competence of the President alone, which cannot be encroached by this Court *via* a writ of *mandamus*. This Court has no jurisdiction over actions seeking to enjoin the President in the performance of his official duties.⁹⁶

Signing of the treaty and the ratification are two distinct steps in the treaty-making process. The signature is primarily intended as a means of authenticating the instrument and as a symbol of the good faith of the parties. It is usually performed by the state's authorized representative in the diplomatic mission. Ratification is the formal act by which a state confirms and accepts the provisions of a treaty concluded by its representative. It is generally held to be an executive act, undertaken by the head of the state or of the government. Executive Order No. 459 provides guidelines in the negotiation of international agreements and its ratification. It mandates that after the treaty has been signed by the Philippine representative, the same shall be transmitted to the Department of Foreign Affairs. The Department of Foreign Affairs shall then prepare the ratification papers and forward the signed copy of the treaty to the President for ratification. After the President has ratified the treaty, the Department of Foreign Affairs shall submit the same to the Senate for concurrence. Upon receipt of the concurrence of the

94 *Pimentel, Jr. v. Office of the Executive Secretary*, G.R. No. 158088, July 6, 2005.

95 *Id.*

96 *Id.*

Senate, the Department of Foreign Affairs shall comply with the provisions of the treaty to render it effective.⁹⁷

Congress may not interfere in the field of treaty negotiations. While Article VII, Section 21 provides for Senate concurrence, such pertains only to the validity of the treaty under consideration, not to the conduct of negotiations attendant to its conclusion. Moreover, it is not even Congress as a whole that has the authority to concur as a means of checking the treaty-making power of the President, but only the Senate.⁹⁸

Section 21, Article VII deals with treaties or international agreements in general, in which case, the concurrence of at least two-thirds (2/3) of all the Members of the Senate is required to make the subject treaty, or international agreement, valid and binding on the part of the Philippines. This provision lays down the general rule on treaties or international agreements and applies to any form of treaty with a wide variety of subject matter, such as, but not limited to, extradition or tax treaties or those economic in nature. All treaties or international agreements entered into by the Philippines, regardless of subject matter, coverage, or particular designation or appellation, requires the concurrence of the Senate to be valid and effective. In contrast, Section 25, Article XVIII is a special provision that applies to treaties which involve the presence of foreign military bases, troops or facilities in the Philippines. Under this provision, the concurrence of the Senate is only one of the requisites to render compliance with the constitutional requirements and to consider the agreement binding on the Philippines. Section 25, Article XVIII further requires that “foreign military bases, troops, or facilities” may be allowed in the Philippines only by virtue of a treaty duly concurred in by the Senate, ratified by a majority of the votes cast in a national referendum held for that purpose if so required by Congress, and recognized as such by the other contracting state.

Both constitutional provisions share some common ground. These constitutional provisions both embody phrases in the negative and thus, are deemed prohibitory in mandate and character. In particular, Section 21 opens with the clause “No treaty ...,” and Section 25 contains the phrase “shall not

97 *Pimentel, Jr. v. Office of the Executive Secretary*, G.R. No. 158088, July 6, 2005.

98 *Akbayan Citizens Action Party v. Aquino*, G.R. No. 170516, July 16, 2008.

be allowed.” Additionally, in both instances, the concurrence of the Senate is indispensable to render the treaty or international agreement valid and effective.⁹⁹

The rule in international law is that a foreign armed forces allowed to enter one’s territory is immune from local jurisdiction, except to the extent agreed upon. The Status of Forces Agreements involving foreign military units around the world vary in terms and conditions, according to the situation of the parties involved, and reflect their bargaining power. But the principle remains, *i.e.*, the receiving State can exercise jurisdiction over the forces of the sending State only to the extent agreed upon by the parties. Nothing in the Constitution prohibits agreements recognizing immunity from jurisdiction or some aspects of jurisdiction (such as custody), in relation to long-recognized subjects of such immunity like Heads of State, diplomats and members of the armed forces contingents of a foreign State allowed to enter another State’s territory.¹⁰⁰

Deportation

The State has the inherent power to deport undesirable aliens. That power may be exercised by the Chief Executive “when he deems such action necessary for the peace and domestic tranquility of the nation.”¹⁰¹ It is a police measure against undesirable aliens whose presence in the country is found to be injurious to the public good and domestic tranquility of the people.¹⁰² The power of the President to order the arrest of aliens for deportation is exceptional. The power cannot justify the power to issue warrants of arrest and seizure, which is the sole domain of the courts.¹⁰³

Under the Administrative Code of 1987, the power to deport aliens is vested on the President of the Philippines, subject to the requirements of due process. The Immigration Commissioner is vested with authority to deport aliens under the Philippine Immigration Act of 1940, as amended. A party aggrieved by a Deportation Order issued by the Board of Commissioners

99 *Bayan v. Zamora*, G.R. No. 138570, October 10, 2000.

100 *Nicolas y Sombilon v. Romulo*, G.R. No. 175888, February 11, 2009.

101 *Go Tek v. Deportation Board*, G.R. No. L-23846, September 9, 1977.

102 *Lao Gi v. Court of Appeals*, G.R. No. 81798, December 29, 1989.

103 *Salazar v. Achacoso*, G.R. No. 81510, March 14, 1990.

(BOC) is barred from questioning the Order in the courts even via a petition for a writ of *habeas corpus*. Such party may file a motion for the reconsideration of the order before the BOC.¹⁰⁴ If the motion is denied by the BOC, the aggrieved party may appeal to the Secretary of Justice and, if the latter denies the appeal, to the Office of the President of the Philippines. The party may also choose to file a petition for *certiorari* with the Court of Appeals under Rule 65 of the Rules of Court, on the ground that the Secretary of Justice acted with grave abuse of discretion amounting to excess or lack of jurisdiction in dismissing the appeal, the remedy of appeal not being adequate and speedy remedy. In case the Secretary of Justice dismisses the appeal, the aggrieved party may resort to filing a petition for review under Rule 43 of the Rules of Court, as amended.¹⁰⁵

Extradition

Extradition is essentially an executive, not a judicial, responsibility arising out of the presidential power to conduct foreign relations and to implement treaties. The Executive Department has broad discretion in its duty and power of implementation. Courts merely perform oversight functions and exercise review authority to prevent or excise grave abuse and tyranny. They should not allow contortions, delays and “over-due process” every little step of the way, lest these *summary* extradition proceedings become not only inutile but also sources of international embarrassment due to our inability to comply in good faith with a treaty partner’s simple request to return a fugitive. Worse, our country should not be converted into a dubious haven where fugitives and escapees can unreasonably delay,

104 *Kiani v. Bureau of Immigration*, G.R. No. 160922, February 27, 2006.

105 *Kiani v. Bureau of Immigration*, G.R. No. 160922, February 27, 2006. In another case, the Court explained the options this way: If the Board of Commissioners denies a motion for reconsideration, the aggrieved party has three options:

1. he may file an appeal directly to the Court of Appeals provided that he shows that any of the exceptions to the exhaustion doctrine attend;
2. absent any of the exceptions, he may exhaust the available administrative remedies within the executive machinery, namely, an appeal to the Secretary of Justice and then to the Office of the President, and thereafter, appeal the decisions or
3. he may directly resort to *certiorari* before the CA strictly on jurisdictional grounds, provided that he explains why any of the aforementioned remedies cannot be taken as “adequate and speedy.”

SEE *Tze Sun Wong v. Wong*, G.R. No. 180364, December 3, 2014.

mummify, mock, frustrate, checkmate and defeat the quest for bilateral justice and international cooperation.¹⁰⁶

SECTION 22. The President shall submit to the Congress within thirty days from the opening of every regular session, as the basis of the general appropriations bill, a budget of expenditures and sources of financing, including receipts from existing and proposed revenue measures.

SECTION 23. The President shall address the Congress at the opening of its regular session. He may also appear before it at any other time.

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106 *Government of the United States of America v. Purganan*, G.R. No. 148571, September 24, 2002.

CHAPTER 7

THE JUDICIAL DEPARTMENT

The judiciary is tasked with administering justice, settling justiciable controversies or disputes involving enforceable and demandable rights, and affording redress of wrongs for the violation of said rights.¹ It must be allowed to decide cases independently, free of outside influence or pressure. An independent judiciary is essential to the maintenance of democracy, as well as of peace and order in society. Maintaining the dignity of courts and enforcing the duty of citizens to respect them are necessary adjuncts to the administration of justice.²

The Supreme Court represents one of the three divisions of power in our government. It is judicial power and judicial power alone which is exercised by the Supreme Court. Just as the Supreme Court, as the guardian of constitutional rights, should not sanction usurpations by any other department of the government, so should it as strictly confine its own sphere of influence to the powers expressly or by implication conferred on it by the Organic Act. The Supreme Court and its members should not and cannot be required to exercise any power or to perform any trust or to assume any duty not pertaining to or connected with the administering of judicial functions.³ The judiciary has no power to reverse the award of the board of judges of an oratorical contest, literary contests, beauty contests and similar competitions.⁴

SECTION 1. The judicial power shall be vested in one Supreme Court and in such lower courts as may be established by law.

Judicial power includes the duty of the courts of justice to settle actual controversies involving rights which are legally demandable and enforceable, and to determine whether or not there has been a grave abuse of discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the Government.

1 *Lopez v. Roxas*, G.R. No. L-25716, July 28, 1966.

2 In re: Published Alleged Threats against Members of the Court in the Plunder Law Case Hurlled by Atty. Leonard De Vera, A.M. No. 01-12-03-SC, July 29, 2002.

3 *Manila Electric Co. v. Pasay Trans. Co., Inc.*, G.R. No. 37878, November 25, 1932.

4 *Felipe, Sr. Leuterio*, G.R. No. L-4606, May 30, 1952.

Former Chief Justice Roberto Concepcion, a member of the Constitutional Commission that drafted the Constitution, explained that the change was a direct response to the judiciary's experience under the martial law. It is meant to prevent courts from invoking the political question doctrine in cases filed against the government. Concepcion explained that this practice encroached upon the rights of the people, and encouraged further violations during the martial law regime. Concepcion mentioned *Javellana*⁵ specifically during the Constitutional Commission debates. When suits were filed to nullify the presidential proclamation declaring that the 1973 Constitution was in force and effect, the main defense put up by the government was that the issue was a political question and that the court had no jurisdiction to entertain the case. After perusing the Records of the Constitutional Commission, the post- Marcos Supreme Court concluded that judicial power is not only a power but a duty "which cannot be abdicated by the mere specter of this creature called the political question doctrine." The 1987 Constitution now fortifies the authority of the courts to determine in an appropriate action the validity of the acts of the political departments.⁶

Judicial power is the power to hear and decide cases pending between parties who have the right to sue in courts of law and equity.⁷ It is an antidote to and a safety net against whimsical, despotic and oppressive exercise of governmental power.⁸

A petition for certiorari is a proper remedy to question the act of any branch or instrumentality of the government on the ground of grave abuse of discretion amounting to lack or excess of jurisdiction by any branch or instrumentality of the government, even if the latter does not exercise judicial, quasi-judicial or ministerial functions.⁹

Judicial Independence

The Constitution provides a number of safeguards to ensure that judicial independence is protected and maintained.

5 *Javellana vs. Executive Secretary*, G.R. No. L-36142, March 31, 1973

6 *Santiago v. Guingona, Jr.*, G.R. No. 134577, 298 S.C.R.A. 756 (1998).

7 *Domingo v. Carague*, G.R. No. 161065, April 15, 2005.

8 *Macabago v. COMELEC*, G.R. No. 152163, November 18, 2002.

9 *Jardeleza v. Sereno*, G.R. No. 213181, August 19, 2014.

The Constitution prohibits Congress from depriving the Supreme Court of its jurisdiction, as enumerated in Section 5, Article VII of the Constitution, or from passing a law that undermines the security of tenure of the members of the judiciary. The Constitution also mandates that the judiciary shall enjoy fiscal autonomy, and grants the Supreme Court administrative supervision over all courts and judicial personnel. Jurisprudence has characterized administrative supervision as exclusive, noting that only the Supreme Court can oversee the judges and court personnel's compliance with all laws, rules and regulations. No other branch of government may intrude into this power, without running afoul of the doctrine of separation of powers.

The Constitution protects as well the salaries of the Justices and judges by prohibiting any decrease in their salary during their continuance in office, and ensures their security of tenure by providing that "Members of the Supreme Court and judges of lower courts shall hold office during good behavior until they reach the age of seventy years or become incapacitated to discharge the duties of their office." With these guarantees, justices and judges can administer justice undeterred by any fear of reprisals brought on by their judicial action. They can act inspired solely by their knowledge of the law and by the dictates of their conscience, free from the corrupting influence of base or unworthy motives.

All of these constitutional provisions were put in place to strengthen judicial independence, not only by clearly stating the Court's powers, but also by providing express limits on the power of the two other branches of government to interfere with the Court's affairs.¹⁰

SECTION 2. The Congress shall have the power to define, prescribe, and apportion the jurisdiction of various courts but may not deprive the Supreme Court of its jurisdiction over cases enumerated in Section 5 hereof.

¹⁰ Re: COA Opinion on Computation of Appraised Value of Properties Purchased by SC Justices, A.M. No. 11-7-10-SC, July 31, 2012.

No law shall be passed reorganizing the Judiciary when it undermines the security of tenure of its Members.¹¹

SECTION 3. The Judiciary shall enjoy fiscal autonomy. Appropriations for the Judiciary may not be reduced by the legislature below the amount appropriated for the previous year and, after approval, shall be automatically and regularly released.

The Court discussed the scope and extent of its constitutionally granted fiscal autonomy as contemplating a guarantee of full flexibility to allocate and utilize their resources with the wisdom and dispatch that their needs require. It recognizes the power and authority to levy, assess and collect fees, fix rates of compensation not exceeding the highest rates authorized by law for compensation and pay plans of the government and allocate and disburse such sums as may be provided by law or prescribed by them in the course of the discharge of their functions.¹²

Fiscal autonomy means freedom from outside control. This is to ensure the institutional judicial independence rooted in the principle of separation of powers.¹³ The judiciary must have the independence and flexibility needed in the discharge of their constitutional duties. The imposition of restrictions and constraints on the manner the independent constitutional offices allocate and utilize the funds appropriated for their operations is anathema to fiscal autonomy and is in violation not only of the express mandate of the Constitution, but especially as regards the Supreme Court, of the independence and separation of powers upon which the entire fabric of our constitutional system is based. In the interest of comity and cooperation, the Supreme Court, Constitutional Commissions, and the Ombudsman have so far limited their objections to constant reminders. We now agree with the

11 Abolition of office means neither removal nor separation from office and is not covered by the protection of the security of tenure clause of the Constitution. This principle, however, requires that the abolition is done in good faith. SEE *Ginson v. Municipality of Murcia*, G.R. No. L-46585, February 8, 1988.

12 *Bengzon vs. Drilon*, G.R. No. 103524, April 15, 1992.

13 Re: COA Opinion on Computation of Appraised Value of Properties Purchased by SC Justices, A.M. No. 11-7-10-SC, July 31, 2012.

petitioners that this grant of autonomy should cease to be a meaningless provision.¹⁴

In an administrative matter asking the court what the proper formula is to compute the appraisal value that retired Justices of the Supreme Court must pay to acquire government properties they used during their tenure, the Court resolved the issue by declaring it an exercise of the judiciary's fiscal autonomy to make a determination of how to exercise and avail of retirement benefits its members are entitled to.

Thus, under the guarantees of the judiciary's fiscal autonomy and its independence, the Chief Justice and the Court *En Banc* determine and decide the *who, what, where, when* and *how* of the privileges and benefits they extend to justices, judges, court officials and court personnel within the parameters of the Court's granted power; they determine the terms, conditions and restrictions of the grant as grantor. Any kind of interference on how these retirement privileges and benefits are exercised and availed of, not only violates the fiscal autonomy and independence of the judiciary, but also encroaches upon the constitutional duty and privilege of the Chief Justice and the Supreme Court *En Banc* to manage the Judiciary's own affairs.¹⁵

When a cooperative sought exemption from payment of court and sheriffs fees pursuant to the Philippine Cooperative Act of 2008, the Court denied the petition for being an infringement of its fiscal autonomy.

Fiscal autonomy recognizes the power and authority of the Court to levy, assess, and collect fees, including legal fees. Legal fees do not only constitute a vital source of the Court's financial resources but also comprise an essential element of the Court's fiscal independence. Any exemption from the payment of legal fees granted by Congress to government-owned or controlled corporations and local government units will necessarily reduce the Judicial Development Fund and the Special Allowance for the Judiciary Fund. Such situation is constitutionally infirm

¹⁴ *Bengzon vs. Drilon*, G.R. No. 103524, April 15, 1992.

¹⁵ Re: COA Opinion on Computation of Appraised Value of Properties Purchased by SC Justices, A.M. No. 11-7-10-SC, July 31, 2012.

because it impairs the Court's guaranteed fiscal autonomy and erodes its independence.¹⁶

SECTION 4. (1) The Supreme Court shall be composed of a Chief Justice and fourteen Associate Justices. It may sit *en banc* or in its discretion, in divisions of three, five, or seven Members. Any vacancy shall be filled within ninety days from the occurrence thereof.

Although the Chief Justice is *primus inter pares*, she cannot decide a case on her own because of the Court's nature as a collegial body. The Chief Justice cannot overturn the decision of the Court, whether of a division or the *en banc*. There is only one Supreme Court from whose decisions all other courts are required to take their bearings. While most of the Court's work is performed by its three divisions, the Court remains one court — single, unitary, complete and supreme. Flowing from this is the fact that, while individual justices may dissent or only partially concur, when the Court states what the law is, it speaks with only one voice. Any doctrine or principle of law laid down by the Court may be modified or reversed only by the Court *en banc*.¹⁷

Not all decisions of the Supreme Court are necessarily decided by all fifteen members. The Court may sit in divisions of three, five, or seven members. Presently, the Court sits in three divisions that are made up of five Justices each. Only in certain cases does the Supreme Court sit *en banc*. The Internal Rules of the Supreme Court states that the Court *en banc* shall act on the following matters and cases:

1. cases in which the constitutionality or validity of any treaty, international or executive agreement, law, executive order, presidential decree, proclamation, order, instruction, ordinance, or regulation is in question;

16 Re: Perpetual Help Community Cooperative, A.M. No. 12-2-03-0, March 13, 2012. The judiciary, Civil Service Commission, Commission on Audit, Commission on Elections, and the Office of the Ombudsman are granted fiscal autonomy by the Constitution. The fiscal autonomy enjoyed by the Constitutional and Fiscal Autonomy Group is an aspect of the members' independence guaranteed by the Constitution. Their independence is a necessary component for their existence and survival in our form of government. SEE *Maritime Industry Authority v. COA*, G.R. No. 185812, January 13, 2015.

17 Complaint of Mr. Aurelio Indencia Arrienda, A.M. No. 03-11-30-SC, June 9, 2005.

2. criminal cases in which the appealed decision imposes the death penalty or *reclusion perpetua*;
3. cases raising novel questions of law;
4. cases affecting ambassadors, other public ministers, and consuls;
5. cases involving decisions, resolutions, and orders of the Civil Service Commission, the Commission on Elections, and the Commission on Audit;
6. cases where the penalty recommended or imposed is the dismissal of a judge, the disbarment of a lawyer, the suspension of any of them for a period of more than one year, or a fine exceeding forty thousand pesos;
7. cases covered by the preceding paragraph and involving the reinstatement in the judiciary of a dismissed judge, the reinstatement of a lawyer in the roll of attorneys, or the lifting of a judge's suspension or a lawyer's suspension from the practice of law;
8. cases involving the discipline of a Member of the Court, or a Presiding Justice, or any Associate Justice of the collegial appellate court;
9. cases where a doctrine or principle laid down by the Court *en banc* or by a division may be modified or reversed;
10. cases involving conflicting decisions of two or more divisions;
11. cases where three votes in a division cannot be obtained;
12. division cases where the subject matter has a huge financial impact on businesses or affects the welfare of a community;
13. subject to Section 11 (b) of Rule 2 of A.M. No. 10-4-20-SC,¹⁸ other division cases that, in the opinion of at least three Members of the Division who are voting and present, are appropriate for transfer to the Court *en banc*;

18 This Resolution embodies the Internal Rules of the Supreme Court, which were adopted in 2010. It governs the internal operations of the Court and guides the exercise of its judicial and administrative functions. It covers many topics such as the Court's operating structures, procedures for receiving pleadings and appeals, the manner of raffling cases to the Justices, rules for the Justices' inhibition, the Court's sessions, hearings, and agenda among others.

14. cases that the Court *en banc* deems of sufficient importance to merit its attention; and
15. all matters involving policy decisions in the administrative supervision of all courts and their personnel.¹⁹

The Constitution gives the Supreme Court the discretion to sit either *en banc* or in divisions of three, five, or seven Members. The divisions are not considered separate and distinct courts. The Constitution does not establish a hierarchy of courts within the Supreme Court. The Court remains a unit even when it works in divisions. The actions taken and the decisions rendered by any of the divisions are those of the Court itself, because the divisions are not distinct courts but divisions of one and the same Court.

The Supreme Court sitting *en banc* is not an appellate court for decisions of divisions, and it exercises no appellate jurisdiction over the latter. No division of the Court is inferior to the Court *en banc*, and sits veritably as the Court *en banc* itself. The only constraint is that any doctrine or principle of law laid down by the Court, either rendered *en banc* or in division, may be overturned or reversed only by the Court sitting *en banc*.²⁰

It is possible for the Court's divisions to render conflicting rulings and, in such cases, the Supreme Court *En Banc* breaks the impasse and resolves the issues.²¹

19 SEE *David Lu v. Paterno Lu Ym, Sr.*, G.R. No. 153690, February 15, 2011. The enumeration is a combination of Supreme Court Circular No. 2-89 (February 7, 1989), as amended by En Banc Resolution of November 18, 1993, and the amplifications introduced by Resolution of January 18, 2000 in A.M. No. 99-12-08-SC with respect to administrative cases and matters.

20 *Visayas Geothermal Power Company v. Commissioner of Internal Revenue*, G.R. No. 197525, June 4, 2014.

21 *Cabuay, Jr. v. Malvar*, G.R. No. 123780, September 24, 2002. The Internal Rules of the Supreme Court provide that the Court En Banc shall act on "cases involving conflicting decisions of two or more divisions." SEE *Keppel Cebu Shipyard, Inc. v. Pioneer Insurance and Surety Corp.*, G.R. Nos. 180880-81, 180896-97, September 18, 2012. Similar problems arise with decisions of the various Divisions of the Court of Appeals. The Supreme Court has admonished the Court of Appeals "to take the appropriate steps, including the adoption or amendment of the rules, to see to it that cases or petitions arising from the same questioned decision, order, or resolution are consolidated to steer clear of contrary or opposing decisions of the different CA Divisions and ensure that incidents of similar nature will not be replicated." SEE *Celestial Nickel Mining Exploration Corp. v. Macroasia Corp.*, G.R. No. 169080, 172936, 176226 & 176319, December 19, 2007. The Supreme Court reiterated the need for courts to be "constantly

Any vacancy in the Supreme Court is required by the Constitution to be filled within 90 days from the occurrence thereof. This 90-day period is mandatory and cannot be compromised only because the constitutionally named Chairman could not sit in the JBC. Although it would be preferable for the membership of the JBC to be complete, the JBC can still operate to perform its mandated task of submitting the list of nominees to the President even if the constitutionally named *ex-officio* Chairman does not sit in the JBC.²²

Section 4 (2) All cases involving the constitutionality of a treaty, international or executive agreement, or law, which shall be heard by the Supreme Court *en banc*, and all other cases which under the Rules of Court are required to be heard *en banc*, including those involving the constitutionality, application, or operation of presidential decrees, proclamations, orders, instructions, ordinances, and other regulations, shall be decided with the concurrence of a majority of the Members who actually took part in the deliberations on the issues in the case and voted thereon.

(3) Cases or matters heard by a division shall be decided or resolved with the concurrence of a majority of the Members who actually took part in the deliberations on the issues in the case and voted thereon, and in no case, without the concurrence of at least three of such Members. When the required number is not obtained, the case shall be decided *en banc*: *Provided*, that no doctrine or principle of law laid down by the court in a decision rendered *en banc* or in division may be modified or reversed except by the court sitting *en banc*.

The intention of the framers is to draw a distinction between cases, on the one hand, and matters, on the other hand, such that *cases* are “decided”

vigilant in extending their judicial gaze to cases related to the matters submitted for their resolution” as to “ensure against judicial confusion and [any] seeming conflict in the judiciary’s decisions.” (*Pryce Corp. v. China Banking Corp.*, G.R. No. 172302, February 18, 2014).

- 22 *Dulay v. Judicial and Bar Council, Extended Res.*, GR No. 202143, July 3, 2012. The failure by the President to fill a vacancy within 90 days will be a clear disobedience to the Constitution. This 90-day limitation fixed in Section 4(1), Article VIII, for the President to fill the vacancy, was undoubtedly a special provision to establish a definite mandate for the President as the appointing power, and cannot be defeated by the pendency of the cases referred to by petitioners. SEE *Adaza v. Aquino*, G.R. No. 202263, July 17, 2012.

while *matters*, which include motions, are “resolved”. Otherwise put, the word “decided” must refer to “cases”, while the word “resolved” must refer to “matters”, applying the rule of *reddendo singula singulis*. With the aforesaid rule of construction in mind, it is clear that only cases are referred to the Court *en banc* for decision whenever the required number of votes is not obtained. Conversely, the rule does not apply where, as in this case, the required three votes is not obtained in the resolution of a motion for reconsideration. Hence, the second sentence of the provision speaks only of “cases” and not “matters”. The reason is simple. The above-quoted Article VIII, Section 4(3) pertains to the disposition of cases by a division. If there is a tie in the voting, there is no decision. The only way to dispose of the case then is to refer it to the Court *en banc*. On the other hand, if a case has already been decided by the division and the losing party files a motion for reconsideration, the failure of the division to resolve the motion because of a tie in the voting does not leave the case undecided. There is still the decision which must stand in view of the failure of the members of the division to muster the necessary vote for its reconsideration. Quite plainly, if the voting results in a tie, the motion for reconsideration is lost. The assailed decision is not reconsidered and must therefore be deemed affirmed. Such was the ruling of this Court in the Resolution of November 17, 1998.²³

Only the Supreme Court sitting *en banc* may modify or reverse a doctrine or principle of law laid down by the Court in a decision rendered *en banc* or in division. Any court that renders a decision in violation of this constitutional precept exceeds its jurisdiction.²⁴

The deliberations of the Court are privileged information. Members of the Court and Court officials and employees may not be compelled to testify on matters that are part of the *internal deliberations and actions* of the Court in the exercise of their adjudicatory functions and duties, while testimony on matters *external* to their adjudicatory functions and duties may be compelled by compulsory processes. The following are privileged documents or communications, and are not subject to disclosure:

23 *Fortich v. Corona*, G.R. No. 131457 (Resolution), August 19, 1999.

24 *Republic v. Garcia*, G.R. No. 167741, July 12, 2007.

1. Court actions such as the result of the raffle of cases and the actions taken by the Court on each case included in the agenda of the Court's session on acts done material to pending cases, except where a party litigant requests information on the result of the raffle of the case, pursuant to Rule 7, Section 3 of the Internal Rules of the Supreme Court;
2. Court deliberations or the deliberations of the Members in court sessions on cases and matters pending before the Court;
3. Court records which are "predecisional" and "deliberative" in nature, in particular, documents and other communications which are part of or related to the deliberative process, i.e., notes, drafts, research papers, internal discussions, internal memoranda, records of internal deliberations, and similar papers.²⁵
4. Confidential Information secured by justices, judges, court officials and employees in the course of their official functions, mentioned in (2) and (3) above, are privileged even after their term of office.
5. Records of cases that are still pending for decision are privileged materials that cannot be disclosed, except only for pleadings, orders and resolutions that have been made available by the court to the general public.
6. The principle of comity or inter-departmental courtesy demands that the highest officials of each department be exempt from the compulsory processes of the other departments.

25 A document is "predecisional" under the deliberative process privilege if it precedes, in temporal sequence, the decision to which it relates. In other words, communications are considered predecisional if they were made in the attempt to reach a final conclusion. A material is "deliberative," on the other hand, if it reflects the give-and take of the consultative process. The key question in determining whether the material is deliberative in nature is whether disclosure of the information would discourage candid discussion within the agency. If the disclosure of the information would expose the government's decision-making process in a way that discourages candid discussion among the decision-makers (thereby undermining the courts' ability to perform their functions), the information is deemed privileged. In re Production of Court Records and Documents and the Attendance of Court Officials & Employees, NOTICE, February 14, 2012.

7. These privileges belong to the Supreme Court as an institution, not to any justice or judge in his or her individual capacity. Since the Court is higher than the individual justices or judges, no sitting or retired justice or judge, not even the Chief Justice, may claim exception without the consent of the Court.²⁶

SECTION 5. The Supreme Court shall have the following powers:

(1) Exercise original jurisdiction over cases affecting ambassadors, other public ministers and consuls, and over petitions for *certiorari*, prohibition, *mandamus*, *quo warranto*, and *habeas corpus*.

(2) Review, revise, reverse, modify, or affirm on appeal or *certiorari*, as the law or the Rules of Court may provide, final judgments and orders of lower courts in:²⁷

(a) All cases in which the constitutionality or validity of any treaty, international or executive agreement, law, presidential decree, proclamation, order, instruction, ordinance, or regulation is in question.

(b) All cases involving the legality of any tax, impost, assessment, or toll, or any penalty imposed in relation thereto.

(c) All cases in which the jurisdiction of any lower court is in issue.

²⁶ In re Production of Court Records and Documents and the Attendance of Court Officials & Employees, NOTICE, February 14, 2012.

²⁷ *Planters Products, Inc. v. Fertiphil Corp.*, G.R. No. 166006, March 14, 2008. There is no denying that regular Courts have jurisdiction over cases involving the validity or constitutionality of a rule or regulation issued by administrative agencies. Such jurisdiction, however, is not limited to the Court of Appeals or to this Court alone for even the regional trial courts can take cognizance of actions assailing a specific rule or set of rules promulgated by administrative bodies. Indeed, the Constitution vests the power of judicial review or the power to declare a law, treaty, international or executive agreement, presidential decree, order, instruction, ordinance, or regulation in the courts, including the regional trial courts. Judicial review of official acts on the ground of unconstitutionality may be sought or availed of through any of the actions cognizable by courts of justice, not necessarily in a suit for declaratory relief. SEE *Equi-Asia Placement, Inc. v. Department of Foreign Affairs*, G.R. 152214, September 19, 2006.

(d) All criminal cases in which the penalty imposed is *reclusion perpetua* or higher.

(e) All cases in which only an error or question of law is involved.

(3) Assign temporarily judges of lower courts to other stations as public interest may require. Such temporary assignment shall not exceed six months without the consent of the judge concerned.

(4) Order a change of venue or place of trial to avoid a miscarriage of justice.²⁸

(5) Promulgate rules concerning the protection and enforcement of constitutional rights, pleading, practice, and procedure in all courts, the admission to the practice of law, the Integrated Bar, and legal assistance to the underprivileged. Such rules shall provide a simplified and inexpensive procedure for the speedy disposition of cases, shall be uniform for all courts of the same grade, and shall not diminish, increase, or modify substantive rights. Rules of procedure of special courts and quasi-judicial bodies shall remain effective unless disapproved by the Supreme Court.

The Decisions of the Supreme Court are Law

Judicial decisions applying or interpreting the laws or the Constitution form part of our legal system.²⁹ This does not mean, however, that courts can create law. The courts exist for interpreting the law, not for enacting it. To allow otherwise would be violative of the principle of separation of powers, inasmuch as the sole function of our courts is to apply or interpret the laws,

28 The Supreme Court possesses inherent power to decree that the trial and disposition of a case be transferred to another trial court within the same district “whenever the interest of justice and truth so demand, and there are serious and weighty reasons to believe that a trial by the court that originally had jurisdiction over the case would not result in a fair and impartial trial and lead to a miscarriage of justice.” SEE *Mondiguing v. Abad*, G.R. No. L-41313 (Resolution), November 6, 1975.

29 *National Amnesty Commission v. Commission on Audit*, G.R. No. 156982, September 8, 2004.

particularly where gaps exist or where ambiguities becloud issues, but it will not arrogate unto itself the task of legislating.³⁰

Judicial decisions assume the same authority as a statute itself and, until authoritatively abandoned, necessarily become, to the extent that they are applicable, the criteria which must control the acts of the parties and of those duty-bound to enforce obedience to the decision.³¹ The application or interpretation placed by the Court upon a law is part of the law “as of the date of the enactment of the said law since the Court’s application or interpretation merely establishes the contemporaneous legislative intent that the construed law purports to carry into effect.”³²

These decisions are “laws” by their own right because they interpret what the laws say or mean. Unlike rulings of the lower courts decisions of the Supreme Court are “universal in their scope and application, and equally mandatory in character.”³³ They are binding judicial precedent based on the doctrine of *stare decisis*.³⁴ All lower courts are bound by Supreme Court decisions. The judiciary has to speak with one voice to assure stability in legal relations and to avoid confusion. It speaks with finality, logically and rightly, through the highest judicial organ, which is the Supreme Court. Supreme Court rulings “should be definitive and authoritative, binding on those occupying the lower ranks in the judicial hierarchy.”³⁵ The Supreme Court has the last word on what the law is. All other courts should then be guided by the decisions of the Supreme Court.³⁶ There is only one Supreme Court from whose decisions all other courts should take their bearings.³⁷

Under the doctrine of *stare decisis*, when a court has laid down a principle of law as applicable to a certain state of facts, it will adhere to that principle and apply it to all future cases in which the facts are substantially the same, even though the parties may be different. Where the facts are essentially

30 *Pagpalain Haulers, Inc. v. Trajano*, G.R. No. 133215, July 15, 1999.

31 *Caltex v. Palomar*, G.R. No. L-19650, September 29, 1966.

32 *People v. Licera*, G.R. No. L-39990, July 22, 1975.

33 *Philippine Veterans Affairs Office v. Segundo*, G.R. No. 51570, August 15, 1988.

34 *Valenzuela Hardwood and Industrial Supply, Inc. v. Court of Appeals*, G.R. No. 102316, June 30, 1997.

35 *Barrera v. Barrera*, G.R. No. L-31589, July 31, 1970.

36 *Conducto v. Monzon*, A.M. No. MTJ-98-1147, July 2, 1998.

37 *Tugade v. Court of Appeals*, G.R. No. L-47772, August 31, 1978.

different, however, *stare decisis* does not apply, for a perfectly sound principle as applied to one set of facts might be entirely inappropriate when a factual variant is introduced.³⁸

The doctrine, however, is not cast in stone. A Supreme Court doctrine can be abandoned if it is shown that there is a compelling reason to do so, for example, if the prior decision was clearly an erroneous application of the law.³⁹ The Court has time and again stated that the rule on *stare decisis* promotes stability in the law and should, therefore, be accorded respect. However, blind adherence to precedents, simply as precedent, no longer rules. More important than anything else is that the court is right, thus its duty to abandon any doctrine found to be in violation of the law in force.⁴⁰

In the United States, the Supreme Court explained that an argument that a Court's decision is wrong cannot by itself justify scrapping settled precedent and that to reverse course, there has to be a "special justification"—over and above the belief "that the precedent was wrongly decided."⁴¹ When the Court reverses statutory interpretations, it most often points to subsequent legal developments—"either the growth of judicial doctrine or further action taken by Congress"—that have removed the basis for a decision (this is cited as "the primary reason" for overruling statutory precedent).⁴² Another traditional justification for overruling precedent is when the decision has proved unworkable.⁴³

A judicial interpretation becomes a part of the law as of the date that the law was originally passed. However, when a doctrine of the Court is overruled and the Court adopts a different view, or when there is a reversal of the doctrine, the new doctrine applies prospectively and should not apply to parties who relied on the old doctrine and acted in good faith.⁴⁴

38 *Cabaobas v. Pepsi-Cola Products Philippines, Inc.*, G.R. No. 176908, March 25, 2015.

39 *Philippine Guardians Brotherhood, Inc. v. COMELEC*, G.R. No. 190529, April 29, 2010.

40 *Commissioner of Internal Revenue v. PLDT Co.*, G.R. No. 140230, December 15, 2005.

41 *Kinble v. Marvel Entertainment, LLC*, 576 U. S. (2015), (slip op. at. 8) (June 22, 2015).

42 *Kinble v. Marvel Entertainment, LLC*, 576 U. S. (2015), (slip op. at. 10) (June 22, 2015).

43 *Kinble v. Marvel Entertainment, LLC*, 576 U. S. (2015), (slip op. at. 12) (June 22, 2015).

44 *De Jesus v. Aquino*, G.R. No. 164662, February 18, 2013. Supreme Court decisions are also subject to Article 4 of the Civil Code which provides that "laws shall have no retroactive effect unless the contrary is provided." When a doctrine of the Court is overruled and a

The Rule Making Power of the Supreme Court

The rule making power of the Court was expanded. For the first time it was given the power to promulgate rules concerning the protection and enforcement of constitutional rights. The Court was also granted for the first time the power to disapprove rules of procedure of special courts and quasi-judicial bodies. But most importantly, the 1987 Constitution took away the power of Congress to repeal, alter, or supplement rules concerning pleading, practice and procedure. In fine, the power to promulgate rules of pleading, practice and procedure is no longer shared by this Court with Congress, more so with the Executive.

Both the 1935 and the 1973 Constitutions vested on the Supreme Court the “power to promulgate rules concerning pleading, practice, and procedure in all courts, and the admission to the practice of law.” However, these constitutions also granted to the legislature the concurrent power to “repeal, alter or supplement” such rules. The 1987 Constitution altered the power-sharing scheme under the previous charters by deleting Congress’ subsidiary and corrective power. This glaring and fundamental omission led the Court to observe that this Court’s power to promulgate judicial rules “is no longer shared by this Court with Congress.”⁴⁵

The separation of powers among the three co-equal branches of our government has erected an impregnable wall that keeps the power to promulgate rules of pleading, practice and procedure within the sole province of this Court. The other branches trespass upon this prerogative if they enact laws or issue orders that effectively repeal, alter, or modify any of the procedural rules promulgated by this Court.⁴⁶

different view is adopted, the new doctrine should be applied prospectively and should not apply to parties who had relied on the old doctrine and acted on the faith thereof. SEE *Spouses Gauvain v. Court of Appeals*, G.R. No. 97973, January 27, 1992.

45 *Baguio Market Vendors Multi-Purpose Cooperative v. Cabato-Cortes*, G.R. No. 165922, February 26, 2010.

46 *In re: Exemption of the National Power Corporation from Payment of Filing/Docket Fees*, A.M. No. 05-10-20-SC, March 10, 2010.

The Writs Of *Amparo* And *Habeas Data*

The writs of *amparo* and *habeas data* were promulgated to ensure the protection of the people's rights to life, liberty, and security. The rules on these writs were issued in light of the alarming prevalence of extrajudicial killings and enforced disappearances. The Rule on the Writ of *Amparo* took effect on 24 October 2007, and the Rule on the Writ of *Habeas Data* on 2 February 2008.⁴⁷

The writ of *amparo* is a protective remedy aimed at providing judicial relief consisting of the appropriate remedial measures and directives that may be crafted by the court, in order to address specific violations or threats of violation of the constitutional rights to life, liberty, or security. While the principal objective of its proceedings is the initial determination of whether an enforced disappearance, extralegal killing or threats thereof had transpired — the writ does not, by so doing, fix liability for such disappearance, killing or threats, whether that may be criminal, civil or administrative under the applicable substantive law. The rationale

47 *Rodriguez v. Macapagal-Arroyo*, G.R. No. 191805, November 15, 2011. The writ of *amparo* is an extraordinary and independent remedy that provides rapid judicial relief, as it partakes of a summary proceeding that requires only substantial evidence to make the appropriate interim and permanent reliefs available to the petitioner. It is not an action to determine criminal guilt requiring proof beyond reasonable doubt, or liability for damages requiring preponderance of evidence, or administrative responsibility requiring substantial evidence that will require full and exhaustive proceedings. Rather, it serves both preventive and curative roles in addressing the problem of extrajudicial killings and enforced disappearances. It is preventive in that it breaks the expectation of impunity in the commission of these offenses, and it is curative in that it facilitates the subsequent punishment of perpetrators by inevitably leading to subsequent investigation and action. The writ of *habeas data* provides a judicial remedy to protect a person's right to control information regarding oneself, particularly in instances where such information is being collected through unlawful means in order to achieve unlawful ends. As an independent and summary remedy to protect the right to privacy — especially the right to informational privacy — the proceedings for the issuance of the writ of *habeas data* does not entail any finding of criminal, civil or administrative culpability. If the allegations in the petition are proven through substantial evidence, then the Court may: (a) grant access to the database or information; (b) enjoin the act complained of; or (c) in case the database or information contains erroneous data or information, order its deletion, destruction or rectification.

underpinning this peculiar nature of an *amparo* writ has been, in turn, clearly set forth in the landmark case of *The Secretary of National Defense v. Manalo*:

...The remedy provides rapid judicial relief as it partakes of a summary proceeding that requires only substantial evidence to make the appropriate reliefs available to the petitioner; it is not an action to determine criminal guilt requiring proof beyond reasonable doubt, or liability for damages requiring preponderance of evidence, or administrative responsibility requiring substantial evidence that will require full and exhaustive proceedings.⁴⁸

The privilege of the writ of *amparo* is a remedy available to victims of extra-judicial killings and enforced disappearances or threats of a similar nature, regardless of whether the perpetrator of the unlawful act or omission is a public official or employee or a private individual. It is designed to protect and guarantee the right to life, liberty, and security of persons, free from fears and threats that vitiate the quality of life. It is not available if the issue involves child custody and the exercise of parental rights over a child.⁴⁹

The Writ of *Kalikasan*

The Rules on the Writ of *Kalikasan*, which is Part III of the Rules of Procedure for Environmental Cases, were issued by the Court pursuant to its power to promulgate rules for the protection and enforcement of constitutional rights, in particular, the individual's right to a balanced and healthful ecology. The writ is categorized as a special civil action and was conceptualized as an extraordinary remedy, which aims to provide judicial relief from threatened or actual violation/s of the constitutional right to a balanced and healthful ecology of a magnitude or degree of damage that transcends political and territorial boundaries. It is intended "to provide a stronger defense for environmental rights through judicial efforts where institutional arrangements of enforcement, implementation and legislation have fallen short" and seeks "to address the potentially exponential nature of large-scale ecological threats."

48 *Roxas v. Macapagal Arroyo*, G.R. No. 189155, September 7, 2010.

49 *Caram v. Segui*, G.R. No. 193652, August 5, 2014.

Under Section 1 of Rule 7, the following requisites must be present to avail of this extraordinary remedy:

1. there is an actual or threatened violation of the constitutional right to a balanced and healthful ecology;
2. the actual or threatened violation arises from an unlawful act or omission of a public official or employee, or private individual or entity; and
3. the actual or threatened violation involves or will lead to an environmental damage of such magnitude as to prejudice the life, health or property of inhabitants in two or more cities or provinces.

The Rules do not define the exact nature or degree of environmental damage but only that it must be sufficiently grave, in terms of the territorial scope of such damage, so as to call for the grant of this extraordinary remedy. The gravity of environmental damage sufficient to grant the writ is, thus, to be decided on a case-to-case basis. If the petitioner successfully proves the foregoing requisites, the court shall render judgment granting the privilege of the Writ of *Kalikasan*. Otherwise, the petition shall be denied.⁵⁰

50 *Paje v. Casiño*, G.R. No. 207257, February 3, 2015. If the petition is granted, the court may grant the reliefs provided for under Section 15 of Rule 7, to wit:

Section 15. Judgment. — Within sixty (60) days from the time the petition is submitted for decision, the court shall render judgment granting or denying the privilege of the writ of *kalikasan*.

The reliefs that may be granted under the writ are the following:

- (a) Directing respondent to permanently cease and desist from committing acts or neglecting the performance of a duty in violation of environmental laws resulting in environmental destruction or damage;
- (b) Directing the respondent public official, government agency, private person or entity to protect, preserve, rehabilitate or restore the environment;
- (c) Directing the respondent public official, government agency, private person or entity to monitor strict compliance with the decision and orders of the court;
- (d) Directing the respondent public official, government agency, or private person or entity to make periodic reports on the execution of the final judgment; and

The Writ of *Kalikasan* is available when the environmental damage is of such magnitude that it prejudices the life, health, or property of inhabitants in two or more cities or provinces. The writ is issued by either the Supreme Court or the Court of Appeals within three days after the filing of the application. Hearing of the matter is set within sixty days. No docket or filing fee is required upon the filing of the complaint or petition. The proceedings terminate within sixty days from submission of the original application.⁵¹ The emphasis is on the enforcement of the right to life. The legal remedy is available where the damage is of such magnitude as to threaten the life and health of inhabitants in two or more cities or provinces. In said cases, the petitioner can immediately take recourse to the higher courts the Court of Appeals and the Supreme Court and seek relief in summary proceedings.⁵²

Exploring avenues for settlement of environmental cases is not proscribed by the Rules. Mediation and settlement are available for the consideration of the parties, and which are encouraged by the court.⁵³

The Writ of *Kalikasan* may be “mostly symbolic” since it does not impose substantial costs on defendants. Still, the symbolism is important, and the writ can allow for quick relief while actions with more significant consequences are pending.⁵⁴

Admission To The Practice Of Law

The Supreme Court has the authority to discipline officers of the court and members of the Bar. In resolving a motion to cite in contempt a special prosecutor making certain public statements, the Court said:

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- (e) Such other reliefs which relate to the right of the people to a balanced and healthful ecology or to the protection, preservation, rehabilitation or restoration of the environment, except the award of damages to individual petitioners.

These reliefs are non-exhaustive. The reliefs that may be granted under the writ are broad, comprehensive and non-exclusive.

51 Hilario G. Davide, Jr., “The Environment as Life Sources and the Writ of *Kalikasan*”, 29 PACE ENVTL. L. REV. 592, 597 (2012).

52 Id.

53 *Arigo v. Swift*, G.R. No. 206510, September 16, 2014.

54 Elizabeth Barrett Ristorph, “The Role of Philippine Courts in Establishing the Environmental Rule of Law”, 42 ENVTL. L. REP. NEWS & ANALYSIS 10866, 10881(2012).

The Supreme Court, as regulator and guardian of the legal profession, has plenary disciplinary authority over attorneys. The authority to discipline lawyers stems from the Court's constitutional mandate to regulate admission to the practice of law, which includes as well authority to regulate the practice itself of law. Quite apart from this constitutional mandate, the disciplinary authority of the Supreme Court over members of the Bar is an inherent power incidental to the proper administration of justice and essential to an orderly discharge of judicial functions. Moreover, the Supreme Court has inherent power to punish for contempt, to control in the furtherance of justice the conduct of ministerial officers of the Court, including lawyers, and all other persons connected in any manner with a case before the Court. The power to punish for contempt is "necessary for its own protection against an improper interference with the due administration of justice," "(it) is not dependent upon the complaint of any of the parties litigant."

There are, in other words, two (2) related powers which come into play in cases like that before us here; the Court's inherent power to discipline attorneys and the contempt power. The disciplinary authority of the Court over members of the Bar is broader than the power to punish for contempt. Contempt of court may be committed both by lawyers and non-lawyers, both in and out of court. Frequently, where the contemnor is a lawyer, the contumacious conduct also constitutes professional misconduct which calls into play the disciplinary authority of the Supreme Court. Where the respondent is a lawyer, however, the Supreme Court's disciplinary authority over lawyers may come into play whether or not the misconduct with which the respondent is charged also constitutes contempt of court. The power to punish for contempt of court does not exhaust the scope of disciplinary authority of the Court over lawyers. The disciplinary authority of the Court over members of the Bar is but corollary to the Court's exclusive power of admission to the Bar. A lawyer is not merely a professional but also an officer of the court and as such, he is called upon to share in the task and responsibility of dispensing justice and resolving disputes in society. Any act on his part which visibly tends to obstruct, pervert, or impede and degrade the administration of justice constitutes both professional misconduct calling

for the exercise of disciplinary action against him and contumacious conduct warranting application of the contempt power.⁵⁵

Practice of law means any activity, in or out of court, which requires the application of law, legal procedure, knowledge, training and experience. "To engage in the practice of law is to perform those acts which are characteristics of the profession. Generally, to practice law is to give notice or render any kind of service, which device or service requires the use in any degree of legal knowledge or skill."⁵⁶ The right to practice law is not a natural or constitutional right but a privilege. It is limited to persons of good moral character with special qualifications duly ascertained and certified. The exercise of this privilege presupposes possession of integrity, legal knowledge, educational attainment, and even public trust since a lawyer is an officer of the court. A bar candidate does not acquire the right to practice law simply by passing the bar examinations. The practice of law is a privilege that can be withheld even from one who has passed the bar examinations, if the person seeking admission had practiced law without a license.⁵⁷

Generally speaking, a lawyer holding a government office may not be disciplined as a member of the Bar for misconduct committed while in the discharge of official duties, unless said misconduct also constitutes a violation of his/her oath as a lawyer. Lawyers may be disciplined even for any conduct committed in their private capacity, as long as their misconduct reflects their want of probity or good demeanor, a good character being an essential qualification for the admission to the practice of law and for continuance of such privilege. When the Code of Professional Responsibility or the Rules of Court speaks of "conduct" or "misconduct", the reference is not confined to one's behavior exhibited in connection with the performance of lawyers' professional duties, but also covers any misconduct, which — albeit unrelated to the actual practice of their profession — would show them to be unfit for the office and unworthy of the privileges which their license and the law invest in them.⁵⁸

55 *Zaldivar v. Sandiganbayan*, G.R. Nos. 79690-707, 80578 (Resolution), October 7, 1988.

56 *Cayetano v. Monsod*, G.R. No. 100113, September 3, 1991.

57 *Aguirre v. Rana*, B.M. No. 1036, June 10, 2003.

58 *Pobre v. Defensor-Santiago*, A.C. No. 7399, August 25, 2009.

Integration Of The Bar

Bar integration does not compel the lawyer to associate with anyone. He is free to attend or not attend the meetings of his Integrated Bar Chapter or vote or refuse to vote in its elections as he chooses. The only compulsion to which he is subjected is the payment of annual dues. The Supreme Court, in order to further the State's legitimate interest in elevating the quality of professional legal services, may require that the cost of improving the profession in this fashion be shared by the subjects and beneficiaries of the regulatory program — the lawyers. Assuming that the questioned provision does in a sense compel a lawyer to be a member of the Integrated Bar, such compulsion is justified as an exercise of the police power of the state.⁵⁹

(6) Appoint all officials and employees of the Judiciary in accordance with the Civil Service Law.

SECTION 6. The Supreme Court shall have administrative supervision over all courts and the personnel thereof.

Article VIII, Section 6 of the 1987 Constitution exclusively vests in the Supreme Court administrative supervision over all courts and court personnel, from the Presiding Justice of the Court of Appeals down to the lowest municipal trial court clerk. By virtue of this power, it is only the Supreme Court that can oversee the judges' and court personnel's compliance with all laws, and take the proper administrative action against them if they commit any violation thereof. No other branch of government may intrude into this power, without running afoul of the doctrine of separation of powers.⁶⁰

SECTION 7. (1) No person shall be appointed Member of the Supreme Court or any lower collegiate court unless he is a natural-born citizen of the Philippines. A Member of the Supreme Court must be at least forty years of age, and must have been for fifteen years or more a judge of a lower court or engaged in the practice of law in the Philippines.

⁵⁹ *In re: Edillon*, A.C. No. 1928 (Resolution), August 3, 1978.

⁶⁰ *Maceda v. Vasquez*, G.R. No. 102781, April 22, 1993; *Villarosa v. Torre-Yadao*, A.M. OCA IPI No. 12-3848-RTJ, March 13, 2013.

(2) The Congress shall prescribe the qualifications of judges of lower courts, but no person may be appointed judge thereof unless he is a citizen of the Philippines and a member of the Philippine Bar.⁶¹

(3) A Member of the Judiciary must be a person of proven competence, integrity, probity, and independence.

SECTION 8. (1) A Judicial and Bar Council is hereby created under the supervision of the Supreme Court composed of the Chief Justice as *ex officio* Chairman, the Secretary of Justice, and a representative of the Congress as *ex officio* Members, a representative of the Integrated Bar, a professor of law, a retired Member of the Supreme Court, and a representative of the private sector.

The first paragraph calls for the creation of a JBC and places the same under the supervision of the Court. Then it goes to its composition where the *regular* members are enumerated: a representative of the Integrated Bar, a professor of law, a retired member of the Court and a representative from the private sector. The second part enumerates the *ex officio* or special members of the JBC composed of the Chief Justice, who shall be its Chairman, the Secretary of Justice and “a representative of Congress.”

The use of the singular letter “a” preceding “*representative of Congress*” is unequivocal and leaves no room for any other construction. It is indicative of what the members of the Constitutional Commission had in mind, that is, Congress may designate only one representative to the JBC. Had it been the intention that more than one representative from the legislature would sit in the JBC, the Framers could have, in no uncertain terms, so provided.⁶²

(2) The regular Members of the Council shall be appointed by the President for a term of four years with the consent of the Commission on

⁶¹ In one case, the Supreme Court enjoined Gregory S. Ong, from accepting an appointment to the position of Associate Justice of the Supreme Court or assuming the position and discharging the functions of that office, “until he shall have successfully completed all necessary steps, through the appropriate adversarial proceedings in court, to show that he is a natural-born Filipino citizen and correct the records of his birth and citizenship.” SEE *Kilosbayan Foundation v. Ermita*, G.R. No. 177721, July 3, 2007.

⁶² *Chavez v. Judicial and Bar Council*, G.R. No. 202242, July 17, 2012.

Appointments. Of the Members first appointed, the representative of the Integrated Bar shall serve for four years, the professor of law for three years, the retired Justice for two years, and the representative of the private sector for one year.

(3) The Clerk of the Supreme Court shall be the Secretary *ex officio* of the Council and shall keep a record of its proceedings.

(4) The regular Members of the Council shall receive such emoluments as may be determined by the Supreme Court. The Supreme Court shall provide in its annual budget the appropriations for the Council.

(5) The Council shall have the principal function of recommending appointees to the Judiciary. It may exercise such other functions and duties as the Supreme Court may assign to it.

The JBC was created to depoliticize appointments to the Judiciary. It recommends appointees to the Judiciary and may exercise other functions assigned by the Supreme Court. The JBC is composed of the Chief Justice as *ex officio* Chairman, the Secretary of Justice, and a representative of the Congress as *ex officio* Members. The regular members of the JBC are a representative of the Integrated Bar of the Philippines, a professor of law, a retired Member of the Supreme Court, and a representative of the private sector.⁶³

The Constitution did not lay down in precise terms the process that the JBC shall follow in determining applicants' qualifications. The JBC has the authority to set the standards/criteria in choosing its nominees for every vacancy in the judiciary, subject only to the minimum qualifications required by the Constitution and law for every position. The search for these long held qualities necessarily requires a degree of flexibility in order to determine who is most fit among the applicants. JBC's ultimate goal is to recommend nominees and not simply to fill up judicial vacancies in order to promote an effective and efficient administration of justice. Given this pragmatic situation, the JBC had to establish a set of uniform criteria in order to

63 Dante B. Gatmaytan & Cielo D. Magno, "Averting Diversity: A Review of Nominations and Appointments in the Philippine Supreme Court (1988-2008)", 6 ASIAN J. COMP. L. 1-18 (2011).

ascertain whether an applicant meets the minimum constitutional qualifications and possesses the qualities expected of him and his office. Limiting qualified applicants to those judges with five years of experience was an exercise of discretion by the JBC. The potential applicants, however, should have been informed of the requirements to the judicial positions, so that they could properly prepare for and comply with them. Unless there are good and compelling reasons to do so, the Court will refrain from interfering with the exercise of JBC's powers, and will respect the initiative and independence inherent in the latter.⁶⁴

In cases where there are objections to an applicant's qualifications, the observance of due process neither negates nor renders illusory the fulfillment of the duty of JBC to recommend. This holding is not an encroachment on its discretion in the nomination process. Actually, its adherence to the precepts of due process supports and enriches the exercise of its discretion. When an applicant, who vehemently denies the truth of the objections, is afforded the chance to protest, the JBC is presented with a clearer understanding of the situation it faces, thereby guarding the body from making an unsound and capricious assessment of information brought before it. The JBC is not expected to strictly apply the rules of evidence in its assessment of an objection against an applicant. Just the same, to hear the side of the person challenged complies with the dictates of fairness for the only test that an exercise of discretion must surmount is that of soundness.⁶⁵

SECTION 9. The Members of the Supreme Court and judges of lower courts shall be appointed by the President from a list of at least three nominees prepared by the Judicial and Bar Council for every vacancy. Such appointments need no confirmation.

For the lower courts, the President shall issue the appointments within ninety days from the submission of the list.

In one case, it was argued that the President could not appoint the Chief Justice of the Supreme Court because the Constitution only empowers him to appoint members or Justices but not the Chief Justice. The Chief Justice, the

⁶⁴ *Villanueva v. Judicial and Bar Council*, G.R. No. 211833, April 7, 2015.

⁶⁵ *Jardeleza v. Sereno*, G.R. No. 213181, August 19, 2014.

petitioner contended, should be replaced and designated exclusively from among their peers. The Supreme Court disagreed. The phrase “Members of the Supreme Court” and the words “Members” and “Member” are repeatedly used to refer to the Justices of the Supreme Court without distinction whether he be the Chief Justice or any of the Associate Justices or all fifteen Justices. Section 4 (1), Article VIII thereof defines the composition of the Supreme Court, namely, “a Chief Justice and fourteen Associate Justices” who may sit *en banc* or, in its discretion, in divisions of three, five, or seven *Members*; Section 4 (2) and (3) describe the manner of conducting business in the Court whether it be *En Banc* or in division; Section 7 (1) enumerates the qualifications of the Members of the Court and the other members of the Judiciary; Section 11 provides for the security of tenure in the Judiciary; Section 12 states the prohibition on non-judicial assignments of the Members of the Supreme Court and of other courts; and Section 13 lays down the process of decision-making. In all of these provisions, the phrase “Members of the Supreme Court” was repeatedly used to refer not only to the Associate Justices of the Supreme Court but includes the Chief Justice. Thus, in Section 9 of the same Article VIII on the appointment of Justices and Judges, the phrase “Members of the Supreme Court” clearly refers to the fifteen Justices of the Court — one Chief Justice and fourteen (14) Associate Justices who are within the appointing power of the President.⁶⁶

SECTION 10. . The salary of the Chief Justice and of the Associate Justices of the Supreme Court, and of judges of lower courts shall be fixed by law. During their continuance in office, their salary shall not be decreased.

The Constitution authorizes Congress to pass a law fixing another rate of compensation of Justices and Judges, but such rate must be higher than that which they are receiving at the time of enactment, or if lower, it would be applicable only to those appointed after its approval. It would be a strained construction to read into the provision an exemption from taxation in the light of the discussion in the Constitutional Commission.⁶⁷

SECTION 11. The Members of the Supreme Court and judges of lower courts shall hold office during good behavior until they reached the age of

⁶⁶ *Dulay v. Judicial and Bar Council, Extended Res.*, GR No. 202143, July 3, 2012.

⁶⁷ *Nitafan, et al. v. Commissioner of Internal Revenue*, G.R. No. 78780, July 23, 1987.

seventy years or become incapacitated to discharge the duties of their office. The Supreme Court *en banc* shall have the power to discipline judges of lower courts, or order their dismissal by a vote of a majority of the Members who actually took part in the deliberations on the issues in the case and voted thereon.

The first clause of Section 11, which states that “the Supreme Court *en banc* shall have the power to discipline judges of lower courts,” is a declaration of the grant of that disciplinary power to, and the determination of the procedure in the exercise thereof by, the Court *en banc*. It was not intended that all administrative disciplinary cases should be heard and decided by the whole Court. The second clause, which refers to the second situation contemplated therein and is intentionally separated from the first by a comma, declares on the other hand that the Court *en banc* can “order their dismissal by a vote of a majority of the Members who actually took part in the deliberations on the issues in the case and voted therein.” Evidently, in this instance, the administrative case must be deliberated upon decided by the full Court itself.⁶⁸

A Member of the Supreme Court must first be removed from office via the constitutional route of impeachment under Sections 2 and 3 of Article XI of the 1987 Constitution. Should the tenure of the Supreme Court Justice be thus terminated by impeachment, he may then be held to answer either criminally or administratively (by disbarment proceedings) for any wrong or misbehaviour that may be proven against him in appropriate proceedings. Without the protection of this rule, Members of the Supreme Court would be vulnerable to all manner of charges which might be brought against them by unsuccessful litigants or their lawyers or by other parties who, for any number of reasons might seek to affect the exercise of judicial authority by the Court. It follows that a fiscal or other prosecuting officer should forthwith and *motu proprio* dismiss any charges brought against a Member of the Supreme Court. The remedy of a person with a legitimate grievance is to file impeachment proceedings.⁶⁹

68 *People v. Gacott, Jr.*, G.R. No. 116049 (Resolution), July 13, 1995.

69 *In re: Gonzalez, A.M.* No. 88-4-5433 (Resolution), April 15, 1988.

A public officer who under the Constitution is required to be a Member of the Philippine Bar as a qualification for the office held by him and who may be removed from office only by impeachment, cannot be charged with disbarment during the incumbency of such public officer. This does not mean that Members of the Supreme Court are immune from liability for possible criminal acts or unethical behavior, but simply emphasizes that the fundamental procedural requirement for determination and enforcement of liability against an incumbent member of the Supreme Court is through the constitutional route of impeachment.⁷⁰

There was an attempt to impeach Chief Justice Hilario Davide but the Supreme Court invalidated the proceedings because the impeachment violated a ban limiting impeachment cases against a public official to one complaint in a single year under Article XI, Section 3 (5) of the Constitution. The Court held that Impeachment is initiated by the act of filing of the impeachment complaint *and* referral to the House Committee on Justice. Once an impeachment complaint has been initiated in this manner, another may not be filed against the same official within a one-year period.⁷¹ In a subsequent case, the Court held that the simultaneous referral of several impeachments complaints does not violate the Constitution. If the filing of the complaint alone triggers the one-year ban, “a prospective complainant, regardless of ill motives or best intentions, can wittingly or unwittingly desecrate the entire process by the expediency of submitting a haphazard complaint out of sheer hope to be the first in line.” It negates the effort of other prospective complainants who, after diligently gathering evidence first to buttress the case, would be barred days or even hours later from filing an impeachment complaint.⁷²

SECTION 12. The Members of the Supreme Court and of other courts established by law shall not be designated to any agency performing quasi-judicial or administrative functions.

This provision seeks to maintain the separation of powers vital to our form of government. For example, membership of a Judge in the Ilocos Norte

70 Re: Pamatong, A.M. No. 12-11-14-SC, January 15, 2013.

71 *Francisco, Jr. v. House of Representatives*, G.R. No. 160261, November 10, 2003.

72 *Gutierrez v. House of Representatives Committee on Justice*, G.R. No. 193459, February 15, 2011.

Provincial Committee on Justice, which discharges administrative functions, will be in violation of the Constitution.⁷³

In a case where the creation of the Presidential Electoral Tribunal was assailed for violating this section, the court cited Section 4 of Article VII of the 1987 Constitution. It said that the resolution of electoral contests is essentially an exercise of judicial power. In reconciling the rule against members of the court performing other quasi-judicial and administrative functions, and the designation of the Supreme Court as the Presidential Electoral Tribunal, the court said:

With the explicit provision, the Constitution has allocated to the Supreme Court, in conjunction with latter's exercise of judicial power inherent in all courts, the task of deciding presidential and vice-presidential election contests, with full authority in the exercise thereof. The power wielded by Presidential Electoral Tribunal is a derivative of the plenary judicial power *allocated to courts of law*, expressly provided in the Constitution. On the whole, the Constitution draws a thin, but, nevertheless, distinct line between the PET and the Supreme Court.⁷⁴ The PET is not simply an agency to which Members of the Court were designated. Once again, the PET, as intended by the framers of the Constitution, is to be an institution *independent, but not separate*, from the judicial department.⁷⁵

SECTION 13. The conclusions of the Supreme Court in any case submitted to it for decision *en banc* or in division shall be reached in consultation before the case is assigned to a Member for the writing of the opinion of the Court. A certification to this effect signed by the Chief Justice shall be issued and a copy thereof attached to the record of the case and served upon the parties. Any Member who took no part, or dissented, or abstained from a decision or resolution must state the reason therefor. The same requirements shall be observed by all lower collegiate courts.

⁷³ In re: Manzano, A.M. No. 88-7-1861-RTC (Resolution), October 5, 1988.

⁷⁴ *Macalintal v. Presidential Electoral Tribunal*, G.R. No. 191618, November 23, 2010.

⁷⁵ *Macalintal v. Presidential Electoral Tribunal*, G.R. No. 191618, November 23, 2010.

The Certification By The Chief Justice

The Certification typically appears as follows:

CERTIFICATION

Pursuant to Section 13, Article VIII of the Constitution, it is hereby certified that the conclusions in the above Decision had been reached in consultation before the case was assigned to the writer of the opinion of the Court's Division.

The certification requirement refers to decisions in judicial, not administrative cases. From the very beginning, resolutions/decisions of the Court in administrative cases have not been accompanied by any formal certification. In fact, such a certification would be a superfluity in administrative cases, which by their very nature, have to be deliberated upon considering the collegiate composition of this Court. Even if a certification were required, it is beyond doubt that the conclusions of the Court in its decision were arrived at after consultation and deliberation. The signatures of the members who actually took part in the deliberations and voted attest to that. Besides, being a *per curiam* decision, or an opinion of the Court as a whole, there is no *ponente* although any member of the Court may be assigned to write the draft. In such cases, a formal certification is obviously not required.⁷⁶

Dissenting Opinions

Decisions, resolutions or orders of collegiate courts must have the separate concurring or dissenting opinions appended to the majority opinion before these are promulgated. There are two reasons why this principle must be followed:⁷⁷

1. Both parties deserve to know all the views of the collegiate court who voted for the majority and minority opinions and the reasons why they voted in such manner, especially the losing party deciding to appeal to a higher court.

⁷⁶ *Prudential Bank v. Castro*, A.C. No. 2756 (Resolution), March 15, 1988.

⁷⁷ *Tan v. Commission on Elections*, G.R. No. 166143-47, November 20, 2006.

2. If the separate opinions are not appended to the main opinion, the parties will have difficulty understanding the dissertation in the *ponencia* of the majority that addressed the points raised and reasons presented in the separate opinions, more particularly in the dissenting opinion.⁷⁸

Dissenting opinions, however, do not create doctrine and cannot be cited as precedent. Dissenting opinions cannot be enforced. "There is nothing to enforce in a dissenting opinion, since it affirms or overrules no claim, right, or obligation, and neither disposes of, nor awards, anything; it merely expresses the views of the dissenter."⁷⁹ Only the majority opinion can be the subject of an appeal or a special civil action, but never the dissenting opinion.⁸⁰ Courts cite the majority opinion as precedent, not lonely dissenting opinions.⁸¹

A dissenting opinion cannot be the subject of an appeal or a special civil action. In *Ruiz v. Ucol*,⁸² the Court complained that "It is totally inexplicable how a member of the bar could be so careless or, if the act was deliberate, could have the courage to come before this Court asking us to review a dissenting opinion. Counsel is warned that we do not find his mistake in the slightest bit amusing."

SECTION 14. No decision shall be rendered by any court without expressing therein clearly and distinctly the facts and the law on which it is based.

78 *Tan v. Commission on Elections*, G.R. No. 166143-47, November 20, 2006.

79 *Tolentino v. Ongsiako*, G.R. No. L-17938, April 30, 1963.

80 *Ruiz v. Ucol*, G.R. No. L-45404, August 7, 1987.

81 In the Matter of the Allegations Contained in the Column of Mr. Amado P. Macaset Published in *Malaya* dated September 18, 19, 20 and 21, 2007, A.M. No. 07-09-13-SC, August 8, 2008.

82 G.R. No. L-45404, August 7, 1987.

No petition for review or motion for reconsideration of a decision of the court shall be refused due course or denied without stating the legal basis therefor.⁸³

The requirement that the decisions of courts must be in writing and that they must set forth clearly and distinctly the facts and the law on which they are based is intended to inform the parties of the reason or reasons for the decision so that if any of them appeals, he can point out to the appellate court the findings of facts or the rulings on points of law with which he disagrees. The requirement is an assurance to the parties that, in reaching judgment, the judge did so through the processes of legal reasoning. Vouchsafed neither the sword nor the purse by the Constitution but nonetheless vested with the sovereign prerogative of passing judgment on the life, liberty or property of his fellowmen, the judge must ultimately depend on the power of reason for sustained public confidence in the justness of his decision. The decision of the trial court in this case disrespects the judicial function.⁸⁴

The certification requirement is a new provision introduced by the framers of the 1987 Constitution. Its purpose is to ensure the implementation of the constitutional requirement that decisions of the Supreme Court and lower collegiate courts, such as the Court of Appeals, Sandiganbayan and Court of Tax Appeals, are reached after consultation with the members of the court sitting *en banc* or in a division before the case is assigned to a member thereof for decision-writing. The decision is thus rendered by the court as a

83 This constitutional provision deals with the disposition of petitions for review and of motions for reconsideration. In appellate courts, the rule does not require any comprehensive statement of facts or mention of the applicable law, but merely a statement of the “legal basis” for denying due course. There is sufficient compliance with the constitutional requirement when a collegiate appellate court decides to deny a motion; states that the questions raised are factual or have already been passed upon or cites some other legal basis. There is no need to explain fully the court’s denial, since the facts and the law have already been laid out in the assailed Decision. SEE *Tichangco v. Enriquez*, G.R. No. 150629, June 30, 2004. This requirement is complied with when the appellate court denies reconsideration of its decision by stating that it found no reason to change its ruling because petitioner had not raised anything new. SEE *Martinez v. Court of Appeals*, G.R. No. 123547, May 21, 2001. Whether a denial be done for “lack of sufficient basis” or some other ground, the demands of due process have been satisfied. In re Request for Copies of the SALN, A.M. No. 09-8-6-SC, August 26, 2014.

84 *People v. Bugarin*, G.R. Nos. 110817-22, June 13, 1997.

body and not merely by a member thereof. This is in keeping with the very nature of a collegial body which arrives at its decisions only after deliberation, the exchange of views and ideas, and the concurrence of the required majority vote.

The absence, however, of the certification would not necessarily mean that the case submitted for decision had not been reached in consultation before being assigned to one member for the writing of the opinion of the Court since the regular performance of official duty is presumed. The lack of certification at the end of the decision would only serve as evidence of failure to observe the certification requirement and may be basis for holding the official responsible for the omission to account therefor. Such absence of certification would not have the effect of invalidating the decision.⁸⁵

The Constitution only requires that the decision should state the facts on which it is based. There is no proscription against the court's adoption of the narration of facts made in the briefs or memoranda of the parties, instead of rewriting the same in its own words.⁸⁶ This mandate is applicable only in cases "submitted for decision," i.e., given due course and after the filing of Briefs or Memoranda and/or other pleadings, as the case may be. It is not applicable to an Order or Resolution refusing due course to a Petition for Certiorari.⁸⁷

The constitutional mandate that, "no decision shall be rendered by any court without expressing therein clearly and distinctly the facts and the law on which it is based," does not preclude the validity of "memorandum decisions." Memorandum decisions adopt by reference the findings of fact

85 *Consing v. Court of Appeals*, G.R. No. 78272, August 29, 1989.

86 *Hernandez v. Court of Appeals*, G.R. No. 104874, December 14, 1993.

87 *Nunal v. Commission on Audit*, G.R. No. 78648 (Resolution), January 24, 1989. The Supreme Court sanctions the use of memorandum decisions, a succinctly written decision by appellate courts in accordance with the provisions of Section 40, B.P. Blg. 129 on the grounds of expediency, practicality, convenience and docket status of our courts. SEE *Yao v. Court of Appeals*, G.R. No. 132428, October 24, 2000. The purpose of the law in authorizing the memorandum decision is to expedite the termination of litigations for the benefit of the parties as well as the courts themselves. The memorandum decision is an acceptable method of dealing expeditiously with the case load of the courts of justice. But expediency alone, no matter how compelling, cannot excuse non-compliance with the Constitution. SEE *Francisco v. Permskul*, G.R. No. 81006, May 12, 1989.

and conclusions of law contained in the decisions of inferior tribunals. The Supreme Court has sanctioned the use of “memorandum decisions” on the grounds of expediency, practicality, convenience and docket status of our courts.⁸⁸

The requirement for stating the facts and the law does not apply to the minute resolutions that the Court issues in disposing of a case. The Supreme Court disposes of the bulk of its cases by minute resolutions and decrees them as final and executory

1. when a case is patently without merit,
2. when the issues raised are factual in nature,
3. when the decision appealed from is supported by substantial evidence and is in accord with the facts of the case and the applicable laws, or
4. when it is clear from the records that the petition is filed merely to forestall the early execution of judgment and for non-compliance with the rules.⁸⁹

The Court is not required to render signed Decisions all the time. It has ample discretion to formulate Decisions and/or Minute Resolutions, *provided a legal basis is given*, depending on its evaluation of a case.⁹⁰

Minute resolutions are not decisions within the constitutional contemplation. The constitutional mandate is applicable only in cases submitted for decision, *i.e.*, given due course to and after the filing of briefs or memoranda and/or other pleadings, but not where the petition was being refused due course, with the resolutions for that purpose stating the legal basis of the refusal. Thus, when the Court, after deliberating on the petition and the subsequent pleadings, decided to deny due course to the petition and stated that the questions raised were factual, or there was no reversible

88 *Solid Homes, Inc. v. Laserna*, G.R. No. 166051, April 8, 2008.

89 *Madrid v. Dealca*, A.C. No. 7474, September 9, 2014.

90 *Madrid v. Dealca*, A.C. No. 7474, September 9, 2014.

error in the lower court's decision, there was a sufficient compliance with the constitutional requirement.⁹¹

The failure of the labor arbiter and the National Labor Relations Commission to express the basis for their Decisions was an evasion of their constitutional duty, an evasion that constituted grave abuse of discretion.⁹²

SECTION 15. (1) All cases or matters filed after the effectivity of this Constitution must be decided or resolved within twenty-four months from date of submission for the Supreme Court, and, unless reduced by the Supreme Court, twelve months for all lower collegiate courts,⁹³ and three months for all other lower courts.

(2) A case or matter shall be deemed submitted for decision or resolution upon the filing of the last pending, brief, or memorandum required by the Rules of Court or by the court itself.

Under Section 15 (1) and (2), Article VIII of the Constitution, the lower court should decide or resolve cases submitted for decision within three months from the filing of the last required pleading, brief, or memorandum. This requirement of the fundamental law is designed to prevent delay in the administration of justice, for obviously justice delayed is justice denied, and delay in the disposition of cases erodes the faith and confidence of our people in the judiciary, lowers its standards, and brings it into disrepute.⁹⁴

A trial judge is expected to act with dispatch and to dispose of the court's business promptly and to decide cases within the required periods. The main objective of every judge should be to avoid delays, or if it cannot be totally avoided, to hold them to the minimum and to repudiate manifestly dilatory tactics. Thus, all cases or incidents must be decided or resolved within twelve months from date of submission by all lower collegiate courts

91 *Madrid v. Dealca*, A.C. No. 7474, September 9, 2014.

92 *Miguel v. JCT Group Inc.*, G.R. No. 157752, March 16, 2005.

93 Under the applicable rule of the 2009 Internal Rules of the Court of Appeals the liability for undue delay in resolving a case might devolve only on the Members of the Division who actually promulgated the decision. SEE *In Re Parreño*, OCA IPI NO. 14-220-CA-J, March 17, 2015.

94 Report on the Audit and Inventory of Cases in RTC, Br. 55, Alaminos, Pangasinan, A.M. No. 96-3-88-RTC, September 30, 1996.

while all other lower courts are given a period of three months to do so.⁹⁵ Failure to observe this command constitutes a ground for administrative sanction against the defaulting judge. A judge should at all times remain in full control of the proceedings in his court and follow the time limit set for deciding cases.⁹⁶ In certain meritorious cases, such as those involving difficult questions of law or complex issues, a longer period to decide the case may be allowed, but only upon proper application therefor has been made by the concerned judge.⁹⁷ Whenever a judge cannot decide a case promptly, all he has to do is to ask the Court for a reasonable extension of time to resolve it.⁹⁸

The directive to the courts to speedily decide or resolve cases or matters was not a new provision in the 1987 Constitution. It has been there since the previous Constitution. In a case decided under the 1973 Constitution, this Court reprimanded and admonished a municipal judge for deciding a criminal case beyond the 90-day period required in Article X, Section 15 of the Constitution and Section 5 of the Judiciary Act.

The deadline within which cases or matters pending before 1987 should be decided or resolved was expressly recognized and re-imposed in the Transitory Provisions of the 1987 Constitution, which states, among others:

SEC. 12. The Supreme Court shall, within one year after the ratification of this Constitution, adopt a systematic plan to expedite the decision or resolution of cases or matters pending in the Supreme Court or the lower courts prior to the effectivity of this Constitution. A similar plan shall be adopted for all special courts and quasi-judicial bodies.

SEC. 13. The legal effect of the lapse, before the ratification of this Constitution, of the applicable period for the decision or resolution of the cases or matters submitted for adjudication by the courts, shall be determined by the Supreme Court as soon as practicable.

95 *Office of the Court Administrator v. Hamoy*, A.M. No. RTJ-04-1830, January 17, 2005.

96 *Raboca v. Velez*, A.M. No. RTJ-99-1469 (Resolution), October 2, 2000.

97 *Lopez v. Alon*, A.M. No. 95-95-RTJ, February 28, 1996.

98 *Duque v. Garrido*, A.M. No. RTJ-06-2027, February 27, 2009.

SEC. 14. The provisions of paragraphs (3) and (4), Section 15 of Article VIII of this Constitution shall apply to cases or matters filed before the ratification of this Constitution, when the applicable period lapses after such ratification.

In turn, Article VIII, Section 15, paragraphs (3) and (4), which are adverted to in the transitory provisions, read:

(3) Upon the expiration of the corresponding period, a certification to this effect signed by the Chief Justice of the presiding judge shall forthwith be issued and a copy thereof attached to the record of the case or matter, and served upon the parties. The certification shall state why a decision or resolution has not been rendered or issued within said period.

(4) Despite the expiration of the applicable mandatory period, the court, without prejudice to such responsibility as may have been incurred in consequence thereof, shall decide or resolve the case or matter submitted thereto for determination, without further delay.⁹⁹

SECTION 16. The Supreme Court shall, within thirty days from the opening of each regular session of the Congress, submit to the President and the Congress an annual report on the operations and activities of the Judiciary.

⁹⁹ *De Vera v. Layague*, A.M. No. RTJ-93-986 (Resolution), September 26, 2000.

APPENDIX A

JBC – 009 RULES OF THE JUDICIAL AND BAR COUNCIL

WHEREAS, under the Constitution, the authority to nominate appointees to the Judiciary (CONST., Art. VIII, Section 8) and to the offices of the Ombudsman and of his Deputies (CONST., Art. XI, Section 9) is vested in the Judicial and Bar Council (hereafter Council);

WHEREAS, the Constitution mandates that members of the Judiciary, and the Ombudsman and his Deputies must be, in addition to other requirements, persons of proven competence, integrity, probity and independence (CONST., Art. VIII, Section 7, par. 3), and of recognized probity and independence (CONST., Art. XI, Section 8), respectively;

WHEREAS, only those nominated by the Council in a list to be officially transmitted to the President of the Philippines may be appointed by the latter as Justice or Judge in the Judiciary or as Ombudsman or Deputy Ombudsman;

WHEREAS, once appointed a Justice or Judge shall hold office during good behavior until he reaches the age of seventy years or becomes incapacitated to discharge the duties of his office (CONST., Art. VIII, Sec. 11); once appointed the Ombudsman or his deputies would serve for seven years, and the Ombudsman may be removed only by impeachment (CONST., Art. XI, Sec. 11 and Sec. 2);

WHEREAS, the Council is thus vested with a delicate function and burdened with a great responsibility; its task of determining who meets the constitutional requirements to merit recommendation for appointment to the Judiciary is a most difficult and trying duty because the virtues and qualities of competence, integrity, probity and independence are not easily determinable as they are developed and nurtured through the years; and it is self-evident that, to be a good judge, one must have attained sufficient mastery of the law and legal principles, be of irreproachable character and must possess unsullied reputation and integrity, should consider his office as

a sacred public trust; and, above all, he must be one whose loyalty to law, justice and the ideals of an independent Judiciary is beyond doubt;

WHEREAS, in the selection of nominees for the Ombudsman and his Deputies, the same difficulty would confront the Council not only in light of the Constitutional requirement that they must have been for ten (10) years or more a judge or engaged in the practice of law in the Philippines before their appointment, but also because of the solemn duties assigned to them in the promotion and enhancement of the principle of accountability of public officers and as protectors of the people (CONST., Art. XI, Section 12);

WHEREAS, while it is not possible or advisable to lay down iron-clad rules to determine the fitness of those who aspire to become a Justice, Judge, Ombudsman or Deputy Ombudsman, certain guidelines or criteria may be prescribed to ascertain if one seeking such office meets the minimum constitutional qualifications and possesses qualities of mind and heart expected of a member of the Judiciary, or an Ombudsman or Deputy Ombudsman;

WHEREAS, while the Council has been applying similar criteria in its assessment of candidates to the judicial office or the Ombudsman or deputy Ombudsman, there is a need to put these criteria in writing to insure transparency in its proceedings and promote stability and uniformity in its guiding precepts and principles;

NOW, THEREFORE, the Judicial and Bar Council hereby prescribes the following rules or criteria which should be considered in the selection and nomination of prospective appointees for every judicial position or for Ombudsman or Deputy Ombudsman, to be submitted to the President for his final consideration in the exercise of his appointing power, to wit:

Rule 1

Filling Of Vacancies

SECTION 1. *Vacancies in the Supreme Court.* - Vacancies in the Office of the Chief Justice and of Associate Justices in the Supreme Court shall be filled within ninety days from the occurrence thereof (CONST., Art. VIII, Sec. 4, par. 1).

SEC. 2. *Vacancies in the Office of the Ombudsman.* - Vacancies in the Office of the Ombudsman or his deputies shall be filled within ninety days from the occurrence thereof. (CONST., Art. XI, Sec. 9).

SEC. 3. *Vacancies in the Court of Appeals, Sandiganbayan and all other courts.* — Vacancies in the Court of Appeals, Sandiganbayan and all other courts shall be filled within ninety days from the submission by the Council of the list of nominees for the vacancy concerned.

SEC. 4. *Call for applications.* — (a) The occurrence of any vacancy in the Supreme Court or in the Office of the Ombudsman opens, *ipso facto*, the vacant position for filling and acceptance of applicants therefor.

(b) With the effective, efficient and expeditious administration of justice always in mind, the Council shall open for applicants other vacancies in the Judiciary taking into account the advice of the Supreme Court and of the condition of the dockets of the positions involved.

SEC. 5. *Filing of application for appointment.* - Application for appointment may be done by the applicant himself or by recommendation of another person, an association or organization. In the latter case, the applicant concerned must manifest his acceptance of the recommendation either in the recommendation paper itself or in a separate document.

SEC. 6. *Where to file application or recommendation.* - The application or recommendation shall be filed personally or by registered mail with the Secretariat of the Council, which must indicate therein the date and time of the filing, or receipt thereof if filed by registered mail.

SEC. 7. *Contents of application.* — The application must be in the form prescribed by the Council. However, if the application filed is not in such form, the applicant must submit said application in the correct form within five (5) days from notice served on him by the Secretariat. In case of a recommendation which is not accompanied by the prescribed acceptance, the recommendee who has accepted the recommendation shall be required to submit said acceptance within the same period.

SEC. 8. *Deadline for filing of application.* — The Council may fix the deadline for the filing of applications or recommendations for appointment, or may extend it for justifiable reasons. In case of recommendations, the acceptance by the recommendee must be made before the deadline. Applications or recommendations filed beyond the deadline will not be honored.

SEC. 9. *Publication of list of applicants.* — The list of applicants or recommendees which the Council shall consider in a given time shall be published once in a newspaper of general circulation in the Philippines and once in a newspaper of local circulation in the province or city where the vacancy in question is located. The publication shall invite the public to inform the Council within the period fixed therein of any complaint or derogatory information against the applicant. Copies of the list shall likewise be posted in three conspicuous places in the province, city, or municipality where the vacancy concerned is located. As far as practicable, copies thereof shall be furnished the major religious, civic, social, professional, business and other non-governmental organizations in the city or municipality where such vacancy is located. The Executive Judge of the Regional Trial Court to whose territorial jurisdiction the vacant judicial post belongs shall see to it that these requirements are complied with.

The Integrated Bar of the Philippines (IBP), as well as its Chapter in the province or city where the vacancy is located shall likewise be furnished copies of the list of applicants.

Rule 2

Constitutional And Statutory Qualifications For Appointment

SECTION 1. *Qualifications applicable to all Members of the Judiciary and the Ombudsman and his deputies.*— (a) No person may be appointed Member of the Supreme Court or any lower collegiate court or as Ombudsman or deputy Ombudsman unless he is a natural-born citizen of the Philippines (CONST. Art. VIII, Section 7, par. 1; *Id.*, Art. XI, Section 8).

(b) No person may be appointed judge of any court lower than a collegiate court unless he is a citizen of the Philippines (CONST. Art. VIII, Section 7, par. 2).

(c) A Member of the Judiciary must be of proven competence, integrity, probity and independence (*id.*, *id.*, par. 3) and a member of the Philippine Bar (*id.*, *id.*, par. 2).

SEC. 2. *Additional qualifications for Members of the Supreme Court.* — No person shall be appointed Member of the Supreme Court unless he is at least forty years of age and must have been for fifteen years or more a judge of a lower court or engaged in the practice of law in the Philippines. (*id.*, *id.*, par 1).

SEC. 3. *Additional qualifications of Members of the Court of Appeals.* — No person shall be appointed as Member of the Court of Appeals unless he possesses the same qualifications as those prescribed for Members of the Supreme Court. (B.P. Blg. 129, Section 7).

SEC. 4. *Additional qualifications of Members of the Sandiganbayan.* — No person shall be appointed as Member of the Sandiganbayan unless he is at least forty years of age and for at least ten years has been a judge of a court of record or has been engaged in the practice of law in the Philippines or has held office requiring admission to the bar as a pre-requisite for a like period. (P.D. 1606, as amended, Section 1).

SEC. 5. *Additional qualifications of Ombudsman and his deputies.* — The Ombudsman and his deputies must be, at the time of their appointment, at least forty years old, of recognized probity and independence, a member of

the Philippine Bar, must have been for ten years a judge or engaged in the practice of law in the Philippines, and must not have been a candidate for any elective office in the immediately preceding election (CONST. Art. XI, Section 8).

SEC. 6. *Additional qualifications of Judges of the Court of Tax Appeals.* — Judges of the Court of Tax Appeals shall have the same qualifications as Members of the Supreme Court (R.A. No. 1125, Section 1, in relation to C.A. No. 103, Section 1).

SEC. 7. *Additional qualifications of judges of the Regional Trial Courts.* — No person shall be appointed Judge of the Regional Trial Court unless he is at least thirty-five years of age, and, for at least ten years, has been engaged in the practice of law in the Philippines or has held a public office in the Philippines requiring admission to the practice of law as an indispensable requisite. (B.P. Blg. 129, Section 15).

SEC. 8. *Additional qualifications of judges of courts of the first level.* — No person shall be appointed judge of courts of the first level (Metropolitan Trial Court, Municipal Trial Court in Cities, Municipal Trial Court, Municipal Circuit Trial Court) unless he is at least thirty years of age, and, for at least five years, has been engaged in the practice of law in the Philippines, or has held a public office in the Philippines requiring admission to the practice of law as an indispensable requisite. (B.P. Blg. 129, Section 26).

SEC. 9. *Additional qualifications of judges of Shari'a courts.* — In addition to the qualifications for Members of Regional Trial Courts, a judge of the Shari'a district court must be learned in the Islamic Law and Jurisprudence. (P.D. No. 1083, Article 140).

No person shall be appointed judge of the Shari'a Circuit Court unless he is at least twenty-five years of age, and has passed an examination in the Shari'a and Islamic Jurisprudence to be given by the Supreme Court for admission to special membership in the Philippine Bar to practice in the Shari'a courts. (*Id.*, Article 152).

Rule 3

Competence Of Applicants

SECTION 1. *Guidelines in determining competence.* — In determining the competence of the applicant or recommendee for appointment, the Council shall consider his educational preparation, experience, performance and other accomplishments *including the completion of the prejudicature program of the Philippine Judicial Academy; provided, however, that in places where the number of applicants or recommendees is insufficient and the prolonged vacancy in the court concerned will prejudice the administration of justice, strict compliance with the requirement of completion of the prejudicature program shall be deemed directory.*" (Effective Dec. 1, 2003)

SEC. 2. *Educational preparation.* — The Council shall evaluate the applicant's (a) scholastic record up to completion of the degree in law and other baccalaureate and post-graduate degrees obtained; (b) bar examination performance; (c) civil service eligibilities and grades in other government examinations; (d) academic awards, scholarships or grants received/obtained; and (e) membership in local or international honor societies or professional organizations.

SEC. 3. *Experience.* — The experience of the applicant in the following shall be considered:

(a) Government service, which includes that in the Judiciary (Court of Appeals, Sandiganbayan, and courts of the first and second levels); the Executive Department (Office of the President proper and the agencies attached thereto and the Cabinet); the Legislative Department (elective or appointive positions); Constitutional Commissions or Offices; Local Government Units (elective and appointive positions); and quasi-judicial bodies.

(b) Private Practice, which may either be general practice, especially in courts of justice, as proven by, among other documents, certifications from Members of the Judiciary and the IBP and the affidavits of reputable persons; or specialized practice, as proven by, among other documents, certifications from the IBP and appropriate government agencies or professional

organizations, as well as teaching or administrative experience in the academe; and

(c) Others, such as service in international organizations or with foreign governments or other agencies.

SEC. 4. *Performance.* — (a) The applicant who is in government service shall submit his performance ratings, which shall include a verified statement as to such performance for the past three years.

(b) For incumbent Members of the Judiciary who seek a promotional or lateral appointment, performance may be based on landmark decisions penned; court records as to status of docket; reports of the Office of the Court Administrator; verified feedback from the IBP; and a verified statement as to his performance for the past three years, which shall include his caseload, his average monthly output in all actions and proceedings, the number of cases deemed submitted and the date they were deemed submitted, and the number of his decisions during the immediately preceding two-year period appealed to a higher court and the percentage of affirmance thereof.

SEC. 5. *Other accomplishments.* — The Council shall likewise consider other accomplishments of the applicant, such as authorship of law books, treatises, articles and other legal writings, whether published or not; and leadership in professional, civic or other organizations.

Rule 4

Integrity

SECTION 1. *Evidence of integrity.* — The Council shall take every possible step to verify the applicant's record of and reputation for honesty, integrity, incorruptibility, irreproachable conduct, and fidelity to sound moral and ethical standards. For this purpose, the applicant shall submit to the Council certifications or testimonials thereof from reputable government officials and non-governmental organizations, and clearances from the courts, National Bureau of Investigation, police, and from such other agencies as the Council may require.

SEC. 2. *Background check.* — The Council may order a discreet background check on the integrity, reputation and character of the applicant, and receive feedback thereon from the public, which it shall check or verify to validate the merits thereof.

SEC. 3. *Testimony of parties.* — The Council may receive written opposition to an applicant on ground of his moral fitness and, at its discretion, the Council may receive the testimony of the oppositor at a hearing conducted for the purpose, with due notice to the applicant who shall be allowed to cross-examine the oppositor and to offer countervailing evidence.

SEC. 4. *Anonymous complaints.* — Anonymous complaints against an applicant shall not be given due course, unless there appears on its face a probable cause sufficient to engender belief that the allegations may be true. In the latter case, the Council may either direct a discreet investigation or require the applicant to comment thereon in writing or during the interview.

SEC. 5. *Disqualification.* — The following are disqualified from being nominated for appointment to any judicial post or as Ombudsman or Deputy Ombudsman:

1. Those with pending criminal or regular administrative cases;
2. Those with pending criminal cases in foreign courts or tribunals; and
3. Those who have been convicted in any criminal case; or in an administrative case, where the penalty imposed is at least a fine of more than ₱10,000, unless he has been granted judicial clemency.

SEC. 6. *Other instances of disqualification.* — Incumbent judges, officials or personnel of the Judiciary who are facing administrative complaints under informal preliminary investigation (IPI) by the Office of the Court Administrator may likewise be disqualified from being nominated if, in the determination of the Council, the charges are serious or grave as to affect the fitness of the applicant for nomination.

For purposes of this Section and of the preceding Section 5 insofar as pending regular administrative cases are concerned, the Secretary of the Council shall, from time to time, furnish the Office of the Court Administrator the name of an applicant upon receipt of the

application/recommendation and completion of the required papers; and within ten days from receipt thereof the Court Administrator shall report in writing to the Council whether or not the applicant is facing a regular administrative case or an IPI case and the status thereof. In regard to the IPI case, the Court Administrator shall attach to his report copies of the complaint and the comment of the respondent.

Rule 5

Probity/Independence

SECTION 1. *Evidence of probity and independence.*— Any evidence relevant to the candidate’s probity and independence such as, but not limited to, decisions he has rendered if he is an incumbent member of the judiciary or reflective of the soundness of his judgment, courage, rectitude, cold neutrality and strength of character shall be considered.

SEC. 2. *Testimonials of probity and independence.* — The Council may likewise consider validated testimonies of the applicant’s probity and independence from reputable officials and impartial organizations.

Rule 6

Sound Physical, Mental

And Emotional Condition

SECTION 1. *Good health.* — Good physical health and sound mental/psychological and emotional condition of the applicant play a critical role in his capacity and capability to perform the delicate task of administering justice. The applicant or the recommending party shall submit together with his application or the recommendation a sworn medical certificate or the results of an executive medical examination issued or conducted, as the case may be, within two months prior to the filing of the application or recommendation. At its discretion, the Council may require the applicant to submit himself to another medical and physical examination if it still has some doubts on the findings contained in the medical certificate or the results of the executive medical examination.

SEC. 2. *Psychological/psychiatric tests.* — The applicant shall submit to psychological/psychiatric tests to be conducted by the Supreme Court

Medical Clinic or by a psychologist and/or psychiatrist duly accredited by the Council.

Rule 7

Personal Interviews

SECTION 1. *Conduct of interviews.*— The Council *en banc*, or any panel of members thereof as may be authorized by the Council, shall conduct personal interview of candidates to, *inter alia*, observe their personality, demeanor, deportment, and physical condition; assess their ability to express themselves, especially in the language of the law in court trials/proceedings and in their decisions or rulings; test their mastery of the law and legal principles; inquire into their philosophies, values, etc.; determine their probity and independence of mind; and evaluate their readiness and commitment to assume and fulfill the duties and responsibilities of judgeship.

“The interviews for the positions in the Supreme Court, Court of Appeals, Sandiganbayan and Ombudsman shall be conducted in public. Access by the media to the interviews shall be subject to the rules that the Council may promulgate. For this purpose, the list of candidates, date and place of interview shall be published once in a newspaper of general circulation in the Philippines and once in a newspaper of local circulation in the province or city where the vacancy in question is located.”
(Italics supplied)

The interviews may be held or conducted outside of Manila.

SEC. 2. *Submission of reports of interview.*— Reports of the personal interviews shall be submitted to the Secretary of the Council which shall furnish the Members with copies thereof. The reports are hereby declared strictly confidential documents which shall be available only to the Members of the Council.

Rule 8

Appointment To The Supreme Court

SECTION 1. *Due weight and regard to recommendees of the Supreme Court.* — In every case involving an appointment to a seat in the Supreme Court, the Council shall give due weight and regard to the recommendees of

the Supreme Court. For this purpose, the Council shall submit to the Court a list of the candidates for any vacancy in the Court with an executive summary of its evaluation and assessment of each of them, together with all relevant records concerning the candidates from whom the Court may base the selection of its recommendees.

SEC. 2. *Age of prospective nominee.* — In the selection of nominees to a vacancy in the Supreme Court, the Council must consider his age with a view to discourage appointment of those who would not be able to serve it for a reasonably sufficient time.

Rule 9

Special Guidelines For Nomination To A Vacancy In The Court Of Appeals And Sandiganbayan

SECTION 1. *Additional criteria for nomination to the Court of Appeals and the Sandiganbayan.* — In addition to the foregoing guidelines the Council should consider the following in evaluating the merits of applicants for a vacancy in the Court of Appeals and Sandiganbayan:

1. As a general rule, he must have at least five years of experience as a Judge of a Regional Trial Court, except when he has in his favor outstanding credentials, as evidenced by, *inter alia*, impressive scholastic or educational record and performance in the Bar examinations, excellent reputation for honesty, integrity, probity and independence of mind; at least very satisfactory performance rating for three (3) years preceding the filing of his application for nomination; and excellent potentials for appellate judgeship.

If the applicant directly comes from the private sector, he must show outstanding credentials as evidenced by an impressive scholastic or educational background and performance in the Bar examinations; leadership in the legal profession; outstanding record as a lawyer with unsullied reputation for honesty, integrity, competence, probity and independence of mind, adherence to sound moral principles and fidelity to the Code of Professional Responsibility; and excellent potential for appellate judgeship, with the expectation that he can serve the Judiciary for not less than five (5) years until he reaches the compulsory age of retirement.

Rule 10

Voting Requirements

SECTION 1. *Votes required for inclusion as nominee.* — No applicant shall be considered for nomination for appointment to a judicial position unless he shall obtain the affirmative vote of at least a majority of all the Members of the Council.

SEC. 2. *Votes required when integrity of a qualified applicant is challenged.*
— In every case where the integrity of an applicant who is not otherwise disqualified for nomination is raised or challenged, the affirmative vote of all the Members of the Council must be obtained for the favorable consideration of his nomination.

These Rules of the Judicial and Bar Council shall take effect on the first day of December 2000, and shall be published in a newspaper of general circulation in the Philippines not later than 31 October 2000.

Promulgated this 18th day of October 2000.

Signed:

Chief Justice Hilario Davide, Jr., Artemio G. Tuquero, Aquilino Q. Pimentel, Jr., Alfredo E. Abueg, Jr., Regino C. Hermosima, Jr., Alfredo M. Marigomen, Amado L. Dimayuga, Teresita Cruz Sison

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APPENDIX B

RULE NO. JBC-10

RULE TO FURTHER PROMOTE PUBLIC AWARENESS OF AND ACCESSIBILITY TO THE PROCEEDINGS OF THE JUDICIAL AND BAR COUNCIL

The Constitution vests upon the Judicial and Bar Council the principal function of recommending appointees to the Judiciary (par. 5, section 8, Article VIII) and appointees to the positions of Ombudsman and Deputy Ombudsman (sec. 9, Article XI).

In this delicate task, the Council has always maintained that transparency and public awareness of its proceedings in the consideration of candidates to the aforementioned positions is a vital factor in the preparation of the list of nominees to be submitted to the President. Conformably with this postulate and pursuant to Section 1, Rule 7 of the Rules (JBC-009) of the Judicial and Bar Council as amended on 14 August 2002, the Council hereby adopts this Rule:

SECTION 1. The Judicial and Bar Council shall deliberate to determine who of the candidates meet *prima facie* the qualifications for the position under consideration. For this purpose, it shall prepare a long list of candidates who *prima facie* appear to have all the qualifications. The Secretary of the Council shall then cause to be published in two (2) newspapers of general circulation a notice of the long list of candidates in alphabetical order.

The notice shall inform the public that any complaint or opposition against a candidate may be filed with the Secretary within ten (10) days thereof.

SECTION 2. The complaint or opposition shall be in writing, under oath and in ten (10) legible copies, together with its supporting annexes. It shall

strictly relate to the qualifications of the candidate or lack thereof, as provided for in the Constitution, statutes, and the Rules of the Judicial and Bar Council, as well as resolutions or regulations promulgated by it.

The Secretary of the Council shall furnish the candidate a copy of the complaint or opposition against him. The candidate shall have five (5) days from receipt thereof within which to file his comment to the complaint or opposition, if he so desires.

SECTION 3. The Judicial and Bar Council shall fix a date when it shall meet in executive session to consider the qualification of the long list of candidates and the complaint or opposition against them, if any. The Council may, on its own, conduct a discreet investigation of the background of the candidates.

On the basis of its evaluation of the qualification of the candidates, the Council shall prepare the shorter list of candidates whom it desires to interview for its further consideration.

SECTION. 4. The Secretary of the Council shall again cause to be published the dates of the interview of candidates in the shorter list in two (2) newspapers of general circulation. It shall likewise be posted in the websites of the Supreme Court and the Judicial and Bar Council.

The candidates, as well as their oppositors, shall be separately notified of the date and place of the interview.

SECTION 5. The interviews shall be conducted in public. During the interview, only the members of the Council can ask questions to the candidate. Among other things, the candidate can be made to explain the complaint or opposition against him.

The proceedings shall be in writing. Cameras and tape recorders, however, shall not be allowed inside the room. (deleted during the JBC En Banc meeting on 18 June 2012 held at the Supreme Court En Banc Conference Room)

No live TV and radio coverage of the proceedings shall be permitted.
(deleted during the JBC En Banc meeting on 18 June 2012 held at the
Supreme Court En Banc Conference Room)

SEC. 6. After the interviews, the Judicial and Bar Council shall again meet in executive session for the final deliberation on the short list of candidates which shall be sent to the Office of the President as a basis for the exercise of the Presidential power of appointment.

This Resolution shall take effect on the first day of October 2002 after its publication in a newspaper of general circulation in the Philippines.

Promulgated this 23rd day of September 2002.

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APPENDIX C

A.M. NO. 10-4-20-SC

THE INTERNAL RULES OF THE SUPREME COURT

Rule 1

The Internal Rules

SECTION 1. *The Internal Rules.* — These Rules shall govern the internal operations of the Supreme Court and guide its exercise of judicial and administrative functions. They shall be cited as *The Internal Rules of the Supreme Court*.

SEC. 2. *Interpretation.* — The *Internal Rules of the Supreme Court* shall be interpreted in accordance with the mandates of the Supreme Court under the Constitution, applicable laws, and the Rules of Court to ensure a just, fair and efficient administration of justice. Nothing in these Rules shall be interpreted to preclude or limit the exercise of the power and authority of the Court as provided in the Constitution, the applicable laws, and the Rules of Court.

SEC. 3. *Committee on Internal Rules.* —

- (a) A permanent Committee on Internal Rules of the Supreme Court shall ensure, through appropriate recommendation to the Court *en banc*, that these Rules are kept current and responsive to the needs of the Court and the public it serves;
- (b) The Committee, composed mainly of Members of the Court, shall include the Clerk of the Supreme Court and the Chief Attorney as permanent members, and may include other court officials as may be needed;
- (c) The Committee shall collate relevant materials from laws, the Rules of Court, and Resolutions of the Court at the end of every year and submit to the Court *en banc* an update of the Rules the following January. It shall likewise recommend to the Court *en banc* the amendment, revision or deletion of any

of these Rules to reflect and achieve the objectives of justice, fairness and efficiency;

- (d) These Rules shall be posted on the Supreme Court website.

SEC. 4. *Amendment or suspension of the Rules.* – In the interest of sound and efficient administration of justice, and upon a majority vote of the Court *en banc*, any provision of these Rules may be amended, revised, deleted, suspended or dispensed with in particular cases, upon such terms as the Court *en banc* may decide to be just, fair and proper.

Rule 2

The Operating Structures

SECTION 1. *Exercise of judicial and administrative functions.* – The Court exercises its judicial functions and its powers of administrative supervision over all courts and their personnel through the Court *en banc* or its Divisions. It administers its activities under the leadership of the Chief Justice, who may, for this purpose, constitute supervisory or special committees headed by individual Members of the Court or working committees of court officials and personnel.

SEC. 2. *Quorum of the Court en banc.* – Eight Members shall constitute a quorum of the Court. In the absence of the Chief Justice, the most senior Associate Justice present shall chair the sessions of the Court.

SEC. 3. *Court en banc matters and cases.* – The Court *en banc* shall act on the following matters and cases:

- (a) cases in which the constitutionality of any treaty, international or executive agreement, law, executive order, presidential decree, proclamation, order, instruction, ordinance, or regulation is in question;¹
- (b) cases raising novel questions of law;
- (c) cases affecting ambassadors, other public ministers, and consuls;

¹ As amended on July 1, 2012 and September 18, 2012.

- (d) cases involving decisions, resolutions, and orders of the Commission on Elections and the Commission on Audit;²
- (e) cases where the penalty recommended or to be imposed is the dismissal of a judge, official or personnel of the Judiciary, the disbarment of a lawyer, the suspension of any of them for a period of more than one year, or a fine exceeding forty thousand pesos;³
- (f) cases covered by the preceding paragraph involving the reinstatement in the judiciary of a dismissed judge, the reinstatement of a lawyer in the roll of attorneys, or the lifting of a judge's suspension or a lawyer's suspension from the practice of law;
- (g) cases involving the discipline of a Member of the Court, or a Presiding Justice, or any Associate Justice of the collegial appellate courts;
- (h) cases where a doctrine or principle laid down by the Court en banc or by a Division may be modified or reversed;
- (i) cases involving conflicting decisions of two or more divisions;
- (j) cases where three votes in a Division cannot be obtained;
- (k) Division cases where the subject matter has a huge financial impact on businesses or affects the welfare of a community;
- (l) subject to Section 11 (b) of this rule, other division cases that, in the opinion of at least three Members of the Division who are voting and present, are appropriate for transfer to the Court *en banc*;
- (m) cases that the Court *en banc* deems of sufficient importance to merit its attention; and
- (n) all matters involving policy decisions in the administrative supervision of all courts and their personnel.

SEC 4. *Division cases.* — All cases and matters under the jurisdiction of the Court not otherwise provided for by law, by the Rules of Court or by these Internal Rules to be cognizable by the Court *en banc* shall be cognizable by the Divisions.

2 As amended on August 3, 2010.

3 As amended on June 18, 2013.

SEC 5. *Composition and quorum of a Division.* — Unless the Court *en banc* decrees otherwise, a quorum shall consist of a majority of all Members of the Division, and an absent or a non-participating regular Member of a Division may be replaced at the request of the regular Members by a Member designated from another Division in order to constitute a quorum.

SEC 6. *Resolutions of motions for reconsideration or clarification of an unsigned resolution or a minute resolution and all other motions and incidents subsequently filed.* — Motions for reconsideration or clarification of an unsigned resolution or a minute resolution and all other motions and incidents subsequently filed in the case shall be acted upon by the regular Division to which the *ponente* belongs. The *ponente* is the Member to whom the Court, after its deliberation on the merits of a case, assigns the writing of its decision or resolution in the case.⁴

SEC 7. *Resolutions of motions for reconsideration or clarification of decisions or signed resolutions and all other motions and incidents subsequently filed; creation of a Special Division.* — Motions for reconsideration or clarification of a decision or of a signed resolution and all other motions and incidents subsequently filed in the case shall be acted upon by the *ponente* and the other Members of the Division who participated in the rendition of the decision or signed resolution.

If the *ponente* has retired, is no longer a Member of the Court, is disqualified, or has inhibited himself or herself from acting on the motion for reconsideration or clarification, he or she shall be replaced through raffle by a new *ponente* who shall be chosen among the new Members of the Division who participated in the rendition of the decision or signed the resolution or who concurred therein. If only one Member of the Court who participated and concurred in the rendition of the decision or signed the resolution remains, he or she shall be designated as the new *ponente*.

If a member (not the *ponente*) of the Division which rendered the decision or signed resolution has retired, is no longer a Member of the Court, is disqualified, or has inhibited himself or herself from acting on the motion for reconsideration or clarification, he or she shall be replaced through raffle

4 As amended on August 3, 2010.

by a replacement Member who shall be chosen from the other Divisions until a new Justice is appointed as replacement for the retired Justice. Upon the appointment of a new Justice, he or she shall replace the designated Justice as replacement Member of the Special Division.

Any vacancy or vacancies in the Special Division shall be filled by raffle from among the other Members of the Court to constitute a Special Division of five (5) Members.

If the *ponente* and all the Members of the Division that rendered the Decision or signed Resolution are no longer Members of the Court, the case shall be raffled to any Member of the Court and the motion shall be acted upon by him or her with the participation of the other Members of the Division to which he or she belongs.

If there are pleadings, motions or incidents subsequent to the denial of the motion for reconsideration or clarification, the case shall be acted upon by the *ponente* on record with the participation of other Members of the Division to which he or she belongs at the time said pleading, motion or incident is taken up by the Court.⁵

SEC 8. *Composition and reorganization of a Division.* — The composition of each Division shall be based on seniority as follows:

- (a) First Division — Chief Justice, the fourth in seniority as working chairperson, the seventh in seniority, the tenth in seniority, and the thirteenth in seniority.
- (b) Second Division — the second in seniority as Chairperson, the fifth in seniority, the eighth in seniority, the eleventh in seniority, and the fourteenth in seniority.
- (c) Third Division — the third in seniority as Chairperson, the sixth in seniority, the ninth in seniority, the twelfth in seniority, and the fifteenth in seniority.

The Chief Justice may, however, consider factors other than seniority in Division assignments. The appointment of a new Member of the Court

5 As amended on August 3, 2010.

shall necessitate the reorganization of Divisions at the call of the Chief Justice.

SEC 9. *Effect of reorganization of Divisions on assigned cases.* – In the reorganization of the membership of Divisions, cases already assigned to a Member-in-Charge shall be transferred to the Division to which the Member-in-Charge moves, subject to the rule on the resolution of motions for reconsideration under Section 7 of this Rule. The Member-in-Charge is the Member given the responsibility of overseeing the progress and disposition of a case assigned by raffle.

SEC 10. *Formula for assigning cases to a new Member of the Court.* – The following rules shall be observed in assigning cases to a newly appointed Member of the Court:

- (a) the average caseload of each Member shall be determined by dividing the total number of pending cases of all fifteen Members by fifteen;
- (b) the newly appointed Member of the Court shall inherit the caseload of the Member being replaced, and the inherited caseload, if less than the average caseload as determined in (a), shall be equalized with the average caseload by taking the difference from the caseload of the incumbent Members divided among them in equal number;
- (c) cases submitted for decision within the last twelve months preceding the appointment of the new Member of the Court may be unloaded to him or her.

The case load shall take into account only cases and matters for adjudication.⁶

SEC. 11. *Actions on cases referred to the Court en banc.* – The referral of a Division case to the Court en banc shall be subject to the following rules:

⁶ As amended on August 3, 2010.

- (a) the resolution of a Division denying a motion for referral to the Court *en banc* shall be final and shall not be appealable to the Court *en banc*.
- (b) The Court *en banc* may, in the absence of sufficiently important reasons, decline to take cognizance of a case referred to it and return the case to the Division; and
- (c) No motion for reconsideration of a resolution of the Court *en banc* declining cognizance of a referral by a Division shall be entertained.

SEC 12. *Committees.* – (a) The Court shall have the following permanent Committees, whose members shall be designated by the Chief Justice:

- (i) Committee on the Revision of the Rules of Court;
- (ii) Committee on Computerization and Library;
- (iii) Committee on Security;
- (iv) Bids and Awards Committees;
- (v) Committee on Administrative Concerns;
- (vi) Legislative-Executive Relations Committee;
- (vii) Committee on Publication of the Court Systems Journal;
- (viii) Committee on Continuing Legal Education and Bar Matters;⁷
- (ix) Committee on Retirement Program
- (x) Committee on Public Information
- (xi) Judicial Reform Support Project Management Committee;
- (xii) Committee on Publication of the Advanced Syllabi;
- (xiii) Committee on Foreign Travel;
- (xiv) Committee on Justice on Wheels; and
- (xv) Committee on Gender Responsiveness in the Judiciary.

The Court may create other Committees as may be necessary with the Chief Justice designating the Committee Chairperson and Members.

7 As amended on January 17, 2012.

(b) Subcommittees may be created by the Chief Justice upon the recommendation of the Committee Chairperson.

(c) *Ad Hoc* committees shall be created as the need arises.

SEC 13. *Ethics Committee.* – In addition to the above, a permanent Committee on Ethics and Ethical Standards shall be established and chaired by the Chief Justice, with the following membership:

- (a) a working Vice-Chair appointed by the Chief Justice;
- (b) three (3) members chosen among themselves by the Court *en banc* by secret vote; and
- (c) a retired Supreme Court Justice chosen by the Chief Justice as a non-voting observer-consultant.

The Vice-Chair, the Members and the retired Supreme Court Justice shall serve for a term of one (1) year, with the election in the case of elected Members to be held at the call of the Chief Justice.

The Committee shall have the task of preliminarily investigating all complaints involving graft and corruption and violations of ethical standards, including anonymous complaints, filed against Members of the Court, and of submitting findings and recommendations to the Court *en banc*. All proceedings shall be completely confidential. The Committee shall also monitor and report to the Court the progress of the investigation of similar complaints against Supreme Court officials and employees, and handle the annual update of the Court's ethical rules and standards for submission to the Court *en banc*.

SEC 14. *Per curiam decisions.* – Unless otherwise requested by the Member assigned to write the opinion of the Court, the decision or resolution shall be rendered *per curiam*

- (a) where the penalty imposed is dismissal from service, disbarment, or indefinite suspension in administrative cases; or
- (b) in any other case by agreement of the majority of the Members or upon request of a Member.

SEC 15. *Form of resolution on motion for reconsideration in cases where the vote of Members of the Court is divided.* — The resolution of motions for reconsideration of decisions or signed resolutions, in case the opinion of the Court *en banc* or Division is divided, may be by minute resolution specifying the respective votes of the Members.⁸

SEC 16. *Filling up of Court positions in Senate and House Electoral Tribunals.* — Positions for Members of the Court in the Senate Electoral Tribunal and the House of Representatives Electoral Tribunal shall be designated by the Chief Justice among the Members of the Court in the order of seniority. The most senior Member shall serve as chairperson of the tribunal.

Rule 3

The Exercise Of Judicial Function

SECTION 1. *The Supreme Court a court of law.* — The Court is a court of law. Its primary task is to resolve and decide cases and issues presented by litigants according to law. However, it may apply equity where the court is unable to arrive at a conclusion or judgment strictly on the basis of law due to a gap, silence, obscurity or vagueness of the law that the Court can still legitimately remedy, and the special circumstances of the case.

SEC. 2. *The Court not a trier of facts.* — The Court is not a trier of facts; its role is to decide cases based on the findings of fact before it. Where the Constitution, the law or the Court itself, in the exercise of its discretion, decides to receive evidence, the reception of evidence may be delegated to a Member of the Court, to either the Clerk of Court or one of the Division Clerks of Court, or to one of the appellate courts or its justices who shall submit to the Court a report and recommendation on the basis of the evidence presented.

SEC. 3. *Advisory opinions proscribed.* — The Court cannot issue advisory opinions on the state and meaning of laws, or take cognizance of

8 As amended on August 3, 2010.

moot and academic questions, subject only to notable exceptions involving constitutional issues.

SEC 4. *Cases when the Court may determine factual issues.* — The Court shall respect the factual findings of lower courts, unless any of the following situations is present:

- (a) the conclusion is a finding grounded entirely on speculation, surmise and conjecture;
- (b) the inference made is manifestly mistaken;
- (c) there is grave abuse of discretion;
- (d) the judgment is based on a misapprehension of facts;
- (e) the findings of fact are conflicting;
- (f) the collegial appellate courts went beyond the issues of the case, and their findings are contrary to the admissions of both appellant and appellee;
- (g) the findings of fact of the collegial appellate courts are contrary to those of the trial court;
- (h) said findings of fact are conclusions without citation of specific evidence on which they are based;
- (i) the facts set forth in the petition as well as in the petitioner's main and reply briefs are not disputed by the respondents;
- (j) the findings of fact of the collegial appellate courts are premised on the supposed evidence, but are contradicted by the evidence on record; and
- (k) all other similar and exceptional cases warranting a review of the lower courts' findings of fact.

Rule 4

The Exercise Of Administrative Function

SECTION 1. *Disciplinary cases against Court personnel.* — Administrative supervision of courts and court personnel shall be undertaken by the Court *en banc*, provided that, in appropriate cases, such function may be undertaken by the Divisions.

SEC. 2. *Assisting offices in the exercise of administrative function.* — In the discharge of its administrative functions, the Court shall be assisted by

the Office of the Clerk of Court in administrative matters and cases involving the Court and the collegial appellate courts. Whenever necessary, the Court shall also be assisted by the Office of the Court Administrator in said matters and in administrative matters and cases involving lower court.⁹

SEC 3. *Administrative functions of the Court.* — The administrative functions of the Court, whether *en banc* or in division, consist of, but are not limited to, the following:

- (a) disciplinary and administrative matters involving justices, judges and court personnel;
- (b) the temporary assignment of judges to other stations as public interest may require;
- (c) the designation of judges from another administrative jurisdiction in the absence of judges that can be designated to hear and decide inhibited cases;
- (d) the request of judges for extension of time within which to decide cases submitted for decision;
- (e) the transfer of cases, from one court, administrative area or judicial region, to another, or the transfer of venue of the trial of cases to avoid miscarriage of justice;
- (f) the amendment, modification or revocation of administrative orders and circulars issued by the Court;
- (g) the policy consideration and determination of matters and issues;
- (h) matters involving the Judicial and Bar Council (JBC) or the Philippine Judicial Academy (PHILJA) in the exercise of the Court's supervisory authority over them; and
- (i) other matters similar or analogous to the foregoing.¹⁰

9 As amended on August 3, 2010.

10 As amended on August 3, 2010.

Rule 5

Precedence And Protocol

SECTION 1. *Concept.* — The Chief Justice enjoys precedence over all other Members of the Court in all official functions. The Associate Justices shall have precedence according to the order of their appointments as officially transmitted to the Supreme Court.

SEC. 2. *When rule on precedence is applicable.* — The rule on precedence shall be applied in the following instances:

- (a) in the determination of the Chairpersonship of the Division;
- (b) in the seating arrangement of the Justices in all official functions; and
- (c) in the choice of office space, facilities, equipment, transportation, and cottages.

SEC. 3. *When rule on precedence is not applicable.* — Precedence in rank shall not be observed in social and other non-official functions or be used to justify discrimination in the assignment of cases, amount of compensation, allowances or other forms of remuneration.

PART II

Rule 6

Filing, Receiving, And Processing Of Initiatory Pleadings And Appeals

SEC. 1. *Governing rules of procedure in appeals or petitions filed in the Supreme Court.* — All appeals or petitions and pleadings that initiate an application for relief shall be filed with the Court only in accordance with the procedure provided by the Rules of Court and other issuances of the Court.

SEC. 2. *Reception of pleadings and other documents.* — All appeals and petitions in all types of cases, and original records in criminal cases shall be

filed with and received by the Receiving Section of the Docket Division of the Judicial Records Office during office hours.

SEC. 3. *Assessment and payment.* — An initiatory pleading shall be processed pursuant to the pertinent provisions of the Rules of Court and issuances of the Court. The corresponding legal fees shall then be assessed and paid.

SEC. 4. *Docket number and entry in logbook.* — An initiatory pleading properly filed shall be assigned a docket or G.R. (General Register) number, which shall identify the case for record purposes until its termination under the Rules of Court. Any case for which no docket fee has been paid shall be assigned an undocketed or UDK number. All initiatory pleadings shall be entered in the logbook of the Receiving Section.

SEC. 5. *Case Administration System.* — Pleadings, letters, resolutions, decisions, entry of judgment, and all the relevant information regarding any particular case identified by a G.R. number or a UDK number shall be encoded in the Case Administration System (CAS).

SEC. 6. *Indexing and transmittal to Docket Division.* — After the recording in the logbook and encoding in the CAS by the Receiving Section, the initiatory pleading shall be indexed on a card that shall indicate such information as court of origin, the lower court case number(s), the nature of the case, the names of the counsel(s) for the litigants, and the date and time of transmittal to the Docket Division of the Judicial Records Office. The indexing of cases shall serve as a backup record of the receipt of a case by the Court. Thereafter, the initiatory pleading shall be transmitted to the Docket Division.

SEC. 7. *Classification of cases.* — A court attorney in the Docket Division shall preliminarily classify the petitions and appeals filed as *en banc* or as Division cases in accordance with law.

SEC. 8. *Recording of cases in the main docket book.* — The case shall be recorded in the main docket book of the Docket Division, where all pleadings, motions, communications, resolutions, the decision, the entry of judgment, and all relevant information on a particular case shall be recorded by handwriting. The personnel charged with making entries in the main

docket book of the said pleadings and other information shall affix his or her initials after such entries.

SEC. 9. *The rollo for each case.* — All original pleadings and other documents filed under the same docket number shall be encased in a folder or *rollo* with a Court *en banc*-approved, color-coded *cartolina* cover indicating the G.R. or UDK number, the title of the case, the date of filing, the date of submission for decision, and the nature of the case. The pages of the pleadings and other documents shall be consecutively numbered and attached to the *rollo* preferably by stitching or any method that ensures the integrity of the contents of the *rollo*.

SEC. 10. *Processing.* — A court attorney at the Docket Division of the Judicial Records Office shall accomplish the processing slips for all initiatory pleadings, including motions for extension of time to file petition. The processing slip shall serve as the checklist of the requirements of the Rules of Court for filing a case, and shall inform the Court of compliance or non-compliance by the appellant or petitioner with such requirements, as gathered from the initiatory pleading filed. Information provided by the processing slip shall be reported in the initial agenda item on the case.

SEC. 11. *Transmittal of rollo from the Receiving Section to the Office of the Clerk of Court or the Division Clerk of Court.* — The Judicial Records Office shall transmit all *rollos* to the Office of the Clerk of Court or Division Clerk of Court within three working days from receipt of pleadings, documents or papers attached to them, unless immediate transmittal is demanded by the nature of the case. Copies of pleadings, documents, or papers not attached to the *rollo* shall be distributed by said Offices to all Members of the Court *en banc* or of the Division.¹¹

11 As Amended on August 3, 2010.

Rule 7

Raffle Of Cases

SECTION 1. *Raffle of cases.* — Every initiatory pleading already identified by a G.R. or a UDK number shall be raffled among the Members of the Court. The Member-in-Charge to whom a case is raffled, whether such case is to be taken up by the Court *en banc* or by a Division, shall oversee its progress and disposition unless for valid reason, such as inhibition, the case has to be re-raffled, unloaded or assigned to another Member.

SEC. 2. *Raffle Committee.* — Two Raffle Committees—one for the *en banc* and the other for Division cases, each to be composed of a Chairperson and two members—shall be designated by the Chief Justice from among the Members of the Court on the basis of seniority.

SEC. 3. *Raffle Committee Secretariat.* — The Clerk of Court shall serve as the Secretary of the Raffle Committee. He or she shall be assisted by a court attorney, duly designated by the Chief Justice from either the Office of the Chief Justice or the Office of the Clerk of Court, who shall be responsible for (a) recording the raffle proceedings and (b) submitting the minutes thereon to the Chief Justice. The Clerk of Court shall make the result of the raffle available to the parties and their counsels or to their duly authorized representatives, except the raffle of (a) bar matters; (b) administrative cases; and (c) criminal cases where the penalty imposed by the lower court is life imprisonment, and which shall be treated with strict confidentiality.

SEC. 4. *Classification of cases for raffle.* — The initiatory pleadings duly docketed at the Judicial Records Office shall be classified into *en banc* and Division cases for purposes of the raffle. The Clerk of Court shall forthwith make a report on the classified cases to the Chief Justice.

SEC. 5. *Schedule of regular raffle.* — Regular raffle of *en banc* and Division cases shall be held on Mondays and Wednesdays, respectively.

SEC. 6.¹² *Procedure in the Raffle of Cases.* — The following rules shall be observed in the raffle of cases:

- (a) For Division cases, the Chief Justice is exempt for three (3) rounds while the Chairpersons (including the Working Chairperson of the First Division) are exempt for two (2) rounds;
- (b) For *En Banc* cases, the Chief Justice is exempt for two (2) rounds while the Chairpersons (including the Working Chairperson of the First Division) are exempt from one (1) round;
- (c) Members who are on wellness leave or who are on vacation or sick leave, for at least fifteen (15) continuous calendar days, shall be exempt from raffle. Retiring Members shall also be excluded from raffle three (3) months prior to date of retirement.¹³

SEC. 7. *Special raffle of cases.* — Should an initiatory pleading pray for the issuance of a temporary restraining order or an urgent and extraordinary writ such as the writ of habeas corpus or of *amparo*, and the case cannot be included in the regular raffle, the Clerk of Court shall immediately call the attention of the Chief Justice or, in the latter's absence, the most senior Member of the Court present. The Chief Justice or the Senior Member of the Court may direct the conduct of a special raffle, in accordance with the following procedure:

- (a) Upon receipt of an initiatory pleading containing a motion for the conduct of a special raffle, the Judicial Records Office shall immediately (i) process the pleading and (ii) transmit a copy of it to the Office of the Clerk of Court.
- (b) The Judicial Records Office shall inform the Clerk of Court in writing of the motion for special raffle, and the Clerk of Court shall forthwith seek authority to conduct special raffle from the Chief Justice or substitute Senior Member, as the case may be.

12 The former Section 6 is renumbered as Section 7, Section 7 is renumbered as Section 8 and Section 8 is renumbered as Section 9.

13 As amended on September 18, 2012.

- (c) The special raffle shall be conducted immediately.
- (d) The Clerk of Court shall furnish the Member-in-Charge to whom the case is raffled, the Judicial Records Office, and the *Rollo* Room at the Office of the Chief Justice, copies of the result of the special raffle in an envelope marked "RUSH." The Member-in-Charge shall also be furnished a copy of the pleading. If the case is classified as a Division case, the Clerk of Court shall furnish the same copies to the Office of the Clerk of Court of the Division to which the same Member-in-Charge belongs and to the Division Chairperson
- (e) Upon receipt of the special raffle result, the Judicial Records Office shall immediately forward the *rollo* to the Division concerned, with the word "RUSH" clearly indicated on the *rollo* cover.
- (f) Upon receipt of the *rollo*, the Clerk of Court — or, should the case be classified as a Division case, the Division Clerk of Court — shall immediately (i) prepare the agenda item on the specially raffled case; and (ii) forward the *rollo* and a copy of the supplemental agenda to the *Rollo* Room, which shall transmit the *rollo* to the Member-in-Charge and distribute the supplemental agenda to the Chief Justice and the Members of the Court or to the Chairperson and Members of the Division, as the case may be.¹⁴
- (g) When the Court is in recess and the urgency of the case requires immediate action, the Clerk of Court or the Division Clerk of Court shall personally transmit the *rollo* to the Chief Justice or the Division Chairperson for his or her action.

SEC. 8. *Conduct of the raffle.* — The cases included in a previously prepared list shall be raffled using a reasonably acceptable random raffle device under a system that shall ensure the fair and equitable distribution of case load among all Members of the Court.

SEC. 9. *Transfer of rollos of raffled cases.* — The *rollos* of all raffled cases shall be delivered to the Offices of the respective Clerks of Court, for inclusion in the next agenda of the Court *en banc* or the Division.

¹⁴ As amended on August 3, 2010.

Rule 8

Inhibition And Substitution Of Members Of The Court

SECTION 1. *Grounds for inhibition.* — A Member of the Court shall inhibit himself or herself from participating in the resolution of the case for any of these and similar reasons:

- (a) the Member of the Court was the *ponente* of the decision or participated in the proceedings in the appellate or trial court;
- (b) the Member of the Court was counsel, partner or member of a law firm that is or was the counsel in the case subject to Section 3(c) of this rule;
- (c) the Member of the Court or his or her spouse, parent or child is pecuniarily interested in the case;
- (d) the Member of the Court is related to either party in the case within the sixth degree of consanguinity or affinity, or to an attorney or any member of a law firm who is counsel of record in the case within the fourth degree of consanguinity or affinity;
- (e) the Member of the Court was executor, administrator, guardian or trustee in the case; and
- (f) the Member of the Court was an official or is the spouse of an official or former official of a government agency or private entity that is a party to the case, and the Justice or his or her spouse has reviewed or acted on any matter relating to the case.

A Member of the Court may in the exercise of his or her sound discretion, inhibit himself or herself for a just or valid reason other than any of those mentioned above.

The inhibiting Member must state the precise reason for the inhibition.

SEC. 2. *Motion to inhibit a Division or a Member of the Court.* — A motion for inhibition must be in writing and under oath and shall state the grounds therefore.

No motion for inhibition of a Division or a Member of the Court shall be granted after a decision on the merits or substance of the case has been rendered or issued by any Division, except for a valid or just reason such as an allegation of a graft and corrupt practice or a ground not earlier apparent.¹⁵

SEC. 3. *Effects of inhibition.* — The consequences of an inhibition of a Member of the Court shall be governed by these rules:

- (a) Whenever a Member-in-Charge of a case in a Division inhibits himself for a just and valid reason, the case shall be returned to the Raffle Committee for re-raffling among the Members of the other two (2) Divisions of the Court.¹⁶
- (b) Whenever a Member of the Division, other than the Member-in-Charge of a case, inhibits on any of the grounds specified in Section 1, except paragraph (b), the case shall be decided by the four remaining Members of the Division and another Member of the two other Divisions chosen by raffle to act on the case.
- (c) When a Member of the Division, other than the Member-in-Charge of a case, was counsel or partner or member of a law firm that is or was counsel in the case before the Division, such Member shall inhibit himself or herself, unless the Member was no longer a partner or member of the law firm when it was engaged as counsel in the case and the Member votes against the client of such firm. In any event, the mandatory inhibition shall cease after the lapse of ten years from the resignation or withdrawal of the Member from the law firm, unless the Member personally handled the case when he or she was a partner or member of the law firm.
- (d) Whenever two or more Members of the Division, other than the Member-in-Charge of a case, inhibit themselves from a

¹⁵ As amended on August 3, 2010.

¹⁶ As amended on August 3, 2010.

case, they shall be replaced by raffle by Members of the other Divisions.

- (e) A Member of the Court who inhibits, on the grounds specified in Section 1, shall be assigned an additional case at the next raffle of Division cases.

SEC. 4. *Substitution of Member.* When a Member of the Court is on leave or a vacancy occurs in a Division, another Member from the other Divisions shall be designated by the Chief Justice by rotation, according to a reverse order of seniority, to act as Member of the Division until the regular Member reports back to work or a newly appointed Member assumes office, as the case may be.

Rule 9

Folder Of Pleadings, Communications, Documents And Other Papers In A Case

SECTION 1. *The rollo of a case.* — The original of all pleadings, communications, documents, and other papers filed by the parties shall be encased in a *rollo*, which shall serve as their official repository for purposes of the case. The *rollo* shall be properly and sequentially paginated by the docketing office concerned to prevent intercalation or detachment of a page.

To ensure that all such pleadings, communications, documents and other papers are attached to the *rollos*, including official copies of resolutions, orders and decisions as well as proofs of service thereof on the parties, the *rollos* of cases reported in the court agenda, except cases submitted for decision or resolution, shall be returned to the Office of the Clerk of Court or of the Division Clerk of Court within twenty-four (24) hours after the session.¹⁷

SEC. 2. *Repository of rollos.* — All *rollos* of cases submitted for decision shall be kept in the *Rollo Room* in the Office of the Chief Justice, except when taken out for delivery to any of the following: (1) the Judicial Records Office for attachment of a pleading, communication, document or other papers

¹⁷ As amended on September 10, 2013.

filed; (2) the Office of the Clerk of Court or the Office of the Division Clerk of Court, for the preparation of the agenda and of the minutes of a court session, as well as for the attachment of the decisions or resolutions to the *rollo*; (3) the Office of the Member-in-Charge or the Office of the *ponente* or writer of the decision or resolution and (4) any Office or official charged with the study of the case.

All personnel charged with the safekeeping and distribution of *rollos* shall be bound by strict confidentiality on the identity of the Member-in-Charge or the *ponente*, as well as on the integrity of the *rollos*, under pain of administrative sanction and criminal prosecution for any breach thereof.¹⁸

SEC. 3. *The expediente.* — The Office of the Clerk of Court or of the Division Clerk of Court shall provide copies of all pleadings, communications, documents, and other papers of a case to the Offices of the Members of the Court for the constitution of an *expediente* to facilitate access and easy reference to a case.

SEC. 4. *Confidentiality of identity of Member-in-Charge or ponente and of Court actions.* — Personnel assigned to the *Rollo* Room and all other Court personnel handling documents relating to the raffling of cases are bound by strict confidentiality on the identity of the Member-in-Charge or *ponente* and on the actions taken on the case.

Rollo Room personnel may release a *rollo* only upon an official written request from the Chief Judicial Staff head or the Chief of Office of the requesting Office. The *rollo* room personnel may release a *rollo* only to an authorized personnel named in the official written request. All personnel handling the *rollos* are bound by the same strict confidentiality rules.

SEC. 5. *Consolidation of cases.* — The Court may order the consolidation of cases involving common questions of law or of fact. The Chief Justice shall assign the consolidated cases to the Member-in-Charge to whom the case having the lower or lowest docket number has been raffled, subject to equalization of case load by raffle, *provided* that the controlling title shall be the title of the case with the lowest docket number unless otherwise

18 As amended on August 3, 2010.

decided by the Court *en banc* upon recommendation of the Member-in-Charge.

The Judicial Records Office shall see to it that (a) the *rollos* of the consolidated cases are joined together to prevent the loss, misplacement or detachment of any of them; and (b) the cover of each *rollo* indicated the G.R. or UDK number of the case with which the former is consolidated.

The Member-in-Charge who finds after study that the cases do not involve common questions of law or fact may request the Court to have the case or cases returned to the original Member-in-Charge.¹⁹

SEC. 6. *Reconstitution of lost rollo.* – When a *rollo* is lost and a diligent search for it proves futile, the personnel-in-charge of the *Rollo* Room shall immediately inform the Chief Justice or the proper Chairperson of the Division of such loss. Without prejudice to any administrative or criminal liability of the personnel responsible for the loss, the Chief Justice or the Chairperson of the Division concerned shall direct the Judicial Records Office to reconstitute the *rollo* and request the counsel and the parties to personally appear and submit, on a specified date, legible copies of the pleadings, communications, documents, and other papers filed in the case, and to authenticate their respective submissions.

The same procedure shall be observed when the loss of a *rollo* occurs in the office of a Member of the Court. The Judicial Staff Head concerned shall immediately report the loss.

Entries in the main docket book of the Judicial Records Office, as well as in the Case Administration System, shall be used for verification purposes.

¹⁹ As amended on March 12, 2013.

Rule 10

Court Sessions and Hearings

SECTION 1. *Court sessions.* — The Court *en banc* shall hold sessions every Tuesday. The Divisions may meet on Mondays and Wednesdays. Special sessions may be held whenever necessary. In every sessions, proceedings shall follow the agenda of cases and matters to be taken up. Actions taken during sessions shall be duly reflected in the minutes of the proceedings.

SEC. 2. *Confidentiality of court sessions.* - Court sessions are executive in character, with only the Members of the Court present. Court deliberations are confidential and shall not be disclosed to outside parties, except as may be provided herein or as authorized by the Court.

The Chief Justice or the Division Chairperson shall record the action or actions taken in each case for transmittal to the Clerk of Court or Division Clerk of Court after each session. The notes of the Chief Justice and the Division Chairperson, which the Clerk of Court and the Division Clerks of Court must treat with strict confidentiality, shall be the bases of the minutes of the sessions.

SEC. 3. *Oral arguments.* - The Court may hear any case on oral argument upon defined issues. The petitioner shall argue first, followed by the respondent and the *amicus curiae*, if any. Rebuttal arguments may be allowed by the Chief Justice or the Chairperson. If necessary, the Court may invite *amicus curiae*.

SEC. 4. *Transcripts of hearings, recording of oral arguments.* - Oral arguments shall be recorded by at least two stenographers, alternately taking stenographic notes of the proceedings. The stenographers shall transcribe their notes and submit the consolidated transcripts to the Clerk of Court or the Division Clerk of Court immediately upon the termination of the oral arguments. The Clerk of Court or the Division Clerk of Court shall review the transcripts of stenographic notes, using the tape or electronic recording of

the hearing for verification purposes.²⁰

Rule 11

Agenda and Minutes of Court Sessions

SECTION. 1. *Agenda.* - The Clerk of Court and the Division Clerks of Court shall ensure that all pleadings, communications, documents, and other papers duly filed in a case shall be reported in the agenda for consideration by the Court *en banc* or the Division. The agenda items for each case shall adequately apprise the Court of relevant matters for its consideration.

SEC. 2. *Periods for inclusion of pleadings, motions, and other matters in the agenda.* - As much as practicable, the Clerk of Court and the Division Clerks of Court shall observe the following periods for the inclusion of pleadings, motions, and other matters in the agenda counted from receipt:

- (a) motions for extension of time to file petitions - immediately calendared;
- (b) appeals in criminal cases under Article 47 of the Revised Penal Code, as amended, or under Rule 122 of the Rules of Court - within fifteen days;
- (c) petitions under Rules 45, 64 and 65 - within ten days, unless a party asks for the issuance of a temporary restraining order or an extraordinary writ, and the Chief Justice authorizes the holding of a special raffle and the immediate inclusion of the case in the agenda;
- (d) motion for inhibition - within ten days, unless the petition prays for a temporary restraining order, in which case the motion must be immediately included in the agenda; and
- (e) other pleadings - within ten days.

The foregoing notwithstanding, the Chief Justice may direct the immediate inclusion of any matter in the agenda.²¹

SEC. 3. *Minutes of proceedings.*- The Chief Justice or the Division

²⁰ As amended on August 3, 2010.

²¹ As amended on August 3, 2010.

Chairperson shall provide the Clerk of Court or the Division Clerk of Court his or her notes on the actions taken by the Court within two (2) working days from the date of deliberation. The copy of the agenda containing the handwritten notes of the Chief Justice or the Division Chairperson shall serve as the basis for the preparation of the minutes of the session by the Office of the Clerk of Court or of the Division Clerks of Court.²²

SEC. 4. *Preparation of minutes of proceedings.* - As much as practicable, the Clerk of Court and the Division Clerks of Court shall observe the following guidelines on the preparation of minutes of court sessions:

(1) Within two (2) working days from receipt of the copy of the agenda containing the handwritten notes of the Chief Justice or the Division Chairperson, otherwise known as the 'action', the Clerk of Court or the Division Clerk of Court shall submit the draft of the immediate and advance minute resolutions to the Office of the Chief Justice or of the Division Chairperson. For this purpose, 'immediate resolutions' shall refer to minute resolutions which, upon specific instructions of the Chief Justice or the Division Chairperson, must be prepared and released immediately. 'Advance resolutions' shall refer to minute resolutions which, by their nature or by tradition, must be prepared and released in advance of the draft minutes, including but not limited to urgent matters described in Section 8 of this Rule.

(2) Within six (6) working days from receipt of the Action, the Clerk of Court or the Division Clerk of Court shall submit the draft of the whole minutes for approval by the Chief Justice or the Division Chairperson. All concerned Members of the Court must be furnished with copies of the draft minutes on the same day.

(3) The minutes of a court session shall follow the chronological sequence of the cases in the agenda.

(4) Comments on and/or revisions to the draft immediate or advance resolutions or the draft minutes must be submitted to the Office of the Chief Justice or of the Division Chairperson within two (2) working days from receipt thereof; otherwise, the draft resolution or the draft minutes shall be deemed approved.

(5) Upon the expiration of the period in paragraph (4), the Office of

22 As amended on August 3, 2010.

the Chief Justice or of the Division Chairperson shall immediately transmit the approved resolution or the approved minutes to the Clerk of Court or the Division Clerk of Court.²³

SEC. 5. *Confidentiality of minutes prior to release.* - The Offices of the Clerk of Court and of the Division Clerks of Court are bound by strict confidentiality on the action or actions taken by the Court prior to the approval of the draft of the minutes of the court session and release of the resolutions embodying the Court action or actions.

A resolution is considered officially released once the envelope containing a final copy of it addressed to the parties has been transmitted to the process server for personal service or to the mailing section of the Judicial Records Office. Only after its official release may a resolution be made available to the public.²⁴

SEC. 6. *Preparation of minute resolutions and unsigned extended resolutions.* - Upon receipt of the approved minutes of the court session, the pertinent notice of the minute resolutions quoting an excerpt of the minutes of court sessions pertinent to a case shall be prepared by the court attorneys in the Office of the Clerk of Court or the Division Clerk of Court and personally reviewed, approved, and initialled by the Clerk of Court or the Division Clerk of Court.

An unsigned extended resolution may, however, be prepared by the Office of the Member-in-Charge or by the Office of the Clerk of Court or Division Clerk of Court, upon instructions of either the Chief Justice or the Division Chairperson, who shall approve the same. The Chief Justice and the Division Chairperson shall order the Clerk of Court or the Division Clerk of Court to release duly approved minute and unsigned extended resolutions.²⁵

SEC. 7. *Form of notice of a minute resolution.* - A notice of a minute resolution shall be embodied in a letter of the Clerk of Court or the Division Clerk of Court notifying the parties of the action or actions taken in their case. In the absence of or whenever so deputized by the Clerk of Court or the

23 As amended on September 10, 2013.

24 As amended on August 3, 2010.

25 As amended on August 3, 2010.

Division Clerk of Court, the Assistant Clerk of Court or Assistant Division Clerk of Court may likewise sign the letter which shall be in the following form:

(SUPREME COURT Seal)
REPUBLIC OF THE PHILIPPINES
SUPREME COURT
Manila

EN BANC/ _____ DIVISION

NOTICE

Sirs/Mesdames:

Please take notice that the Court en banc/ _____ Division issued a Resolution dated _____, which reads as follows:

"G.R./UDK/A.M./A.C. NO. _ _ _ (TITLE). - (QUOTE RESOLUTION)"

Very truly yours,
(Sgd.)

CLERK OF COURT/DIVISION CLERK OF COURT²⁶

SEC. 8. *Release of resolutions.* - All resolutions shall be promptly released after the approval of the minutes of any session by the Chief Justice or the Division Chairperson. Resolutions with the following actions shall, however, be released immediately to the parties:

- (a) directing the issuance of extraordinary writs;
- (b) granting or denying motions for extension of time to file petitions or subsequent pleadings, lifting of warrants of arrest or

²⁶ As amended on August 3, 2010.

- other motions of urgent nature;
- (c) granting applications for a temporary restraining order/status quo order/writ of preliminary injunction;
- (d) preventively suspending judges or court personnel; and
- (e) directing any party, the Office of the Court Administrator, or any other official or agency to submit a comment, a report or a recommendation within a non-extendible period.²⁷

Rule 12

Voting Requirements

SECTION 1. *Voting requirements.* - (a) All decisions and actions in Court *en banc* cases shall be made upon the concurrence of the majority of the Members of the Court who actually took part in the deliberations on the issue or issues involved and voted on them.

(b) All decisions and actions in Division cases shall be made upon the concurrence of at least three Members of the Division who actually took part in the deliberations on the issue or issues involved and voted on them.²⁸

SEC. 2. *Tie voting in the Court en banc.* - (a) In civil cases, including special proceedings and special civil actions, where the Court *en banc* is

²⁷ As amended on August 3, 2010.

²⁸ Art. VIII of the Constitution states:

SEC. 4 (1) The Supreme Court shall be composed of the Chief Justice and fourteen Associate Justices. It may sit *en banc* or in its discretion, in divisions of three, five, or seven Members. Any vacancy shall be filled within ninety days from the occurrence thereof.

(2) All cases involving the constitutionality of a treaty, international or executive agreement, or law, which shall be heard by the Supreme Court *en banc*, and all other cases which under the Rules of Court are required to be heard *en banc*, including those involving the constitutionality, application, or operation of presidential decrees, proclamations, orders, instructions, ordinances, and other regulations, shall be decided with the concurrence of a majority of the Members who actually took part in the deliberations on the issues in the case and voted thereon.

(3) Cases or matters heard by a division shall be decided or resolved with the concurrence of a majority of the Members who actually took part in the deliberations on the issues in the case and voted thereon, and in no case, without the concurrence of at least three of such Members. When the required number is not obtained, the case shall be decided *en banc*: Provided, that no doctrine or principle of law laid down by the court in a decision rendered *en banc* or in division may be modified or reversed except by the court sitting *en banc*.

equally divided in opinion or the necessary majority vote cannot be had, the Court shall deliberate on it anew. If after such deliberation still no decision is reached, the Court shall, in an original action filed with it, dismiss the case; in appealed cases, it shall affirm the judgment or order appealed from.

(b) In criminal cases, when the Court *en banc* is equally divided in opinion or the necessary majority cannot be had, the Court shall deliberate on it anew. If after such deliberation still no decision is reached, the Court shall reverse the judgment of conviction of the lower court and acquit the accused.

(c) When, in an administrative case against any of the Justices of the appellate courts or any of the Judges of the trial courts, the impossible penalty is dismissal and the Court *en banc* is equally divided in opinion or the majority vote required by the Constitution for dismissal cannot be had, the Court shall deliberate on the case anew. If after such deliberation still no decision is reached, the Court shall dismiss the administrative case, unless a majority vote decides to impose a lesser penalty.

(d) Where the Court *en banc* is equally divided in opinion or the majority vote required by the Constitution for annulling any treaty, international or executive agreement, law, presidential decree, proclamation, order, instruction, ordinance, or regulation cannot be had, the Court shall deliberate on the case anew. If after such deliberation still no decision is reached, the Court shall deny the challenge to the constitutionality of the act.

(e) In all matters incidental to the main action where the Court *en banc* is equally divided in opinion, the relief sought shall be denied.

SEC. 3. *Failure to obtain required votes in Division.* - Where the necessary majority of three votes is not obtained in a case in a Division, the case shall be elevated to the Court *en banc*.

SEC. 4. *Leaving a vote.* - A Member who goes on leave or is unable to attend the voting on any decision, resolution, or matter may leave his or her vote in writing, addressed to the Chief Justice or the Division Chairperson, and the vote shall be counted, provided that he or she took part in the deliberation.

Rule 13

Decision-making Process

SECTION 1. *Period for deciding or resolving cases.* - The Court shall decide or resolve all cases within twenty-four months from the date of submission for resolution. A case shall be deemed submitted for decision or resolution upon the filing of the last pleading, brief, or memorandum that the Court or its Rules require.

The Member-in-Charge, assigned to oversee the progress and disposition of a case, who is unable to decide or resolve the oldest cases within that period shall request the Court *en banc* for an extension of the period, stating the ground for the request. The Court shall act on the request as it sees fit, according to the circumstances of the case.

Should a Member object to the request, the Court shall grant a final extension of thirty days within which the Member-in-Charge shall report the case for deliberation, failing which, the case shall be re-raffled to another Member who shall submit the report within thirty days from assignment.

SEC. 2. *List of cases submitted for decision or resolution.* - The Clerk of Court and the Division Clerks of Court shall maintain a system for apprising the Court periodically, at least six months before the last day of the twenty-four-month period for deciding or resolving a case, of the approach of such cut off date.

SEC. 3. *Actions and decisions, how reached.* - The actions and decisions of the Court whether *en banc* or through a Division, shall be arrived at as follows:

- (a) *Initial action on the petition or complaint.* - After a petition or complaint has been placed on the agenda for the first time, the Member-in-Charge shall, except in urgent cases, submit to the other Members at least three days before the initial deliberation in such case, a summary of facts, the issue or issues involved, and the arguments that the petitioner presents in support of his or her case. The Court shall, in consultation with its Members, decide on what action it will

take.

- (b) *Action on incidents.* - The Member-in-Charge shall recommend to the Court the action to be taken on any incident during the pendency of the case.
- (c) *Decision or Resolution.* - When a case is submitted for decision or resolution, the Member-in-Charge shall have the same placed in the agenda of the Court for deliberation. He or she shall submit to the other Members of the Court, at least seven days in advance, a report that shall contain the facts, the issue or issues involved, the arguments of the contending parties, and the laws and jurisprudence that can aid the Court in deciding or resolving the case. In consultation, the Members of the Court shall agree on the conclusion or conclusions in the case, unless the said Member requests a continuance and the Court grants it.

SEC. 4. *Continuance in deliberations.* - The deliberation on a case may be adjourned to another date to enable the Member who requested it to further study the case; provided, however, that the total period of continuances in the deliberation shall not exceed three months from the date it was first adjourned. This rule shall likewise apply to actions on motions for reconsideration of the decisions and resolutions of the Court, unless a Member, whose vote in the original decision of a divided Court matters, is about to retire. In such a situation, the action on the motion for reconsideration submitted for resolution shall be made before his or her retirement.

SEC. 5. *Ponente or Opinion writer.* - Immediately upon arriving at a conclusion regarding the issue or issues in the case, the Court shall assign²⁹ a Member to write the opinion of the Court. Should the majority vote of the Court on such conclusion be different from or contrary to the conclusion

29 Art. VIII of the Constitution provides:

SEC. 13. The conclusions of the Supreme Court in any case submitted to it for decision en banc or in division shall be reach in consultation before the case is assigned to a Member for the writing of the opinion of the Court. A certification to this effect signed by the Chief Justice shall be issued and a copy thereof attached to the record of the case and served upon the parties. Any Member who took no part, or dissented, or abstained from a decision or resolution must state the reason therefor. The same requirements shall be observed by all lower collegiate courts.

arrived at by the *ponente*, the writing of the new opinion shall be assigned to a *ponente* chosen by the majority.

SEC. 6. *Manner of adjudication.* - The Court shall adjudicate cases as follows:

- (a) By *decision*, when the Court disposes of the case on its merits and its rulings have significant doctrinal values; resolve novel issues; or impact on the social, political, and economic life of the nation. The decision shall state clearly and distinctly the facts and the law on which it is based. It shall bear the signatures of the Members who took part in the deliberation.
- (b) By *signed resolution*, when the Court comprehensively resolves the motion for reconsideration filed in the case or when a dissenting opinion is registered against such resolution. The signed resolution shall no longer discuss issues resolved in the decision and need not repeat the facts and the law stated in it. It shall also bear the signatures of the Members who took part in the deliberation.
- (c) By *unsigned resolution* when the Court disposes of the case on the merits, but its ruling is essentially meaningful only to the parties; has no significant doctrinal value; or is of minimal interest to the law profession, the academe, or the public. The resolution shall state clearly and distinctly the facts and the law on which it is based.
- (d) By *minute resolution* when the Court (1) dismisses a petition filed under Rule 64 or 65 of the Rules of Court, citing as legal basis the failure of the petition to show that the tribunal, board or officer exercising judicial or quasi-judicial functions has acted without or in excess of jurisdiction, or with grave abuse of discretion amounting to lack or excess of jurisdiction; (2) denies a petition filed under Rule 45 of the said Rules, citing as legal basis the absence of reversible error committed in the challenged decision, resolution, or order of the court below; (3) dismisses an administrative complaint, citing as legal basis failure to show a *prima facie* case against the respondent; (4) denies a motion for reconsideration, citing as legal basis the absence of a compelling or cogent

reason to grant the motion, or the failure to raise any substantial argument to support such motion or the decision of the Court has already passed upon the basic issues in the case; and (5) dismisses or denies a petition on technical grounds or deficiencies.³⁰

SEC. 7. *Dissenting, separate or concurring opinion.* - A Member who disagrees with the majority opinion, its conclusions, and the disposition of the case may submit to the Chief Justice or Division Chairperson a dissenting opinion, setting forth the reason or reasons for such dissent. A Member who agrees with the result of the case, but based on different reason or reasons may submit a separate opinion; a concurrence "in the result" should state the reason for the qualified concurrence. A Member who agrees with the main opinion, but opts to express other reasons for concurrence may submit a concurring opinion. The dissenting, separate, or concurring opinion must be submitted within one week from the date the writer of the majority opinion presents the decision for the signature of the Members.

SEC. 8. *Attestations and certifications on consultations held.* - In cases decided by a Division, the Division Chairperson shall issue an attestation regarding the conduct of consultation among its Members and the assignment of the writing of the decision to a Member after such consultation. In all decided cases, whether by the Court *en banc* or by a Division, the Chief Justice shall issue a certification regarding the conduct of consultation among the Members of the Court and the assignment of the writing of the decision to a Member after such consultation.

SEC. 9. *Submission of decisions and resolutions.* - The original of all decisions and resolutions as well as separate, concurring, or dissenting opinions shall be submitted to the Chief Justice, accompanied by electronic copies. The Judicial Staff Head of the Office of the *ponente* or the writer of the majority opinion shall certify, in writing, the authenticity of the electronic copies, which shall be placed in a separately marked, dated, and signed envelope.

SEC. 10. *Release of decisions and resolutions.* - The Clerk of Court or the

30 As amended on August 3, 2010.

Division Clerk of Court shall immediately release every decision or resolution from receipt of the same from the Office of the Chief Justice, indicating the date and hour of promulgation and affixing his or her signature underneath such date and hour. In the absence of the Clerk of Court or the Assistant Clerk of Court, the Division Clerks of Court or their assistants shall release the decisions of the Court *en banc*.³¹

SEC. 11. *Authentication of decisions and resolutions.* - All decisions, resolutions, and other Court issuances shall be released to the parties concerned only after these shall have been authenticated by the Clerk of Court or Division Clerk of Court through a bar code at the bottom of each page, which he or she shall personally affix, or by other means to protect the authenticity and integrity of such document. They shall also initial every page of *per curiam* decisions, minute resolutions, and unsigned extended resolutions.

Rule 14

Handling and Dissemination of Decisions and Resolutions

SECTION 1. *Promulgation.* - The date of promulgation shall be the date the decision or resolution is approved and adopted.³²

SEC. 2. *Report of promulgation.* - Within twenty-four hours from the promulgation of a decision or resolution, the Clerk of Court or the Division Clerk of Court shall formally inform the Chief Justice or the Division Chairperson of such promulgation.

SEC. 3. *Electronic dissemination of decision or resolution.* - Upon receipt of the report of promulgation, the Chief Justice shall direct the Chief Justice's Staff Head to deliver immediately the magnetic or electronic copy of the decision or resolution to the Management Information Systems Office (MISO).

SEC. 4. *Responsibilities of the MISO.* - Upon receipt of a copy of a

³¹ As amended on August 3, 2010.

³² As amended on August 3, 2010.

promulgated decision or resolution, the MISO shall

- (a) log the date and time of receipt;
- (b) format the decision or resolution in such a way as to make it readable on the Supreme Court website;
- (c) scan any handwritten notes on the signature page, such as "In the result," and include the signature page with the same handwritten notes for posting;
- (d) take note of any typographical error in the magnetic or electronic file of the decision or resolution, and immediately bring it to the attention of the writer of the decision or resolution, or the Chief Justice in case of a *per curiam* decision or when the writer has ceased to serve the Court;
- (e) immediately furnish the Library with soft copies of all decisions and resolutions for archival purposes.

SEC. 5. *Service and dissemination of decisions and signed resolutions.* - The Clerk of Court or the Division Clerk of Court shall see to the service of authenticated copies of the promulgated decision or signed resolution upon the parties in accordance with the provisions of the Rules of Court. The Clerk of Court or the Division Clerk of Court shall also immediately provide hard copies of the same to the Public Information Office, Office of the Court Administrator, Office of the Chief Attorney, Philippine Judicial Academy, and the Library.

SEC. 6. *Safekeeping of original hard copy of decision and drafting of syllabus of each promulgated decision.* - As soon as hard copies of the decision or resolution shall have been served on the parties and disseminated in accordance with these Rules, the Clerk of Court or the Division Clerk of Court shall deliver to the Office of the Reporter (a) the original hard copy of each signed decision or resolution for safekeeping, and (b) a reproduction of such hard copy for the preparation of the concise synopsis and syllabus of each decision or resolution duly approved by the writer of the decision or by the Chief Justice if the writer has retired or is no longer in the judicial service, prior to publication in the *Philippine Reports*. The Office of the Reporter shall (a) see to the secured safekeeping of original decisions that shall be collated and bound on a monthly basis, and (b) be responsible for the updated publication of the *Philippine Reports*.

SEC. 7. *Publication of decisions and resolutions.* - A decision and signed resolution of the Court shall be published in the *Philippine Reports*, with the synopsis and syllabus prepared by the Office of the Reporter. Other decisions and signed resolutions not so published may also be published in the *Philippine Reports* in the form of memoranda prepared by the Office of the Reporter. The Public Information Office (PIO) may choose and submit significant decisions and resolutions for publication in the *Official Gazette*.

Rule 15

Finality of Decision and Resolutions

SECTION 1. *Finality of decisions and resolutions.* - A decision or resolution of the Court may be deemed final after the lapse of fifteen days from receipt by the parties of a copy of the same subject to the following:

- (a) the date of receipt indicated on the registry return card signed by the party-or, in case he or she is represented by counsel, by such counsel or his or her representative-shall be the reckoning date for counting the fifteen-day period; and
- (b) if the Judgment Division is unable to retrieve the registry return card within thirty (30) days from mailing, it shall immediately inquire from the receiving post office on (i) the date when the addressee received the mailed decision or resolution; and (ii) who received the same, with the information provided by authorized personnel of the said post office serving as the basis for the computation of the fifteen-day period.³³

SEC. 2. *Motion for reconsideration.* - A motion for reconsideration filed within the fifteen-day period from receipt of a copy of the decision or resolution shall stay the execution of such decision or resolution unless, for good reasons shown, the Court directs otherwise.

SEC. 3. *Second motion for reconsideration.* - The Court shall not entertain a second motion for reconsideration, and any exception to this rule can only be granted in the higher interest of justice by the Court *en banc* upon

³³ As amended on August 3, 2010.

a vote of at least two-thirds of its actual membership. There is reconsideration "in the higher interest of justice" when the assailed decision is not only legally erroneous, but is likewise patently unjust and potentially capable of causing unwarranted and irremediable injury or damage to the parties. A second motion for reconsideration can only be entertained before the ruling sought to be reconsidered becomes final by operation of law or by the Court's declaration.

In the Division, a vote of three Members shall be required to elevate a second motion for reconsideration to the Court *en banc*.

Rule 16

Entry of Judgment

SECTION 1. *Entry of judgment.* - The entry of judgment covering the final decisions and resolutions of the Court shall be made in accordance with the Rules of Court. The date of entry of judgment shall be the date such decision or resolution becomes executory, unless the Court directs its immediate execution.

SEC. 2. *How entry of judgment is made.* - The entry of judgment shall be in the form of a certification indicating the date when the final decision or resolution of the Court has become executory and entered in the Book of Judgments. The entry shall restate the dispositive portion of the judgment or final resolution, and be duly signed by the Chief or the Assistant Chief of the Judicial Records Office and a photocopy thereof with the appropriate Supreme Court Seal shall be furnished the parties.³⁴

SEC. 3. *Time frame for entry of judgment.* - Unless the Court requires an immediate entry of judgment or the judgment is one of acquittal, the Judicial Records Office shall enter judgment after fifteen (15) days for Luzon, twenty (20) days for Visayas and thirty (30) days for Mindanao from the expiration of the fifteen-day reglementary period for filing a motion for

³⁴ As amended on August 3, 2010.

reconsideration.³⁵

SEC. 4. *Return of case records to lower court.* - The records of every decided case shall be returned to the court where it originated for execution of judgment on the same day that entry of judgment is made.

Rule 17

Correction of Typographical Errors in Decisions and Resolutions

SECTION 1. *Correction of typographical errors in decisions and resolutions.* - Typographical errors discovered after the promulgation or even after the publication of a decision or signed resolution may be corrected as follows:

- (a) The Reporter and the MISO shall, with the authority of the writer of the decision or resolution, make the necessary correction of typographical errors. In *per curiam* decisions and in unsigned resolutions, or when the *ponente* has retired, resigned or is no longer in the judicial service, the authority shall be given by the Chief Justice.
- (b) The correction of typographical errors shall be made by crossing out the incorrect word and inserting by hand the appropriate correction immediately above the corrected or cancelled word. The writer of the decision or the Chief Justice, as the case may be, shall authenticate the correction by affixing his or her initials and the date of correction immediately below the correction.

SEC. 2. *Report of corrections made.* - The Reporter and the MISO Chief shall submit to the Court, through the Clerk of Court, a quarterly report of cases where the decisions and resolutions have been corrected. The Clerk of Court shall thereafter include the report in the agenda of the Court *en banc* for confirmation of the correction.

Rule 18

³⁵ As amended on August 3, 2010.

Effectivity

SECTION 1. *Effectivity.* - These rules shall take effect fifteen (15) days after publication in a newspaper of general circulation in the Philippines.

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APPENDIX D

THE 1987 CONSTITUTION OF THE REPUBLIC OF THE PHILIPPINES

PREAMBLE

We, the sovereign Filipino people, imploring the aid of Almighty God, in order to build a just and humane society, and establish a Government that shall embody our ideals and aspirations, promote the common good, conserve and develop our patrimony, and secure to ourselves and our posterity, the blessings of independence and democracy under the rule of law and a regime of truth, justice, freedom, love, equality, and peace, do ordain and promulgate this Constitution.

ARTICLE I

NATIONAL TERRITORY

The national territory comprises the Philippine archipelago, with all the islands and waters embraced therein, and all other territories over which the Philippines has sovereignty or jurisdiction, consisting of its terrestrial, fluvial and aerial domains, including its territorial sea, the seabed, the subsoil, the insular shelves, and other submarine areas. The waters around, between, and connecting the islands of the archipelago, regardless of their breadth and dimensions, form part of the internal waters of the Philippines.

ARTICLE II

DECLARATION OF PRINCIPLES AND STATE POLICIES

Principles

Section 1. The Philippines is a democratic and republican State. Sovereignty resides in the people and all government authority emanates from them.

Section 2. The Philippines renounces war as an instrument of national policy, adopts the generally accepted principles of international law as part of the

law of the land and adheres to the policy of peace, equality, justice, freedom, cooperation, and amity with all nations.

Section 3. Civilian authority is, at all times, supreme over the military. The Armed Forces of the Philippines is the protector of the people and the State. Its goal is to secure the sovereignty of the State and the integrity of the national territory.

Section 4. The prime duty of the Government is to serve and protect the people. The Government may call upon the people to defend the State and, in the fulfillment thereof, all citizens may be required, under conditions provided by law, to render personal, military or civil service.

Section 5. The maintenance of peace and order, the protection of life, liberty, and property, and promotion of the general welfare are essential for the enjoyment by all the people of the blessings of democracy.

Section 6. The separation of Church and State shall be inviolable.

State Policies

Section 7. The State shall pursue an independent foreign policy. In its relations with other states, the paramount consideration shall be national sovereignty, territorial integrity, national interest, and the right to self-determination.

Section 8. The Philippines, consistent with the national interest, adopts and pursues a policy of freedom from nuclear weapons in its territory.

Section 9. The State shall promote a just and dynamic social order that will ensure the prosperity and independence of the nation and free the people from poverty through policies that provide adequate social services, promote full employment, a rising standard of living, and an improved quality of life for all.

Section 10. The State shall promote social justice in all phases of national development.

Section 11. The State values the dignity of every human person and guarantees full respect for human rights.

Section 12. The State recognizes the sanctity of family life and shall protect and strengthen the family as a basic autonomous social institution. It shall equally protect the life of the mother and the life of the unborn from conception. The natural and primary right and duty of parents in the rearing of the youth for civic efficiency and the development of moral character shall receive the support of the Government.

Section 13. The State recognizes the vital role of the youth in nation-building and shall promote and protect their physical, moral, spiritual, intellectual, and social well-being. It shall inculcate in the youth patriotism and nationalism, and encourage their involvement in public and civic affairs.

Section 14. The State recognizes the role of women in nation-building, and shall ensure the fundamental equality before the law of women and men.

Section 15. The State shall protect and promote the right to health of the people and instill health consciousness among them.

Section 16. The State shall protect and advance the right of the people to a balanced and healthful ecology in accord with the rhythm and harmony of nature.

Section 17. The State shall give priority to education, science and technology, arts, culture, and sports to foster patriotism and nationalism, accelerate social progress, and promote total human liberation and development.

Section 18. The State affirms labor as a primary social economic force. It shall protect the rights of workers and promote their welfare.

Section 19. The State shall develop a self-reliant and independent national economy effectively controlled by Filipinos.

Section 20. The State recognizes the indispensable role of the private sector, encourages private enterprise, and provides incentives to needed investments.

Section 21. The State shall promote comprehensive rural development and agrarian reform.

Section 22. The State recognizes and promotes the rights of indigenous cultural communities within the framework of national unity and development.

Section 23. The State shall encourage non-governmental, community-based, or sectoral organizations that promote the welfare of the nation.

Section 24. The State recognizes the vital role of communication and information in nation-building.

Section 25. The State shall ensure the autonomy of local governments.

Section 26. The State shall guarantee equal access to opportunities for public service and prohibit political dynasties as may be defined by law.

Section 27. The State shall maintain honesty and integrity in the public service and take positive and effective measures against graft and corruption.

Section 28. Subject to reasonable conditions prescribed by law, the State adopts and implements a policy of full public disclosure of all its transactions involving public interest.

ARTICLE III

BILL OF RIGHTS

Section 1. No person shall be deprived of life, liberty, or property without due process of law, nor shall any person be denied the equal protection of the laws.

Section 2. The right of the people to be secure in their persons, houses, papers, and effects against unreasonable searches and seizures of whatever nature and for any purpose shall be inviolable, and no search warrant or warrant of arrest shall issue except upon probable cause to be determined personally by the judge after examination under oath or affirmation of the

complainant and the witnesses he may produce, and particularly describing the place to be searched and the persons or things to be seized.

Section 3. (1) The privacy of communication and correspondence shall be inviolable except upon lawful order of the court, or when public safety or order requires otherwise, as prescribed by law.

(2) Any evidence obtained in violation of this or the preceding section shall be inadmissible for any purpose in any proceeding.

Section 4. No law shall be passed abridging the freedom of speech, of expression, or of the press, or the right of the people peaceably to assemble and petition the government for redress of grievances.

Section 5. No law shall be made respecting an establishment of religion, or prohibiting the free exercise thereof. The free exercise and enjoyment of religious profession and worship, without discrimination or preference, shall forever be allowed. No religious test shall be required for the exercise of civil or political rights.

Section 6. The liberty of abode and of changing the same within the limits prescribed by law shall not be impaired except upon lawful order of the court. Neither shall the right to travel be impaired except in the interest of national security, public safety, or public health, as may be provided by law.

Section 7. The right of the people to information on matters of public concern shall be recognized. Access to official records, and to documents and papers pertaining to official acts, transactions, or decisions, as well as to government research data used as basis for policy development, shall be afforded the citizen, subject to such limitations as may be provided by law.

Section 8. The right of the people, including those employed in the public and private sectors, to form unions, associations, or societies for purposes not contrary to law shall not be abridged.

Section 9. Private property shall not be taken for public use without just compensation.

Section 10. No law impairing the obligation of contracts shall be passed.

Section 11. Free access to the courts and quasi-judicial bodies and adequate legal assistance shall not be denied to any person by reason of poverty.

Section 12. (1) Any person under investigation for the commission of an offense shall have the right to be informed of his right to remain silent and to have competent and independent counsel preferably of his own choice. If the person cannot afford the services of counsel, he must be provided with one. These rights cannot be waived except in writing and in the presence of counsel.

(2) No torture, force, violence, threat, intimidation, or any other means which vitiate the free will shall be used against him. Secret detention places, solitary, incommunicado, or other similar forms of detention are prohibited.

(3) Any confession or admission obtained in violation of this or Section 17 hereof shall be inadmissible in evidence against him.

(4) The law shall provide for penal and civil sanctions for violations of this section as well as compensation to the rehabilitation of victims of torture or similar practices, and their families.

Section 13. All persons, except those charged with offenses punishable by reclusion perpetua when evidence of guilt is strong, shall, before conviction, be bailable by sufficient sureties, or be released on recognizance as may be provided by law. The right to bail shall not be impaired even when the privilege of the writ of habeas corpus is suspended. Excessive bail shall not be required.

Section 14. (1) No person shall be held to answer for a criminal offense without due process of law.

(2) In all criminal prosecutions, the accused shall be presumed innocent until the contrary is proved, and shall enjoy the right to be heard by himself and counsel, to be informed of the nature and cause of the accusation against him, to have a speedy, impartial, and public trial, to meet the witnesses face to face, and to have compulsory process to secure the attendance of witnesses and the production of evidence in his behalf. However, after arraignment, trial may proceed notwithstanding the absence of the accused: Provided, that he has been duly notified and his failure to appear is unjustifiable.

Section 15. The privilege of the writ of habeas corpus shall not be suspended except in cases of invasion or rebellion, when the public safety requires it.

Section 16. All persons shall have the right to a speedy disposition of their cases before all judicial, quasi-judicial, or administrative bodies.

Section 17. No person shall be compelled to be a witness against himself.

Section 18. (1) No person shall be detained solely by reason of his political beliefs and aspirations.

(2) No involuntary servitude in any form shall exist except as a punishment for a crime whereof the party shall have been duly convicted.

Section 19. (1) Excessive fines shall not be imposed, nor cruel, degrading or inhuman punishment inflicted. Neither shall death penalty be imposed, unless, for compelling reasons involving heinous crimes, the Congress hereafter provides for it. Any death penalty already imposed shall be reduced to reclusion perpetua.

(2) The employment of physical, psychological, or degrading punishment against any prisoner or detainee or the use of substandard or inadequate penal facilities under subhuman conditions shall be dealt with by law.

Section 20. No person shall be imprisoned for debt or non-payment of a poll tax.

Section 21. No person shall be twice put in jeopardy of punishment for the same offense. If an act is punished by a law and an ordinance, conviction or acquittal under either shall constitute a bar to another prosecution for the same act.

Section 22. No *ex post facto* law or bill of attainder shall be enacted.

ARTICLE IV

CITIZENSHIP

Section 1. The following are citizens of the Philippines:

1. Those who are citizens of the Philippines at the time of the adoption of this Constitution;
2. Those whose fathers or mothers are citizens of the Philippines;
3. Those born before January 17, 1973, of Filipino mothers, who elect Philippine citizenship upon reaching the age of majority; and
4. Those who are naturalized in accordance with law.

Section 2. Natural-born citizens are those who are citizens of the Philippines from birth without having to perform any act to acquire or perfect their Philippine citizenship. Those who elect Philippine citizenship in accordance with paragraph (3), Section 1 hereof shall be deemed natural-born citizens.

Section 3. Philippine citizenship may be lost or reacquired in the manner provided by law.

Section 4. Citizens of the Philippines who marry aliens shall retain their citizenship, unless by their act or omission, they are deemed, under the law, to have renounced it.

Section 5. Dual allegiance of citizens is inimical to the national interest and shall be dealt with by law.

ARTICLE V

SUFFRAGE

Section 1. Suffrage may be exercised by all citizens of the Philippines, not otherwise disqualified by law, who are at least eighteen years of age, and who shall have resided in the Philippines for at least one year and in the place wherein they propose to vote, for at least six months immediately

preceding the election. No literacy, property, or other substantive requirement shall be imposed on the exercise of suffrage.

Section 2. The Congress shall provide a system for securing the secrecy and sanctity of the ballot as well as a system for absentee voting by qualified Filipinos abroad.

The Congress shall also design a procedure for the disabled and the illiterates to vote without the assistance of other persons. Until then, they shall be allowed to vote under existing laws and such rules as the Commission on Elections may promulgate to protect the secrecy of the ballot.

ARTICLE VI

THE LEGISLATIVE DEPARTMENT

Section 1. The legislative power shall be vested in the Congress of the Philippines which shall consist of a Senate and a House of Representatives, except to the extent reserved to the people by the provision on initiative and referendum.

Section 2. The Senate shall be composed of twenty-four Senators who shall be elected at large by the qualified voters of the Philippines, as may be provided by law.

Section 3. No person shall be a Senator unless he is a natural-born citizen of the Philippines and, on the day of the election, is at least thirty-five years of age, able to read and write, a registered voter, and a resident of the Philippines for not less than two years immediately preceding the day of the election.

Section 4. The term of office of the Senators shall be six years and shall commence, unless otherwise provided by law, at noon on the thirtieth day of June next following their election. No Senator shall serve for more than two consecutive terms. Voluntary renunciation of the office for any length of time shall not be considered as an interruption in the continuity of his service for the full term of which he was elected.

Section 5. (1) The House of Representatives shall be composed of not more than two hundred and fifty members, unless otherwise fixed by law, who shall be elected from legislative districts apportioned among the provinces, cities, and the Metropolitan Manila area in accordance with the number of their respective inhabitants, and on the basis of a uniform and progressive ratio, and those who, as provided by law, shall be elected through a party-list system of registered national, regional, and sectoral parties or organizations.

(2) The party-list representatives shall constitute twenty per centum of the total number of representatives including those under the party list. For three consecutive terms after the ratification of this Constitution, one-half of the seats allocated to party-list representatives shall be filled, as provided by law, by selection or election from the labor, peasant, urban poor, indigenous cultural communities, women, youth, and such other sectors as may be provided by law, except the religious sector.

(3) Each legislative district shall comprise, as far as practicable, contiguous, compact, and adjacent territory. Each city with a population of at least two hundred fifty thousand, or each province, shall have at least one representative.

(4) Within three years following the return of every census, the Congress shall make a reapportionment of legislative districts based on the standards provided in this section.

Section 6. No person shall be a Member of the House of Representatives unless he is a natural-born citizen of the Philippines and, on the day of the election, is at least twenty-five years of age, able to read and write, and, except the party-list representatives, a registered voter in the district in which he shall be elected, and a resident thereof for a period of not less than one year immediately preceding the day of the election.

Section 7. The Members of the House of Representatives shall be elected for a term of three years which shall begin, unless otherwise provided by law, at noon on the thirtieth day of June next following their election. No Member of the House of Representatives shall serve for more than three consecutive terms. Voluntary renunciation of the office for any length of time shall not be considered as an interruption in the continuity of his service for the full term for which he was elected.

Section 8. Unless otherwise provided by law, the regular election of the Senators and the Members of the House of Representatives shall be held on the second Monday of May.

Section 9. In case of vacancy in the Senate or in the House of Representatives, a special election may be called to fill such vacancy in the manner prescribed by law, but the Senator or Member of the House of Representatives thus elected shall serve only for the unexpired term.

Section 10. The salaries of Senators and Members of the House of Representatives shall be determined by law. No increase in said compensation shall take effect until after the expiration of the full term of all the Members of the Senate and the House of Representatives approving such increase.

Section 11. A Senator or Member of the House of Representatives shall, in all offenses punishable by not more than six years imprisonment, be privileged from arrest while the Congress is in session. No Member shall be questioned nor be held liable in any other place for any speech or debate in the Congress or in any committee thereof.

Section 12. All Members of the Senate and the House of Representatives shall, upon assumption of office, make a full disclosure of their financial and business interests. They shall notify the House concerned of a potential conflict of interest that may arise from the filing of a proposed legislation of which they are authors.

Section 13. No Senator or Member of the House of Representatives may hold any other office or employment in the Government, or any subdivision, agency, or instrumentality thereof, including government-owned or controlled corporations or their subsidiaries, during his term without forfeiting his seat. Neither shall he be appointed to any office which may have been created or the emoluments thereof increased during the term for which he was elected.

Section 14. No Senator or Member of the House of Representatives may personally appear as counsel before any court of justice or before the Electoral Tribunals, or quasi-judicial and other administrative bodies. Neither shall he, directly or indirectly, be interested financially in any

contract with, or in any franchise or special privilege granted by the Government, or any subdivision, agency, or instrumentality thereof, including any government-owned or controlled corporation, or its subsidiary, during his term of office. He shall not intervene in any matter before any office of the Government for his pecuniary benefit or where he may be called upon to act on account of his office.

Section 15. The Congress shall convene once every year on the fourth Monday of July for its regular session, unless a different date is fixed by law, and shall continue to be in session for such number of days as it may determine until thirty days before the opening of its next regular session, exclusive of Saturdays, Sundays, and legal holidays. The President may call a special session at any time.

Section 16. (1). The Senate shall elect its President and the House of Representatives, its Speaker, by a majority vote of all its respective Members. Each House shall choose such other officers as it may deem necessary.

(2) A majority of each House shall constitute a quorum to do business, but a smaller number may adjourn from day to day and may compel the attendance of absent Members in such manner, and under such penalties, as such House may provide.

(3) Each House may determine the rules of its proceedings, punish its Members for disorderly behavior, and, with the concurrence of two-thirds of all its Members, suspend or expel a Member. A penalty of suspension, when imposed, shall not exceed sixty days.

(4) Each House shall keep a Journal of its proceedings, and from time to time publish the same, excepting such parts as may, in its judgment, affect national security; and the yeas and nays on any question shall, at the request of one-fifth of the Members present, be entered in the Journal. Each House shall also keep a Record of its proceedings.

(5) Neither House during the sessions of the Congress shall, without the consent of the other, adjourn for more than three days, nor to any other place than that in which the two Houses shall be sitting.

Section 17. The Senate and the House of Representatives shall each have an Electoral Tribunal which shall be the sole judge of all contests relating to the election, returns, and qualifications of their respective Members. Each Electoral Tribunal shall be composed of nine Members, three of whom shall be Justices of the Supreme Court to be designated by the Chief Justice, and the remaining six shall be Members of the Senate or the House of Representatives, as the case may be, who shall be chosen on the basis of proportional representation from the political parties and the parties or organizations registered under the party-list system represented therein. The senior Justice in the Electoral Tribunal shall be its Chairman.

Section 18. There shall be a Commission on Appointments consisting of the President of the Senate, as ex officio Chairman, twelve Senators, and twelve Members of the House of Representatives, elected by each House on the basis of proportional representation from the political parties and parties or organizations registered under the party-list system represented therein. The chairman of the Commission shall not vote, except in case of a tie. The Commission shall act on all appointments submitted to it within thirty session days of the Congress from their submission. The Commission shall rule by a majority vote of all the Members.

Section 19. The Electoral Tribunals and the Commission on Appointments shall be constituted within thirty days after the Senate and the House of Representatives shall have been organized with the election of the President and the Speaker. The Commission on Appointments shall meet only while the Congress is in session, at the call of its Chairman or a majority of all its Members, to discharge such powers and functions as are herein conferred upon it.

Section 20. The records and books of accounts of the Congress shall be preserved and be open to the public in accordance with law, and such books shall be audited by the Commission on Audit which shall publish annually an itemized list of amounts paid to and expenses incurred for each Member.

Section 21. The Senate or the House of Representatives or any of its respective committees may conduct inquiries in aid of legislation in accordance with its duly published rules of procedure. The rights of persons appearing in, or affected by, such inquiries shall be respected.

Section 22. The heads of departments may, upon their own initiative, with the consent of the President, or upon the request of either House, as the rules of each House shall provide, appear before and be heard by such House on any matter pertaining to their departments. Written questions shall be submitted to the President of the Senate or the Speaker of the House of Representatives at least three days before their scheduled appearance. Interpellations shall not be limited to written questions, but may cover matters related thereto. When the security of the State or the public interest so requires and the President so states in writing, the appearance shall be conducted in executive session.

Section 23. (1) The Congress, by a vote of two-thirds of both Houses in joint session assembled, voting separately, shall have the sole power to declare the existence of a state of war.

(2) In times of war or other national emergency, the Congress may, by law, authorize the President, for a limited period and subject to such restrictions as it may prescribe, to exercise powers necessary and proper to carry out a declared national policy. Unless sooner withdrawn by resolution of the Congress, such powers shall cease upon the next adjournment thereof.

Section 24. All appropriation, revenue or tariff bills, bills authorizing increase of the public debt, bills of local application, and private bills, shall originate exclusively in the House of Representatives, but the Senate may propose or concur with amendments.

Section 25. (1) The Congress may not increase the appropriations recommended by the President for the operation of the Government as specified in the budget. The form, content, and manner of preparation of the budget shall be prescribed by law.

(2) No provision or enactment shall be embraced in the general appropriations bill unless it relates specifically to some particular appropriation therein. Any such provision or enactment shall be limited in its operation to the appropriation to which it relates.

(3) The procedure in approving appropriations for the Congress shall strictly follow the procedure for approving appropriations for other departments and agencies.

(4) A special appropriations bill shall specify the purpose for which it is intended, and shall be supported by funds actually available as certified by the National Treasurer, or to be raised by a corresponding revenue proposal therein.

(5) No law shall be passed authorizing any transfer of appropriations; however, the President, the President of the Senate, the Speaker of the House of Representatives, the Chief Justice of the Supreme Court, and the heads of Constitutional Commissions may, by law, be authorized to augment any item in the general appropriations law for their respective offices from savings in other items of their respective appropriations.

(6) Discretionary funds appropriated for particular officials shall be disbursed only for public purposes to be supported by appropriate vouchers and subject to such guidelines as may be prescribed by law.

(7) If, by the end of any fiscal year, the Congress shall have failed to pass the general appropriations bill for the ensuing fiscal year, the general appropriations law for the preceding fiscal year shall be deemed re-enacted and shall remain in force and effect until the general appropriations bill is passed by the Congress.

Section 26. (1) Every bill passed by the Congress shall embrace only one subject which shall be expressed in the title thereof.

(2) No bill passed by either House shall become a law unless it has passed three readings on separate days, and printed copies thereof in its final form have been distributed to its Members three days before its passage, except when the President certifies to the necessity of its immediate enactment to meet a public calamity or emergency. Upon the last reading of a bill, no amendment thereto shall be allowed, and the vote thereon shall be taken immediately thereafter, and the yeas and nays entered in the Journal.

Section 27. (1) Every bill passed by the Congress shall, before it becomes a law, be presented to the President. If he approves the same he shall sign it; otherwise, he shall veto it and return the same with his objections to the House where it originated, which shall enter the objections at large in its Journal and proceed to reconsider it. If, after such reconsideration, two-thirds of all the Members of such House shall agree to pass the bill, it shall be sent,

together with the objections, to the other House by which it shall likewise be reconsidered, and if approved by two-thirds of all the Members of that House, it shall become a law. In all such cases, the votes of each House shall be determined by yeas or nays, and the names of the Members voting for or against shall be entered in its Journal. The President shall communicate his veto of any bill to the House where it originated within thirty days after the date of receipt thereof, otherwise, it shall become a law as if he had signed it.

(2) The President shall have the power to veto any particular item or items in an appropriation, revenue, or tariff bill, but the veto shall not affect the item or items to which he does not object.

Section 28. (1) The rule of taxation shall be uniform and equitable. The Congress shall evolve a progressive system of taxation.

(2) The Congress may, by law, authorize the President to fix within specified limits, and subject to such limitations and restrictions as it may impose, tariff rates, import and export quotas, tonnage and wharfage dues, and other duties or imposts within the framework of the national development program of the Government.

(3) Charitable institutions, churches and personages or convents appurtenant thereto, mosques, non-profit cemeteries, and all lands, buildings, and improvements, actually, directly, and exclusively used for religious, charitable, or educational purposes shall be exempt from taxation.

(4) No law granting any tax exemption shall be passed without the concurrence of a majority of all the Members of the Congress.

Section 29. (1) No money shall be paid out of the Treasury except in pursuance of an appropriation made by law.

(2) No public money or property shall be appropriated, applied, paid, or employed, directly or indirectly, for the use, benefit, or support of any sect, church, denomination, sectarian institution, or system of religion, or of any priest, preacher, minister, other religious teacher, or dignitary as such, except when such priest, preacher, minister, or dignitary is assigned to the armed forces, or to any penal institution, or government orphanage or leprosarium.

(3) All money collected on any tax levied for a special purpose shall be treated as a special fund and paid out for such purpose only. If the purpose for which a special fund was created has been fulfilled or abandoned, the balance, if any, shall be transferred to the general funds of the Government.

Section 30. No law shall be passed increasing the appellate jurisdiction of the Supreme Court as provided in this Constitution without its advice and concurrence.

Section 31. No law granting a title of royalty or nobility shall be enacted.

Section 32. The Congress shall, as early as possible, provide for a system of initiative and referendum, and the exceptions therefrom, whereby the people can directly propose and enact laws or approve or reject any act or law or part thereof passed by the Congress or local legislative body after the registration of a petition therefor signed by at least ten per centum of the total number of registered voters, of which every legislative district must be represented by at least three per centum of the registered voters thereof.

ARTICLE VII

EXECUTIVE DEPARTMENT

Section 1. The executive power shall be vested in the President of the Philippines.

Section 2. No person may be elected President unless he is a natural-born citizen of the Philippines, a registered voter, able to read and write, at least forty years of age on the day of the election, and a resident of the Philippines for at least ten years immediately preceding such election.

Section 3. There shall be a Vice-President who shall have the same qualifications and term of office and be elected with, and in the same manner, as the President. He may be removed from office in the same manner as the President.

The Vice-President may be appointed as a Member of the Cabinet. Such appointment requires no confirmation.

Section 4. The President and the Vice-President shall be elected by direct vote of the people for a term of six years which shall begin at noon on the thirtieth day of June next following the day of the election and shall end at noon of the same date, six years thereafter. The President shall not be eligible for any re-election. No person who has succeeded as President and has served as such for more than four years shall be qualified for election to the same office at any time.

No Vice-President shall serve for more than two successive terms. Voluntary renunciation of the office for any length of time shall not be considered as an interruption in the continuity of the service for the full term for which he was elected.

Unless otherwise provided by law, the regular election for President and Vice-President shall be held on the second Monday of May.

The returns of every election for President and Vice-President, duly certified by the board of canvassers of each province or city, shall be transmitted to the Congress, directed to the President of the Senate. Upon receipt of the certificates of canvass, the President of the Senate shall, not later than thirty days after the day of the election, open all the certificates in the presence of the Senate and the House of Representatives in joint public session, and the Congress, upon determination of the authenticity and due execution thereof in the manner provided by law, canvass the votes.

The person having the highest number of votes shall be proclaimed elected, but in case two or more shall have an equal and highest number of votes, one of them shall forthwith be chosen by the vote of a majority of all the Members of both Houses of the Congress, voting separately.

The Congress shall promulgate its rules for the canvassing of the certificates.

The Supreme Court, sitting en banc, shall be the sole judge of all contests relating to the election, returns, and qualifications of the President or Vice-President, and may promulgate its rules for the purpose.

Section 5. Before they enter on the execution of their office, the President, the Vice-President, or the Acting President shall take the following oath or affirmation:

"I do solemnly swear [or affirm] that I will faithfully and conscientiously fulfill my duties as President [or Vice-President or Acting President] of the Philippines, preserve and defend its Constitution, execute its laws, do justice to every man, and consecrate myself to the service of the Nation. So help me God." [In case of affirmation, last sentence will be omitted].

Section 6. The President shall have an official residence. The salaries of the President and Vice-President shall be determined by law and shall not be decreased during their tenure. No increase in said compensation shall take effect until after the expiration of the term of the incumbent during which such increase was approved. They shall not receive during their tenure any other emolument from the Government or any other source.

Section 7. The President-elect and the Vice President-elect shall assume office at the beginning of their terms.

If the President-elect fails to qualify, the Vice President-elect shall act as President until the President-elect shall have qualified.

If a President shall not have been chosen, the Vice President-elect shall act as President until a President shall have been chosen and qualified.

If at the beginning of the term of the President, the President-elect shall have died or shall have become permanently disabled, the Vice President-elect shall become President.

Where no President and Vice-President shall have been chosen or shall have qualified, or where both shall have died or become permanently disabled, the President of the Senate or, in case of his inability, the Speaker of the House of Representatives, shall act as President until a President or a Vice-President shall have been chosen and qualified.

The Congress shall, by law, provide for the manner in which one who is to act as President shall be selected until a President or a Vice-President shall have qualified, in case of death, permanent disability, or inability of the officials mentioned in the next preceding paragraph.

Section 8. In case of death, permanent disability, removal from office, or resignation of the President, the Vice-President shall become the President to

serve the unexpired term. In case of death, permanent disability, removal from office, or resignation of both the President and Vice-President, the President of the Senate or, in case of his inability, the Speaker of the House of Representatives, shall then act as President until the President or Vice-President shall have been elected and qualified.

The Congress shall, by law, provide who shall serve as President in case of death, permanent disability, or resignation of the Acting President. He shall serve until the President or the Vice-President shall have been elected and qualified, and be subject to the same restrictions of powers and disqualifications as the Acting President.

Section 9. Whenever there is a vacancy in the Office of the Vice-President during the term for which he was elected, the President shall nominate a Vice-President from among the Members of the Senate and the House of Representatives who shall assume office upon confirmation by a majority vote of all the Members of both Houses of the Congress, voting separately.

Section 10. The Congress shall, at ten o'clock in the morning of the third day after the vacancy in the offices of the President and Vice-President occurs, convene in accordance with its rules without need of a call and within seven days, enact a law calling for a special election to elect a President and a Vice-President to be held not earlier than forty-five days nor later than sixty days from the time of such call. The bill calling such special election shall be deemed certified under paragraph 2, Section 26, Article VI of this Constitution and shall become law upon its approval on third reading by the Congress. Appropriations for the special election shall be charged against any current appropriations and shall be exempt from the requirements of paragraph 4, Section 25, Article VI of this Constitution. The convening of the Congress cannot be suspended nor the special election postponed. No special election shall be called if the vacancy occurs within eighteen months before the date of the next presidential election.

Section 11. Whenever the President transmits to the President of the Senate and the Speaker of the House of Representatives his written declaration that he is unable to discharge the powers and duties of his office, and until he transmits to them a written declaration to the contrary, such powers and duties shall be discharged by the Vice-President as Acting President.

Whenever a majority of all the Members of the Cabinet transmit to the President of the Senate and to the Speaker of the House of Representatives their written declaration that the President is unable to discharge the powers and duties of his office, the Vice-President shall immediately assume the powers and duties of the office as Acting President.

Thereafter, when the President transmits to the President of the Senate and to the Speaker of the House of Representatives his written declaration that no inability exists, he shall reassume the powers and duties of his office. Meanwhile, should a majority of all the Members of the Cabinet transmit within five days to the President of the Senate and to the Speaker of the House of Representatives, their written declaration that the President is unable to discharge the powers and duties of his office, the Congress shall decide the issue. For that purpose, the Congress shall convene, if it is not in session, within forty-eight hours, in accordance with its rules and without need of call.

If the Congress, within ten days after receipt of the last written declaration, or, if not in session, within twelve days after it is required to assemble, determines by a two-thirds vote of both Houses, voting separately, that the President is unable to discharge the powers and duties of his office, the Vice-President shall act as President; otherwise, the President shall continue exercising the powers and duties of his office.

Section 12. In case of serious illness of the President, the public shall be informed of the state of his health. The members of the Cabinet in charge of national security and foreign relations and the Chief of Staff of the Armed Forces of the Philippines, shall not be denied access to the President during such illness.

Section 13. The President, Vice-President, the Members of the Cabinet, and their deputies or assistants shall not, unless otherwise provided in this Constitution, hold any other office or employment during their tenure. They shall not, during said tenure, directly or indirectly, practice any other profession, participate in any business, or be financially interested in any contract with, or in any franchise, or special privilege granted by the Government or any subdivision, agency, or instrumentality thereof, including government-owned or controlled corporations or their

subsidiaries. They shall strictly avoid conflict of interest in the conduct of their office.

The spouse and relatives by consanguinity or affinity within the fourth civil degree of the President shall not, during his tenure, be appointed as Members of the Constitutional Commissions, or the Office of the Ombudsman, or as Secretaries, Undersecretaries, chairmen or heads of bureaus or offices, including government-owned or controlled corporations and their subsidiaries.

Section 14. Appointments extended by an Acting President shall remain effective, unless revoked by the elected President, within ninety days from his assumption or reassumption of office.

Section 15. Two months immediately before the next presidential elections and up to the end of his term, a President or Acting President shall not make appointments, except temporary appointments to executive positions when continued vacancies therein will prejudice public service or endanger public safety.

Section 16. The President shall nominate and, with the consent of the Commission on Appointments, appoint the heads of the executive departments, ambassadors, other public ministers and consuls, or officers of the armed forces from the rank of colonel or naval captain, and other officers whose appointments are vested in him in this Constitution. He shall also appoint all other officers of the Government whose appointments are not otherwise provided for by law, and those whom he may be authorized by law to appoint. The Congress may, by law, vest the appointment of other officers lower in rank in the President alone, in the courts, or in the heads of departments, agencies, commissions, or boards.

The President shall have the power to make appointments during the recess of the Congress, whether voluntary or compulsory, but such appointments shall be effective only until disapproved by the Commission on Appointments or until the next adjournment of the Congress.

Section 17. The President shall have control of all the executive departments, bureaus, and offices. He shall ensure that the laws be faithfully executed.

Section 18. The President shall be the Commander-in-Chief of all armed forces of the Philippines and whenever it becomes necessary, he may call out such armed forces to prevent or suppress lawless violence, invasion or rebellion. In case of invasion or rebellion, when the public safety requires it, he may, for a period not exceeding sixty days, suspend the privilege of the writ of habeas corpus or place the Philippines or any part thereof under martial law. Within forty-eight hours from the proclamation of martial law or the suspension of the privilege of the writ of habeas corpus, the President shall submit a report in person or in writing to the Congress. The Congress, voting jointly, by a vote of at least a majority of all its Members in regular or special session, may revoke such proclamation or suspension, which revocation shall not be set aside by the President. Upon the initiative of the President, the Congress may, in the same manner, extend such proclamation or suspension for a period to be determined by the Congress, if the invasion or rebellion shall persist and public safety requires it.

The Congress, if not in session, shall, within twenty-four hours following such proclamation or suspension, convene in accordance with its rules without need of a call.

The Supreme Court may review, in an appropriate proceeding filed by any citizen, the sufficiency of the factual basis of the proclamation of martial law or the suspension of the privilege of the writ of habeas corpus or the extension thereof, and must promulgate its decision thereon within thirty days from its filing.

A state of martial law does not suspend the operation of the Constitution, nor supplant the functioning of the civil courts or legislative assemblies, nor authorize the conferment of jurisdiction on military courts and agencies over civilians where civil courts are able to function, nor automatically suspend the privilege of the writ of habeas corpus.

The suspension of the privilege of the writ of habeas corpus shall apply only to persons judicially charged for rebellion or offenses inherent in, or directly connected with, invasion.

During the suspension of the privilege of the writ of habeas corpus, any person thus arrested or detained shall be judicially charged within three days, otherwise he shall be released.

Section 19. Except in cases of impeachment, or as otherwise provided in this Constitution, the President may grant reprieves, commutations, and pardons, and remit fines and forfeitures, after conviction by final judgment.

He shall also have the power to grant amnesty with the concurrence of a majority of all the Members of the Congress.

Section 20. The President may contract or guarantee foreign loans on behalf of the Republic of the Philippines with the prior concurrence of the Monetary Board, and subject to such limitations as may be provided by law. The Monetary Board shall, within thirty days from the end of every quarter of the calendar year, submit to the Congress a complete report of its decision on applications for loans to be contracted or guaranteed by the Government or government-owned and controlled corporations which would have the effect of increasing the foreign debt, and containing other matters as may be provided by law.

Section 21. No treaty or international agreement shall be valid and effective unless concurred in by at least two-thirds of all the Members of the Senate.

Section 22. The President shall submit to the Congress, within thirty days from the opening of every regular session as the basis of the general appropriations bill, a budget of expenditures and sources of financing, including receipts from existing and proposed revenue measures.

Section 23. The President shall address the Congress at the opening of its regular session. He may also appear before it at any other time.

ARTICLE VIII

JUDICIAL DEPARTMENT

Section 1. The judicial power shall be vested in one Supreme Court and in such lower courts as may be established by law.

Judicial power includes the duty of the courts of justice to settle actual controversies involving rights which are legally demandable and enforceable, and to determine whether or not there has been a grave abuse of

discretion amounting to lack or excess of jurisdiction on the part of any branch or instrumentality of the Government.

Section 2. The Congress shall have the power to define, prescribe, and apportion the jurisdiction of the various courts but may not deprive the Supreme Court of its jurisdiction over cases enumerated in Section 5 hereof.

No law shall be passed reorganizing the Judiciary when it undermines the security of tenure of its Members.

Section 3. The Judiciary shall enjoy fiscal autonomy. Appropriations for the Judiciary may not be reduced by the legislature below the amount appropriated for the previous year and, after approval, shall be automatically and regularly released.

Section 4. (1) The Supreme Court shall be composed of a Chief Justice and fourteen Associate Justices. It may sit en banc or in its discretion, in division of three, five, or seven Members. Any vacancy shall be filled within ninety days from the occurrence thereof.

(2) All cases involving the constitutionality of a treaty, international or executive agreement, or law, which shall be heard by the Supreme Court en banc, and all other cases which under the Rules of Court are required to be heard en banc, including those involving the constitutionality, application, or operation of presidential decrees, proclamations, orders, instructions, ordinances, and other regulations, shall be decided with the concurrence of a majority of the Members who actually took part in the deliberations on the issues in the case and voted thereon.

(3) Cases or matters heard by a division shall be decided or resolved with the concurrence of a majority of the Members who actually took part in the deliberations on the issues in the case and voted thereon, and in no case without the concurrence of at least three of such Members. When the required number is not obtained, the case shall be decided en banc: Provided, that no doctrine or principle of law laid down by the court in a decision rendered en banc or in division may be modified or reversed except by the court sitting en banc.

Section 5. The Supreme Court shall have the following powers:

(1) Exercise original jurisdiction over cases affecting ambassadors, other public ministers and consuls, and over petitions for certiorari, prohibition, mandamus, quo warranto, and habeas corpus.

(2) Review, revise, reverse, modify, or affirm on appeal or certiorari, as the law or the Rules of Court may provide, final judgments and orders of lower courts in:

(a) All cases in which the constitutionality or validity of any treaty, international or executive agreement, law, presidential decree, proclamation, order, instruction, ordinance, or regulation is in question.

(b) All cases involving the legality of any tax, impost, assessment, or toll, or any penalty imposed in relation thereto.

(c) All cases in which the jurisdiction of any lower court is in issue.

(d) All criminal cases in which the penalty imposed is reclusion perpetua or higher.

(e) All cases in which only an error or question of law is involved.

(3) Assign temporarily judges of lower courts to other stations as public interest may require. Such temporary assignment shall not exceed six months without the consent of the judge concerned.

(4) Order a change of venue or place of trial to avoid a miscarriage of justice.

(5) Promulgate rules concerning the protection and enforcement of constitutional rights, pleading, practice, and procedure in all courts, the admission to the practice of law, the integrated bar, and legal assistance to the under-privileged. Such rules shall provide a simplified and inexpensive procedure for the speedy disposition of cases, shall be uniform for all courts of the same grade, and shall not diminish, increase, or modify substantive rights. Rules of procedure of special courts and quasi-judicial bodies shall remain effective unless disapproved by the Supreme Court.

(6) Appoint all officials and employees of the Judiciary in accordance with the Civil Service Law.

Section 6. The Supreme Court shall have administrative supervision over all courts and the personnel thereof.

Section 7. (1) No person shall be appointed Member of the Supreme Court or any lower collegiate court unless he is a natural-born citizen of the Philippines. A Member of the Supreme Court must be at least forty years of age, and must have been for fifteen years or more, a judge of a lower court or engaged in the practice of law in the Philippines.

(2) The Congress shall prescribe the qualifications of judges of lower courts, but no person may be appointed judge thereof unless he is a citizen of the Philippines and a member of the Philippine Bar.

(3) A Member of the Judiciary must be a person of proven competence, integrity, probity, and independence.

Section 8. (1) A Judicial and Bar Council is hereby created under the supervision of the Supreme Court composed of the Chief Justice as ex officio Chairman, the Secretary of Justice, and a representative of the Congress as ex officio Members, a representative of the Integrated Bar, a professor of law, a retired Member of the Supreme Court, and a representative of the private sector.

(2) The regular members of the Council shall be appointed by the President for a term of four years with the consent of the Commission on Appointments. Of the Members first appointed, the representative of the Integrated Bar shall serve for four years, the professor of law for three years, the retired Justice for two years, and the representative of the private sector for one year.

(3) The Clerk of the Supreme Court shall be the Secretary ex officio of the Council and shall keep a record of its proceedings.

(4) The regular Members of the Council shall receive such emoluments as may be determined by the Supreme Court. The Supreme Court shall provide in its annual budget the appropriations for the Council.

(5) The Council shall have the principal function of recommending appointees to the Judiciary. It may exercise such other functions and duties as the Supreme Court may assign to it.

Section 9. The Members of the Supreme Court and judges of the lower courts shall be appointed by the President from a list of at least three nominees prepared by the Judicial and Bar Council for every vacancy. Such appointments need no confirmation.

For the lower courts, the President shall issue the appointments within ninety days from the submission of the list.

Section 10. The salary of the Chief Justice and of the Associate Justices of the Supreme Court, and of judges of lower courts, shall be fixed by law. During their continuance in office, their salary shall not be decreased.

Section 11. The Members of the Supreme Court and judges of lower courts shall hold office during good behavior until they reach the age of seventy years or become incapacitated to discharge the duties of their office. The Supreme Court en banc shall have the power to discipline judges of lower courts, or order their dismissal by a vote of a majority of the Members who actually took part in the deliberations on the issues in the case and voted thereon.

Section 12. The Members of the Supreme Court and of other courts established by law shall not be designated to any agency performing quasi-judicial or administrative functions.

Section 13. The conclusions of the Supreme Court in any case submitted to it for decision en banc or in division shall be reached in consultation before the case is assigned to a Member for the writing of the opinion of the Court. A certification to this effect signed by the Chief Justice shall be issued and a copy thereof attached to the record of the case and served upon the parties. Any Members who took no part, or dissented, or abstained from a decision or resolution, must state the reason therefor. The same requirements shall be observed by all lower collegiate courts.

Section 14. No decision shall be rendered by any court without expressing therein clearly and distinctly the facts and the law on which it is based.

No petition for review or motion for reconsideration of a decision of the court shall be refused due course or denied without stating the legal basis therefor.

Section 15. (1) All cases or matters filed after the effectivity of this Constitution must be decided or resolved within twenty-four months from date of submission for the Supreme Court, and, unless reduced by the Supreme Court, twelve months for all lower collegiate courts, and three months for all other lower courts.

(2) A case or matter shall be deemed submitted for decision or resolution upon the filing of the last pleading, brief, or memorandum required by the Rules of Court or by the court itself.

(3) Upon the expiration of the corresponding period, a certification to this effect signed by the Chief Justice or the presiding judge shall forthwith be issued and a copy thereof attached to the record of the case or matter, and served upon the parties. The certification shall state why a decision or resolution has not been rendered or issued within said period.

(4) Despite the expiration of the applicable mandatory period, the court, without prejudice to such responsibility as may have been incurred in consequence thereof, shall decide or resolve the case or matter submitted thereto for determination, without further delay.

Section 16. The Supreme Court shall, within thirty days from the opening of each regular session of the Congress, submit to the President and the Congress an annual report on the operations and activities of the Judiciary.

ARTICLE IX

CONSTITUTIONAL COMMISSIONS

A. Common Provisions

Section 1. The Constitutional Commissions, which shall be independent, are the Civil Service Commission, the Commission on Elections, and the Commission on Audit.

Section 2. No member of a Constitutional Commission shall, during his tenure, hold any other office or employment. Neither shall he engage in the practice of any profession or in the active management or control of any business which, in any way, may be affected by the functions of his office, nor shall he be financially interested, directly or indirectly, in any contract with, or in any franchise or privilege granted by the Government, any of its subdivisions, agencies, or instrumentalities, including government-owned or controlled corporations or their subsidiaries.

Section. 3. The salary of the Chairman and the Commissioners shall be fixed by law and shall not be decreased during their tenure.

Section 4. The Constitutional Commissions shall appoint their officials and employees in accordance with law.

Section 5. The Commission shall enjoy fiscal autonomy. Their approved annual appropriations shall be automatically and regularly released.

Section 6. Each Commission en banc may promulgate its own rules concerning pleadings and practice before it or before any of its offices. Such rules, however, shall not diminish, increase, or modify substantive rights.

Section 7. Each Commission shall decide by a majority vote of all its Members, any case or matter brought before it within sixty days from the date of its submission for decision or resolution. A case or matter is deemed submitted for decision or resolution upon the filing of the last pleading, brief, or memorandum required by the rules of the Commission or by the Commission itself. Unless otherwise provided by this Constitution or by law, any decision, order, or ruling of each Commission may be brought to the Supreme Court on certiorari by the aggrieved party within thirty days from receipt of a copy thereof.

Section 8. Each Commission shall perform such other functions as may be provided by law.

B. The Civil Service Commission

Section 1. (1) The civil service shall be administered by the Civil Service Commission composed of a Chairman and two Commissioners who shall be natural-born citizens of the Philippines and, at the time of their appointment, at least thirty-five years of age, with proven capacity for public administration, and must not have been candidates for any elective position in the elections immediately preceding their appointment.

(2) The Chairman and the Commissioners shall be appointed by the President with the consent of the Commission on Appointments for a term of seven years without reappointment. Of those first appointed, the Chairman shall hold office for seven years, a Commissioner for five years, and another Commissioner for three years, without reappointment. Appointment to any vacancy shall be only for the unexpired term of the predecessor. In no case shall any Member be appointed or designated in a temporary or acting capacity.

Section 2. (1) The civil service embraces all branches, subdivisions, instrumentalities, and agencies of the Government, including government-owned or controlled corporations with original charters.

(2) Appointments in the civil service shall be made only according to merit and fitness to be determined, as far as practicable, and, except to positions which are policy-determining, primarily confidential, or highly technical, by competitive examination.

(3) No officer or employee of the civil service shall be removed or suspended except for cause provided by law.

(4) No officer or employee in the civil service shall engage, directly or indirectly, in any electioneering or partisan political campaign.

(5) The right to self-organization shall not be denied to government employees.

(6) Temporary employees of the Government shall be given such protection as may be provided by law.

Section 3. The Civil Service Commission, as the central personnel agency of the Government, shall establish a career service and adopt measures to promote morale, efficiency, integrity, responsiveness, progressiveness, and courtesy in the civil service. It shall strengthen the merit and rewards system, integrate all human resources development programs for all levels and ranks, and institutionalize a management climate conducive to public accountability. It shall submit to the President and the Congress an annual report on its personnel programs.

Section 4. All public officers and employees shall take an oath or affirmation to uphold and defend this Constitution.

Section 5. The Congress shall provide for the standardization of compensation of government officials and employees, including those in government-owned or controlled corporations with original charters, taking into account the nature of the responsibilities pertaining to, and the qualifications required for, their positions.

Section 6. No candidate who has lost in any election shall, within one year after such election, be appointed to any office in the Government or any Government-owned or controlled corporations or in any of their subsidiaries.

Section 7. No elective official shall be eligible for appointment or designation in any capacity to any public office or position during his tenure.

Unless otherwise allowed by law or by the primary functions of his position, no appointive official shall hold any other office or employment in the Government or any subdivision, agency or instrumentality thereof, including Government-owned or controlled corporations or their subsidiaries.

Section 8. No elective or appointive public officer or employee shall receive additional, double, or indirect compensation, unless specifically authorized by law, nor accept without the consent of the Congress, any present, emolument, office, or title of any kind from any foreign government.

Pensions or gratuities shall not be considered as additional, double, or indirect compensation.

C. The Commission On Elections

Section 1. (1) There shall be a Commission on Elections composed of a Chairman and six Commissioners who shall be natural-born citizens of the Philippines and, at the time of their appointment, at least thirty-five years of age, holders of a college degree, and must not have been candidates for any elective positions in the immediately preceding elections. However, a majority thereof, including the Chairman, shall be members of the Philippine Bar who have been engaged in the practice of law for at least ten years.

(2) The Chairman and the Commissioners shall be appointed by the President with the consent of the Commission on Appointments for a term of seven years without reappointment. Of those first appointed, three Members shall hold office for seven years, two Members for five years, and the last Members for three years, without reappointment. Appointment to any vacancy shall be only for the unexpired term of the predecessor. In no case shall any Member be appointed or designated in a temporary or acting capacity.

Section 2. The Commission on Elections shall exercise the following powers and functions:

(1) Enforce and administer all laws and regulations relative to the conduct of an election, plebiscite, initiative, referendum, and recall.

(2) Exercise exclusive original jurisdiction over all contests relating to the elections, returns, and qualifications of all elective regional, provincial, and city officials, and appellate jurisdiction over all contests involving elective municipal officials decided by trial courts of general jurisdiction, or involving elective barangay officials decided by trial courts of limited jurisdiction.

Decisions, final orders, or rulings of the Commission on election contests involving elective municipal and barangay offices shall be final, executory, and not appealable.

(3) Decide, except those involving the right to vote, all questions affecting elections, including determination of the number and location of polling places, appointment of election officials and inspectors, and registration of voters.

(4) Deputize, with the concurrence of the President, law enforcement agencies and instrumentalities of the Government, including the Armed Forces of the Philippines, for the exclusive purpose of ensuring free, orderly, honest, peaceful, and credible elections.

(5) Register, after sufficient publication, political parties, organizations, or coalitions which, in addition to other requirements, must present their platform or program of government; and accredit citizens' arms of the Commission on Elections. Religious denominations and sects shall not be registered. Those which seek to achieve their goals through violence or unlawful means, or refuse to uphold and adhere to this Constitution, or which are supported by any foreign government shall likewise be refused registration.

Financial contributions from foreign governments and their agencies to political parties, organizations, coalitions, or candidates related to elections, constitute interference in national affairs, and, when accepted, shall be an additional ground for the cancellation of their registration with the Commission, in addition to other penalties that may be prescribed by law.

(6) File, upon a verified complaint, or on its own initiative, petitions in court for inclusion or exclusion of voters; investigate and, where appropriate, prosecute cases of violations of election laws, including acts or omissions constituting election frauds, offenses, and malpractices.

(7) Recommend to the Congress effective measures to minimize election spending, including limitation of places where propaganda materials shall be posted, and to prevent and penalize all forms of election frauds, offenses, malpractices, and nuisance candidacies.

(8) Recommend to the President the removal of any officer or employee it has deputized, or the imposition of any other disciplinary action, for violation or disregard of, or disobedience to, its directive, order, or decision.

(9) Submit to the President and the Congress, a comprehensive report on the conduct of each election, plebiscite, initiative, referendum, or recall.

Section 3. The Commission on Elections may sit en banc or in two divisions, and shall promulgate its rules of procedure in order to expedite disposition

of election cases, including pre- proclamation controversies. All such election cases shall be heard and decided in division, provided that motions for reconsideration of decisions shall be decided by the Commission en banc.

Section 4. The Commission may, during the election period, supervise or regulate the enjoyment or utilization of all franchises or permits for the operation of transportation and other public utilities, media of communication or information, all grants, special privileges, or concessions granted by the Government or any subdivision, agency, or instrumentality thereof, including any government-owned or controlled corporation or its subsidiary. Such supervision or regulation shall aim to ensure equal opportunity, and equal rates therefor, for public information campaigns and forums among candidates in connection with the objective of holding free, orderly, honest, peaceful, and credible elections.

Section 5. No pardon, amnesty, parole, or suspension of sentence for violation of election laws, rules, and regulations shall be granted by the President without the favorable recommendation of the Commission.

Section 6. A free and open party system shall be allowed to evolve according to the free choice of the people, subject to the provisions of this Article.

Section 7. No votes cast in favor of a political party, organization, or coalition shall be valid, except for those registered under the party-list system as provided in this Constitution.

Section 8. Political parties, or organizations or coalitions registered under the party-list system, shall not be represented in the voters' registration boards, boards of election inspectors, boards of canvassers, or other similar bodies. However, they shall be entitled to appoint poll watchers in accordance with law.

Section 9. Unless otherwise fixed by the Commission in special cases, the election period shall commence ninety days before the day of election and shall end thirty days thereafter.

Section 10. Bona fide candidates for any public office shall be free from any form of harassment and discrimination.

Section 11. Funds certified by the Commission as necessary to defray the expenses for holding regular and special elections, plebiscites, initiatives, referenda, and recalls, shall be provided in the regular or special appropriations and, once approved, shall be released automatically upon certification by the Chairman of the Commission.

D. The Commission On Audit

Section 1. (1) There shall be a Commission on Audit composed of a Chairman and two Commissioners, who shall be natural-born citizens of the Philippines and, at the time of their appointment, at least thirty-five years of age, Certified Public Accountants with not less than ten years of auditing experience, or members of the Philippine Bar who have been engaged in the practice of law for at least ten years, and must not have been candidates for any elective position in the elections immediately preceding their appointment. At no time shall all Members of the Commission belong to the same profession.

(2) The Chairman and the Commissioners shall be appointed by the President with the consent of the Commission on Appointments for a term of seven years without reappointment. Of those first appointed, the Chairman shall hold office for seven years, one Commissioner for five years, and the other Commissioner for three years, without reappointment. Appointment to any vacancy shall be only for the unexpired portion of the term of the predecessor. In no case shall any Member be appointed or designated in a temporary or acting capacity.

Section 2. (1) The Commission on Audit shall have the power, authority, and duty to examine, audit, and settle all accounts pertaining to the revenue and receipts of, and expenditures or uses of funds and property, owned or held in trust by, or pertaining to, the Government, or any of its subdivisions, agencies, or instrumentalities, including government-owned or controlled corporations with original charters, and on a post-audit basis: (a) constitutional bodies, commissions and offices that have been granted fiscal autonomy under this Constitution; (b) autonomous state colleges and universities; (c) other government-owned or controlled corporations and their subsidiaries; and (d) such non-governmental entities receiving subsidy or equity, directly or indirectly, from or through the Government, which are required by law or the granting institution to submit to such audit as a

condition of subsidy or equity. However, where the internal control system of the audited agencies is inadequate, the Commission may adopt such measures, including temporary or special pre-audit, as are necessary and appropriate to correct the deficiencies. It shall keep the general accounts of the Government and, for such period as may be provided by law, preserve the vouchers and other supporting papers pertaining thereto.

(2) The Commission shall have exclusive authority, subject to the limitations in this Article, to define the scope of its audit and examination, establish the techniques and methods required therefor, and promulgate accounting and auditing rules and regulations, including those for the prevention and disallowance of irregular, unnecessary, excessive, extravagant, or unconscionable expenditures or uses of government funds and properties.

Section 3. No law shall be passed exempting any entity of the Government or its subsidiaries in any guise whatever, or any investment of public funds, from the jurisdiction of the Commission on Audit.

Section 4. The Commission shall submit to the President and the Congress, within the time fixed by law, an annual report covering the financial condition and operation of the Government, its subdivisions, agencies, and instrumentalities, including government-owned or controlled corporations, and non-governmental entities subject to its audit, and recommend measures necessary to improve their effectiveness and efficiency. It shall submit such other reports as may be required by law.

ARTICLE X

LOCAL GOVERNMENT

General Provisions

Section 1. The territorial and political subdivisions of the Republic of the Philippines are the provinces, cities, municipalities, and barangays. There shall be autonomous regions in Muslim Mindanao and the Cordilleras as hereinafter provided.

Section 2. The territorial and political subdivisions shall enjoy local autonomy.

Section 3. The Congress shall enact a local government code which shall provide for a more responsive and accountable local government structure instituted through a system of decentralization with effective mechanisms of recall, initiative, and referendum, allocate among the different local government units their powers, responsibilities, and resources, and provide for the qualifications, election, appointment and removal, term, salaries, powers and functions and duties of local officials, and all other matters relating to the organization and operation of the local units.

Section 4. The President of the Philippines shall exercise general supervision over local governments. Provinces with respect to component cities and municipalities, and cities and municipalities with respect to component barangays, shall ensure that the acts of their component units are within the scope of their prescribed powers and functions.

Section 5. Each local government unit shall have the power to create its own sources of revenues and to levy taxes, fees and charges subject to such guidelines and limitations as the Congress may provide, consistent with the basic policy of local autonomy. Such taxes, fees, and charges shall accrue exclusively to the local governments.

Section 6. Local government units shall have a just share, as determined by law, in the national taxes which shall be automatically released to them.

Section 7. Local governments shall be entitled to an equitable share in the proceeds of the utilization and development of the national wealth within their respective areas, in the manner provided by law, including sharing the same with the inhabitants by way of direct benefits.

Section 8. The term of office of elective local officials, except barangay officials, which shall be determined by law, shall be three years and no such official shall serve for more than three consecutive terms. Voluntary renunciation of the office for any length of time shall not be considered as an interruption in the continuity of his service for the full term for which he was elected.

Section 9. Legislative bodies of local governments shall have sectoral representation as may be prescribed by law.

Section 10. No province, city, municipality, or barangay may be created, divided, merged, abolished, or its boundary substantially altered, except in accordance with the criteria established in the local government code and subject to approval by a majority of the votes cast in a plebiscite in the political units directly affected.

Section 11. The Congress may, by law, create special metropolitan political subdivisions, subject to a plebiscite as set forth in Section 10 hereof. The component cities and municipalities shall retain their basic autonomy and shall be entitled to their own local executive and legislative assemblies. The jurisdiction of the metropolitan authority that will thereby be created shall be limited to basic services requiring coordination.

Section 12. Cities that are highly urbanized, as determined by law, and component cities whose charters prohibit their voters from voting for provincial elective officials, shall be independent of the province. The voters of component cities within a province, whose charters contain no such prohibition, shall not be deprived of their right to vote for elective provincial officials.

Section 13. Local government units may group themselves, consolidate or coordinate their efforts, services, and resources for purposes commonly beneficial to them in accordance with law.

Section 14. The President shall provide for regional development councils or other similar bodies composed of local government officials, regional heads of departments and other government offices, and representatives from non-governmental organizations within the regions for purposes of administrative decentralization to strengthen the autonomy of the units therein and to accelerate the economic and social growth and development of the units in the region.

Autonomous Regions

Section 15. There shall be created autonomous regions in Muslim Mindanao and in the Cordilleras consisting of provinces, cities, municipalities, and geographical areas sharing common and distinctive historical and cultural heritage, economic and social structures, and other relevant characteristics

within the framework of this Constitution and the national sovereignty as well as territorial integrity of the Republic of the Philippines.

Section 16. The President shall exercise general supervision over autonomous regions to ensure that laws are faithfully executed.

Section 17. All powers, functions, and responsibilities not granted by this Constitution or by law to the autonomous regions shall be vested in the National Government.

Section 18. The Congress shall enact an organic act for each autonomous region with the assistance and participation of the regional consultative commission composed of representatives appointed by the President from a list of nominees from multi-sectoral bodies. The organic act shall define the basic structure of government for the region consisting of the executive department and legislative assembly, both of which shall be elective and representative of the constituent political units. The organic acts shall likewise provide for special courts with personal, family, and property law jurisdiction consistent with the provisions of this Constitution and national laws.

The creation of the autonomous region shall be effective when approved by majority of the votes cast by the constituent units in a plebiscite called for the purpose, provided that only provinces, cities, and geographic areas voting favorably in such plebiscite shall be included in the autonomous region.

Section 19. The first Congress elected under this Constitution shall, within eighteen months from the time of organization of both Houses, pass the organic acts for the autonomous regions in Muslim Mindanao and the Cordilleras.

Section 20. Within its territorial jurisdiction and subject to the provisions of this Constitution and national laws, the organic act of autonomous regions shall provide for legislative powers over:

1. Administrative organization;
2. Creation of sources of revenues;
3. Ancestral domain and natural resources;

4. Personal, family, and property relations;
5. Regional urban and rural planning development;
6. Economic, social, and tourism development;
7. Educational policies;
8. Preservation and development of the cultural heritage; and
9. Such other matters as may be authorized by law for the promotion of the general welfare of the people of the region.

Section 21. The preservation of peace and order within the regions shall be the responsibility of the local police agencies which shall be organized, maintained, supervised, and utilized in accordance with applicable laws. The defense and security of the regions shall be the responsibility of the National Government.

ARTICLE XI

ACCOUNTABILITY OF PUBLIC OFFICERS

Section 1. Public office is a public trust. Public officers and employees must, at all times, be accountable to the people, serve them with utmost responsibility, integrity, loyalty, and efficiency; act with patriotism and justice, and lead modest lives.

Section 2. The President, the Vice-President, the Members of the Supreme Court, the Members of the Constitutional Commissions, and the Ombudsman may be removed from office on impeachment for, and conviction of, culpable violation of the Constitution, treason, bribery, graft and corruption, other high crimes, or betrayal of public trust. All other public officers and employees may be removed from office as provided by law, but not by impeachment.

Section 3. (1) The House of Representatives shall have the exclusive power to initiate all cases of impeachment.

(2) A verified complaint for impeachment may be filed by any Member of the House of Representatives or by any citizen upon a resolution or endorsement by any Member thereof, which shall be included in the Order of Business

within ten session days, and referred to the proper Committee within three session days thereafter. The Committee, after hearing, and by a majority vote of all its Members, shall submit its report to the House within sixty session days from such referral, together with the corresponding resolution. The resolution shall be calendared for consideration by the House within ten session days from receipt thereof.

(3) A vote of at least one-third of all the Members of the House shall be necessary either to affirm a favorable resolution with the Articles of Impeachment of the Committee, or override its contrary resolution. The vote of each Member shall be recorded.

(4) In case the verified complaint or resolution of impeachment is filed by at least one-third of all the Members of the House, the same shall constitute the Articles of Impeachment, and trial by the Senate shall forthwith proceed.

(5) No impeachment proceedings shall be initiated against the same official more than once within a period of one year.

(6) The Senate shall have the sole power to try and decide all cases of impeachment. When sitting for that purpose, the Senators shall be on oath or affirmation. When the President of the Philippines is on trial, the Chief Justice of the Supreme Court shall preside, but shall not vote. No person shall be convicted without the concurrence of two-thirds of all the Members of the Senate.

(7) Judgment in cases of impeachment shall not extend further than removal from office and disqualification to hold any office under the Republic of the Philippines, but the party convicted shall nevertheless be liable and subject to prosecution, trial, and punishment, according to law.

(8) The Congress shall promulgate its rules on impeachment to effectively carry out the purpose of this section.

Section 4. The present anti-graft court known as the Sandiganbayan shall continue to function and exercise its jurisdiction as now or hereafter may be provided by law.

Section 5. There is hereby created the independent Office of the Ombudsman, composed of the Ombudsman to be known as Tanodbayan, one overall Deputy and at least one Deputy each for Luzon, Visayas, and Mindanao. A separate Deputy for the military establishment may likewise be appointed.

Section 6. The officials and employees of the Office of the Ombudsman, other than the Deputies, shall be appointed by the Ombudsman, according to the Civil Service Law.

Section 7. The existing Tanodbayan shall hereafter be known as the Office of the Special Prosecutor. It shall continue to function and exercise its powers as now or hereafter may be provided by law, except those conferred on the Office of the Ombudsman created under this Constitution.

Section 8. The Ombudsman and his Deputies shall be natural-born citizens of the Philippines, and at the time of their appointment, at least forty years old, of recognized probity and independence, and members of the Philippine Bar, and must not have been candidates for any elective office in the immediately preceding election. The Ombudsman must have, for ten years or more, been a judge or engaged in the practice of law in the Philippines.

During their tenure, they shall be subject to the same disqualifications and prohibitions as provided for in Section 2 of Article 1X-A of this Constitution.

Section 9. The Ombudsman and his Deputies shall be appointed by the President from a list of at least six nominees prepared by the Judicial and Bar Council, and from a list of three nominees for every vacancy thereafter. Such appointments shall require no confirmation. All vacancies shall be filled within three months after they occur.

Section 10. The Ombudsman and his Deputies shall have the rank of Chairman and Members, respectively, of the Constitutional Commissions, and they shall receive the same salary which shall not be decreased during their term of office.

Section 11. The Ombudsman and his Deputies shall serve for a term of seven years without reappointment. They shall not be qualified to run for any office in the election immediately succeeding their cessation from office.

Section 12. The Ombudsman and his Deputies, as protectors of the people, shall act promptly on complaints filed in any form or manner against public officials or employees of the Government, or any subdivision, agency or instrumentality thereof, including government-owned or controlled corporations, and shall, in appropriate cases, notify the complainants of the action taken and the result thereof.

Section 13. The Office of the Ombudsman shall have the following powers, functions, and duties:

- (1) Investigate on its own, or on complaint by any person, any act or omission of any public official, employee, office or agency, when such act or omission appears to be illegal, unjust, improper, or inefficient.
- (2) Direct, upon complaint or at its own instance, any public official or employee of the Government, or any subdivision, agency or instrumentality thereof, as well as of any government-owned or controlled corporation with original charter, to perform and expedite any act or duty required by law, or to stop, prevent, and correct any abuse or impropriety in the performance of duties.
- (3) Direct the officer concerned to take appropriate action against a public official or employee at fault, and recommend his removal, suspension, demotion, fine, censure, or prosecution, and ensure compliance therewith.
- (4) Direct the officer concerned, in any appropriate case, and subject to such limitations as may be provided by law, to furnish it with copies of documents relating to contracts or transactions entered into by his office involving the disbursement or use of public funds or properties, and report any irregularity to the Commission on Audit for appropriate action.
- (5) Request any government agency for assistance and information necessary in the discharge of its responsibilities, and to examine, if necessary, pertinent records and documents.
- (6) Publicize matters covered by its investigation when circumstances so warrant and with due prudence.

(7) Determine the causes of inefficiency, red tape, mismanagement, fraud, and corruption in the Government and make recommendations for their elimination and the observance of high standards of ethics and efficiency.

(8) Promulgate its rules of procedure and exercise such other powers or perform such functions or duties as may be provided by law.

Section 14. The Office of the Ombudsman shall enjoy fiscal autonomy. Its approved annual appropriations shall be automatically and regularly released.

Section 15. The right of the State to recover properties unlawfully acquired by public officials or employees, from them or from their nominees or transferees, shall not be barred by prescription, laches, or estoppel.

Section 16. No loan, guaranty, or other form of financial accommodation for any business purpose may be granted, directly or indirectly, by any government-owned or controlled bank or financial institution to the President, the Vice-President, the Members of the Cabinet, the Congress, the Supreme Court, and the Constitutional Commissions, the Ombudsman, or to any firm or entity in which they have controlling interest, during their tenure.

Section 17. A public officer or employee shall, upon assumption of office and as often thereafter as may be required by law, submit a declaration under oath of his assets, liabilities, and net worth. In the case of the President, the Vice-President, the Members of the Cabinet, the Congress, the Supreme Court, the Constitutional Commissions and other constitutional offices, and officers of the armed forces with general or flag rank, the declaration shall be disclosed to the public in the manner provided by law.

Section 18. Public officers and employees owe the State and this Constitution allegiance at all times and any public officer or employee who seeks to change his citizenship or acquire the status of an immigrant of another country during his tenure shall be dealt with by law.

ARTICLE XII

NATIONAL ECONOMY AND PATRIMONY

Section 1. The goals of the national economy are a more equitable distribution of opportunities, income, and wealth; a sustained increase in the amount of goods and services produced by the nation for the benefit of the people; and an expanding productivity as the key to raising the quality of life for all, especially the under-privileged.

The State shall promote industrialization and full employment based on sound agricultural development and agrarian reform, through industries that make full and efficient use of human and natural resources, and which are competitive in both domestic and foreign markets. However, the State shall protect Filipino enterprises against unfair foreign competition and trade practices.

In the pursuit of these goals, all sectors of the economy and all regions of the country shall be given optimum opportunity to develop. Private enterprises, including corporations, cooperatives, and similar collective organizations, shall be encouraged to broaden the base of their ownership.

Section 2. All lands of the public domain, waters, minerals, coal, petroleum, and other mineral oils, all forces of potential energy, fisheries, forests or timber, wildlife, flora and fauna, and other natural resources are owned by the State. With the exception of agricultural lands, all other natural resources shall not be alienated. The exploration, development, and utilization of natural resources shall be under the full control and supervision of the State. The State may directly undertake such activities, or it may enter into co-production, joint venture, or production-sharing agreements with Filipino citizens, or corporations or associations at least sixty per centum of whose capital is owned by such citizens. Such agreements may be for a period not exceeding twenty-five years, renewable for not more than twenty-five years, and under such terms and conditions as may be provided by law. In cases of water rights for irrigation, water supply fisheries, or industrial uses other than the development of water power, beneficial use may be the measure and limit of the grant.

The State shall protect the nation's marine wealth in its archipelagic waters, territorial sea, and exclusive economic zone, and reserve its use and enjoyment exclusively to Filipino citizens.

The Congress may, by law, allow small-scale utilization of natural resources by Filipino citizens, as well as cooperative fish farming, with priority to subsistence fishermen and fish- workers in rivers, lakes, bays, and lagoons.

The President may enter into agreements with foreign-owned corporations involving either technical or financial assistance for large-scale exploration, development, and utilization of minerals, petroleum, and other mineral oils according to the general terms and conditions provided by law, based on real contributions to the economic growth and general welfare of the country. In such agreements, the State shall promote the development and use of local scientific and technical resources.

The President shall notify the Congress of every contract entered into in accordance with this provision, within thirty days from its execution.

Section 3. Lands of the public domain are classified into agricultural, forest or timber, mineral lands and national parks. Agricultural lands of the public domain may be further classified by law according to the uses to which they may be devoted. Alienable lands of the public domain shall be limited to agricultural lands. Private corporations or associations may not hold such alienable lands of the public domain except by lease, for a period not exceeding twenty-five years, renewable for not more than twenty-five years, and not to exceed one thousand hectares in area. Citizens of the Philippines may lease not more than five hundred hectares, or acquire not more than twelve hectares thereof, by purchase, homestead, or grant.

Taking into account the requirements of conservation, ecology, and development, and subject to the requirements of agrarian reform, the Congress shall determine, by law, the size of lands of the public domain which may be acquired, developed, held, or leased and the conditions therefor.

Section 4. The Congress shall, as soon as possible, determine, by law, the specific limits of forest lands and national parks, marking clearly their boundaries on the ground. Thereafter, such forest lands and national parks

shall be conserved and may not be increased nor diminished, except by law. The Congress shall provide for such period as it may determine, measures to prohibit logging in endangered forests and watershed areas.

Section 5. The State, subject to the provisions of this Constitution and national development policies and programs, shall protect the rights of indigenous cultural communities to their ancestral lands to ensure their economic, social, and cultural well-being.

The Congress may provide for the applicability of customary laws governing property rights or relations in determining the ownership and extent of ancestral domain.

Section 6. The use of property bears a social function, and all economic agents shall contribute to the common good. Individuals and private groups, including corporations, cooperatives, and similar collective organizations, shall have the right to own, establish, and operate economic enterprises, subject to the duty of the State to promote distributive justice and to intervene when the common good so demands.

Section 7. Save in cases of hereditary succession, no private lands shall be transferred or conveyed except to individuals, corporations, or associations qualified to acquire or hold lands of the public domain.

Section 8. Notwithstanding the provisions of Section 7 of this Article, a natural-born citizen of the Philippines who has lost his Philippine citizenship may be a transferee of private lands, subject to limitations provided by law.

Section 9. The Congress may establish an independent economic and planning agency headed by the President, which shall, after consultations with the appropriate public agencies, various private sectors, and local government units, recommend to Congress, and implement continuing integrated and coordinated programs and policies for national development.

Until the Congress provides otherwise, the National Economic and Development Authority shall function as the independent planning agency of the government.

Section 10. The Congress shall, upon recommendation of the economic and planning agency, when the national interest dictates, reserve to citizens of the Philippines or to corporations or associations at least sixty per centum of whose capital is owned by such citizens, or such higher percentage as Congress may prescribe, certain areas of investments. The Congress shall enact measures that will encourage the formation and operation of enterprises whose capital is wholly owned by Filipinos.

In the grant of rights, privileges, and concessions covering the national economy and patrimony, the State shall give preference to qualified Filipinos.

The State shall regulate and exercise authority over foreign investments within its national jurisdiction and in accordance with its national goals and priorities.

Section 11. No franchise, certificate, or any other form of authorization for the operation of a public utility shall be granted except to citizens of the Philippines or to corporations or associations organized under the laws of the Philippines, at least sixty per centum of whose capital is owned by such citizens; nor shall such franchise, certificate, or authorization be exclusive in character or for a longer period than fifty years. Neither shall any such franchise or right be granted except under the condition that it shall be subject to amendment, alteration, or repeal by the Congress when the common good so requires. The State shall encourage equity participation in public utilities by the general public. The participation of foreign investors in the governing body of any public utility enterprise shall be limited to their proportionate share in its capital, and all the executive and managing officers of such corporation or association must be citizens of the Philippines.

Section 12. The State shall promote the preferential use of Filipino labor, domestic materials and locally produced goods, and adopt measures that help make them competitive.

Section 13. The State shall pursue a trade policy that serves the general welfare and utilizes all forms and arrangements of exchange on the basis of equality and reciprocity.

Section 14. The sustained development of a reservoir of national talents consisting of Filipino scientists, entrepreneurs, professionals, managers, high-level technical manpower and skilled workers and craftsmen in all fields shall be promoted by the State. The State shall encourage appropriate technology and regulate its transfer for the national benefit.

The practice of all professions in the Philippines shall be limited to Filipino citizens, save in cases prescribed by law.

Section 15. The Congress shall create an agency to promote the viability and growth of cooperatives as instruments for social justice and economic development.

Section 16. The Congress shall not, except by general law, provide for the formation, organization, or regulation of private corporations. Government-owned or controlled corporations may be created or established by special charters in the interest of the common good and subject to the test of economic viability.

Section 17. In times of national emergency, when the public interest so requires, the State may, during the emergency and under reasonable terms prescribed by it, temporarily take over or direct the operation of any privately-owned public utility or business affected with public interest.

Section 18. The State may, in the interest of national welfare or defense, establish and operate vital industries and, upon payment of just compensation, transfer to public ownership utilities and other private enterprises to be operated by the Government.

Section 19. The State shall regulate or prohibit monopolies when the public interest so requires. No combinations in restraint of trade or unfair competition shall be allowed.

Section 20. The Congress shall establish an independent central monetary authority, the members of whose governing board must be natural-born Filipino citizens, of known probity, integrity, and patriotism, the majority of whom shall come from the private sector. They shall also be subject to such other qualifications and disabilities as may be prescribed by law. The authority shall provide policy direction in the areas of money, banking, and

credit. It shall have supervision over the operations of banks and exercise such regulatory powers as may be provided by law over the operations of finance companies and other institutions performing similar functions.

Until the Congress otherwise provides, the Central Bank of the Philippines operating under existing laws, shall function as the central monetary authority.

Section 21. Foreign loans may only be incurred in accordance with law and the regulation of the monetary authority. Information on foreign loans obtained or guaranteed by the Government shall be made available to the public.

Section 22. Acts which circumvent or negate any of the provisions of this Article shall be considered inimical to the national interest and subject to criminal and civil sanctions, as may be provided by law.

ARTICLE XIII

SOCIAL JUSTICE AND HUMAN RIGHTS

Section 1. The Congress shall give highest priority to the enactment of measures that protect and enhance the right of all the people to human dignity, reduce social, economic, and political inequalities, and remove cultural inequities by equitably diffusing wealth and political power for the common good.

To this end, the State shall regulate the acquisition, ownership, use, and disposition of property and its increments.

Section 2. The promotion of social justice shall include the commitment to create economic opportunities based on freedom of initiative and self-reliance.

Labor

Section 3. The State shall afford full protection to labor, local and overseas, organized and unorganized, and promote full employment and equality of employment opportunities for all.

It shall guarantee the rights of all workers to self-organization, collective bargaining and negotiations, and peaceful concerted activities, including the right to strike in accordance with law. They shall be entitled to security of tenure, humane conditions of work, and a living wage. They shall also participate in policy and decision-making processes affecting their rights and benefits as may be provided by law.

The State shall promote the principle of shared responsibility between workers and employers and the preferential use of voluntary modes in settling disputes, including conciliation, and shall enforce their mutual compliance therewith to foster industrial peace.

The State shall regulate the relations between workers and employers, recognizing the right of labor to its just share in the fruits of production and the right of enterprises to reasonable returns to investments, and to expansion and growth.

Agrarian And Natural Resources Reform

Section 4. The State shall, by law, undertake an agrarian reform program founded on the right of farmers and regular farmworkers who are landless, to own directly or collectively the lands they till or, in the case of other farmworkers, to receive a just share of the fruits thereof. To this end, the State shall encourage and undertake the just distribution of all agricultural lands, subject to such priorities and reasonable retention limits as the Congress may prescribe, taking into account ecological, developmental, or equity considerations, and subject to the payment of just compensation. In determining retention limits, the State shall respect the right of small landowners. The State shall further provide incentives for voluntary land-sharing.

Section 5. The State shall recognize the right of farmers, farmworkers, and landowners, as well as cooperatives, and other independent farmers' organizations to participate in the planning, organization, and management of the program, and shall provide support to agriculture through appropriate technology and research, and adequate financial, production, marketing, and other support services.

Section 6. The State shall apply the principles of agrarian reform or stewardship, whenever applicable in accordance with law, in the disposition or utilization of other natural resources, including lands of the public domain under lease or concession suitable to agriculture, subject to prior rights, homestead rights of small settlers, and the rights of indigenous communities to their ancestral lands.

The State may resettle landless farmers and farmworkers in its own agricultural estates which shall be distributed to them in the manner provided by law.

Section 7. The State shall protect the rights of subsistence fishermen, especially of local communities, to the preferential use of the communal marine and fishing resources, both inland and offshore. It shall provide support to such fishermen through appropriate technology and research, adequate financial, production, and marketing assistance, and other services. The State shall also protect, develop, and conserve such resources. The protection shall extend to offshore fishing grounds of subsistence fishermen against foreign intrusion. Fishworkers shall receive a just share from their labor in the utilization of marine and fishing resources.

Section 8. The State shall provide incentives to landowners to invest the proceeds of the agrarian reform program to promote industrialization, employment creation, and privatization of public sector enterprises. Financial instruments used as payment for their lands shall be honored as equity in enterprises of their choice.

Urban Land Reform And Housing

Section 9. The State shall, by law, and for the common good, undertake, in cooperation with the private sector, a continuing program of urban land reform and housing which will make available at affordable cost, decent housing and basic services to under-privileged and homeless citizens in urban centers and resettlement areas. It shall also promote adequate employment opportunities to such citizens. In the implementation of such program the State shall respect the rights of small property owners.

Section 10. Urban or rural poor dwellers shall not be evicted nor their dwelling demolished, except in accordance with law and in a just and humane manner.

No resettlement of urban or rural dwellers shall be undertaken without adequate consultation with them and the communities where they are to be relocated.

Health

Section 11. The State shall adopt an integrated and comprehensive approach to health development which shall endeavor to make essential goods, health and other social services available to all the people at affordable cost. There shall be priority for the needs of the under-privileged, sick, elderly, disabled, women, and children. The State shall endeavor to provide free medical care to paupers.

Section 12. The State shall establish and maintain an effective food and drug regulatory system and undertake appropriate health, manpower development, and research, responsive to the country's health needs and problems.

Section 13. The State shall establish a special agency for disabled person for their rehabilitation, self-development, and self-reliance, and their integration into the mainstream of society.

Women

Section 14. The State shall protect working women by providing safe and healthful working conditions, taking into account their maternal functions, and such facilities and opportunities that will enhance their welfare and enable them to realize their full potential in the service of the nation.

Role And Rights Of People's Organizations

Section 15. The State shall respect the role of independent people's organizations to enable the people to pursue and protect, within the democratic framework, their legitimate and collective interests and aspirations through peaceful and lawful means.

People's organizations are bona fide associations of citizens with demonstrated capacity to promote the public interest and with identifiable leadership, membership, and structure.

Section 16. The right of the people and their organizations to effective and reasonable participation at all levels of social, political, and economic decision-making shall not be abridged. The State shall, by law, facilitate the establishment of adequate consultation mechanisms.

Human Rights

Section 17. (1) There is hereby created an independent office called the Commission on Human Rights.

(2) The Commission shall be composed of a Chairman and four Members who must be natural-born citizens of the Philippines and a majority of whom shall be members of the Bar. The term of office and other qualifications and disabilities of the Members of the Commission shall be provided by law.

(3) Until this Commission is constituted, the existing Presidential Committee on Human Rights shall continue to exercise its present functions and powers.

(4) The approved annual appropriations of the Commission shall be automatically and regularly released.

Section 18. The Commission on Human Rights shall have the following powers and functions:

(1) Investigate, on its own or on complaint by any party, all forms of human rights violations involving civil and political rights;

(2) Adopt its operational guidelines and rules of procedure, and cite for contempt for violations thereof in accordance with the Rules of Court;

(3) Provide appropriate legal measures for the protection of human rights of all persons within the Philippines, as well as Filipinos residing abroad, and provide for preventive measures and legal aid services to the underprivileged whose human rights have been violated or need protection;

- (4) Exercise visitorial powers over jails, prisons, or detention facilities;
- (5) Establish a continuing program of research, education, and information to enhance respect for the primacy of human rights;
- (6) Recommend to Congress effective measures to promote human rights and to provide for compensation to victims of violations of human rights, or their families;
- (7) Monitor the Philippine Government's compliance with international treaty obligations on human rights;
- (8) Grant immunity from prosecution to any person whose testimony or whose possession of documents or other evidence is necessary or convenient to determine the truth in any investigation conducted by it or under its authority;
- (9) Request the assistance of any department, bureau, office, or agency in the performance of its functions;
- (10) Appoint its officers and employees in accordance with law; and
- (11) Perform such other duties and functions as may be provided by law.

Section 19. The Congress may provide for other cases of violations of human rights that should fall within the authority of the Commission, taking into account its recommendations.

ARTICLE XIV

EDUCATION, SCIENCE AND TECHNOLOGY, ARTS, CULTURE AND SPORTS

Education

Section 1. The State shall protect and promote the right of all citizens to quality education at all levels, and shall take appropriate steps to make such education accessible to all.

Section 2. The State shall:

- (1) Establish, maintain, and support a complete, adequate, and integrated system of education relevant to the needs of the people and society;
- (2) Establish and maintain, a system of free public education in the elementary and high school levels. Without limiting the natural rights of parents to rear their children, elementary education is compulsory for all children of school age;
- (3) Establish and maintain a system of scholarship grants, student loan programs, subsidies, and other incentives which shall be available to deserving students in both public and private schools, especially to the under-privileged;
- (4) Encourage non-formal, informal, and indigenous learning systems, as well as self-learning, independent, and out-of-school study programs particularly those that respond to community needs; and
- (5) Provide adult citizens, the disabled, and out-of-school youth with training in civics, vocational efficiency, and other skills.

Section 3. (1) All educational institutions shall include the study of the Constitution as part of the curricula.

- (2) They shall inculcate patriotism and nationalism, foster love of humanity, respect for human rights, appreciation of the role of national heroes in the historical development of the country, teach the rights and duties of citizenship, strengthen ethical and spiritual values, develop moral character and personal discipline, encourage critical and creative thinking, broaden scientific and technological knowledge, and promote vocational efficiency.
- (3) At the option expressed in writing by the parents or guardians, religion shall be allowed to be taught to their children or wards in public elementary and high schools within the regular class hours by instructors designated or approved by the religious authorities of the religion to which the children or wards belong, without additional cost to the Government.

Section 4.(1) The State recognizes the complementary roles of public and private institutions in the educational system and shall exercise reasonable supervision and regulation of all educational institutions.

(2) Educational institutions, other than those established by religious groups and mission boards, shall be owned solely by citizens of the Philippines or corporations or associations at least sixty per centum of the capital of which is owned by such citizens. The Congress may, however, require increased Filipino equity participation in all educational institutions.

The control and administration of educational institutions shall be vested in citizens of the Philippines.

No educational institution shall be established exclusively for aliens and no group of aliens shall comprise more than one-third of the enrollment in any school. The provisions of this subsection shall not apply to schools established for foreign diplomatic personnel and their dependents and, unless otherwise provided by law, for other foreign temporary residents.

(3) All revenues and assets of non-stock, non-profit educational institutions used actually, directly, and exclusively for educational purposes shall be exempt from taxes and duties. Upon the dissolution or cessation of the corporate existence of such institutions, their assets shall be disposed of in the manner provided by law.

Proprietary educational institutions, including those cooperatively owned, may likewise be entitled to such exemptions, subject to the limitations provided by law, including restrictions on dividends and provisions for reinvestment.

(4) Subject to conditions prescribed by law, all grants, endowments, donations, or contributions used actually, directly, and exclusively for educational purposes shall be exempt from tax.

Section 5. (1) the State shall take into account regional and sectoral needs and conditions and shall encourage local planning in the development of educational policies and programs.

(2) Academic freedom shall be enjoyed in all institutions of higher learning.

(3) Every citizen has a right to select a profession or course of study, subject to fair, reasonable, and equitable admission and academic requirements.

(4) The State shall enhance the right of teachers to professional advancement. Non-teaching academic and non-academic personnel shall enjoy the protection of the State.

(5) The State shall assign the highest budgetary priority to education and ensure that teaching will attract and retain its rightful share of the best available talents through adequate remuneration and other means of job satisfaction and fulfillment.

Language

Section 6. The national language of the Philippines is Filipino. As it evolves, it shall be further developed and enriched on the basis of existing Philippine and other languages.

Subject to provisions of law and as the Congress may deem appropriate, the Government shall take steps to initiate and sustain the use of Filipino as a medium of official communication and as language of instruction in the educational system.

Section 7. For purposes of communication and instruction, the official languages of the Philippines are Filipino and, until otherwise provided by law, English.

The regional languages are the auxiliary official languages in the regions and shall serve as auxiliary media of instruction therein.

Spanish and Arabic shall be promoted on a voluntary and optional basis.

Section 8. This Constitution shall be promulgated in Filipino and English and shall be translated into major regional languages, Arabic, and Spanish.

Section 9. The Congress shall establish a national language commission composed of representatives of various regions and disciplines which shall undertake, coordinate, and promote researches for the development, propagation, and preservation of Filipino and other languages.

Science And Technology

Section 10. Science and technology are essential for national development and progress. The State shall give priority to research and development, invention, innovation, and their utilization; and to science and technology education, training, and services. It shall support indigenous, appropriate, and self-reliant scientific and technological capabilities, and their application to the country's productive systems and national life.

Section 11. The Congress may provide for incentives, including tax deductions, to encourage private participation in programs of basic and applied scientific research. Scholarships, grants-in-aid, or other forms of incentives shall be provided to deserving science students, researchers, scientists, inventors, technologists, and specially gifted citizens.

Section 12. The State shall regulate the transfer and promote the adaptation of technology from all sources for the national benefit. It shall encourage the widest participation of private groups, local governments, and community-based organizations in the generation and utilization of science and technology.

Section 13. The State shall protect and secure the exclusive rights of scientists, inventors, artists, and other gifted citizens to their intellectual property and creations, particularly when beneficial to the people, for such period as may be provided by law.

Arts And Culture

Section 14. The State shall foster the preservation, enrichment, and dynamic evolution of a Filipino national culture based on the principle of unity in diversity in a climate of free artistic and intellectual expression.

Section 15. Arts and letters shall enjoy the patronage of the State. The State shall conserve, promote, and popularize the nation's historical and cultural heritage and resources, as well as artistic creations.

Section 16. All the country's artistic and historic wealth constitutes the cultural treasure of the nation and shall be under the protection of the State which may regulate its disposition.

Section 17. The State shall recognize, respect, and protect the rights of indigenous cultural communities to preserve and develop their cultures, traditions, and institutions. It shall consider these rights in the formulation of national plans and policies.

Section 18. (1) The State shall ensure equal access to cultural opportunities through the educational system, public or private cultural entities, scholarships, grants and other incentives, and community cultural centers, and other public venues.

(2) The State shall encourage and support researches and studies on the arts and culture.

Sports

Section 19. (1) The State shall promote physical education and encourage sports programs, league competitions, and amateur sports, including training for international competitions, to foster self-discipline, teamwork, and excellence for the development of a healthy and alert citizenry.

(2) All educational institutions shall undertake regular sports activities throughout the country in cooperation with athletic clubs and other sectors.

ARTICLE XV

THE FAMILY

Section 1. The State recognizes the Filipino family as the foundation of the nation. Accordingly, it shall strengthen its solidarity and actively promote its total development.

Section 2. Marriage, as an inviolable social institution, is the foundation of the family and shall be protected by the State.

Section 3. The State shall defend:

(1) The right of spouses to found a family in accordance with their religious convictions and the demands of responsible parenthood;

(2) The right of children to assistance, including proper care and nutrition, and special protection from all forms of neglect, abuse, cruelty, exploitation and other conditions prejudicial to their development;

(3) The right of the family to a family living wage and income; and

(4) The right of families or family associations to participate in the planning and implementation of policies and programs that affect them.

Section 4. The family has the duty to care for its elderly members but the State may also do so through just programs of social security.

ARTICLE XVI

GENERAL PROVISIONS

Section 1. The flag of the Philippines shall be red, white, and blue, with a sun and three stars, as consecrated and honored by the people and recognized by law.

Section 2. The Congress may, by law, adopt a new name for the country, a national anthem, or a national seal, which shall all be truly reflective and symbolic of the ideals, history, and traditions of the people. Such law shall take effect only upon its ratification by the people in a national referendum.

Section 3. The State may not be sued without its consent.

Section 4. The Armed Forces of the Philippines shall be composed of a citizen armed force which shall undergo military training and serve as may be provided by law. It shall keep a regular force necessary for the security of the State.

Section 5. (1) All members of the armed forces shall take an oath or affirmation to uphold and defend this Constitution.

(2) The State shall strengthen the patriotic spirit and nationalist consciousness of the military, and respect for people's rights in the performance of their duty.

(3) Professionalism in the armed forces and adequate remuneration and benefits of its members shall be a prime concern of the State. The armed forces shall be insulated from partisan politics.

No member of the military shall engage, directly or indirectly, in any partisan political activity, except to vote.

(4) No member of the armed forces in the active service shall, at any time, be appointed or designated in any capacity to a civilian position in the Government, including government-owned or controlled corporations or any of their subsidiaries.

(5) Laws on retirement of military officers shall not allow extension of their service.

(6) The officers and men of the regular force of the armed forces shall be recruited proportionately from all provinces and cities as far as practicable.

(7) The tour of duty of the Chief of Staff of the armed forces shall not exceed three years. However, in times of war or other national emergency declared by the Congress, the President may extend such tour of duty.

Section 6. The State shall establish and maintain one police force, which shall be national in scope and civilian in character, to be administered and controlled by a national police commission. The authority of local executives over the police units in their jurisdiction shall be provided by law.

Section 7. The State shall provide immediate and adequate care, benefits, and other forms of assistance to war veterans and veterans of military campaigns, their surviving spouses and orphans. Funds shall be provided therefor and due consideration shall be given them in the disposition of agricultural lands of the public domain and, in appropriate cases, in the utilization of natural resources.

Section 8. The State shall, from time to time, review to increase the pensions and other benefits due to retirees of both the government and the private sectors.

Section 9. The State shall protect consumers from trade malpractices and from substandard or hazardous products.

Section 10. The State shall provide the policy environment for the full development of Filipino capability and the emergence of communication structures suitable to the needs and aspirations of the nation and the balanced flow of information into, out of, and across the country, in accordance with a policy that respects the freedom of speech and of the press.

Section 11. (1) The ownership and management of mass media shall be limited to citizens of the Philippines, or to corporations, cooperatives or associations, wholly-owned and managed by such citizens.

The Congress shall regulate or prohibit monopolies in commercial mass media when the public interest so requires. No combinations in restraint of trade or unfair competition therein shall be allowed.

(2) The advertising industry is impressed with public interest, and shall be regulated by law for the protection of consumers and the promotion of the general welfare.

Only Filipino citizens or corporations or associations at least seventy per centum of the capital of which is owned by such citizens shall be allowed to engage in the advertising industry.

The participation of foreign investors in the governing body of entities in such industry shall be limited to their proportionate share in the capital thereof, and all the executive and managing officers of such entities must be citizens of the Philippines.

Section 12. The Congress may create a consultative body to advise the President on policies affecting indigenous cultural communities, the majority of the members of which shall come from such communities.

ARTICLE XVII

AMENDMENTS OR REVISIONS

Section 1. Any amendment to, or revision of, this Constitution may be proposed by:

(1) The Congress, upon a vote of three-fourths of all its Members; or

(2) A constitutional convention.

Section 2. Amendments to this Constitution may likewise be directly proposed by the people through initiative upon a petition of at least twelve per centum of the total number of registered voters, of which every legislative district must be represented by at least three per centum of the registered voters therein. No amendment under this section shall be authorized within five years following the ratification of this Constitution nor oftener than once every five years thereafter.

The Congress shall provide for the implementation of the exercise of this right.

Section 3. The Congress may, by a vote of two-thirds of all its Members, call a constitutional convention, or by a majority vote of all its Members, submit to the electorate the question of calling such a convention.

Section 4. Any amendment to, or revision of, this Constitution under Section 1 hereof shall be valid when ratified by a majority of the votes cast in a plebiscite which shall be held not earlier than sixty days nor later than ninety days after the approval of such amendment or revision.

Any amendment under Section 2 hereof shall be valid when ratified by a majority of the votes cast in a plebiscite which shall be held not earlier than sixty days nor later than ninety days after the certification by the Commission on Elections of the sufficiency of the petition.

ARTICLE XVIII

TRANSITORY PROVISIONS

Section 1. The first elections of Members of the Congress under this Constitution shall be held on the second Monday of May, 1987.

The first local elections shall be held on a date to be determined by the President, which may be simultaneous with the election of the Members of the Congress. It shall include the election of all Members of the city or municipal councils in the Metropolitan Manila area.

Section 2. The Senators, Members of the House of Representatives, and the local officials first elected under this Constitution shall serve until noon of June 30, 1992.

Of the Senators elected in the elections in 1992, the first twelve obtaining the highest number of votes shall serve for six years and the remaining twelve for three years.

Section 3. All existing laws, decrees, executive orders, proclamations, letters of instructions, and other executive issuances not inconsistent with this Constitution shall remain operative until amended, repealed, or revoked.

Section 4. All existing treaties or international agreements which have not been ratified shall not be renewed or extended without the concurrence of at least two-thirds of all the Members of the Senate.

Section 5. The six-year term of the incumbent President and Vice-President elected in the February 7, 1986 election is, for purposes of synchronization of elections, hereby extended to noon of June 30, 1992.

The first regular elections for the President and Vice-President under this Constitution shall be held on the second Monday of May, 1992.

Section 6. The incumbent President shall continue to exercise legislative powers until the first Congress is convened.

Section 7. Until a law is passed, the President may fill by appointment from a list of nominees by the respective sectors, the seats reserved for sectoral representation in paragraph (2), Section 5 of Article VI of this Constitution.

Section 8. Until otherwise provided by the Congress, the President may constitute the Metropolitan Manila Authority to be composed of the heads of all local government units comprising the Metropolitan Manila area.

Section 9. A sub-province shall continue to exist and operate until it is converted into a regular province or until its component municipalities are reverted to the mother province.

Section 10. All courts existing at the time of the ratification of this Constitution shall continue to exercise their jurisdiction, until otherwise provided by law. The provisions of the existing Rules of Court, judiciary acts, and procedural laws not inconsistent with this Constitution shall remain operative unless amended or repealed by the Supreme Court or the Congress.

Section 11. The incumbent Members of the Judiciary shall continue in office until they reach the age of seventy years or become incapacitated to discharge the duties of their office or are removed for cause.

Section 12. The Supreme Court shall, within one year after the ratification of this Constitution, adopt a systematic plan to expedite the decision or resolution of cases or matters pending in the Supreme Court or the lower courts prior to the effectivity of this Constitution. A similar plan shall be adopted for all special courts and quasi-judicial bodies.

Section 13. The legal effect of the lapse, before the ratification of this Constitution, of the applicable period for the decision or resolution of the cases or matters submitted for adjudication by the courts, shall be determined by the Supreme Court as soon as practicable.

Section 14. The provisions of paragraphs (3) and (4), Section 15 of Article VIII of this Constitution shall apply to cases or matters filed before the ratification of this Constitution, when the applicable period lapses after such ratification.

Section 15. The incumbent Members of the Civil Service Commission, the Commission on Elections, and the Commission on Audit shall continue in office for one year after the ratification of this Constitution, unless they are sooner removed for cause or become incapacitated to discharge the duties of their office or appointed to a new term thereunder. In no case shall any Member serve longer than seven years including service before the ratification of this Constitution.

Section 16. Career civil service employees separated from the service not for cause but as a result of the reorganization pursuant to Proclamation No. 3 dated March 25, 1986 and the reorganization following the ratification of this Constitution shall be entitled to appropriate separation pay and to retirement and other benefits accruing to them under the laws of general application in force at the time of their separation. In lieu thereof, at the option of the employees, they may be considered for employment in the Government or in any of its subdivisions, instrumentalities, or agencies, including government-owned or controlled corporations and their subsidiaries. This provision also applies to career officers whose resignation, tendered in line with the existing policy, had been accepted.

Section 17. Until the Congress provides otherwise, the President shall receive an annual salary of three hundred thousand pesos; the Vice-President, the President of the Senate, the Speaker of the House of Representatives, and the Chief Justice of the Supreme Court, two hundred forty thousand pesos each; the Senators, the Members of the House of Representatives, the Associate Justices of the Supreme Court, and the Chairmen of the Constitutional Commissions, two hundred four thousand pesos each; and the Members of the Constitutional Commissions, one hundred eighty thousand pesos each.

Section 18. At the earliest possible time, the Government shall increase the salary scales of the other officials and employees of the National Government.

Section 19. All properties, records, equipment, buildings, facilities, and other assets of any office or body abolished or reorganized under Proclamation No. 3 dated March 25, 1986 or this Constitution shall be transferred to the office or body to which its powers, functions, and responsibilities substantially pertain.

Section 20. The first Congress shall give priority to the determination of the period for the full implementation of free public secondary education.

Section 21. The Congress shall provide efficacious procedures and adequate remedies for the reversion to the State of all lands of the public domain and real rights connected therewith which were acquired in violation of the Constitution or the public land laws, or through corrupt practices. No transfer or disposition of such lands or real rights shall be allowed until after the lapse of one year from the ratification of this Constitution.

Section 22. At the earliest possible time, the Government shall expropriate idle or abandoned agricultural lands as may be defined by law, for distribution to the beneficiaries of the agrarian reform program.

Section 23. Advertising entities affected by paragraph (2), Section 11 of Article XV1 of this Constitution shall have five years from its ratification to comply on a graduated and proportionate basis with the minimum Filipino ownership requirement therein.

Section 24. Private armies and other armed groups not recognized by duly constituted authority shall be dismantled. All paramilitary forces including Civilian Home Defense Forces not consistent with the citizen armed force established in this Constitution, shall be dissolved or, where appropriate, converted into the regular force.

Section 25. After the expiration in 1991 of the Agreement between the Republic of the Philippines and the United States of America concerning military bases, foreign military bases, troops, or facilities shall not be allowed in the Philippines except under a treaty duly concurred in by the Senate and, when the Congress so requires, ratified by a majority of the votes cast by the people in a national referendum held for that purpose, and recognized as a treaty by the other contracting State.

Section 26. The authority to issue sequestration or freeze orders under Proclamation No. 3 dated March 25, 1986 in relation to the recovery of ill-gotten wealth shall remain operative for not more than eighteen months after the ratification of this Constitution. However, in the national interest, as certified by the President, the Congress may extend such period.

A sequestration or freeze order shall be issued only upon showing of a prima facie case. The order and the list of the sequestered or frozen properties shall forthwith be registered with the proper court. For orders issued before the ratification of this Constitution, the corresponding judicial action or proceeding shall be filed within six months from its ratification. For those issued after such ratification, the judicial action or proceeding shall be commenced within six months from the issuance thereof.

The sequestration or freeze order is deemed automatically lifted if no judicial action or proceeding is commenced as herein provided.

Section 27. This Constitution shall take effect immediately upon its ratification by a majority of the votes cast in a plebiscite held for the purpose and shall supersede all previous Constitutions.

The foregoing proposed Constitution of the Republic of the Philippines was approved by the Constitutional Commission of 1986 on the twelfth day of October, Nineteen hundred and eighty-six, and accordingly signed on the fifteenth day of October, Nineteen hundred and eighty-six at the Plenary Hall, National Government Center, Quezon City, by the Commissioners whose signatures are hereunder affixed.

Adopted:

Cecilia Munoz Palma, President

Ambrosio B. Padilla, Vice-President

Napoleon G. Rama, Floor Leader

Ahmad Domocao Alonto, Assistant Floor Leader

Jose D. Calderon, Assistant Floor Leader

Yusuf R. Abubakar, Felicitas S. Aquino, Adolfo S. Azcuna, Teodoro C.

Bacani, Jose F. S. Bengzon, Jr., Ponciano L. Bernagen, Joaquin G. Bernas,

Florangel Rosario Braid, Crispino M. de Castro, Jose C. Colayco, Roberto R.

Concepcion, Hilario G. Davide, Jr., Vicente B. Foz, Edmundo G. Garcia, Jose

Luis Martin C. Gascon, Serafin V.C. Guingona, Alberto M. K. Jamir, Jose B.

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Teodulo C. Natividad, Ma. Teresa F. Nieva, Jose N. Nollado, Blas F. Ople,

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Rosales, Rene V. Sarmiento, Jose E. Suarez, Lorenzo M. Sumulong, Jaime S. L.

Tadeo, Christine O. Tan, Gregorio J. Tingson, Efrain B. Trenas, Lugum L. Uka, Wilfrido V. Villacorta, Bernardo M. Villegas.

Attested by :

Flerida Ruth P. Romero, Secretary-General

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